LEGISLATIVE COUNCIL

Thursday 22 October 2026

The PRESIDENT (The Hon. Benjamin Cameron Franklin) took the chair at 10:00.

The PRESIDENT read the prayers and acknowledged the Gadigal clan of the Eora nation and its Elders and thanked them for their custodianship of this land.

Visitors

VISITORS

The PRESIDENT: I welcome to the public gallery four parliamentary staff members from the New Zealand Parliament who are participating in the reciprocal four-day parliamentary exchange program hosted by the New South Wales Parliament: Jem Gunn, Hansard Editor; Pavan Sharma, Manager of the House Office; Sid Chaffer-Melly, Senior Communications Adviser; and Maggie Donovan, Clerk of the Committee. They are very welcome here today. It was a pleasure to have afternoon tea with them yesterday, and I hope they have enjoyed their time in the New South Wales Parliament.

Bills

CRIMES AMENDMENT (SERIOUS ROAD CRIMES) BILL 2026

LOCAL GOVERNMENT AMENDMENT (LABOUR HIRE) BILL 2026

MOTOR VEHICLE SPORTS (PUBLIC SAFETY) REPEAL BILL 2026

NATIONAL PARK ESTATE (GREAT KOALA NATIONAL PARK RESERVATIONS) BILL 2026

First Reading

Bills received from the Legislative Assembly.

Leave granted for procedural matters to be dealt with on one motion without formality.

The Hon. PENNY SHARPE: I move:

That the bills be read a first time and published, standing orders be suspended according to sessional order for remaining stages and the second readings of the bills be set down as orders of the day for a later hour of the sitting.

Motion agreed to.

The Hon. PENNY SHARPE: According to standing order, I table the statements of public interest.

Statements of public interest tabled.

Motions

PAUL STARLING

The Hon. ROBERT BORSAK (10:03): I move:

(1) That this House acknowledges Mr Paul Starling's outstanding lifetime contribution to Australian and international martial arts over more than six decades and recognises his achievements as a pioneer of Goju Kai Karate in Australia, an internationally respected master instructor, competitor, referee, coach and administrator.

(2) That this House notes that Mr Paul Starling:

(a) commenced training in judo and karate in 1963 and was among the pioneering members of Goju Kai Karate in Sydney under Shihan Merv Oakley, subsequently becoming only the second student to achieve a black belt under his instruction;

(b) represented Australia at the first two World Karate-Do Championships conducted by the World Union of Karate-Do Organizations, now the World Karate Federation, in Japan in 1970 and France in 1972, remaining undefeated in the team events at the 1970 championships;

(c) was directed by Grand Master Gogen Yamaguchi in 1970 to establish a separate Goju Kai Karate branch in Sydney, and became a foundation member of the Federation of Australian Karate-Do Organisations in 1971, later known as the Australian Karate Federation;

(d) became the first graduate of the International Japan Karate-Do College in Tokyo in December 1973, following a year of intensive training under some of Japan's most distinguished karate and kobujutsu masters, graduating with the title of Shihan Renshi, Master Instructor;

(e) achieved an exceptional progression of senior martial arts qualifications, including:

(i) First Dan black belt in 1968, Second Dan in 1970, Third Dan in 1972, Fourth Dan in 1973, Fifth Dan in 1980, Sixth Dan and the title of Kyoshi in 1988, Seventh Dan in 1995, and Eighth Dan in 2014, followed by the prestigious karate title of Hanshi in 2018; and

(ii) Third Dan in Ryukyu Kobujutsu Hozon Shinko Kai in 1973, Fifth Dan in 1988, and Shihan, Sixth Dan, in 2022, recognising his expertise in traditional Okinawan weapons.

(f) served Australian and international karate in numerous leadership positions, including national secretary of the Federation of Australian Karate-Do Organisations, New South Wales State coach in kata and kumite, national A-level referee and judge, and contributor to the development of national coaching accreditation programs;

(g) became vice-president of the International Karate-Do Goju-Kai Association, director of its Oceania region and Australian branch chief in 1990, representing Australian karate at international championships, seminars and major organisational events;

(h) represented Australia as an international referee at the 1982 World Karate Championships in Taiwan, where his student and wife, Alexandra Sandie Starling, became the first Australian to win a medal at the World Karate Championships, securing bronze in women's kata;

(i) played an important role in the organisation of the 1986 World Karate Championships in Sydney;

(j) dedicated more than 60 years to teaching karate, kobujutsu and self-defence to thousands of Australians, including students at Macquarie University from 1970 to 2004, Knox Grammar School, Abbotsleigh, Barker College and TAFE programs, receiving a Macquarie University Vice-Chancellor's Award in recognition of his contribution;

(k) provided specialist self-defence and unarmed combat instruction to Australian military personnel, prior to United Nations peacekeeping deployments to Cambodia and Somalia, drawing upon his own military experience as a second lieutenant in the Australian Army from 1967 to 1972;

(l) coached and mentored numerous State, national and international karate champions and developed generations of senior instructors who have subsequently established distinguished martial arts careers in Australia and overseas;

(m) promoted Australian martial arts internationally through numerous training visits to Japan, taking groups of Australian students for advanced instruction, and through invitations to teach at major international seminars, including the thirtieth anniversary celebrations of Goju Kai in Sweden and Scandinavia in 2010; and

(n) received the BLITZ Hall of Fame Karate Instructor of the Year Award in 2000 and the Lifetime Tribute Award in 2002, recognising his exceptional achievements and longstanding contribution to martial arts, and was inducted into the Chojun Miyagi Society Hall of Fame by the World Goju Ryu Karate Alliance in November 2025.

(3) That this House thanks and acknowledges Hanshi Paul Starling for his extraordinary dedication over more than 60 years as one of Australia's pioneering and most distinguished senior karate instructors, recognising his exceptional legacy in the preservation, development and teaching of traditional Japanese and Okinawan martial arts; his contribution to Australian sporting achievement; his service to military personnel, schools and universities; and his lifelong commitment to fostering discipline, confidence, resilience, respect and personal achievement among generations of Australians.

Motion agreed to.

Documents

FORMER COMMISSIONER OF POLICE, KAREN WEBB

Tabling of Documents Reported to be Not Privileged

The Hon. MARK LATHAM (10:04): I move:

(1) That, in view of the report of the Independent Legal Arbiter entitled *Disputed Claim of Privilege—Former Commissioner of the NSW Police Force, Karen Webb*, dated Tuesday 20 October 2026, this House orders that The Cabinet Office produce within 7 days of the date of passing of this resolution, documents received on Friday 9 October 2026 from The Cabinet Office, considered not to be privileged by the Independent Legal Arbiter, subject to the redaction only of personal information explicitly listed in standing order 52 (7)(e)(i) to (vi).

(2) That, on receipt, the redacted document is authorised to be published.

Motion agreed to.

Motions

NSW POLICE FORCE

The Hon. RACHEL MERTON (10:04): I move:

(1) That this House notes the importance of visible, adequately resourced and responsive policing in maintaining community safety across New South Wales.

(2) That this House further notes that NSW Police Force officers are generally allocated to police area commands, police districts or specialist commands, rather than to individual police stations, and that staffing at individual stations can fluctuate daily in response to crime trends and intelligence-led operational requirements.

(3) That this House calls on the Government to ensure that police area commands and police districts are appropriately resourced to maintain responsive local policing, including at police stations serving regional, rural and growing communities.

(4) That this House acknowledges the work of NSW Police Force youth officers, youth liaison officers and school liaison police in preventing youth offending, supporting early intervention, administering the Young Offenders Act 1997, and building positive relationships between police, schools and young people.

(5) That this House further calls on the Government to continue investing in youth crime prevention, early intervention and diversion programs, and to ensure adequate numbers of police in youth-specific roles.

Motion agreed to.

HOUSING

The Hon. RACHEL MERTON (10:04): I move:

(1) That this House recognises the importance of delivering additional housing across New South Wales supported by appropriate infrastructure, services and meaningful community consultation.

(2) That this House acknowledges the vital role of local councils in representing their communities, understanding local needs and informing decisions about housing, land use and development.

(3) That this House affirms that residents should have genuine opportunities to contribute to housing strategies, rezoning proposals and significant developments affecting their neighbourhoods before decisions are made.

(4) That this House further recognises that effective consultation requires accessible information, adequate time to respond and transparency about how community feedback has informed planning decisions.

(5) That this House calls on the Government to:

(a) work collaboratively with local councils and communities when developing and implementing housing plans and planning reforms;

(b) ensure councils retain a meaningful role in shaping the location, scale and character of development in their local areas;

(c) protect opportunities for affected residents to be notified and heard on developments that materially impact them; and

(d) ensure housing growth is coordinated with the delivery of transport, schools, health services, open space and other essential infrastructure.

Motion agreed to.

ANTHONY COLE

The Hon. MARK BUTTIGIEG (10:05): I move:

(1) That this House notes that:

(a) on 18 September 2026, Anthony Cole was declared President of the Timber, Forestry and Textile Union [TFTU] NSW Branch where he previously served as vice-president;

(b) Anthony is an employee at Porta Oberon timber mill working as a line operator, following in the footsteps of four generations whereby seven Cole family members have worked across the two Oberon timber mills and Anthony's son, Jimmy, is the latest in this proud family tradition having started work at Porta Oberon this year; and

(c) Anthony is committed to delivering for the next generation and stresses that it is about making sure they have secure jobs, fair pay and safer workplaces so that they can continue to sustain and grow the industry to support the local community.

(2) That this House congratulates Anthony Cole and the TFTU led by Secretary Alison Rudman, for always putting members' interests first and empowering them to deliver secure, safer and fairer workplaces for our future generations.

Motion agreed to.

DALLUS ARNOLD

The Hon. MARK BUTTIGIEG (10:05): I move:

(1) That this House notes that:

(a) on 18 September 2026, Dallus Arnold was declared Vice President of the Timber, Forestry and Textile Union [TFTU] NSW Branch; and

(b) Dallus is a staunch and committed advocate for his community and a longstanding, proud member of the TFTU.

(2) That this House further notes that:

(a) Dallus Arnold grew up in Bathurst, living in Perth as a young adult before moving back to Oberon to work at Porta, where he has been employed on the timber site for nine years; and

(b) Dallus' brother and mother, who is an ex-TFTU delegate, also work there, as well as his now wife Katy, whom he met working at Porta.

(3) That this House congratulates Dallus Arnold and the TFTU led by Secretary Alison Rudman for continuing to back in their members and encouraging them to lead others.

Motion agreed to.

TEMORA STATE EMERGENCY SERVICE FIFTIETH ANNIVERSARY

The Hon. STEPHEN LAWRENCE (10:06): I move:

That this House notes that:

(a) on 15 August 2026, the mighty Temora State Emergency Service unit celebrated its fiftieth anniversary, half a century of saving lives, responding to disasters, providing another way for locals to bond together and serve the community;

(b) an inflatable rescue boat was also handed over on the day, which will come into much use by the unit, which has been called out to as many as 62 incidents in the past four years; and

(c) the joint anniversary and open day was also attended by Superintendent and Deputy Zone Commander Shane Hargrave; Volunteer Engagement Officer Kiara Bruest; Temora Unit Inspector Tony Storm; Temora Unit Senior Group Officer James Gault; member for Cootamundra, Ms Steph Cooke, MP; Temora Shire Mayor Rick Firman; Inspector Chris Wallace, Local Emergency Operations Controller; and Rural Fire Service Superintendent Mick Gore.

Motion agreed to.

NOBEL PEACE PRIZE

The Hon. STEPHEN LAWRENCE (10:06): I move:

(1) That this House notes that:

(a) the 2026 Nobel Peace Prize recipient is South African-born 85-year-old Dr Navi Pillay, recognised on 9 October 2026;

(b) Dr Pillay was born in Durban, South Africa, under apartheid on 23 September 1941 and becomes the oldest woman to be recognised by the Norwegian Nobel Committee for "her efforts to promote peace and international law";

(c) in 1995 Dr Pillay became a judge and president of the International Criminal Tribunal for Rwanda, four years after being appointed to the High Court of South Africa; and

(d) Dr Pillay is a Doctor of Juridical Science, from Harvard University, and has a long and storied career in fighting for justice, including against apartheid.

(2) That this House congratulates and commends the outstandingly worthy Dr Pillay for winning the Nobel Peace Prize, over the 207 other nominees globally.

Motion agreed to.

DUBBO CROSS-CULTURAL CARNIVALE

The Hon. STEPHEN LAWRENCE (10:06): I move:

(1) That this House notes that:

(a) Dubbo's famous Cross-Cultural Carnivale took place at Ollie Robbins Oval on 19 September 2026, supported by the Minns Labor Government, and attendees included Dubbo mayor, Josh Black; local member, Dugald Saunders; and duty MLC for Dubbo, Stephen Lawrence;

(b) Orana Residents of Indian Sub-Continental Heritage Association [ORISCON] organises the festival and it first started in 2017 in response to Dubbo's growing multicultural community, with members from Bangladesh, Fiji, India, Malaysia, Nepal, Pakistan, Singapore, South Africa and Sri Lanka; and

(c) as of October 2026, 58 families in Dubbo and a further 37 families in the broader Orana region are members of ORISCON.

(2) That this House congratulates and thanks ORISCON chair, Mr Jaskarn Dillon; ORISCON vice chair, Mr Ram Jagdishwar; and secretary, Mr Salim Sazzard, for their organising and ongoing volunteer work to support multicultural families in Orana through ORISCON.

Motion agreed to.

WESTERN NSW LOCAL HEALTH DISTRICT AWARDS

The Hon. STEPHEN LAWRENCE (10:07): I move:

(1) That this House notes that:

(a) on Thursday 13 August 2026, the Western NSW Local Health District Awards were held in Dubbo, celebrating the hardworking people across the health district; and

(b) attendees included duty MLC for Dubbo, Stephen Lawrence; Western NSW Local Health District CEO, Mark Spittal; NSW Health secretary, Susan Pearce; and local nurses and health professionals.

(2) That this House enthusiastically congratulates nominees, award winners and those recognised, including:

(a) Ann Humphrey, Western NSW Local Health District nominee for the Small Act of Kindness Award;

(b) Dr Colin McClintock, recognised for his dedicated service on the board; and

(c) Western NSW Local Health District Staff Member of the Year, Warren Williams.

Motion agreed to.

Committees

PORTFOLIO COMMITTEE NO. 2 - HEALTH

Reports

Dr AMANDA COHN: I table report No. 69 of Portfolio Committee No. 2 – Health entitled *Clean indoor air*, dated October 2026, together with transcripts of evidence, tabled documents, submissions, correspondence, additional information and answers to questions taken on notice and supplementary questions.

Dr AMANDA COHN (10:08): I move:

That the House take note of the report.

Australians spend 90 per cent or more of their time indoors. The air we breathe impacts our physical and mental health, our ability to focus and learn, and workplace safety and productivity. The water we drink from the tap is highly regulated. The food we eat is highly regulated. The air we breathe indoors is not. It is astonishing that indoor air quality has been largely unmeasured and unregulated for so long, and that is why this inquiry is so important. Air quality affects all of us, even though it is invisible. In New South Wales and nationally, inadequate monitoring and regulation have had significant impacts on health, equity of access to public spaces, community participation, work health and safety, and productivity.

Respiratory physician Professor Guy Marks said, "150 years ago, we decided, as a community, that everyone had the right to clean, safe water. With the guidance of engineers, this has been delivered. It is now time to do the same for clean, safe air." The committee made 11 findings and 38 recommendations to address this. Firstly, the Government must establish the governance frameworks required to regulate indoor air. This work includes establishing an indoor air quality strategy and an advisory council to give independent expert advice on reform, and appointing a minister to lead the work. We call for immediate expert advice on a State system of indoor air quality monitoring and for the Government to advocate for health-based performance standards at a national level. Clean indoor air is important for all of us, but it can mean life and death for someone who is chronically ill.

The inquiry heard from individuals and their families who go to extraordinary lengths to protect their health from poor air and the risk of infection transmission. The onus should not be on individuals; everyone should be able to access public spaces safely. It is an accessibility issue. We have gold standard indoor air quality here at Parliament. The carbon dioxide in the Chamber is currently 721 parts per million, which is good. But everyone across the State deserves to breathe air free of pollutants and pathogens. It is inequitable that we have gold standard air quality here while public buildings across the State are not held to the same standard. The committee recommended a program to develop and fund the retrofitting of existing public buildings, starting with priority settings including schools, health and aged-care facilities, and public and social housing.

The inquiry heard about children who wear masks to school because the air in their classroom is so poor. The report recommends low-cost air quality sensors in public school classrooms and learning spaces, and government-funded retrofitting of automated mechanical ventilation in public schools, so that clean air in classrooms is automatic and not a burden for students or teachers. We heard from a mother who has had to fight for her kids to access their basic rights to participate in community life, including their education, without putting their health at risk. But it should not take a mother campaigning at the school level for her kids to have clean air in their classrooms, access to school excursions and safe transport.

Every day people across New South Wales rely on trains, buses, trams and ferries to get to work or school. For many, that means sharing air in a space that is enclosed and crowded. The committee recommended an audit of those spaces to assess the quality of that air. Indoor air is not routinely monitored in public hospitals in New South Wales. The committee made several recommendations to improve indoor air quality at our public

hospitals. The committee heard distressing evidence about mould inside people's homes. Renters and home owners told us how it had affected their physical and mental health. Some renters developed respiratory problems.

The evidence is clear that New South Wales does not need to reinvent the wheel. Victoria already requires rental properties to be free of mould and damp related to the building structure before they can be listed. It also requires landlords to disclose any history of water penetration or mould remediation before a tenancy begins. Protections for renters against mould and damp were opposed entirely by Liberal and Nationals members, and Labor members weakened them to something the Government should consider rather than act on now. Despite the long list of valuable recommendations in the final report, I was disappointed that some committee members watered down the findings. Air quality affects all of us, but a majority of committee members voted to limit the findings to "some sectors of the population". Everyone benefits from clean air.

The inquiry heard significant evidence that air quality impacts not only health and safety but focus, learning and productivity. That is as relevant in every workplace because it is in every public building. We heard clear evidence from experts, health workers and community members on gas appliances and wood heaters. The risk of a child developing asthma is 30 per cent to 40 per cent greater if there is a gas stove in the home, but Liberal, Nationals and Labor MPs voted together to ensure that the report contains no meaningful recommendations on that. A wood heater buyback, a ban on gas connections to new buildings and the removal of wood heaters at the point of sale were not seriously considered. Even moderate reforms such as health warnings at the point of sale and a public awareness campaign were, astonishingly, a step too far for the majority.

Second-hand smoke remains a problem. This month the Minister for Health said that, in his view, illicit tobacco and vaping are the biggest public health challenges facing his children's generation. Public health experts advised the committee to end the exemptions that permit smoking inside some areas of the Star and Crown casinos, and to amend the definition of "enclosed public place", which lets pubs, clubs and bars classify areas as outdoors even when they are up to 75 per cent enclosed. That recommendation was gutted from the final report. It is a clear demonstration of the enduring power of the gas, tobacco, alcohol and gambling industries that those reforms were excluded entirely by Liberal, Nationals and Labor MPs voting together.

The Greens will fight to implement the recommendations of the inquiry and the ones left on the cutting room floor. The inquiry received 101 submissions and three supplementary submissions, and heard from 55 witnesses across four public hearings. I thank every single one of them for sharing their insights, advice and experiences. I give a special shout-out to Plum Stone, who is in the public gallery today with her daughter Alice. Plum has been a fierce advocate for clean indoor air quality through the Safer Air Project. I also thank my fellow committee members for their genuine and constructive engagement with the inquiry and the committee secretariat for their support. Professor Brendan Crabb, an infectious disease expert at the Burnet Institute, said clean indoor air is "the lowest hanging fruit for transformational public health change". By implementing the recommendations in the report, New South Wales can lead the way.

Debate adjourned.

The PRESIDENT: I also take this opportunity to welcome Plum Stone and her daughter Alice here today. They are both very welcome in the Parliament of New South Wales.

Documents

TABLING OF PAPERS

The Hon. JOHN GRAHAM: According to the Creative Statement to Parliament Act 2025, I table a report of the Department of Creative Industries, Tourism, Hospitality and Sport entitled *Creative Statement to Parliament 2026*.

ELECTRONIC MONITORING DEVICES

Return to Order

The CLERK: According to the resolution of the House of Wednesday 16 September 2026, I table:

(a) a return received on Wednesday 21 October 2026 from The Cabinet Office, together with an indexed list of documents;

(b) a return received on Wednesday 21 October 2026 from The Cabinet Office of documents subject to a claim of privilege; and

(c) a return received on Wednesday 21 October 2026 from The Cabinet Office of documents subject to a claim of personal information.

IDENTITY PROTECTIONS FOR PROCEEDINGS INVOLVING CHILDREN

Return to Order

The CLERK: According to the resolution of the House of Wednesday 14 October 2026, I table a return received on Wednesday 21 October 2026 from The Cabinet Office, together with an indexed list of documents.

FORMER SENIOR TRADE AND INVESTMENT COMMISSIONER

Return to Order

The CLERK: According to the resolution of the House of Wednesday 23 September 2026, I table:

(a) a return received on Wednesday 21 October 2026 from The Cabinet Office, together with an indexed list of documents; and

(b) a return received on Wednesday 21 October 2026 from The Cabinet Office of documents subject to a claim of privilege.

TRAIN FLEET MANUFACTURING AND REFURBISHMENT

Return to Order

The CLERK: According to the resolution of the House of Wednesday 23 September 2026, I table:

(a) a return received on Wednesday 21 October 2026 from The Cabinet Office, together with an indexed list of documents;

(b) a return received on Wednesday 21 October 2026 from The Cabinet Office of documents subject to a claim of privilege; and

(c) a return received on Wednesday 21 October 2026 from The Cabinet Office of documents subject to a claim of personal information.

WATER MANAGEMENT AND REGULATION

Return to Order

The CLERK: According to the resolution of the House of Wednesday 16 September 2026, I table:

(a) a return received on Wednesday 21 October 2026 from The Cabinet Office, together with an indexed list of documents;

(b) a return received on Wednesday 21 October 2026 from The Cabinet Office of documents subject to a claim of privilege; and

(c) a return received on Wednesday 21 October 2026 from The Cabinet Office of documents subject to a claim of personal information. [*During the giving of notices of motions*]

Notices

PRESENTATION

The PRESIDENT: All members are entitled to have their notices of motions heard in silence. Members will have an opportunity to participate in debate when the motions are moved.

Business of the House

POSTPONEMENT OF BUSINESS

The Hon. JOHN RUDDICK: I postpone business of the House notice of motion No. 7 until the next sitting day.

The Hon. PENNY SHARPE: I postpone business of the House notices of motions Nos 1 to 6 until a later hour of the sitting.

The Hon. PENNY SHARPE: I postpone Government business notices of motions Nos 1 to 6 until a later hour of the sitting.

Members

THE HON. PENNY SHARPE

The PRESIDENT: I wish the Hon. Penny Sharpe a very happy birthday.

Personal Explanation

THE HON. JOHN RUDDICK

The Hon. JOHN RUDDICK (10:48): By leave: There is often intrigue and innuendo in this place, which is a normal part of politics, but there is one rumour that I need to address. According to some reports in the media, I am about to defect to One Nation. For example, last week *The Sydney Morning Herald* published:

> … there are persistent rumours Libertarian MP John Ruddick will jump ship and lead the show in that house for One Nation next term.

There were other media reports as well. Relying on those reports—I do not blame him; it is in the mainstream media—and reflecting Labor's trembling fear of One Nation, last week the Hon. Mark Buttigieg told the House:

> … he is increasingly becoming the proxy for One Nation in this Chamber. If you want to know what working people are in for, should we have the misfortune of a One Nation New South Wales government, you only have to listen to what the Hon. John Ruddick says.

I take this opportunity to set the record straight. That rumour is fake news. I am proud to be a Libertarian MP and will be campaigning tirelessly over the coming months for our lead candidate, Gemma Noiosi, to join me at the upcoming New South Wales election. But I understand why some would come to that conclusion. There is a lot of policy overlap between the Libertarian Party and One Nation. In some areas, we are more One Nation than One Nation. But we do not agree on the last 10 to 20 per cent of issues. If I had an association with One Nation, that would cause disruption. Because One Nation has the growing potential to truly turn Australia around, I would not want to do anything to harm that potential.

I do feel a little presumptuous because I have not had any discussion with One Nation about defecting, but it is likely that the party would not even want me as a member because of those policy disagreements on the edges. I know that members who belong to the major parties often vote against their conscience in the name of party unity, and I understand that calculation. Poor old Greg Donnelly had to vote against his conscience all the time. But I have been in this place for almost four years now, and I have become accustomed to speaking and voting my libertarian conscience. I suspect there will be a significant One Nation presence in the Parliament and in the Chamber in a few months, and I am excited about its arrival. But it would not be good for that promising movement to have a new member who is not quite the right fit. When I left the Liberal Party, the Hon. Chris Rath said that the party had lost a troublesome tenant and gained a friendly neighbour. My hope is to be a friendly neighbour to all parties on the right—major and minor.

The Libertarian Party is a proudly ideological party. One Nation is a commonsense party. To its credit, its common sense very often takes it to similar policy conclusions as us, but not always. The Westminster convention only has room for one major party of government on the left and one major party of government on the right. At the moment we are witnessing a once-in-a-century battle for which party will be the party on the right: the grand old party of Australian politics—the Liberal-Nationals Coalition—or One Nation, with its extraordinary rise in support. This is a titanic battle. While both parties may still be with us in five years, only one will be left standing as the party of government on the right. The other will be either a minor party or shut down. I have no idea which party will win that battle, but whichever does will produce better State and Federal governments if there is a Libertarian corner in every parliamentary Chamber across Australia.

The Libertarians are unrelenting in their voice for lower taxes, free enterprise, civil liberties and free speech, and sceptical of the military industrial complex that keeps dragging us into ever more wars, ever more debt and having ever more refugees. The problem with political success is that a party of government becomes a magnet for spivs and opportunists who will dilute a purist message. Having a few Libertarians around to help drag a major party in a purist policy direction can only be a good thing. It may well be that Pauline Hanson is the Prime Minister that Australia needs right now. Her appeal is multidimensional, but the core of her support is her consistency as an immigration hawk. She has been vindicated on that, as events in France demonstrate with frightening alarm. I was one of the few in the public gallery when Mrs Hanson gave her maiden speech to the Commonwealth Parliament in 1996. Along with my then boss, Ross Cameron, I went to her office afterwards to wish her well. We are proud to have done that.

I also highly admire Federal Opposition leader Angus Taylor. If voters listen to his policies, they are the best of any Liberal leader since Robert Menzies. It is not Angus' fault but, at this stage, voters are not tuning in to Liberal Party messaging. That will change as we approach a Federal election. I think there is a good chance the next election will be the Angus Taylor moment. The best hope for the Liberal Party is to embrace the democratic reforms that are now a feature of all the parties in the United Kingdom and Canada where the party membership elects the parliamentary leader.

If the Liberal Party wants a future of success and wants to make a permanent comeback as the natural party of government, it needs to embrace that reform. If it does so, its membership will surge. The winner of a membership contest, where hundreds of thousands of members vote, will need to combine bold right-wing policy with personal popularity. Angus Taylor has the capacity to do that. He has the brains and the natural popularity. The bottom line is that I am enthusiastically campaigning for the election of my very good friend the Libertarian Party candidate Gemma Noiosi. While Gemma and I see eye to eye on our policies, I warn that she will be more combative and outspoken than the first Libertarian in the Chamber.

Ministerial Statements

CREATIVE STATEMENT TO PARLIAMENT

The Hon. JOHN GRAHAM (Special Minister of State, Minister for Transport, Minister for the Arts, and Minister for Music and the Night-time Economy) (10:54): I wish to make a ministerial statement. This morning I tabled the first Creative Statement to Parliament under the Creative Statement to Parliament Act 2025. Three years ago, we set out on a journey to secure our creative industries long into the future, with the launch of the Creative Communities policy. New South Wales is fortunate to have such a rich world of arts and culture, a world that is both ancient and modern. The 10-year plan mapped out how to secure, support and broaden those worlds over the next decade.

Make no mistake, this State is a creative powerhouse, whether it be through music, literature, theatre, fashion, screen and digital games, technology or visual arts. Before this statement, there was a smaller view of arts and culture. Thanks to a creative industries focus, that view has become much larger. Previously, there was no reform of the Arts and Cultural Funding Program to grow investment in Western Sydney and the regions. There was no Contemporary Music Strategy or NSW Music Prize. Sound NSW did not exist. There was no Screen and Digital Games Industries Act that recognised digital games alongside film and television as a core industry. There were no vibrancy reforms, which have removed many barriers to arts and culture and supported venues. Creative sectors were undervalued, but now they are enshrined in a formal creative industries policy.

We introduced that policy in 2023. Since that journey started, we have seen tremendous growth in our creative sectors. The statement reveals that, between 2022 and 2025, New South Wales creative industries grew by 9.8 per cent per annum, contributing nearly $60 billion to the State's economy. The broader New South Wales economy grew by 6.2 per cent in the same period. The statement shines a light on the creative achievements here at home, as well as the international successes. Students in Western Sydney are taking part in groundbreaking music education programs, transforming their academic results. On the world stage, Indigenous dance pioneers Bangarra won the Golden Lion at the Venice Biennale. In fashion, Zimmermann and Song for the Mute, a company that makes its clothes in Marrickville, were both included in the official Paris Fashion Week schedule. In literature, author Liane Moriarty remains a global phenomenon, with her latest book *Big Little Truths*. On the stage, the Sydney Theatre Company received several Tony nominations and won two for its production of *The Picture of Dorian Gray* with Sarah Snook.

Alongside those successes, there are great challenges, including cost-of-living pressures, the looming wave of AI, and calls for the removal of creatives' rights to the ownership of their own work. That has created a feeling of uncertainty unlike any we have had before. It is exactly because of those challenges that this first Creative Statement to Parliament is necessary. The statement encourages and urges future governments and future Ministers to raise their aspirations for the arts every three years. Music, art, theatre, film, fashion, literature and dance make life special and give us meaning as humans. They deserve protection and the backing of government. There are two long-term ways to support arts and culture. One is to get all the States to support Federal tax reform to support the cultural sector and help our Federal counterparts deliver on their Revive policy vision, which our strategy strongly supports. The second is that we need to do more to build audiences for arts and culture across the board. That is something we can to do lift all arts and culture boats.

I thank Kerri Glassock and the team at Create NSW. In my office, I thank Anna Burns and Clara Klemski, and the many talented agency staff I have worked with. I thank those in the sector who contributed to the statement. We live in uncertain times and in an era of intense polarisation. In the midst of that polarisation, artistic expression and storytelling has the power to bring people together and unite communities. We must not lose sight of that power as we look to the future. It is one of the strengths of our State. I commend the statement to the House.

The Hon. CHRIS RATH (10:58): The Opposition is also proud to support the Creative Statement to Parliament, which the New South Wales arts Minister is legally required to table in Parliament every three years. As the Minister has summarised, it sets out the state of arts, culture and creative industries in New South Wales. Like the Minister and the Government, the Opposition also wants to make sure that Sydney is the best city for arts, culture and creativity in Australia and, indeed, in the Southern Hemisphere. Melbourne has absolutely nothing on us.

Opposition members are also very proud of what we did in government—for instance, creating Create NSW. Last week I was at Sculpture by the Sea, which is a proud beneficiary of some of the funding from Create NSW. We are proud of the Made in NSW fund. We are proud of building, completing and opening the Sydney Modern Project, which you were able to launch, Mr President, when you were the Minister. We are proud of moving the Powerhouse Museum to Parramatta. It is good that it will be opening shortly. We are proud of the significant investments we made in cultural infrastructure and the completion of projects at Hyde Park Barracks, the Australian Museum and the Walsh Bay Arts Precinct. It is truly amazing to have an arts precinct with so many

arts institutions in one place. We are proud of the Creative Capital fund. We are proud of the Bundanon Art Museum. I was there for the Arthur Boyd exhibition just over—

The PRESIDENT: Order! According to sessional order, proceedings are now interrupted for questions.

Questions Without Notice

NEW ENGLAND RENEWABLE ENERGY ZONE

The Hon. DAMIEN TUDEHOPE (11:00): My question is directed to the Leader of the Government, and Minister for Energy. Will the Minister confirm that the now-cancelled Oven Mountain pumped hydro project was to contribute 29.5 per cent of the planned 3,050 megawatts of firming capacity and energy storage and 36 per cent of the planned megawatt hours of storage depth for the New England Renewable Energy Zone, and inform the House what impact its cancellation will have on the current target date of 2034 for the go-live of six gigawatts?

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:01): I think I know what the Hon. Damien Tudehope is asking, although I am not sure that he does. I am very happy to answer the question.

The Hon. John Graham: He has been reading.

The Hon. PENNY SHARPE: I am pleased. He is a quick learner, which is very good. The issue is that his one question also contains a number of different questions. I understand that Alinta Energy has decided it will not progress the Oven Mountain long-duration storage project, as is its right. That is its decision. That does not change anything about the need for the New England Renewable Energy Zone. We have talked about that a lot this week. In particular, it is needed to replace the two coal-fired power stations that will be retired. A lot of other projects are—

The PRESIDENT: Order! The Hon. Wes Fang will come to order.

The Hon. PENNY SHARPE: I really wish that members would listen to what is going on. We have the Environmental Impact Statement for the New England Renewable Energy Zone. We will build the transmission lines that will move the energy we need across the State and into the National Electricity Market. We have the access scheme, which I explained to the House yesterday. It will make it very clear which projects will connect to that scheme and give important certainty to communities. A number of projects were proposed. It is not unusual for projects to be proposed and for some of them not to go ahead. That is quite normal. That is the planning system. Some members opposite are against every project, so I thought they would be happy about the decision.

I know that is not what the shadow Minister was suggesting when he asked the question. The Government's view is that the State needs to build the New England Renewable Energy Zone in a timely way as we retire coal-fired power. That does not change anything. The first step is dealing with the transmission lines, which are currently in the system and being worked through. The second part is the access scheme. In the meantime, projects are going through the planning approval process, and companies are making financial decisions about investment. [*Time expired.*]

The Hon. DAMIEN TUDEHOPE (11:03): Perhaps I can help the Minister.

The Hon. John Graham: That seems unlikely.

The Hon. DAMIEN TUDEHOPE: I am speed reading, let me tell you. The feasibility of the Oven Mountain pumped hydro project depended on the approval and timely construction of transmission line 965. EnergyCo decided to change the scope of that line from a basic regional link into a multi-user renewable energy zone asset, pushing back its completion to 2028. That has resulted in a flow-on delay until at least 2032 for the pumped hydro project, making it financially unviable for Alinta Energy's new owner, Indian power company Sembcorp, and a loss of $10 million of taxpayer money being given to Alinta Energy for the project, as well as a loss for local jobs and businesses in Kempsey. How did EnergyCo get that so wrong?

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:04): That was very argumentative—probably unnecessarily argumentative. I remind members that the project received funding under the previous Government. The concern about the time frames is pretty interesting from those opposite, given that many of them are trying to do everything that they can to slow down every project—in fact, to stop almost every project. Members opposite must decide whether they support the rollout as we need to do it. Are they sort of supporting it, but it kind of depends, and they just want to fuss and carry on? Do they want to abandon the whole thing? The Opposition should be up-front with the people of New South Wales about how it will manage the energy system. This Government is managing

the energy system very well. If members want to talk about long-term duration and storage, let us talk about the 39-fold increase in storage in the past three years. [*Time expired.*]

SCIENCE AND INNOVATION FUND

The Hon. BERNARD GOVIND (11:05): My question without notice is addressed to the Treasurer. Will the Treasurer update the House on how New South Wales is backing innovation with investment?

The Hon. Damien Tudehope: You have a new questioner.

The Hon. DANIEL MOOKHEY (Treasurer) (11:05): I do have a new questioner! I have to say, what a great question. To be very clear, I will settle for any questioner. In the absence of questions from members opposite, I am glad that I have the honour of the member's second question. Hear, hear! Well done. What a great question it was. He asked me about innovation—

The PRESIDENT: Members will come to order. The Treasurer has the call.

The Hon. DANIEL MOOKHEY: I am very pleased to tell the Hon. Bernard Govind that while New South Wales is home to some of the best universities in the world, too often, sadly, the value created here leaves the State. That is why last month I joined the skills Minister, the innovation Minister, the Minister for Finance and several vice-chancellors from the State's top universities to launch a $150 million science and innovation fund. That fund will help establish a new statewide investment pipeline to help turn research into businesses, jobs and growth. I know the new member will be very eager to learn that the fund arises from the Pounder Review, which was commissioned early in the term of this Government, and the NSW Innovation Blueprint, which is much beloved by this House. I am so thrilled that we are able to back the ecosystem that emerges from the hard work of our State's academics, which creates new investment opportunities that then give rise to more jobs in New South Wales. We will continue to back science in this State. We will continue to back our universities. We will use them as a big source of our comparative advantage— [*Time expired.*]

The PRESIDENT: I welcome William Bird as a guest in my gallery. He is an intern in the office of the Hon. Chris Rath.

MENTAL HEALTH SERVICES

The Hon. SARAH MITCHELL (11:08): My question is directed to the Minister for Mental Health. Will the Minister confirm that on 1 October a mental health emergency operations centre was activated for the Western Sydney Local Health District because the service has been operating at black escalation status? Is that emergency operations centre still operating today, and what additional resources have been provided for the district to respond?

The Hon. ROSE JACKSON (Minister for Water, Minister for Housing, Minister for Homelessness, Minister for Mental Health, and Minister for Youth) (11:08): I thank the member for the question. I am not able to confirm the status of that operation as requested. I am happy to seek some additional information and come back to the member, if possible, by the end of question time.

The Hon. SARAH MITCHELL (11:08): I thank the Minister for her answer, and I appreciate that she has taken the question on notice. However, I find it a bit concerning that the Minister is not aware. I have been made aware of some information from that health district, including a message to staff from the general manager of mental health services communication. It clearly stated, "Due to the ongoing and significant demand and access pressures being experienced across the mental health service and our continued operation at black escalation status, we are activating a mental health emergency operations centre to support the current demand and access effective from Thursday 1 October this year." That communication was provided to me by concerned people from the community and the health district. I am surprised that the Minister is not aware of it. I would appreciate the Minister providing whatever information she can about the black escalation status, because it is a fairly serious issue. It would be good if the Minister could provide the information by the end of question time.

ANZAC RIFLE RANGE

The Hon. ROBERT BORSAK (11:09): My question is directed to the Hon. Tara Moriarty, representing the Minister for Police and Counter-terrorism. Will the Minister confirm whether the New South Wales police shooting exercise conducted at the Anzac Rifle Range on 21 September 2026 was undertaken in full compliance with all applicable standing orders and standard operating procedures governing the use of the range?

The Hon. TARA MORIARTY (Minister for Agriculture, Minister for Regional New South Wales, and Minister for Western New South Wales) (11:10): I thank the member for the question, which was asked of me in my capacity representing the Minister for Police and Counter-terrorism. I am familiar with this very important range, which police use for practice. I do not know what happened in September, so I am happy to take

the question on notice. I will get specific information from the Minister for Police and Counter-terrorism and come back to the member and the House.

RECREATIONAL FISHING

The Hon. BOB NANVA (11:10): My question without notice is addressed to the Minister for Agriculture. Will the Minister update the House on how the Minns Labor Government is helping recreational fishers fish for the future?

The Hon. TARA MORIARTY (Minister for Agriculture, Minister for Regional New South Wales, and Minister for Western New South Wales) (11:11): I thank the Hon. Bob Nanva for his great question. I am pleased to report on the work we are doing to improve recreational fishing opportunities for people across New South Wales. Last weekend was Gone Fishing Weekend, which has expanded from Gone Fishing Day to an entire weekend because of the growing interest in recreational fishing in New South Wales. Today I announced the deployment of 34 fish aggregating devices, or FADs, up and down the coast, from Tweed Heads all the way down to Eden. The incredibly popular devices attract baitfish, which in turn attract sporting fish such as mahi-mahi, tuna and marlin for the enjoyment of recreational fishers who like sportfishing in our oceans.

The Government hosted a number of events over Gone Fishing Weekend, including at Grafton, Lake Illawarra, Lake Oberon, Mort Bay Park, Lake Macquarie, Lake Wallace and Mudgee, offering free fishing sessions, expert advice, casting practice and giveaways. On Saturday I was pleased to be joined by the Deputy Premier, Prue Car; the member for Penrith, Karen McKeown; and Greg Seeto, the new chair of the recreational fishing peak body, to release Australian bass fingerlings at Penrith Lakes. We announced that we are turning Penrith Lakes into Penrith Lakes Fishing Park, which is already being called "Penreef". The lakes are not currently available for public use, but the Government is investing $5 million to turn them into a fishing park to expand opportunities for recreational fishing for people in Western Sydney and across the State. More and more people want to get involved in recreational fishing, and they want to have more opportunities to fish. We listened to them and created Penreef in Penrith.

FREE-RANGE EGG INDUSTRY

Ms ABIGAIL BOYD (11:13): My question without notice is directed to the Minister for Agriculture. My recent order for the production of documents into the Food Authority's investigation and enforcement activities revealed a disturbingly high number of incidents of eggs being mislabelled, including eggs that were labelled as coming from some supposedly free-range farms that have been in the spotlight for astonishingly cruel animal welfare conditions and food safety breaches. Given the latest shocking news coming out of Mountain Pride Eggs, an egg farm in Peats Ridge on the Central Coast that calls itself free-range, what is the Minister doing to address the issue and guarantee public transparency about the supposedly free-range eggs being sold on our shelves?

The Hon. TARA MORIARTY (Minister for Agriculture, Minister for Regional New South Wales, and Minister for Western New South Wales) (11:14): I thank the member for her question. I know that she is interested in the work of the NSW Food Authority. The only broad issue relating to the regulation of the egg industry that has been brought to my attention is Mountain Pride Eggs. I covered that issue in my answer to Ms Abigail Boyd's question without notice last week. I am aware of the situation at Mountain Pride Eggs on the Central Coast, which was a free-range egg farm. The department received a number of complaints about the operation of that egg farm. Compliance activities occurred, including the euthanasia of chickens from the farm. I am advised that a virus impacted a number of chickens on the site.

The agency is working in accordance with the rules to ensure that none of the eggs supplied by the people who operate the farm are in circulation. Compliance work was undertaken over the weekend at food markets where the supplier is known to sell eggs, and I am advised that no issues were identified during that operation. We will continue to deal with any necessary compliance activity on the farm. It is a very sensitive issue. It has been an incredibly distressing period for the owner of this business, but we all have to comply with the rules. We are working carefully with the owner on this sensitive situation.

Ms ABIGAIL BOYD (11:16): I sincerely thank the Minister for her answer. There have been a number of incidents reported across Australia. The Australian Competition and Consumer Commission is currently looking into instances of mislabelling of eggs. The papers we received show the number of breaches of egg-stamping requirements, which I found very disturbing. Egg manufacturers stamp each egg so that we know where it comes from and what batch it was in. There have been routine breaches of egg-stamping requirements. It is very hard to know if a farm is actually free-range if eggs are not stamped. I encourage the Minister to look further into that issue and perhaps establish a taskforce to address it.

E-BIKE REGULATION

The Hon. NATALIE WARD (11:17): My question is directed to the Minister for Transport. Data released today from the Australian Institute of Health and Welfare shows that the number of hospitalisations of e-bike riders in New South Wales has skyrocketed to 604 on the Minister's watch, with the largest increase occurring among young males. Is it now time for the Minister to admit that accountability cannot begin with a trip to the emergency room? Will the Minister back in the Opposition's e-bike licence plate policy?

The Hon. Mark Latham: Come in, Crusher.

The Hon. JOHN GRAHAM (Special Minister of State, Minister for Transport, Minister for the Arts, and Minister for Music and the Night-time Economy) (11:17): I thank the shadow Minister for her question. I also acknowledge the interjection of the Hon. Mark Latham. He is correct that we are sending a tough message to people who do the wrong thing. Things can go wrong for either the rider or anyone unfortunate enough to be in the path of their e-motorcycle missile, which is what some of the e-bikes are. That is why we have taken bikes off people in the northern beaches and in the south of our city, and I have watched those bikes being crushed. One bike was seized on the same morning that it was bought. We took it off a person who had paid thousands of dollars for it and we crushed it. We are trying to send that message because of the issues raised by the Hon. Natalie Ward.

We should not give people a green light to ride high-speed bikes, but that is still the policy of Opposition members. They do not care about the power or potential speed of the bikes. I call on Opposition members to reverse their approach.

They should really think about the message that is sending on the northern beaches and in Cronulla. It is sending the wrong signal. I would prefer that the Opposition reflect a little bit on that policy. The issues that the Hon. Natalie Ward is raising are important. That is why the Government is on the front foot here. I warn communities that New South Wales police and Transport for NSW officials will be out seizing illegal e-bikes and crushing them over the summer period. People will not know where or when those operations will be, until bikes are seized. It is unfortunate, but we have to do that, because of some of the issues the member is drawing attention to. I know that she is keen on high-speed bikes. The position of the former Government was "Up the power!" One of the Hon. Natalie Ward's last acts in office as transport Minister was to sign off on that. I ask the Opposition to reconsider its policy.

The Hon. NATALIE WARD (11:19): For all the Minister's spin, people are still getting injured. The Government talks about having crushed 22 bikes, but there are thousands of bikes out there. Whether caused by a legal or an illegal bike, the injury is the same. It is the behaviour that needs to be addressed. When will this Government stop its wilful ignorance of what is happening in our emergency departments? How many more warnings does the Government need? The transport Minister's credibility is up in *Flame Trees*, and any reasonable *Working Class Man* or woman wants this behaviour changed. We are clear about that.

Licence plates enable that change. If someone on a bike is out there doing the wrong thing, if they are a kid who does not know or follow the road rules, if they are going too fast, then, whether they are on a legal or an illegal bike, that rider can do damage, and that behaviour is not being stopped by this Government's policy. The Opposition believes that licence plates will enable that. Identification will prevent bad behaviour. Some of the kids on legal e-bikes go out there, ride fast and injure people. That behaviour on e-bikes is causing the spike in the number of young men admitted to our emergency rooms with fractures. [*Time expired.*]

The Hon. JOHN GRAHAM (Special Minister of State, Minister for Transport, Minister for the Arts, and Minister for Music and the Night-time Economy) (11:21): Now that we are in discussion time, I can reveal that I was expecting to be asked about the Sydney Southwest Metro and whether the Hon. Natalie Ward can get a special invite to go on it when it opens. It is just a week away. It will leave Bankstown station at 4.31 a.m. We are expecting a big crowd. The message to the shadow Minister and any of those opposite who want to claim credit for this project is that there is no special invite required. They should come along at 4.31 a.m. on Friday 30 October.

The Hon. Damien Tudehope: It's our project, mate. It's our project.

The Hon. JOHN GRAHAM: Come along, join the train-loving community. I know the shadow Minister loves the Tangaras, but I urge her to come along and have a look at this metro as it launches. I commend her song lyric references. Finally, I make this serious point: I am open to some of what the shadow Minister is suggesting. We are taking a pragmatic approach in this area. We will use vehicle identification numbers in the share-bike scheme, as we introduce that. We are going out to tender— [*Time expired.*]

The Hon. MARK LATHAM (11:22): An important objective for government is to minimise red tape. We have registration and licensing—we have too much bureaucracy in New South Wales already. It is not that

hard: If the police see an e-bike that is clearly going too fast, they can confiscate it. After a little delay, given he has now warmed up to the idea, the crushing Minister is onto these things like a rat up a drainpipe. He is all over it. All over Sydney, these kids live in fear of him. The e-bike gangs all have a picture of the Minister. They are saying, "He's the bloke we've got to worry about." The crushing is happening. To continue with the shadow Minister's lyric theme, very clearly, "The last bike out of Sydney's almost gone."

The Hon. JOHN GRAHAM (Special Minister of State, Minister for Transport, Minister for the Arts, and Minister for Music and the Night-time Economy) (11:22): It is true that the Government's attitude to this issue is crush one, educate thousands. That is the approach we are hoping to take.

The Hon. Anthony D'Adam: I don't think that's a Jimmy Barnes song.

The Hon. JOHN GRAHAM: It is not a Jimmy Barnes song. But we do hope to get the message out. The Hon. Mark Latham's point is sensible. This is why we are not piling on registration costs and licence plates for every legal, safe bike. We want a simple approach, where people can jump on and ride a bike. Please, wear a helmet. It costs about $1,000 to licence and register a moped. We do not want that cost just for a simple bike. Some things should be kept simple. Some things should not be subject to costs and red tape. That is exactly why we are taking the approach we are. We are sending a strong message, though, and that message is going out on our beaches.

YOUTH POLICY

The Hon. ANTHONY D'ADAM (11:23): My question without notice is directed to the Minister for Youth. Will the Minister update the House on how the Minns Labor Government is supporting young people in New South Wales?

The Hon. ROSE JACKSON (Minister for Water, Minister for Housing, Minister for Homelessness, Minister for Mental Health, and Minister for Youth) (11:24): I thank the honourable member for the question. The Government is doing lot of things to support young people in New South Wales. Obviously, we have our second Youth Summit coming up at the end of the year in Liverpool, in the heart of Western Sydney. The successful first Youth Summit was held two years ago. One of the things that we have done more recently is to announce three really significant grants programs for 2027. First, we are bringing back our successful Youth Week grants. Youth Week is awesome. We fund local councils to get events together. We encourage them to have youth councils to devise and deliver youth programs on their behalf. Not all of them do, but we encourage it. Youth Week is a fantastic opportunity, so we are funding local government to participate in it again.

Secondly, we are running the Holiday Break Grants Program. This is a really great program to make sure that young people, particularly those in areas where there is not necessarily a lot going on in the school holidays, have access to free activities. We want to make sure that no kids are left twiddling their thumbs during the school holidays. The grants support organisations to provide sport, STEM and creative activities, and everything in between. It is another really fantastic program that we are delivering. Thirdly, we have the Connect IRL Grants program.

The PRESIDENT: Opposition members will come to order.

The Hon. ROSE JACKSON: Unbelievable. Mr President, clearly those opposite did not listen to your admonition that perhaps they should keep it down. These grants came out of the Social Media Summit, where young people said, "Yes, we understand that the harms of social media need to be managed and that there will be delayed access to social media for young people, but the Government needs to invest in connection in real life." We are funding grassroots organisations to provide that. We have put more money on the table to facilitate the direct connection that young people have been calling for, and our grassroots partners are delivering.

ENERGY POLICY

Ms ABIGAIL BOYD (11:26): My question without notice is directed to the Minister for Climate Change, Minister for Energy, and Minister for the Environment. As we transition to net zero, we must promote efficient energy network investment and operation that is in the long-term interests of households. This means focusing only on investment in the lowest-emission, lowest-cost options to protect the immediate and long-term financial interests of energy consumers. All reports make clear that gas power is the most expensive form of electricity generation, and that plants that run rarely are even more expensive per megawatt hour delivered, and adding fuel contracts and onsite storage raises the costs further. Why, then, has the New South Wales Labor Government announced plans to tender for 1,500 megawatts of new gas-fired peaking plants with an operating life likely to extend beyond 2050, and what is the estimated cost to New South Wales electricity consumers of the long-term energy service agreements that will underwrite them?

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:27): That is a very long question. The short answer is that we need them. We are dealing with this because we are transforming our energy system from one that has relied on five or six coal-fired power stations providing base load power over a long period of time, to one that has many, many different power stations, through renewables—wind, solar and pumped hydro. There are also new storage systems, inclusive of batteries. But at the end of the day, we know, through all of the modelling and the work that we have done, that there are rare occasions when backup gas generation is needed. We believe that it will be a very, very small part of our energy system—less than 4 per cent, off the top of my head. It is currently around 2 per cent. We think it will be around 3 per cent as a result of the peaking tender that we are doing.

It is really important, but it is also very practical. It is about doing what we need to do to get to net zero but understanding that a mix of technology is needed to get there. We can put many renewables into the system because we have really good renewable resources and increased storage. As I said earlier in question time today, there has been an incredible 39-fold increase in storage. The good news, of course, is that batteries have halved in price. We now have the very large grid-forming batteries forming part of the system. But there are rare occasions when there is no wind, when we have a period of very low solar, and so we need backup there. That is what those peaker plants are for. They are not a major part of our system, but they are an essential part of it. It is something that this Government has absolutely no qualms about. It is part of the thoughtful work that is going into this once-in-a-generation change that gets us to net zero. [*Time expired.*]

Ms ABIGAIL BOYD (11:29): Yeah-no, I do not buy the Government's argument that it is "because we need them". Gas has always been permitted to bid for long-term energy supply agreements, but their projects never stack up economically against renewable energy, which is far more viable in these circumstances. But, effectively, this decision by the New South Wales Labor Government is massively tilting the table in favour of carbon-intensive projects, which deliver the very worst price outcomes for consumers. I am increasingly concerned about the Labor Government's redirection towards gas as though it is some big saviour and necessity for the renewable energy transition. It is just not true. At least the Liberal Government was honest about these things. If the Government wants to suck up to the fossil fuel industry, just tell us.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:30): I thought the member was doing quite well. Some of her rhetoric is often over the top. I find those comments offensive. We on this side of the House are the only party of government that is committed to net zero and is working through a plan to reduce emissions as legislated. We are doing what is necessary to practically and carefully manage a transition that we have never seen and that does not have the planning system nor the regulations to match the haste required. This is not easy, but it is absolutely fundamental. To suggest, as Ms Abigail Boyd does, that the Government is part of a fossil fuel conspiracy is deeply offensive and wrong. The point is the Government is being open and transparent, and is focused on building an energy system that underpins our economy into the future, keeps jobs in this State and that gets us to net zero. It is as simple as that.

The Hon. WES FANG (11:31): The Minister spoke about backup power. Obviously, the cancellation of the Oven Mountain pumped hydro project will create further stress on the State's grid, because the storage capacity that the Minister keeps talking about, which includes batteries, is disappearing. Ultimately, we need gas firming because we do not have reliable base load power in this State with all the coal-fired generation being removed from the system. What is the easiest way to create a stable grid? The answer is more coal-fired power. For some reason, the Government is continuing to progress the idea that renewables will be the solution. Batteries need power to charge them. The only way to charge them is by having excess in the grid. At the moment we are staring down the barrel of data centres using a lot of that power. Batteries will not help us— [*Time expired.*]

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:32): If the Hon. Wes Fang thinks that building coal-fired power stations at a cost of $57 billion up-front before putting a ton of coal into them will work, and if he thinks that the current daily outages that we have in coal-fired power are reasonable, sure, that is a great plan—but it is actually insane. It is too expensive. It means price spikes. It means the exact thing that we do not want, which is energy unreliability. New South Wales has a plan. It is a good plan, and we are working through it. I am disappointed by those who are casting around for other options—they do not want to make the tough decisions about what we have to do to make the transition happen. They are abdicating their responsibility to the people of New South Wales, the businesses of New South Wales, the economy of New South Wales and the people of regional New South Wales who are seeing $77 billion of investment that members opposite want to see disappear.

HOUSING SUPPLY

The Hon. NATASHA MACLAREN-JONES (11:33): My question is directed to the Minister for Housing, and Minister for Homelessness. Twelve months ago, Homes NSW acquired a Central Coast property

that had been managed by a local service provider and that provided eight transitional housing units for homeless men on the Central Coast. For the nine months since then, the property has remained boarded up and vacant, and now is reportedly being occupied by squatters. At a time when transitional housing is in crisis and homelessness services are under significant pressure, why has this property been left vacant and boarded up for nine months? Will the Minister commit to returning the property to the local service provider to house homeless men on the Central Coast?

The Hon. ROSE JACKSON (Minister for Water, Minister for Housing, Minister for Homelessness, Minister for Mental Health, and Minister for Youth) (11:34): I thank the Hon. Natasha Maclaren-Jones for the question. Who was the local service provider?

The Hon. Natasha Maclaren-Jones: Central Coast Shelter.

The Hon. ROSE JACKSON: Coast Shelter on the Central Coast is a fantastic organisation. We work a lot with them. I would imagine that the property is slated for redevelopment. That is a reason for occasionally having properties uninhabited for longer periods of time. The average turnaround time for our vacant properties is 28 days. I would prefer it to be eight days. I would prefer it to be two days. But, nonetheless, when we have vacant properties, it often takes a few weeks to do refurbishments to get them back into a state to have families move in. Occasionally it takes longer than that if there are major refurbishments. Also, occasionally we have redevelopment plans. The question referred to eight properties. Occasionally we have plans to transform properties into more housing. We have to work through the planning process to get our designs and development applications ready, and that takes a little bit more time.

Obviously, we do not like to see any properties sitting vacant, but for some of those reasons there are instances when that happens. I am happy to check the details and whether that has occurred in this instance. As I said, Coast Shelter is an excellent organisation. We work very closely with them on the Central Coast, as we do with Pacific Link Housing, which is our community housing provided on the Central Coast. We have building plans and redevelopment plans on the Central Coast. There is a lot pressure on the housing market. We are investing to ensure more public housing is coming on line. Sometimes, to do redevelopment works, homes have to be vacant for a little bit longer than we would like.

The Hon. NATASHA MACLAREN-JONES (11:35): The Minister was asked about this property in March this year. The response received was that the provider was given 12 months notice and the tenants were relocated, that it was earmarked for redevelopment that, and it was being re-tenanted. If it is true that there are squatters, the question is whether that is the new policy for this Government when it comes to vacant properties. The reality is that this property is boarded up. Homelessness on the Central Coast has doubled in the past 12 months, according to the street count. Across the State we have seen not only a homelessness crisis but also a housing crisis. The Minister constantly talks about the need for more transitional housing. This property is quite capable of housing men on the Central Coast as they transition into more permanent housing, yet it has remained vacant for over nine months. What will the Minister do about it?

The Hon. ROSE JACKSON (Minister for Water, Minister for Housing, Minister for Homelessness, Minister for Mental Health, and Minister for Youth) (11:36): The first thing I would say is that our Government instituted a new policy that was not even considered by the previous Government. When the Hon. Natasha Maclaren-Jones was the Minister, the issue was not even talked about. Under our new policy, in certain instances we try to do meanwhile use in properties that are slated for redevelopment. The member probably does not know what meanwhile use is because she was so uninterested in it. We have a formal policy of meanwhile use, where it is possible, for properties slated for redevelopment.

But, as I said, I understand the concept of redevelopment is a challenge for members opposite. They never did it. They never had any money for it. When we redevelop a property, we relocate our tenants. Then we go through the planning process, and we deliver more housing on that site. That is what we are doing in this instance, as we are doing in other instances. I know it is hard for people who never built a public home—they only sold them—to get their heads around that. But that is the policy of our Government.

The PRESIDENT: Order! The Minister was being quite incendiary. Having acknowledged that, all members will pull back a bit to enable Hansard to report question time effectively.

NIGHT-TIME ECONOMY

The Hon. PETER PRIMROSE (11:38): My question without notice is addressed to the Minister for Music and the Night-time Economy. Will the Minister update the House on progress made for the night-time economy and vibrancy in New South Wales?

The Hon. JOHN GRAHAM (Special Minister of State, Minister for Transport, Minister for the Arts, and Minister for Music and the Night-time Economy) (11:38): I thank the Hon. Peter Primrose for the question. When it comes to nightlife, for a long time it felt like our venues were trying to "start a fire without a spark", but the latest Visa Vibe Score Night-Time Economy Index shows that we are building the most exciting night-time economy in the country. Twelve out of the top 20 locations on that national index are in Greater Sydney. South-west Sydney is up eight spots to fifth in the country, and Blacktown is higher than Brisbane. It is far from the only index that has Sydney on the up when it comes to vibrancy. The Condé Nast Traveller Readers' Choice Awards have Sydney at fifth in the world as a top city destination. The Economist Intelligence Unit Global Liveability Index has Sydney at number four in 2026, climbing from sixth last year and seventh in 2024. On the Oxford Economics Global Cities Index, Sydney is up three places to thirteenth. The Time Out Global Best Cities List has Sydney jumping 10 places in two years, from thirty-first to twenty-first in 2026. The benchmarking report of the Committee for Sydney has Sydney in the top 15 for global magnetism.

I recognise the contribution of the Hon. Natalie Ward earlier and, in honour of Jimmy Barnes, we know that there ain't no second prize in lists like those. We know there is more to do. We know there are big challenges. But as vibrancy reforms take place, it is promising to see those results. The number of venues playing music has jumped from 133 to over 600. We have gone from one special entertainment precinct to 13, doubling outdoor dining approvals on public or private land and making it far easier to close a street or have a drink standing outside a pub. There was a time when locals and visitors alike were sick of sitting around, dying for some action in a city that went to bed too early. Right now, there is something happening somewhere on every corner of this city. Sydney is no longer just dancing in the dark. There is more to do, but the night-time economy is coming along.

TRANSPORT SENIOR SERVICE MANAGERS

Ms CATE FAEHRMANN (11:40): My question is directed to the Minister for Transport. It has nothing to do with the night-time economy. Transport senior service managers, or TSSMs, keep New South Wales moving across our roads, railways, buses and ferries. They oversee major infrastructure projects and make decisions that affect public safety. However, the TSSM employment framework no longer fairly recognises what is expected of them. I have met with Professionals Australia and affected TSSMs, who tell me that both the Minister and the Secretary of Transport for NSW have refused to meet with them to discuss their situation in relation to their salary classification, pay and conditions. Why will the Minister not meet with these workers and their union, and hear their concerns?

The Hon. JOHN GRAHAM (Special Minister of State, Minister for Transport, Minister for the Arts, and Minister for Music and the Night-time Economy) (11:41): I thank the member for her question. I am disappointed it was not about the fact that Sydney is rising in the global night-time index—but there is discussion time to come. She does raise a serious transport issue. I am aware of some concerns. A lot of budget and staffing pressures come with the very big budget of the transport agency. It is a significant agency. I do not accept that I am refusing to meet with any of the worker representatives. I am open to hearing more from the workers who the member raises the concern on behalf of. I am happy to hear their concerns and to meet.

I meet at least quarterly with all of the transport unions. It would be very inaccurate to say I am not prepared to meet; that is a regular meeting. It is usually a very frank discussion about a range of pressures on the transport system, or work conditions. It is a positive engagement, and I encourage all agency staff to make sure they are also sorting through those issues. We do not always agree. Not everything gets magically fixed, but of course there should be dialogue to support those issues. I invite the member to put more details about the concerns on the record in the Chamber, or I am happy to receive them directly from the member and I will certainly pay attention to them. I am not committing to agreeing with the concerns or fixing the issue without receiving more detail, but I am open to a dialogue.

Ms CATE FAEHRMANN (11:43): I will provide some more detail for the Minister. Transport senior service managers are responsible for delivering major transport projects, leading technical teams and ensuring the safe operation of critical transport infrastructure across New South Wales. Unlike their colleagues, who are covered by enterprise agreements and awards, TSSM members are employed on individual contracts and lack workplace protections available to the broader workforce. Existing classifications in the Roads and Maritime Services salaried staff award, and the Transport for NSW award, could provide a practical pathway to fairer conditions. Professionals Australia tells me that the current operation of section 68J of the Transport Administration Act limits the employer's ability to incorporate TSSMs into those classifications. The Minister and the transport secretary need to meet with these workers separately about this particular issue.

The Hon. JOHN GRAHAM (Special Minister of State, Minister for Transport, Minister for the Arts, and Minister for Music and the Night-time Economy) (11:44): I thank the member for the additional detail. That is helpful. For some context, Transport for NSW went through a major restructure following growth in the number of staff. We have reduced the number of staff in Transport for NSW, with significant job losses. That was

part of making sure we deliver for the public at effective cost. We ensured that the restructure was only after intense discussions. It did fall heavily on the senior executives at the very top of the organisation. That was one of the key requests of unions and members, including TSSM members. I am happy to continue this dialogue. The arrangements in place have been built up over decades. There are historical specifics to the TSSM position.

WASTE-TO-ENERGY FACILITIES

The Hon. NICHOLE OVERALL (11:45): My question is directed to the Minister for Energy. Given the parliamentary committee's recommendation for a moratorium and an independent review of designated waste-to-energy precincts, will the Government pause determination of the Parkes and Woodlawn proposals until it has responded to the report and completed that review?

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:46): There are a couple of things. One is that the Government is preparing its response to that inquiry in the usual way. I thank members and the community who participated in that inquiry. The second thing is that the issue around pausing, approving or not approving is actually part of the planning system. It is not a matter for me or the Minister for Planning and Public Spaces. Those projects are going through the legal planning process, as they are required to do. In relation to the Tarago project, sometimes called Veolia and sometimes called Woodlawn—we know which one we mean—I understand that it has been underway for quite a long time. The assessment of that continues.

I will need to check this, but I understand that the Parkes proposal is at the beginning of the process. I am not trying to mislead—and I will correct it if I am wrong—but I do not think there is a full environmental impact statement yet. I believe it has started, and I think the secretary's environmental assessment requirements have gone out. That is the process and it will continue. It is not dependent on the Government's response to the issues raised in the inquiry. The Government will respond to the inquiry in its normal way. Work has been done with both the Office of the Chief Scientist and Engineer and the Environment Protection Authority on the energy-from-waste proposals, including quite a comprehensive review of the consent conditions and standards required to be met in relation to those facilities. That work is publicly available, but we will continue to work through those matters. I reassure the member that the Government takes seriously the issues raised through the inquiry, which are being examined.

The Hon. NICHOLE OVERALL (11:48): I thank the Minister. I am pleased to hear she is going to consider it in detail because it involved significant work. Many of the things that the Minister raised in her response are inaccurate. Regional people deserve the Government giving due consideration to both the report and the position they have clearly expressed. Going to the first point the Minister made, it was utterly predictable she would go down the path of claiming it is out of the Government's hands. How the process progresses is potentially out of the Minister's hands in terms of the facilities. The moratorium is specifically related to the selection of the regional precincts. The lack of transparency, clarity and consistency in how that is being done needs to be reviewed so that communities can know how decisions are being reached.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:49): I gently put on record that areas with which energy-from-waste proposals can be considered were actually brought in by the previous Government and strongly supported by The Nationals. The former member for Monaro was really into it. The member for Goulburn, who was part of Cabinet, was involved in that project and supported it. As I have said, the Government is taking the matter seriously and is working through it. It is pretty disingenuous to call for everything to stop and pretend that nothing has gone before or that the matters were not considered by the previous Government. Those opposite used to provide bipartisanship on challenging issues, but now they are pretending that there is nothing to see here. [*Time expired.*]

BOGONG MOTHS

The Hon. STEPHEN LAWRENCE (11:50): My question is addressed to the Minister for the Environment. Will the Minister inform the House about the bogong moth migration?

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:51): I am glad to have this question. The first thing I say is that people in my house absolutely hate what is happening. They hate moths. There has been a war at our place because I have said that nobody is allowed to touch the moths. However, the return of the moths is a very good thing. I know that the Hon. Rose Jackson and the Hon. Sarah Mitchell hate moths, too. I get that. But we have got to suck it up, because it is really important. For thousands of years, the annual migration of bogong moths to the Australian Alps has been an important part of the cultural life of many Aboriginal peoples across south-eastern

Australia. As the moths travelled to the mountains each summer, Aboriginal groups came together to trade, share knowledge, hold ceremonies and strengthen connections between communities.

The PRESIDENT: Order! There is too much audible conversation coming from Government members.

The Hon. PENNY SHARPE: I thank the Aboriginal people who shared these stories with me when I indicated that I found dealing with the moths a bit hard. This migration is fantastic news. Moths are now endangered. The millennium drought almost wiped them out and we thought they might be gone forever. The population has been building over the past couple of years, which we think is most likely the result of increased rainfall, although there is much we still do not know. The migration is incredibly important for the environment, as the bogong moth plays an important role in pollinating plants along their migration route from the Darling Downs in Queensland to the Australian Alps—farmers should love them, too.

The moths undergo a huge migration every year as they fly south. Once they reach the mountains, they are the key food source for one of the cutest animals we have: the endangered mountain pygmy possum, which relies on the moth as a nutrient-rich food source across summer. The pygmy possums will soon be born on their rocky outcrops in Kosciusko National Park, and the moths will be there for them to feed on. If members are worried we are getting too much rain in the city, they should know that even the Bureau of Meteorology has been challenged by the number of moths. The moth migration is an important natural phenomenon, and we have to welcome it. I know members find it icky, but the moths will move on soon. [*Time expired.*]

MOUNT PLEASANT COALMINE

Ms SUE HIGGINSON (11:52): My question is directed to the Leader of the Government, representing the Premier. What impact did the attendance of Coal Australia at the intimate boardroom fundraiser with the Premier last week have on the Government's decision to announce a special new law that will circumvent the High Court of Australia's ruling to expand the rate of coalmining by MACH Energy at Mount Pleasant?

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:53): None.

Ms SUE HIGGINSON (11:53): That seems a little far-fetched. On 7 October the High Court made a ruling that the fundraiser took place on 14 October. On 21 October, the Premier said he had thought very long and very hard, and that it had been very tough, but he made a decision to take the law into his own hands and bring a special law to this Parliament. The move has been described by integrity experts Anthony Whealy, KC, as reprehensible, and Geoffrey Watson, SC, as disgraceful. The Leader of the Government may think this is a joke, but this is on the Government. This is about integrity and the rule of law.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:54): It is unfortunate that The Greens yet again suggest that there is something wrong going on here. I was asked a question and I answered the question honestly and succinctly. There was absolutely no impact. The constant suggestion otherwise is unfortunate.

The Hon. Emily Suvaal: It's misleading.

The Hon. PENNY SHARPE: I would not even say misleading; it is wrong. The point is: It is absolutely the prerogative of the Government to put forward legislation to be debated in this Parliament. The legislation in question will be introduced in a few weeks. It is absolutely the prerogative of the Government to try to deal with challenging issues as they arise. That is what happened in the case of the Mount Pleasant approval. This is the way we solve problems. It is the reason why we are elected. It is the reason why there is a full process through Parliament. It allows ideas to be tested, debated and discussed. A majority will decide the outcome. It is unfortunate that members jump to improper motives first rather than working through the matters.

INVESTMENT DELIVERY AUTHORITY

The Hon. JACQUI MUNRO (11:55): My question is directed to the Treasurer. In June last year the Treasurer said that the Investment Delivery Authority [IDA] would bring forward up to $50 billion of investment each year. In March he announced that 15 data centres, 14 energy projects and two property development proposals had been endorsed by the IDA. However, he has also stated that all projects will still need to go through full merit-based assessments and comply with relevant legislation and policies. As of today, how much investment has entered the New South Wales economy as a result of the endorsed projects, and how is this being measured?

The Hon. DANIEL MOOKHEY (Treasurer) (11:56): I thank the Hon. Jacqui Munro for her question and her interest in the IDA. She is absolutely correct that we announced the formation of the IDA to accelerate economically transformative investments in New South Wales. We made it very clear that the first sector that

would have access to this pathway was the renewable energy sector. I hear that some opposed this decision, but I also hear that some supported it—namely, renewable energy builders.

The Hon. Wes Fang: Captured by the renewable energy industry!

The Hon. DANIEL MOOKHEY: I hear accusations that we have been captured. In New South Wales, we welcome when private investment comes forward with the opportunity to lower power bills by enabling us to deploy the lowest-cost sources of power. We were willing to endorse that through the IDA. We are glad that many of those projects are progressing through the IDA path. Members who both support and oppose that decision know full well that this has been greeted by a lot of renewable energy suppliers as well. The Hon. Jacqui Munro asked me how we are tracking this.

We are constantly engaging with these developers, particularly in renewable energy. We are working with them. We are very pleased that many projects are reaching the planning stages that require them to go forward for final investment decisions. The alternative would be what the Queensland Government is doing. It says, "Get out of our State. We don't want you in this State." Members on this side of the House do not endorse that approach and, until quite recently, it was not an approach endorsed by the Opposition. I am happy to continue to provide the House with updates on the IDA.

The Hon. JACQUI MUNRO (11:58): I listened very carefully to that answer. I did not find any particular information that answered my question, which was whether any investment has been delivered. We were promised $50 billion a year. I do not know how many years this $50 billion will last, but it does not look like we are going to get it for the 2025-26 budget. The IDA is kind of like the Ministry of Truth: It is designed to use an "ignorance is strength" approach to encourage people to think that New South Wales has a booming economy. The Treasurer talked about renewable energy projects, but he did not talk about data centre approvals. Members of the data centre community are very concerned. They say that we have made building data centres in New South Wales so complex that they are going elsewhere. It appears that the Investment Delivery Authority has not delivered any investment in New South Wales [*Time expired.*]

The Hon. DANIEL MOOKHEY (Treasurer) (11:59): The reason the member could not hear herself speak was because Opposition members were heckling. I cannot help but notice that Opposition members do not just heckle in Parliament; they also heckle in the party room. That is partly why they are so divided on matters like renewable energy. The problem is that one member is clamouring for renewable energy while many others try to block it at every availability opportunity.

The PRESIDENT: Order!

The Hon. DANIEL MOOKHEY: The party that asks, "What are you doing about investment?" is the same party campaigning against net zero. The party that is asking, "Why aren't you getting more investment in this road map?" is the same party that says, "We don't want it in the New England Region. Go away!" Cognitive dissonance is a problem for us all, but is particularly neuralgic for Opposition members at the moment. Whilst the Opposition works out its personality over the next six months, when it will make a decision about whether it will go to the people of New South Wales— [*Time expired.*]

The Hon. PENNY SHARPE: The time for questions has expired.

The Hon. Natalie Ward: It is a bit early.

The Hon. PENNY SHARPE: I do not think it is early; I think it is time.

The PRESIDENT: It is 15 seconds late.

The Hon. PENNY SHARPE: If members have further questions I suggest they place them on notice.

The PRESIDENT: I am looking at my phone and at the clock and I make very clear to members that question time has not finished a minute early.

Supplementary Questions for Written Answers

MENTAL HEALTH SERVICES

The Hon. SARAH MITCHELL (12:01): My supplementary question for written answer is directed to the Minister for Mental Health. Is the mental health emergency operation centre in the Western Sydney Local Health District still operating and is a code black escalation status still in force?

MOUNT PLEASANT COALMINE

Ms SUE HIGGINSON (12:01): My supplementary question for written answer is directed to the Leader of the Government, representing the Premier. At the boardroom fundraiser attended by the Premier and Coal

Australia following the High Court decision about MACH Energy, were any legislative responses to the High Court ruling discussed?

HOUSING SUPPLY

The Hon. NATASHA MACLAREN-JONES (12:01): My supplementary question for written answer is directed to the Minister for Housing, and Minister for Homelessness. When will the Central Coast property to accommodate men transitioning from homelessness be reopened, and why has the Government held that property for more than nine months without using it for much-needed accommodation?

Questions Without Notice: Take Note

TAKE NOTE OF ANSWERS TO QUESTIONS

The Hon. NATALIE WARD: I move:

That the House take note of answers to questions.

E-BIKE REGISTRATION

The Hon. NATALIE WARD (12:02): I take note of questions and answers given today during question time. The Government's e-bike policy is all spin and no substance. The data shows the undeniable fact that hospitalisations are not just going up; they are spiking. The data shows young men presenting to emergency departments with fractures, and the largest increase in hospitalisation rates among young males. Hospitalisations of e-bike riders have more than tripled from 125 in 2019 to 604 in 2024-25. The Government does not want to talk about e-bikes because it resisted an e-bike policy for years. When it finally brought one, which the Opposition backed in and passed, it claimed that the Opposition had delayed it. That was not true; the Government had not proposed one. Then, when the legislation finally passed, the Government did not even put it up for proclamation. Clearly, the Government does not want to talk about e-bikes, but Opposition members have a practical, sensible, workable policy: a cheap and easy plate on the back of the bike.

Injuries cannot be prevented if the behaviour cannot be recognised and the rider cannot be identified. It is a furphy for the Minister to say that a plate would be expensive or difficult. That is rubbish. Police tell us they want them. Council officers tell us that they need them. Pedestrians who are being railroaded, threatened by bad behaviour and potentially hit by e-bikes every day say they could deal with the problem if they could identify the rider. We know the Minister is ignoring the problem, but accountability cannot start with a trip to the emergency room. Having spoken with surgeons and emergency department staff, the data tells the story: Those e-bike injuries are out of control. The Government is taking a go-slow, reactive, "let us not talk about it" approach, but Opposition members have had the policy for more than a year. As the Opposition, the Coalition wants to see clear action to change that behaviour and prevent injuries.

A tokenistic crushing of bikes does nothing to prevent the behaviour from occurring in the first place. If they were cars, there is no question that there would be education policies, funding, licensing and identification. But this Government's head is in the sand. The former Minister for Transport and the Government also announced that it would add e-scooters to the mix. We have not seen any of that. The Government also talked performatively in media releases about introducing age limits, but there has been silence—crickets—from the Minister about imposing an age limit. Is it 13 or 15 years old? Is it the age of the very kids presenting with injuries to emergency departments every day? The fallout is horrific. [*Time expired.*]

INVESTMENT DELIVERY AUTHORITY

SCIENCE AND INNOVATION FUND

BOGONG MOTHS

The Hon. JACQUI MUNRO (12:05): I take note of a number of answers, including two from the Treasurer. It is quite concerning that the Investment Delivery Authority has not delivered any investment. It is also concerning that the Government does not appear to be tracking it in any way. The public commentary is that the Frankenstein's monster of regulations, guidelines, bureaucracy and agencies that investors have to jump through is actively deterring investment in this State. Earlier this week Data Centres Australia said in the *Australian Financial Review* that the guidelines have done little to make it easier to build in this State. Microsoft staff have also told the New South Wales Government that they would move projects to Malaysia or Indonesia, where they can access substantial tax incentives and financial support, if they were unable to lock in power agreements or navigate the complex planning system in New South Wales. It feels like Government members are at loggerheads in Cabinet when it comes to delivering clarity for investment in New South Wales.

I also note that the Treasurer has announced a potential $150 million in next year's budget. It is ludicrous for the Innovation Blueprint to be considered a trusted and credible source of policymaking in the start-up

innovation system when it only mentioned the term artificial intelligence once in a footnote, and the Trade and Investment Strategy did not talk about data centres. It is ludicrous that this Government wants to embed $150 million in the university system when Cicada Innovations at Everleigh said that 76 per cent of its deep tech founders indicated that their ventures were created independently of academia. That enormous figure demonstrates how lazy this Government is about supporting innovation, start-ups and entrepreneurs across the State. As a result, we have seen the decimation of our start-up industry and culture.

I also take note of the answer by the Minister of the Environment regarding bogong moths as a food source for the endangered mountain pygmy possum. Secret Creek Sanctuary in Lithgow does an incredible job rehabilitating the mountain pygmy possum and quoll population through its breeding program with the University of New South Wales. I give a shout out to Trevor Evans, who runs that facility. It should receive all the support that governments can give its work rehabilitating native Australian animal populations. I encourage all members to visit it.

SCIENCE AND INNOVATION FUND

The Hon. Dr SARAH KAINE (12:08): I take note of questions and answers regarding innovation funding to universities in New South Wales, which is a great thing. I note the statistics that the Hon. Jacqui Munro just put to the House about private investment in research and development, and her comparison of results from the private sector as opposed to universities. That makes the investment even more important because universities should be the powerhouse of innovation. We need to provide the right environment for universities to appropriately commercialise the work that they do so that we can all reap the benefits. However, I also note ongoing discussion in this House about university governance. I cannot possibly speak about one aspect of universities without speaking about another. Of course we want to encourage universities in the work they are meant to be doing. I ask universities in receipt of this very important State funding to consider how they determine the use of it and engage with their staff. The report about university governance put out recently by the Standing Committee on Social Issues noted a lack of appropriate stakeholder engagement with university staff, who are the experts. That is what the funding is for. Experts at universities should be relied on for not only the commercialisation of appropriate research but also the running of those institutions.

Universities should invest in their staff and students, and listen to them so that students and staff do not have to resort to the strike action that is going on today at the University of Sydney because the university is not dealing with its staff appropriately during negotiations. Of course, I welcome investment into universities and the commercialisation of their research, but I also advocate for the universities to act responsibly, govern themselves responsibly and take into account the needs, knowledge and expertise of the stakeholders that they rely on and who rely on them.

COALMINING INDUSTRY

Ms SUE HIGGINSON (12:11): I am flabbergasted by the answer that the Leader of the Government provided about what can be characterised only as an incredibly serious issue. The Premier is reported to have attended an intimate boardroom fundraiser with none other than Coal Australia only a few days before he said to the media, "I am about to do something that Premiers really shouldn't, and wouldn't, ordinarily do," namely, act outside or above the rule of law by making special laws for a mining corporation, giving it special attention and consideration, and thinking that is the right thing to do. We know it is not the right thing to do because the integrity legal experts of our State, who have the utmost expertise in this area, including ICAC assistant counsel who have looked at our planning system and called the move "reprehensible" and "disgraceful". It demonstrates a lack of respect for the rule of law and an attitude that coal is king and makes its own rule of law in this State. But the truth is that the move is lawless, wrong and hellishly dangerous for our democracy.

The end of coal is coming. It is coming for all the right reasons. The Premier, instead of doing what leaders of a democracy do and demonstrating leadership, is acting like an autocrat or a dictator. As coal exits, he is saying, "I know best. I know better than the High Court of Australia. I am going to introduce special laws circumventing the High Court ruling." Then he says, "That was a really tough decision. It was really hard, but I've done it." That is not what leaders of democracies do. It is very dangerous, and I really want to know what influence the special intimate boardroom fundraiser function had, given that it was only a few days before the Premier's decision and a few days after the High Court's ruling. Let's remember this is not just about coal or jobs. This is about our international obligations to take real action on climate change, which is squashing families, farmers and communities across New South Wales in a very harmful way.

HOUSING SUPPLY

The Hon. NATASHA MACLAREN-JONES (12:14): I take note of the outrageous answers given by the Minister for Homelessness, and Minister for Housing. Labor is constantly focusing on spin rather than

substance. But to say that it initiated meanwhile use is absolutely horrendous. Members can search themselves, but I looked back to 6 September 2022, when the former Minister for Women's Safety and the Prevention of Domestic and Sexual Violence, the Hon. Natalie Ward, and I announced, along with Pacific Link Housing and Women's Community Shelters, the opening of a former aged-care home for meanwhile use. That is the term that we used. It is something that community housing providers have talked about and done for a number of years.

The Labor Government has said, "We've invented something new." It has not. Meanwhile use operated and was funded by the previous Government for a very long time. That is because it is beneficial. It is about working with developers to identify properties that will take time to be redeveloped. In that period it allows people experiencing homelessness, at risk of homelessness or in need of transitional housing to access housing and wraparound support services, which is one of the key things that this Government has forgotten, particularly when it comes to homelessness, transitional housing and crisis accommodation. That is why service providers are key. They help people get back on their feet and into the workforce and to find secure, stable housing for life.

The question asked today was about transitional housing on the Central Coast. Even local Labor councillors, such as Belinda Neal, who members will remember, have called for better investment in transitional and crisis accommodation. The latest street count was double the previous one and the Central Coast has had one of the highest increases in homelessness across New South Wales. Two years ago on the Central Coast the Government notified the provider it would be taking a property back. Twelve months ago it took it back and it has been vacant since. Nothing has happened. I agree with redevelopment, but in the meantime the provider should be allowed to continue housing homeless men who are living on the street while the Government works out what it is doing. How many more of those properties are boarded up across the State because this Government is failing to do its job?

E-BIKE REGULATION

UNIVERSITY RESEARCH AND INNOVATION

The Hon. STEPHEN LAWRENCE (12:17): I take note of the question that the Hon. Natalie Ward asked the Minister for Transport. The Hon. Natalie Ward expressed concern about injuries caused by e-bikes, which is obviously a very important matter. But the member did not note that, as one of her last acts as Minister for Transport, she increased the allowable wattage to 500 watts. That exceeds the standard used in Europe. As of March 2029 New South Wales is moving back down to 250 watts. It is like taking lectures from a fox on chicken safety. It is very hard to take it seriously. Buyers should be aware that they can buy all sorts of e-bikes, but it is important to comply with the standard.

I also take note of the question asked of the Treasurer about university governance. Our universities certainly are changing. Commercialisation of research is part of that. Yesterday I met with Students' Representative Council officials from the University of Sydney. They have raised issues with a range of MPs about ways that our universities are changing, which I think are related in some ways to commercialisation. The issues include serious incursions on free speech on campus, interference in the way that *Honi Soit* is run, including requirements to add certain things into *Honi Soit*, which means that articles are, in a sense, being censored. They also include limitations on the types of events that can be held on campus and when they can be held.

That sits within the context of the Hodgkinson review that the University of Sydney commissioned, which came up with a number of recommendations, including the so-called civility rule. That rule sounds good on the face of it, but it recommends a norm of conduct in which someone speaking publicly and using ambiguous definitions or concepts needs to explain their various interpretations. That might be good as a counsel of perfection, and it is good advice to an academic engaging in written work. But as a purported norm of speech or rule of conduct, it is absolutely absurd and inconsistent with all accepted notions of free speech, which includes the right to be wrong and the right to be incendiary. Universities are changing, but not always in a positive way.

NEW ENGLAND RENEWABLE ENERGY ZONE

The Hon. WES FANG (12:20): I take note of answers given today. On this side of the House, we often say that Labor has failed in its renewable energy rollout, and there is no greater example than the cancellation of the Oven Mountain Pumped Hydro Project. Members on this side of the House support that project, and the member for Kempsey has indicated its importance for jobs in his community. Michael Kemp has been fighting to ensure those jobs are retained, but EnergyCo is saying that the transmission line is not a priority. That has seen Alinta Energy walk away from the project.

That is the way the Labor Government is handling the rollout of the grid in New South Wales. Labor keeps saying that it is rebuilding the grid, but we see our bills going up and a lack of consultation across New South Wales. It seems that nothing is going right for the Government. Projects are being cancelled. There is community upheaval about the projects that are being announced. Financial backers are pulling out of projects that are in the

system. Everything points to the fact that we will run out of energy generation shortly, and the Minister keeps pointing to the energy road map.

Ultimately, the Government needs to ensure that we have a reliable energy grid for the businesses and residents of New South Wales. I am unclear about what exactly the Minister is doing to ensure we have that. Other than the transmission lines she is proposing and the renewable energy zones—which are being built but, ultimately, the projects are not there to support them—what is the Minister doing to ensure we have enough energy generation in New South Wales? Will we start seeing rolling blackouts that make us reliant on other States for our power, or will New South Wales have a reliable and sustainable energy system where we generate enough power to not be reliant on other places? I suspect that in a decade or so, the answers that the Minister is giving to this House will point to the fact that she has absolutely no idea what she is doing and everything is being done on a hope and prayer. [*Time expired*.]

BOGONG MOTHS

The Hon. CAMERON MURPHY (12:23): I take note of the answer given by the Minister for the Environment to the question on bogong moths—for something completely different. I have vivid childhood memories of the mass migration of bogong moths. I grew up in Canberra, which lies along the route that bogong moths normally take—unlike this year, when they have been blown across to the South Coast. In the late 1970s and early 1980s, there were a couple of years when there were so many moths that they covered windows and entire houses like a shimmering mass. That occurred again in the late 1990s or early 2000s, and the new Parliament House was covered in moths. But those events have been few and far between over the past few years because of the decline in moth numbers. It is a wonderful, fantastic thing to see them back. I am now back living in the same area, in Queanbeyan, and the moths are there again this year. It is great to see them. It brings back a lot of wonderful childhood memories. Long live the bogong moth.

BOGONG MOTHS

WASTE-TO-ENERGY FACILITIES

The Hon. NICHOLE OVERALL (12:25): I concur with the Hon. Cameron Murphy about bogong moths. They are certainly at home everywhere one might possibly find them. But I turn to my important moment of this week, which was the tabling of the incredibly important waste-to-energy report. There are a number of elements to the report, and I am happy to talk about it until the cows come home, because enough work and effort have certainly gone into its almost 200 pages. I thank the secretariat and the committee for having journeyed through all of that with me. The Minister's lazy argument was that hoary old chestnut: It was the previous Government.

Of course, that argument fails to recognise that Opposition members called for the inquiry, because we acknowledge that what had gone before was not what communities had expected. We have therefore listened and advanced sensible recommendations based on evidence that needed to be given due consideration. I fully acknowledge that the Minister suggested that that will not happen. Regional people deserve nothing less. The Minister cannot go down the avenue of blaming what came before, unless she owns the 2017 inquiry in which she was a committee member, applauds its recommendation for the Eastern Creek facility not to be approved, and backs that recommendation on the basis that there were health concerns and other potential impacts—and, of course, the fact that the community said loud and clear that it did not want it. That is happening again, and regional communities deserve the same consideration and recognition of their concerns.

I need to clarify a point: The report is not closing the door on technological advancement. It is not saying that we should throw it out entirely. It is saying—and this is why the Minister needed to be corrected and fact-checked—that the moratorium is about the site selection being restricted specifically to those regional precincts. That needs to be halted or at least paused so that an independent review can be undertaken of the criteria, the processes, and why the Minister thinks it okay for the regions but not for Greater Sydney. It is Sydney's waste, and they want to send it hundreds of kilometres away for regional areas to deal with. [*Time expired*.]

COALMINING INDUSTRY

The Hon. MARK BUTTIGIEG (12:28): I take note of the answer given by the Minister for the Environment to the question asked by Ms Sue Higginson regarding the coalmine extensions and legislation. I find it quite bizarre that the Government would be scrutinised for introducing legislation. Last time I looked it was the job of the government to legislate so that laws can subsequently be enacted. The implication that a Labor government should not legislate to protect jobs is perhaps predictable from The Greens, who seem to think that an all-or-nothing approach to the transition to net zero is the way to go. It is not.

As I have discussed in the House, no-one is more committed to the transition to renewables and the protection of our environment than me, but not at the expense of people's livelihoods. They are real people who have to put food on the table. Telling a 55-year-old coalminer they will have to drive taxis or inspect koalas in forests does not cut it. It is the Labor Government's job to make sure that the transition is managed responsibly. I have raised that in the House before. We will lose political buy-in from the New South Wales people if we have an all-or-nothing approach. The Greens can point the finger at the process but, ultimately, it is the Premier's job and the Government's job—

The Hon. Daniel Mookhey: And the Parliament's.

The Hon. MARK BUTTIGIEG: It is also the Parliament's job to legislate for those things in accordance with Labor Party policy, which is to not sacrifice working people's lives on the altar of absolutism. We make no apologies for that. In March, when looking into who they want to govern them, people should look at what is being said and done. Labor members are being honest about transitioning to net zero and protecting the environment, and a sensible pathway to get there. [*Quorum called for.*]

[*The bells having been rung and a quorum having formed, business resumed.*]

I finish by saying that, when people are looking at the alternatives, the Labor Government is sensibly steering us on a path to a sustainable economy and jobs first. [*Time expired.*]

The ASSISTANT PRESIDENT (The Hon. Peter Primrose): Order! Pursuant to standing orders, debate is interrupted to allow the Minister to respond.

TAKE NOTE OF ANSWERS TO QUESTIONS

The Hon. DANIEL MOOKHEY (Treasurer) (12:32): I was delighted by today's question time and by the take-note debate, in which we had the opportunity to hear from many members on many issues. I was paying close attention to the take-note debate and I identified some things I will reply to thematically. I will start with energy. I have to say, I was really worried when the Hon. Wes Fang said that there is a risk that New South Wales might need to get generating capacity from other States. But then I realised that we have been in the National Electricity Market since 1995. New South Wales has been selling and buying power from other States for many years—three decades.

I tell the member that there is no need to worry and he can rest assured that we have this one in hand. Thanks to Paul Keating, we have the National Electricity Market. Interconnectors mean we can sell power back and forth and generation capacity can move. I am sure the member would like to know that, as a result of the surge in renewables investment in New South Wales, we are selling a lot of power to the conservatively aligned Queensland, which wants to stop building. If the Hon. Wes Fang is worried about Queensland losing power, he should back renewables in New South Wales. I am sure he will be relieved to know that the problem is in hand, thanks to the National Electricity Market forged by the Labor Government back in 1995.

Moving on, I respect the Hon. Mark Buttigieg's contribution. He put it really well. I understand that The Greens are likely to oppose legislation that we will introduce to save 450 jobs. Whilst they continue to search for a hidden motive, we invite them to consider the obvious notion that no secret sits behind the policy. For the purpose of one mine, the High Court has rendered a decision about statutory interpretation that has created uncertainty for 450 workers, for which we are bringing legislation for the democratically elected Parliament to give consideration to, so that we can democratically decide whether we should save those jobs. There is no need to search for a hidden motive.

As for the suggestion that has come from Mr Watson and Justice Whealy, whom I have a lot of time for every now and then, all I will say is that it is not outrageous for the Parliament to respond when the High Court renders a ruling of statutory interpretation. I actually think that is normal and that is what should happen when the High Court rules—the democratically elected Parliament is entitled to respond. I look forward to the six question times we have left in the life of this Parliament. I know full well that we have enough power to keep the lights on, generated here in New South Wales, and enough power to sell to the other States as well.

The ASSISTANT PRESIDENT (The Hon. Peter Primrose): The question is that the motion be agreed to.

Motion agreed to.

Written Answers to Supplementary Questions

TANGARA TRAIN FLEET

In reply to **the Hon. NATALIE WARD** (21 October 2026).

The Hon. JOHN GRAHAM (Special Minister of State, Minister for Transport, Minister for the Arts, and Minister for Music and the Night-time Economy)—The Minister provided the following response:

I am advised:

The replacement of the 55 train Tangara fleet, together with the production facility, has a P90 estimate value less than $12 billion.

NEW ENGLAND RENEWABLE ENERGY ZONE

In reply to **the Hon. WES FANG** (21 October 2026).

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage)—The Minister provided the following response:

The New England Renewable Energy Zone network infrastructure project proposes to use about 10.1 megalitres of water to manufacture concrete for transmission towers.

The EIS assumes potable-quality water would be used for concrete batching to ensure the strength, durability and performance of the concrete. Non-potable water may be used where engineering and quality standards can be met, but this will ultimately be determined by the future network operator in line with relevant technical specifications.

The ASSISTANT PRESIDENT (The Hon. Peter Primrose): I shall now leave the chair. The House will resume at 2.00 p.m.

Ministerial Statements

CREATIVE STATEMENT TO PARLIAMENT

Debate resumed from an earlier hour.

The Hon. CHRIS RATH (14:01): As I was saying before question time, the former Coalition Government funded upgrades to regional art galleries in Grafton, Taree and Orange, and established a new regional art gallery in Bowral. It designated the National Art School as a State significant organisation in 2019. Without the intervention of the previous Government, the Theatre Royal, not far from Parliament in Martin Place, would have closed. Don Harwin secured a long-term lease and made sure that the venue stayed open. The Opposition is concerned about some things, such as the closure of the Australian Design Centre and the cut to funding for the Art Gallery of New South Wales. It is concerned that ticket prices are being charged at the Museum of Contemporary Art for the first time ever, and it is also concerned about the closures of some hospitality, arts and cultural venues, such as MoshPit Bar in Newtown.

However, the Opposition most genuinely supports—and I personally very strongly support—the Government's vibrancy reforms. A lot of venues have been doing it very tough after lockdowns and lockouts, and the Government has done a good job and made a genuine attempt to improve the vibrancy of the arts, culture and hospitality sectors with things such as the Contemporary Music Act, which passed Parliament recently, and the various tranches of vibrancy reforms that the Minister introduced and the Opposition supported. In particular, I support the crackdown on spurious noise complaints from nimbys that have all too often closed or frustrated hospitality venues. Some of the reforms helped with that. It is a good statement. I was at the launch, where we heard from many speakers. Arts and the creative industries provide over $60 billion to the New South Wales economy, which is fantastic. However, as we all know in this Chamber, it is not just about the economic benefit and value. Arts and the creative industries are so much more important than that, and we heard a lot about that at the launch. I commend to the House the Creative Statement to Parliament.

Documents

TABLING OF PAPERS

The Hon. PENNY SHARPE: According to the Road Transport Act 2013, I table a report of Transport for NSW entitled *Review of the Average Speed Camera Light Vehicle Trial Outcomes report*, dated October 2026.

Bills

ENVIRONMENTAL LEGISLATION AMENDMENT (PLASTIC REDUCTION AND CONTAINER RECYCLING) BILL 2026

In Committee

Consideration resumed from 20 October 2026.

The CHAIR (The Hon. Rod Roberts): Dr Amanda Cohn has moved The Greens amendment No. 2 on sheet c2026-171C. The question is that the amendment be agreed to.

The Committee divided.

Ayes 3
Noes 30
Majority.....27

AYES

Boyd (teller)	Cohn (teller)	Hurst

NOES

Banasiak	Jackson	Munro
Barrett	Kaine	Murphy (teller)
Buckingham	Latham	Nanva (teller)
Buttigieg	Lawrence	Overall
Carter	Maclaren-Jones	Primrose
D'Adam	Martin	Rath
Fang	Merton	Ruddick
Farlow	Mitchell	Sharpe
Govind	Mookhey	Suvaal
Houssos	Moriarty	Tudehope

Amendment negatived.

The CHAIR (The Hon. Rod Roberts): The question now is that the bill as read be agreed to.

Motion agreed to.

The Hon. PENNY SHARPE: I move:

That the Chair do now leave the chair and report the bill to the House without amendment.

Motion agreed to.

Adoption of Report

The Hon. PENNY SHARPE: I move:

That the report be adopted.

Motion agreed to.

Third Reading

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (14:14): I move:

That this bill be now read a third time.

Dr AMANDA COHN (14:14): I make a brief contribution to debate on the third reading of the Environmental Legislation Amendment (Plastic Reduction and Container Recycling) Bill 2026.

The DEPUTY PRESIDENT (Ms Abigail Boyd): Order! There is too much audible conversation in the Chamber.

Dr AMANDA COHN: I indicate from the outset that The Greens support the bill in its current form, but I wish to place on record the impact that our amendments to the bill would have had if they were not voted down. The Greens introduced two entirely sensible and necessary amendments to the bill, which would have strengthened the State's work in tackling its urgent plastics problem. One of the amendments proposed the following further restriction on suppliers of lighter-than-air balloons:

(1) A person must not sell a lighter-than-air balloon to another person if the person knows the other person intends to release the lighter-than-air balloon for an unlawful purpose.

That amendment is important. It is clear that balloons pose a specific and significant risk to the environment, particularly to birds. Scientists have found that balloons eaten by seabirds are more likely to kill them than any other kind of plastic. The Australian Marine Debris Initiative has documented several examples showing how quickly and how far balloons can travel and then become litter. Balloons released in Albury, with the Albury City Council logo on them, were found washed up on a beach in Bermagui, 300 kilometres away from where they were released.

The DEPUTY PRESIDENT (Ms Abigail Boyd): Order! At least five separate audible conversations are taking place amongst members in the Chamber. I cannot hear Dr Amanda Cohn's contribution. The member will be heard in silence.

Dr AMANDA COHN: Under the bill, in its unamended form, it is an offence for a person to release a helium balloon. The Greens are supportive of a prohibition on the release of helium balloons, but it obviously follows that suppliers should not be able to profit from the sale of helium balloons where those balloons are explicitly intended for the unlawful purpose of release. We are aware of instances where businesses have explicitly advertised and supplied balloon arrangements for release. In May this year a business in Western Sydney promoted on social media its funeral balloon arrangements, such as balloon rosaries, for release. Under our second amendment, the penalty for the supply offence would have been 10 penalty units, which is consistent with the penalty for an individual who releases fewer than 20 helium balloons.

The Government said it would not support the amendment because it felt that prohibiting the release of balloons made it sufficiently clear that balloons cannot be sold. It is unreasonable that an individual can be penalised under the bill, but a supplier that profits from selling a balloon arrangement that it knows will be used for an unlawful purpose cannot. Our overwhelmingly sensible amendment would have sent a clear message that promoting and profiting from pollution is not okay. It is astonishing that the House did not support that very simple amendment.

Our first amendment would have brought forward the commencement date for takeaway businesses having to supply re-usable cups, from 1 December 2030 to 1 January 2028. This work is already happening. ENGIE Stadium in Sydney Olympic Park became the home of the first AFL club to replace single-use plastic beer cups with re-usable aluminium cups. World Wildlife Fund Australia estimates that this has already saved 208,000 plastic cups going to landfill. The stadium has now confirmed that all beverages will be poured into 100 per cent re-usable polypropylene cups, which is a significant step forward in reducing single-use plastics.

Many stakeholders have made it clear that we do not need to wait until 2030 for commencement, and that it is feasible to do this by 2028. The plastics problem cannot wait. The harm it is causing to the environment and human health is growing, and we need to take the most ambitious action possible. The Government repeatedly notes the seriousness of the waste crisis. It has imposed incinerators on regional communities, such as Goulburn and Parkes, against their wishes, and we owe it to those communities to leave no stone unturned and to take every possible alternative measure to reduce waste at its source. It is unnecessary for the Government to wait another two years. The bill is disappointing and does not go far enough. Nonetheless, The Greens remain supportive of its moderate reforms.

The PRESIDENT: The question is that this bill be now read a third time. Is leave granted to ring the bells for one minute?

Leave granted.

The House divided.

Ayes 19
Noes 16
Majority.....3

AYES

Boyd	Higginson	Moriarty
Buckingham	Houssos	Murphy (teller)
Buttigieg	Hurst	Nanva (teller)
Cohn	Jackson	Primrose
D'Adam	Kaine	Sharpe
Faehrmann	Lawrence	Suvaal
Govind		

NOES

Banasiak	Maclaren-Jones	Overall
Barrett	Martin	Rath (teller)
Carter	Merton	Roberts
Fang (teller)	Mitchell	Ruddick
Farlow	Munro	Tudehope
Latham		

PAIRS

Graham	MacDonald
Mookhey	Ward

Motion agreed to.

PARLIAMENTARY BUDGET OFFICER AMENDMENT BILL (NO 2) 2026

Second Reading Speech

The Hon. DANIEL MOOKHEY (Treasurer) (14:23): On behalf of the Hon. Penny Sharpe: I move:

That this bill be now read a second time.

The Parliamentary Budget Officer Amendment Bill (No 2) 2026 aims to improve the breadth and quality of policy costing information available to New South Wales voters. It establishes temporary arrangements to bring One Nation within the Parliamentary Budget Office [PBO] election costing process for the 2027 New South Wales election. It also makes permanent amendments that will enable New South Wales government agencies to work together on PBO information requests, if authorised by the Parliamentary Budget Officer. Together, the amendments will broaden the information available to voters and support the preparation of timely and high-quality election policy costings.

I seek leave to have the remainder of the second reading speech incorporated in *Hansard*.

Leave granted.

The PBO will continue to provide independent costings of election policies for the Government and Opposition, and up to two policy costings for minor parties and Independent members facing election.

It will also continue to prepare budget impact statements for the Government and Opposition, who are required to submit all election commitments with a financial impact to the PBO.

One Nation is currently not eligible for PBO costings because it has no members in the New South Wales Parliament.

The Government's amendments respond to the reality that the next election will see three parties competing credibly to form New South Wales's next government, even though the current legislation only contemplates a traditional Labor v Coalition contest.

The bill will temporarily expand the definition of parliamentary leader under the Act to include the leader of One Nation in New South Wales.

The amendment will require One Nation to have all election commitments that may affect the State budget costed by the PBO, and the PBO to prepare a budget impact statement assessing the aggregate financial impact of One Nation's election policies.

The arrangements are targeted and temporary. They will expire following the 2027 New South Wales election and will not confer broader parliamentary rights.

The PBO's post-election review will consider the effect of the amendments and make recommendations for improvements to future election processes.

The PBO often requests information from New South Wales government agencies to support the preparation of election policy costings.

The Act's confidentiality requirements currently prevent agencies from sharing information relating to a PBO request outside their agency or the Cabinet Office.

This can prevent agencies from working together even where the PBO considers collaboration necessary.

For example, multiple agencies may need to provide information for a costing or one agency may understand the policy details but not hold all the budget and financial information. An agency may also need to work with NSW Treasury to confirm information or financial impacts.

The bill will enable the PBO to authorise agencies to share information with each other for the purpose of fulfilling an information request.

This will reduce duplication and the need for the PBO to act as an intermediary. It will enable agencies to provide better information, faster. This will help the PBO focus on costings rather than administrative coordination. Agency staff will continue to be bound by the confidentiality requirements of the PBO Act.

The amendment responds to recommendation 7 of the *Report on the Parliamentary Budget Office 2023 Post-Election Report*.

Second Reading Debate

The Hon. SCOTT FARLOW (14:24): I lead for the Opposition in debate on the Parliamentary Budget Officer Amendment Bill (No 2) 2026. The Opposition will support the bill. The bill does two things. First, it extends to the leader of Pauline Hanson's One Nation, for the 2027 State general election, the election costing provisions that apply to the Premier and to the Leader of the Opposition. Second, it allows agencies to share

information directly on a costing request, where the Parliamentary Budget Officer authorises them to do so. The principle behind the first measure is a simple one. Costings by the Parliamentary Budget Office [PBO] are the rules that the Government and the Opposition live by. They should be the rules that anyone who seeks to form government in New South Wales lives by as well. Under the current Act, the Government and the Opposition can have every one of their policies costed, while minor parties and eligible Independents are limited to two requests, as extended by this House earlier this year.

One Nation has no members in this Parliament, so today it cannot make a single request of the PBO. That is a reasonable settlement for a party that seeks to influence a government. It is not a reasonable settlement for a party that tells the people of New South Wales that it intends to become the government. One Nation plans to contest all 93 Legislative Assembly seats and has made clear its ambition to form government. An ambition on that scale carries an obligation to be up-front with its plans for the finances of New South Wales. If a party wants to govern for the people of New South Wales, it needs to put forward positive policies, but it also needs to put forward policies that are sustainable and can be costed. One Nation should put its money where its mouth is. It should submit to the rigour of the office and stand behind a budget impact statement that shows the costs of its full suite of commitments to the people of this State. This bill allows that. The Opposition is already lodging its election commitments with the PBO. We do so because voters deserve to know what a policy will cost, how it will be paid for and what it will mean for the budget before they cast their votes.

The second measure in the bill is a practical one. At present, an agency needing information from another agency for a costing request must route it through the Parliamentary Budget Officer. Under this bill, agencies may deal with each other directly where the Parliamentary Budget Officer approves. That will save time, reduce duplication and allow the PBO to focus on the analysis that matters. Dr Michael Warlters took up his appointment as Parliamentary Budget Officer on 18 August 2026, and the PBO opened for 2027 election costings in September. A third complete set of costings will add materially to its workload in the final months before polling day. The Government has promised additional resources, and the Opposition will hold it to that promise, because an office that is asked to do more with the same will, unfortunately, not be able to complete the task if Pauline Hanson's One Nation takes up the offer. Fiscal responsibility should not be optional for anyone seeking the trust of the people of New South Wales. The bill applies that standard more evenly. The Opposition supports the bill.

The Hon. MARK LATHAM (14:26): I contribute to debate on the Parliamentary Budget Officer Amendment Bill (No 2) 2026. I do not know what Labor Party polling is showing, but it would have to be fairly horrendous to invoke this kind of panic about One Nation. Why would anyone in their right mind elevate them in the system to the standing of the Liberal Party, The National Party and the Australian Labor Party, and say they have equal standing in the Parliamentary Budget Office [PBO] process? Why would anyone do that? Why would anyone elevate a party which in this Chamber has a standing of negative three? Pauline Hanson's One Nation party is minus three in this House, for reasons of misappropriation of funds and corruption.

The Hon. Mark Buttigieg: We heard you were going back. That's the problem.

The Hon. MARK LATHAM: Well, I hear you're looking for a seat. We have a One Nation candidate in Rockdale. It would be a fascinating contest.

The Hon. Mark Buttigieg: Indeed, let's do it.

The Hon. MARK LATHAM: I look forward to the Hon. Mark Buttigieg's nomination. I have looked after him in the past. I did my best to make him the member for Cook, but I could not make myself Prime Minister in 2004. I am sorry, on both those fronts. But frivolous and irrelevant interjections aside, why would anyone elevate One Nation?

The Hon. Daniel Mookhey: You led them. You tried to elevate them.

The Hon. MARK LATHAM: That was when they were elevated. I left them for reasons of misappropriation of funds. The Treasurer is now enabling crooks to supposedly have their budget policies costed, when he cannot even cost his own. One Nation has the ready-made, vote-winning reply, "How about you tell us the cost of net zero in New South Wales?" And, of course, the Treasurer cannot. The Treasurer, sitting there wearing his spaced-out glasses and a funny grin on his face, cannot tell us the cost of net zero in New South Wales. Why would the Government let One Nation make the political point that the biggest impact on the New South Wales economy is net zero, which the Treasurer cannot cost, quantify or measure, and, reprehensibly, will not even try to? He will not even try for a nanosecond to go through that process. It is not too hard. The Hon. John Ruddick and I tried manfully to get those costings at every budget estimates, time after time. For all the climate change activity that goes on—

The Hon. Wes Fang: What am I? Chopped liver?

The Hon. MARK LATHAM: Shortly, yes. If the Hon. Wes Fang wants to interject, he will know the truth shortly. He should have a look for himself on the Coalition ticket. I think he is in the double digits when the Coalition will be struggling to get three. That is the state of New South Wales politics. The Hon. John Ruddick and I, and the other bloke who reckons he has a crack, tried during budget estimates to work out all the climate change activity. What is the impact on global surface temperatures? What is the measurable outcome, under measurement-based budgeting and outcome-based budgeting? Of course, no-one will ever say. It can actually be worked out on the back of an envelope or by a bit of artificial intelligence, but the Government is too embarrassed to admit that all the activity has no impact on the global climate or the global surface temperature. It is part of some strange god complex cult we have in Australian politics that destroys jobs and prosperity.

Why would the Treasurer elevate One Nation to make those points? There must be polling that shows Cessnock, Camden and other electorates are going down the tube. If they are relying on the Treasurer to save them, they are in deeper trouble than they ever thought. All this policy does, in giving this opportunity to One Nation—which has minus three members in this House because of corruption—is to elevate a party that is based on the cash economy, merchandise and the James Ashby shams, which I have itemised. The Hon. Rod Roberts and I stayed in One Nation as long as the Queensland branch stayed north of the border, but when it brought its malpractices south of the border, we found a better life as Independents.

I hope Mike Newman is aware of the Ashby corruption disease within One Nation and does something about it. He does not need a Parliamentary Budget Office; he needs a One Nation internal audit office to sort him out. Maybe the Treasurer should have offered that up with the Special Minister of State's reforms to the electoral funding laws so that political parties need to account for cash that is received by the party—how it came in, how much it was and where it went to. One Nation, if it accounted honestly, would say that some of it went into the pockets of James Ashby and Pauline Hanson. That is the reality. What sort of political party would ever allow a situation where people contribute funds for the national director—which Ashby now is—to build a shed on his own property to house a company that he part owns with the party's leader, in order to make more money out of merchandise sold for cash? It is nice work if you can get it, but how could that sort of business model ever be justified?

Why have electoral commissions not taken all the rorts seriously and started to deregister a party that, north of the border, is fundamentally corrupt? One Nation should not have been enabled or elevated in this strategy. I do not think the Government gets anything out of it, and One Nation has said it will not comply anyway. Moreover, as Deputy President Boyd knows, it is a disrespectful stance compared with the parties in this place that have elected leaders. It might not be big in number, but the Shooters have been here for a number of years and have two members. The Greens have four, and we have the Legalise Cannabis Party, the Libertarian Party and the Animal Justice Party. These are all existing parties that have played by the electoral funding laws and have been totally overlooked in terms of their right to have the same standing as One Nation, a party that has negative-three members of this House and is riddled with corruption. How would members of those parties feel about being overlooked, with the opportunity to have basically unlimited costings through the Parliamentary Budget Office going to a party that is not even represented in this place?

And then there was the foolishness of giving Mike Newman another free kick by kicking him out of the gallery in the other place. Now every One Nation voter can say, "We want common sense in there. We'll vote harder to put him back in." Could anyone be as silly as poor old jughead—the Speaker in the other place—in authorising his removal? It is just unbelievable. The political tactic to deal with One Nation must be to point out the illegalities on the financial front—not elevate a party with no parliamentary representation and then beat them on the ground. Labor is certainly in a state of panic, undoubtedly driven by polling, and now seems to think One Nation is a bigger, more threatening party than the Coalition. That might be right, but this bill does not do anything to address that electoral strategy.

The other point is how the Treasurer has used the Parliamentary Budget Office in the past. At the previous election, his more notorious submission was to say, "Labor will pay public sector wage increases at zero cost." He was going to do that by waving the magic wand of productivity savings.

The Hon. Wes Fang: Where are they?

The Hon. MARK LATHAM: What happened in reality, as opposed to that Labor election promise—because when a promise is lodged with the Parliamentary Budget Office, it is an election commitment—was that the Treasurer did not make a single public sector productivity improvement. In four years, there was nothing. The cost of the public sector wage increases, whether they are justified or not, is not zero but $15 billion. The other way that One Nation would mock this bill and strategy would be to say that, last time, the Treasurer submitted a policy at zero cost that ended up costing $15 billion and promised a whole series of productivity improvements that he did not even try to implement.

I do not think One Nation will take this legislation seriously, but I take it seriously in that at least it presents another opportunity to do more for the parties that are established in this House and that honestly comply with electoral funding laws and play by the rules. My amendments provide that if we are going to elevate One Nation to have unlimited use of the PBO, that should also apply to the leader of the New South Wales Greens, the leader of the Shooters, Fishers and Farmers Party, the leader of the Animal Justice Party, the leader of the Libertarian Party and the leader of the Legalise Cannabis Party. The first element is to identify the leader of The Greens. One of the great forms of sport in this Chamber in years gone by was to say it was David Shoebridge.

The Hon. Daniel Mookhey: In years gone by?

The Hon. MARK LATHAM: Yes. Whenever we said David Shoebridge was the leader of The Greens, he would jump up to take points of order with enormous indignation, like that was a bad thing. He had to point out to us that The Greens did not have a leadership position. They were run like a commune or a kibbutz—I should not say "kibbutz" about The Greens. I mean a commune or a collective. Apparently, that is still the status of The Greens arrangement, that it is a happy little collective inside the party room. Greens members can work out who they might nominate as their leader for this process. The other parties all have a designated leader: the Hon. Robert Borsak, the Hon. Emma Hurst, the Hon. John Ruddick and the Hon. Jeremy Buckingham. The irony about Shoebridge, of course, is that he is now the leader of The Greens in another, distant place. That came about in a different forum.

The Hon. Rod Roberts: He just didn't want it.

The Hon. MARK LATHAM: He wanted it. He ran for it, and he is getting the backwash accordingly. The other amendment I foreshadow is to go back to the initiative I put forward in the first place. If the Government and the House reject the proposal that the parties already represented in this place with positive numbers of MPs can have the same use of the PBO as One Nation, then we should go back to letting the Independents and the minor parties contesting the election have five policies costed. It really is incongruous that One Nation, with a status of negative-three members, would have unlimited use of the PBO, but other minor parties that have been represented in this place over a long period, and that have serious policy intent, get only two policies costed.

The Treasurer should at least make that concession. If he elevates One Nation to the standing of the great Australian Labor Party, the Liberal Party and the National Party in this process, he should at least throw a few PBO crumbs to those other minor parties and let them go from two to five policy costings. At one level, it is important. It is fiscal scrutiny and transparency, and it makes the parties work harder to get their policies right, which can only benefit this House in the next term of Parliament. I must confess I have had some difficulties elsewhere in getting those amendments ready. Hopefully, they will be available by the time we go to the Committee of the Whole. If not, my intentions were known.

The Hon. Daniel Mookhey: We are okay with just your intentions.

The Hon. MARK LATHAM: In this place, sometimes our intentions are as far as we get. We do not get much past our intentions. If they are noble, we can go home and pretend to sleep happily and merrily in the process. I apologise to the Treasurer if I had an unfair slag at his glasses and any other element of his appearance, but I ask him to reconsider this policy and, as a minimum, elevate the standing of the minor parties and give them a bigger crack at the PBO process than we are facilitated so far. Two is paltry. Five would be fair cop in light of what the Treasurer is doing to help One Nation cost and examine its policies. It is unlikely One Nation will use it, so there are spare resources from the Government's intention that could be reallocated to the minor parties that would benefit. I know from talking to the leader of the Libertarian Party that he would love to have five costings, because he is gung-ho for a very alternative fiscal approach and a very alternative public sector management approach. While, from time to time, we all think Libertarianism in this place is out there near planet Pluto—

The Hon. Scott Farlow: Weren't you a member of the Libertarian Party?

The Hon. MARK LATHAM: Yes, that too. That is exhibit A, isn't it? The reality is that I find the Libertarian approach, with just one MP, to be a good sounding board and a good reflection. It makes us think about our own beliefs and where other parties are at. The diversity of views in this House is its strength. I know people bang on about diversity in general, and most of it is fake, but here it is actually genuine. There is diversity of opinion, unlike in public broadcasting or any form of the media these days. Diversity across the ideological spectrum in this place is useful, and it should be facilitated and encouraged with five costings at the PBO rather than the two. If my amendments come in from planet Pluto, I plan to move them. If not, members know how noble my intentions always were.

Ms ABIGAIL BOYD (14:39): On behalf of The Greens, as our Treasury spokesperson, I oppose the Parliamentary Budget Officer Amendment Bill (No 2) 2026. Before I start talking about why, I reflect on a couple of things the Hon. Mark Latham just said. The first is in relation to The Greens not having a leader. It is true.

There are seven women in the New South Wales Parliament who are perfectly capable of coming together and making decisions based on what has been set for us by our party, but The Greens absolutely have a grassroots up culture, which means that we do not have a party leader that is a politician. To correct the record, David Shoebridge is our parliamentary Greens leader, not our party Greens leader. That said, I, for one, welcome our new overlord. The other point made by the Hon. Mark Latham was in relation to what was Labor's most notorious costing in the last election. I would say that it was the Local Small Commitments Allocation grants program. It had to add up what $400,000 times the number of electorates would cost, but only after we had called out that there was no policy. It was then found out that it had an election slush fund in one electorate, but that is another issue entirely.

I turn to the bill. Members may recall my contribution to the first Parliamentary Budget Officer Amendment Bill in June, which I do not think is on many people's "best read" lists—that is fine—so our opposition to this bill will not come as much of a surprise. The Parliamentary Budget Office [PBO] structure in New South Wales is deeply flawed; it is nothing like the Federal one. It is also a pale imitation of the model that was put forward by the Labor Government in 2010. An ideal version of the PBO is one that is available to all parties and one that allows costings to be requested outside of election times. Imagine a PBO model that allows the information that currently only the Government has access to to be utilised by others in developing policies. There could be a back and forth with the PBO to get bits of information, which would allow parties to present a fuller picture of the impact of their policy approaches, not just on a particular initiative but also in a broader context of savings and redirection of spending more generally. That could be really useful, but unfortunately it is not what we have in New South Wales.

Instead, we have a regime where the PBO process is routinely misused by the major parties in their efforts to, quite simply, score cheap political points over one another in the heat of an election campaign or to add a measure of validity to actions undertaken during the election that have been subsequently called out. The current regime constrains the PBO and restricts a policy's benefit to its financial aspects only, particularly short-term ones. In doing that, smaller parties are expected to adopt a major party conception of what sound financial management is and what the priorities should be in governing effectively for the people of the State. We are not considering how a policy impacts people's lives, the quality of our communities and their capacity to thrive, and the sustainability of the environment over the longer term.

This is a silly example, but one worth repeating because it does show how absurd the logic of the major parties is. They rely exclusively on debt and deficit, and short-term sugar hits and losses, and they take advantage of accounting tricks and even more convoluted financing to try to massage their budgets to make them appear to be the better financial manager. Imagine a party proposed to kill every person in prison, no matter their crime. On paper that would save an immense amount of money for the State, but the impact on society, our morality, our humanity, our democracy and the long-term financial prospects of the State would be absolutely catastrophic. Just because a policy will save money over the next few years does not make it a good one. And that is before we get into arguments about the externalities and other factors that should be considered when doing a costing. Anyone who has read a cost-benefit analysis for a major project will know only too well that it is primarily art over science and the tweaking of a myriad of assumptions in various ways creates wildly different outcomes, which brings me back to that first point.

If there was the opportunity to have a back and forth with the PBO outside of election times, parties could craft policies and costings in a way that specified clearly what the assumptions were and policies could be properly scrutinised with respect to what it was trying to achieve, rather than it simply being used to wield over other parties during an election campaign. A costing can be part of working out how viable a policy is, but it cannot be the only consideration. Unfortunately, that is what the major parties are trying to obscure with this bill, which underlines how desperately wrong their supposed efforts to tackle One Nation are. By attacking the symptoms rather than seeking to address the underlying causes and by refusing to do the hard work of speaking to other parties about what they need at this moment, Labor and the Coalition are bringing the debate back to familiar ground. They are trying to tackle the new opponent on the field that they are most comfortable with: neoliberal fiscal management. Coupled with lax corporate regulation, neoliberal fiscal management is largely to blame for much of what people are experiencing across this State: a noticeable decrease in the standard of living, along with an increasing frustration with our political and economic systems.

The Labor Government, in particular, appears to be hell-bent on doing whatever it can to make matters worse. Just when people are desperate for governments to have their backs, Labor is refusing to fund vital community services across our State. Just when people are crying out for their everyday lives to be made easier, Labor is cutting funding to a number of existing services. Just when people want governments to redistribute wealth from those who have far too much to those who have far too little and rein in the corporations and their profit gouging, Labor is doubling down on providing subsidies to some of the largest and dirtiest corporations around. It has now announced what is effectively an austerity policy for its potential return to government next year. Labor's solution to all the problems facing society is to—wait for it—put a cap on net debt. How out of touch

can it be? I challenge the Treasurer to sit at the kitchen table of a family unable to pay their bills and help them work out which meals they may have to skimp on. Seeing them frustrated at the increasing complexity and burden on their lives, he can tell them not to worry because this Government will be making sure that net debt will not grow. It is so severely out of touch with the issues that people in this State are facing.

I am not surprised that Labor wants to elevate One Nation as its preferred opponent, but it is bizarre that the Coalition is getting in on it rather than rejecting this bill as well. That just shows how little chance the Opposition thinks it has in ever coming back to government. This bill is not the answer. Of course One Nation will not be fiscally responsible. Of course it will be a disaster. If people are asked why they want to vote for One Nation, they do not much care. They just want a party other than the major parties. They are so sick of the establishment parties driving this country into the ground. The idea that a Labor government cut workers compensation and funding for the early childhood sector and will not fund domestic and family violence services properly blows people's minds.

After a decade of Coalition governments at both Federal and State levels, people started to object. They were waiting for the moment they could vote Labor back in because they thought it would be different, but now they have seen it is almost the same as the Coalition on the major issues. People want something—anything—else. At the moment it seems One Nation may have some momentum, so people think, "Hell, it couldn't get any worse. Let's give them a go." If Labor wants to turn that around, it will need to put money back into the pockets of the people who are doing it incredibly tough. The Greens will go to the next election with a range of policies that would do exactly that. We are happy for our policies to be costed. We do not think it is necessarily required, or that the Parliamentary Budget Office [PBO] will do a particularly good job, because we do not think that is what voters are taking note of right now.

What we know is so much money is sitting in government coffers—like the billions of dollars in the early childhood fund that could go somewhere. Billions of dollars are being given in subsidies to the fossil fuel industry, for pokies—all of those things. It is not hard to say, "You know what? We could take from there and we could give it over here." We could take from the corporations. We could take money the Government is not using and put it into the pockets of people, giving them a leg-up when they need it. When people fall on hard times, we could say, "You know what? We will streamline the process for you to get your workers' compensation, because we know that no-one should get injured at work. We are going to create jobs, not just in industries that make things, but also in community services. We are going to put more money into health and making sure we have a strong workforce of people coming into the early childhood, community services and disability services sectors."

The Government could do those things to make people's lives easier and simpler. It would make them feel just that bit better about government and democracy. We are hurtling towards absolute catastrophe in this country. God forbid if we end up with One Nation in power, but that is exactly what will happen if the Government insists on putting up a bill like this in response to the threat posed. It is foolish. Part of me wonders whether they are trying to summon this other opposition into power with bills like this, to try and get rid of the Coalition forever. It is the wrong move. We should not do that. Instead, we should provide for people and present an alternative that is based on compassion and hope and acknowledges the material circumstances people face right now. We should not talk about net debt, the PBO and costings and all the rest. It is out of touch. We oppose the bill.

The Hon. DANIEL MOOKHEY (Treasurer) (14:51): In reply: I thank all members for their contribution to this debate: the Hon. Scott Farlow, the Hon. Mark Latham and Ms Abigail Boyd. I commend the bill to the House.

The DEPUTY PRESIDENT (The Hon. Rod Roberts): The question is that this bill be now read a second time.

Motion agreed to.

In Committee

The CHAIR (The Hon. Rod Roberts): There being no objection, the Committee will deal with the bill as a whole. I have one sheet of amendments: the Hon. Mark Latham's amendments Nos 1 and 2 on sheet ML1.

The Hon. MARK LATHAM (14:53): I move Independent amendment No. 1 on sheet ML1:

(1) On page 3 insert after line 21:

(d) the Leader of the NSW Greens;

(e) the Leader of the Shooters Farmers and Fishers Party;

(f) the Leader of the Animal Justice Party;

(g) the Leader of the Libertarian Party; and

(h) the Leader of the Legalise Cannabis Party.

The amendment aims to give The Greens; the Shooters, Fishers and Farmers Party; the Animal Justice Party; the Libertarian Party; and the Legalise Cannabis Party the same standing that the Government now seeks to give to One Nation. The curious aspect about the Government's stance is that it is not based on empirical evidence they can produce to the House. It is not even based on anything that is published; it is based on Labor Party polling. It is a curious thing in politics. Everyone has the standard line that the only election that matters is the one on polling day. That is thrown out the window here. There is a shadow play going on to shadow punch against a party that has lost three members. It is not just me; it is the Hon. Rod Roberts and the Hon. Tania Mihailuk. The Hon. Tania Mihailuk was manoeuvring to be the new party leader after the last election but ran into the same impropriety problems I warned her about. Across the spectrum of the three of us, it was the same problem.

There are several issues here. Ms Abigail Boyd made valid points about the elevation of One Nation, but elevating a party that we know to be riddled with financial impropriety is plain wrong. Elevating a party that has lost three members here and has a lower standing in the NSW Parliament than the ones that I have just listed is also wrong. If the Government wants to hurt One Nation electorally, it is wrong to elevate them and give them a platform. In response to what the Government is trying to do, One Nation is making its political points about net zero and climate change. They are two of the foundation stones of the Labor Party's electoral support in electorates like Cessnock and throughout the Hunter Valley. In those places there is now a longstanding perception that the major parties are more interested in the climate on the other side of the planet than the jobs down the road and the working families that Labor used to represent.

This is folly that the House should acknowledge. If the Government is going to do this for One Nation, the existing parties should have the same treatment. It encourages fiscal responsibility. Unlike One Nation, which stands outside the system, the parties listed in the amendment will probably use the services of the Parliamentary Budget Office [PBO] productively. I think that is a very good thing. This amendment is a matter of fairness and respect to the parties already in the Legislative Council. It gives them the same access to the PBO as a party that is not here, that should not be elevated and that has already said that it shuns the Treasurer's policy and regards him and his attitude as a bit of a joke.

Ms ABIGAIL BOYD (14:56): I indicate The Greens will not support the amendment, although we appreciate the spirit in which it was brought. The wording is flawed.

The Hon. Mark Latham: They can't identify a leader; it should be you. Step up. Step up now!

Ms ABIGAIL BOYD (14:56): The other parts of the bill refer to a member nominated by the minor parties, but I do not think we should be giving that standing to the particular parties currently represented in Parliament. If we were to do this, it should be for whoever ends up in here, and it should be a long-term Parliamentary Budget Office project where we have that back and forth that we talked about. For those reasons, we do not support the amendment.

The Hon. SCOTT FARLOW (14:57): As the Treasurer likes to take views, we have been somewhat interested in extending this. However, as we outlined in our second reading debate contributions, this policy would allow the views of a party that seeks to form government to be subjected to costings. None of the parties in the amendment have specified they wish to form government in New South Wales or seek to put an alternative Premier candidate forward. As such, we do not support the amendment.

The Hon. DANIEL MOOKHEY (Treasurer) (14:57): I know it is slightly unorthodox to seek to hear what everybody else thinks before we formulate our view, but I particularly wanted to hear from some of the parties that may be affected by this amendment. I paid close attention to the comments of Ms Abigail Boyd. I understand the reason she opposed the amendment is because she does not like the wording. It refers to a leader, which The Greens do not have. That is fair enough. The Greens are a political organisation with a different model. I am also persuaded by the shadow Treasurer's view on this.

The bill requires a parliamentary budget officer to form a budget impact statement—that is, to aggregate all the policies and generate a report for the voters about what they mean in aggregate. It is perhaps slightly different to the Hon. Mark Latham's intent in the second amendment, which is to get the policies costed. It is just the way the Act works. The budget impact statement process applies to those who are capable of forming government. The capacity to form government requires candidates to run in more than 45 electorates. Other than The Greens, I do not believe any of the parties listed in the amendment do. I think that is part of the reason they do not support it.

I am sure that the Legalise Cannabis Party, the Libertarian Party and the Animal Justice Party want access to the business impact statement process. I am inclined to agree with the shadow Treasurer: It is an interesting

issue that the next Parliament will probably need to consider in more detail. In the meantime, for the reasons the shadow Treasurer advanced, the Government is inclined to support the bill without amendment.

The Hon. MARK LATHAM (14:59): In reflecting on the words of the shadow Treasurer, I was expecting a more robust approach. I have mentioned the disrespect to the parties that are here. The Government is effectively saying the Coalition are no longer the official Opposition in New South Wales and no longer the alternative Government. The Government has elevated One Nation—a party with no members in this place—to that status. If they had any pride in their history, I would have thought that the Liberals and Nationals would have arced up about that. They have been either in government or the alternative Government in New South Wales since the time of Menzies in 1949. Going back to the United Australia Party and the Nationalist Party before that, it has been well over 100 years. This breaks more than a century of tradition in New South Wales politics of that political formulation being either the Government or the alternative Government.

Remarkably, with no members in either House, this legislation elevates One Nation to that standing. I do not know if Greiner would have copped that. I do not think Askin would have. I do not think Perrottet, Berejiklian, Baird or O'Farrell would have copped that. The Treasurer, without any resistance from the shadow Treasurer and the Liberal Party, puts a spear right into the side of the Coalition, which for over 100 years has been either the Government or the alternative Government in New South Wales. He basically says, "In practical terms, we know you've got no hope next time. One Nation is the real threat to the Labor Party and the real alternative Government in New South Wales". The weakness of what I am describing probably tells us why this is happening. I think the Tory parties, past and current, have had a lot more fight than they do now. The golden rule of politics is that if you do not fight for yourself, no-one else will.

The CHAIR (The Hon. Rod Roberts): The Hon. Mark Latham has moved amendment No. 1 on sheet ML1. The question is that the amendment be agreed to.

Amendment negatived.

The Hon. MARK LATHAM (15:01): I move my amendment No. 2 on sheet ML1:

(2) On page 3, after Part (3):

Five election costing requests by minor party members

Page 3, Schedule 1. Insert after line 21 -

[3B] Section 18A Election costing requests by minor party members

Omit "2 policies" from section 18A(2).

Insert instead "5 policies"

[3C] Section 18B Election costing requests by independent members facing election

Omit "2 policies" from section 18B(2).

Insert instead "5 policies".

I move this amendment under the economic theory of surplus capacity. We know that the Treasurer has surplus capacity in the Parliamentary Budget Office, because he has offered it all to One Nation and they have not taken it up. There is an opportunity to move from two to five costed policies for the minor parties and Independents running in the next election. That will not break the budget for the Parliamentary Budget Office. Given the elevation of One Nation, I think it is a proportional, reasonable way of ensuring that other parties are not wiped out entirely by the orange wave, the One Nation juggernaut, the One Nation/Ashby financial rorting machine, and that we have some consideration for the interests of the minor parties and Independents.

They do not have to use all five. I am certain the Libertarian Party would. We know the Hon. Jeremy Buckingham is active on all policy fronts, from solving crimes in Belanglo State Forest to driving with cannabis in your system, to depopulation across the planet. Those are three policies. He would only need two more to use his quota. The Shooters, Fishers and Farmers Party has a lot of policy work it would like to have costed; so too does the Animal Justice Party. The Greens have a spokesperson for everything, so I am sure they would use their five as well. Surplus capacity exists. There is not a lot of surplus capacity in the Australian economy at the moment, but the Treasurer has identified it in the Parliamentary Budget Office. This would be a fair and reasonable thing to do. Given the elevation of One Nation, I believe the House should support it.

Ms ABIGAIL BOYD (15:03): I do not hate this amendment. I am not sure The Greens would use five if we had five, for all of the reasons that we said before. But from a matter of principle, it does not really matter whether it is two or five. I am not sure about the Independent members having the same. I am not sure that is necessary, but then I did not think it was necessary when two were put in earlier this year either. On balance,

having only just seen this amendment, I think we do not support it, especially this close to the election. But it has given me pause for thought.

The Hon. Mark Latham: Go have a think about it and come back.

Ms ABIGAIL BOYD: All right.

The Hon. SCOTT FARLOW (15:04): Like the Treasurer, I like to hear all views. The Hon. Mark Latham has nominated this extension and would not qualify for it. He is a very magnanimous person, as we know. He is always thinking of others. I was very interested to hear Ms Abigail Boyd's perspective on this amendment. The Greens seem to be the only party in the Chamber for this amendment. There does not seem to be a clamour or a demand for it. I am not of a mind to support this amendment, but I thank the Hon. Mark Latham for always considering others, including the Liberal Party and The Nationals. He is always here to help.

The Hon. DANIEL MOOKHEY (Treasurer) (15:05): I am also in awe of the altruism of the Hon. Mark Latham in this respect. He has generously offered a variety of other minor parties the opportunity to have three more policies costed, which they seemingly reject for the reasons Ms Abigail Boyd gave. I am mindful to take into account the views of the shadow Treasurer. It is important that the parties that will have to have budget impact statements produced for them have an opportunity to express their views on this question. Again, for the reasons that the shadow Treasurer gave, I am inclined to support the bill without amendment.

Ms ABIGAIL BOYD (15:06): I think this could actually be quite useful. Talking about this as a party, I think one of the things that we find could be particularly useful is the costing of savings. For instance, we are not going to give subsidies to the racing industry. It would be lovely to know exactly what sits in the accounts in relation to that. That would tell us exactly how much is going to fossil fuel. That could be quite useful in terms of revenue raising measures, not just policy costings. Whether they then get used in the election or not could be a nice source of information for us.

Despite what the Treasurer said previously, The Greens is a serious party that has been around for a very long time. We have a number of MPs and we have policies on absolutely everything. Personally, I would love to be the Treasurer. I think I would do an excellent job. I reflect on where the Treasurer was when Labor was in opposition—we used to sit next to one another—and the incredible learning curve and work that has been done. He is very knowledgeable now. I am not saying he was not knowledgeable before, but I certainly do not think that the incredible women that I share my party room with would not be capable of being Ministers and forming government if we had some landslide ahead of the election. If that is where we want to go with this, then so be it. The Greens support this amendment.

The Hon. MARK LATHAM (15:08): I welcome the support and I take some pleasure in the powerful advocacy that has brought The Greens around to that position after a short period of reflection. But I make a serious point: If this amendment is not carried by the House, the whole Parliamentary Budget Office will be rendered defunct, useless and irrelevant. The Government has said the alternative Government in this State is One Nation, which has made a public statement that it is not going to use the Parliamentary Budget Office. I suppose from its position it makes sense that it would not. It gets away with postures rather than costed policies. That is One Nation's style. Its votes are a function in the failings of the major parties.

No-one can list a serious public policy problem that the major parties, Federal or State, have solved in this country in the past 20 years. They have basically given up on that, whether it is because they are dancing around on TikTok—and we will not go back to Gareth Evans or any of that—the impact of social media, a decline in the quality of their membership or the nature of politics. After so long in a two-horse race, one horse need only beat the other by a short half head to be in government, so why should anyone try too hard when they can just play the margins? No-one can list a serious public policy problem that has been solved in the past 20 years. The great problem-solving traditions of the Hawke-Keating and Howard-Costello periods in Canberra may be gone forever because politics as we know it has changed.

One Nation will not take up the opportunity because it has postures feeding off that discontentment with the major parties, rather than policies that can be pinned down. The Government has basically said that it expects for the Liberals and Nationals to be reduced in standing to minor parties at the next election. The Coalition is no longer the alternative government in New South Wales, so whatever it does through the Parliamentary Budget Office [PBO] will not matter for a warm bucket of spit. As for the minor parties, apart from The Greens there has not been a lot of enthusiasm to take up the offer or speak on it. It has been left to magnanimous Mark Latham to put the positions to try to help them.

The Hon. Anthony D'Adam: Humble Mark.

The Hon. MARK LATHAM: Yes, humble and magnanimous. My shadow Minister agrees with me. It is always good to have harmony and consensus across the Chamber, and I thank him for that. I thank The Greens for their support and point out that the Parliamentary Budget Office has been made defunct for the reasons I have outlined. At the last election, Labor was able to get away with a policy of public wage increases that it said would be free but actually cost the taxpayers of this State $15 billion. Who will take the PBO seriously when it has effectively been gutted by the Treasurer in this bill and across the Parliament, by definition, through the process and the politics that he has announced?

The Government costings cannot be taken seriously—we know that from last time. It has relegated the standing of the Liberals and Nationals to minor parties. The alternative government will not use the PBO. Other than The Greens, there is no great enthusiasm to take on even five costed policies. What a shame. That probably relegates New South Wales budgeting to permanent deficit, debt and broken promises because, whatever people say, none of it matters. That is a very sad moment for this Parliament, for the people who work in the Parliamentary Budget Office and for the nature of the next election campaign.

The CHAIR (The Hon. Rod Roberts): The Hon. Mark Latham has moved his amendment No. 2 on sheet ML1. The question is that the amendment be agreed to.

The Committee divided.

Ayes 8
Noes 29
Majority.....21

AYES

Boyd	Higginson	Martin
Cohn	Hurst (teller)	Ruddick
Faehrmann	Latham (teller)	

NOES

Barrett	Houssos	Murphy (teller)
Buckingham	Jackson	Nanva (teller)
Buttigieg	Kaine	Overall
Carter	Lawrence	Primrose
D'Adam	Maclaren-Jones	Rath
Fang	Merton	Sharpe
Farlow	Mitchell	Suvaal
Franklin	Mookhey	Tudehope
Govind	Moriarty	Ward
Graham	Munro	

Amendment negatived.

The CHAIR (The Hon. Rod Roberts): The question is that the bill as read be agreed to. Is leave granted to ring the bells for one minute?

Leave granted.

The Committee divided.

Ayes 30
Noes 7
Majority.....23

AYES

Barrett	Houssos	Munro
Buckingham	Jackson	Murphy (teller)
Buttigieg	Kaine	Nanva (teller)
Carter	Lawrence	Overall
D'Adam	Maclaren-Jones	Primrose
Fang	Martin	Rath
Farlow	Merton	Sharpe
Franklin	Mitchell	Suvaal

AYES

Govind	Mookhey	Tudehope
Graham	Moriarty	Ward

NOES

Boyd	Higginson	Latham (teller)
Cohn	Hurst	Ruddick (teller)
Faehrmann		

Motion agreed to.

The Hon. DANIEL MOOKHEY: I move:

That the Chair do now leave the chair and report the bill to the House without amendment.

Motion agreed to.

Adoption of Report

The Hon. DANIEL MOOKHEY: I move:

That the report be adopted.

Motion agreed to.

Third Reading

The Hon. DANIEL MOOKHEY: I move:

That this bill be now read a third time.

Motion agreed to.

VETERINARY SERVICES BILL 2026

First Reading

Bill received from the Legislative Assembly, read a first time and ordered to be published on motion by the Hon. John Graham.

The Hon. JOHN GRAHAM: According to standing order, I table a statement of public interest.

Statement of public interest tabled.

The Hon. JOHN GRAHAM: I move:

That standing orders be suspended to allow the passing of the bill through all its remaining stages during the present or any one sitting of the House.

Motion agreed to.

The Hon. JOHN GRAHAM: I move:

That the second reading of the bill stand as an order of the day for a later hour of the sitting.

Motion agreed to.

ELECTORAL LEGISLATION AMENDMENT (MISCELLANEOUS) BILL 2026

First Reading

Bill introduced, read a first time and ordered to be published on motion by the Hon. John Graham.

The Hon. JOHN GRAHAM: According to standing order, I table a statement of public interest.

Statement of public interest tabled.

Second Reading Speech

The Hon. JOHN GRAHAM: I move:

That this bill be now read a second time.

The Electoral Legislation Amendment (Miscellaneous) Bill 2026 amends the Electoral Act 2017 to implement some of the recommendations made by the Joint Standing Committee on Electoral Matters in its report

entitled *Display of electoral posters and other electoral signage at voting centres*, tabled in June 2026. I will refer to that report as the signage report. The bill also amends the Electoral Funding Act 2018 to implement some of the recommendations made by the joint standing committee in its recently tabled report entitled *Immediate options for enhancing political party governance.* I will refer to that report as the governance report. The bill also makes other minor amendments to the Electoral Act and the Electoral Funding Act to improve the administration of electoral funding and to facilitate the 2027 State election.

Electoral integrity is fundamental to public confidence in our democratic institutions, ensuring that elections are fair, transparent, accessible and conducted in a way that enables electors to participate with confidence. On 7 April 2026 the Electoral Legislation Amendment (Elections) Act 2026 received royal assent, introducing a number of important reforms to improve electoral integrity and the administration of the 2027 State election. The bill continues the Government's work to improve elections by improving voter experience and improving governance, accountability and transparency for political parties. On 18 March this year, I wrote to the joint standing committee requesting that it inquire into and report on appropriate limitations on the number of electoral posters that may be displayed around voting centres in New South Wales. Currently under the Electoral Act, electoral posters are prohibited inside a voting centre, on the exterior of a voting centre building or within six metres of the entrance to a voting centre, which is known as the "prohibited area". Those restrictions also apply to early voting centres. Beyond the prohibited area, there are no limits on the number of posters that can be displayed, including within the grounds and on the outer wall, fence or boundary of the grounds of a voting centre.

The joint standing committee received 30 written submissions and conducted a one-day hearing on 23 April 2026. The joint standing committee's final report was tabled on 9 June 2026. It contains 18 recommendations for reform, comprising a detailed regime for limiting signage at voting centres. The joint standing committee's report proposes increased limitations on the display of electoral posters and signs around voting centres. The Government has accepted, or accepted in principle, all 16 of the recommendations in the final report that were directed to the Government. A further two recommendations were directed to the NSW Electoral Commission. This bill gives effect to some of the accepted recommendations requiring amendments to the Electoral Act which can be implemented in advance of the 2027 State election. I will turn to those amendments shortly.

On 7 August 2026 I wrote to the joint standing committee requesting that it inquire into and report on immediate options for enhancing political party governance standards in New South Wales. The specific terms of reference required the committee to consider whether parties should be required, as a precondition to receiving entitlements from the Administration Fund under the Electoral Funding Act, to adopt a code of conduct which addresses the various obligations of party office holders, and whether parties should be required to provide annual attestations to the NSW Electoral Commission of the party's compliance with record-keeping obligations under the Electoral Funding Regulation 2018. The committee received eight written submissions.

The committee's final report was tabled on 14 September 2026. It contains six recommendations for reform. The Government has accepted all six of the recommendations. This bill gives effect to those accepted recommendations that require legislative change. As part of the inquiries, the committee heard submissions and evidence from many stakeholders, including the NSW Electoral Commission, political parties, local councils and advocacy groups. The perspectives of those stakeholders directly informed the recommendations in the reports. The content of the bill is based on those recommendations and has been further informed by consultation with key government agencies, including the NSW Electoral Commission, Treasury, the Office of Local Government and the Department of Communities and Justice.

In relation to the signage report, the amendments in this bill give legislative effect to recommendations 9, 12 and 14 made by the committee in whole or in part. The bill also gives effect to the policy intent of recommendations 10, 11 and 16 of the signage report. The joint standing committee's other recommendations in the signage report that recommend legislative change are not included in the bill but will be considered for inclusion in future legislation. Those recommendations have not been implemented in the bill due to the risk of making significant operational changes so close to the 2027 State general election. However, I indicate that it is the Government's intention to return to those matters. In relation to the governance report, the amendments in this bill give legislative effect to recommendations 2, 3 and 5 of that report.

I move now to the details of the bill and the amendments to the Electoral Act in schedule 1. The bill amends section 196 of the Electoral Act to include a new section 196 (2) to provide that a person must not, during the period between 7.00 a.m. and 6.00 p.m. on election day, display or cause to be displayed a poster that exceeds 600 millimetres by 900 millimetres in an area within the grounds of an enclosure in which a building used as an early voting centre is situated or on the outer wall, fence or other boundary of the grounds of the early voting centre. In plain terms, that will outlaw what is known as bunting. A breach of section 196 (2) will be an offence, with a maximum penalty of 20 penalty units for an individual or 100 penalty units otherwise. New section 196 (3)

provides that the size limit does not apply to the display of an item of clothing worn by a person, an umbrella, a sign or poster displayed by the NSW Electoral Commission, a how-to-vote card or anything else prescribed in the regulations.

The bill amends section 191 of the Electoral Act to include a new section 191 (2) to impose the same limit on the size of signs displayed at an early voting centre during the hours of operation of an early voting centre. A breach of section 191 (2) will also be an offence, with a maximum penalty of 20 penalty units for an individual or 100 penalty units otherwise. The new restrictions will apply in addition to the existing restrictions set out at sections 191 and 196, which prohibit the display of any posters within a voting centre or within six metres of the entrance to a voting centre or early voting centre. As is the case for voting centres, items like clothing, umbrellas and the like will be excluded from the limit on the size of signs. The new restrictions implement recommendation 9 and recommendation 12 in part of the signage report, which recommended that the maximum size of signs be 600 millimetres by 900 millimetres and that certain items be excluded. By imposing a size limit, mobile billboards and other types of oversized signage will be restricted in the same way.

The new restrictions will apply from 7.00 a.m. to 6.00 p.m. on election day and during the hours of operation of early voting centres. Although the joint standing committee recommended a 5.00 a.m. start time, recommendation 14 states that election officials are on site from 7.00 a.m., which means that the period of operation will align with the time in which the restrictions can actually be enforced. In theory, party workers will still be able to put up signs prior to 7.00 a.m. Officers of the Electoral Commission already have powers under the Electoral Act to direct a person to remove, or cause to be removed, any poster displayed in contravention of the parts of the Act. That will include the new poster size restrictions. It is an offence for a person to contravene such a direction. Those powers reflect recommendations 11 and 16 of the joint standing committee's report.

Schedule 1 to the bill will commence on assent if passed. Schedule 1 to the bill makes targeted and balanced changes to improve voter experiences and to reduce the waste associated with oversized signage, while still allowing political participants to display signage in the grounds of voting centres. In particular, the reforms may also improve access for voters with disabilities who currently find it difficult to navigate the area surrounding voting centres due to the proliferation of signage in the grounds of voting centres. Schedule 1 to the bill also makes other minor amendments to the Electoral Act unrelated to the signage report.

Schedule 1 [1] and [2] amend sections 142 and 149 of the Electoral Act to clarify the Electoral Commissioner's powers to protect the integrity of a ballot during the scrutiny process for declaration and postal votes. The provisions clarify that, should more than one declaration or postal vote envelope be received from a single elector, the commissioner may reject the second or subsequent envelopes. Similarly, the commissioner may reject a declaration or postal vote envelope from an elector if the commission's records indicate that person has cast a vote at a voting centre. Of course, there are appropriate exceptions relating to electors who cast their vote under section 137 (1), due to the rare cases in which an elector's name is marked off in error by a local official prior to them voting.

Schedule 1 [8] makes it clear that the Electoral Commissioner must not register electoral material if it appears to the Electoral Commissioner that the material contravenes the Electoral Act 2017 at sections 189A or 189B, which are the provisions that prohibit certain types of digitally generated material and require other types of digitally generated material to contain a statement that the material is digitally generated. The bill also amends section 199 of the Electoral Act to bring forward the deadline for registration of electoral material to 5.00 p.m. on the Monday that is five days before election day. That reverses an amendment made to the Electoral Act by the Electoral Legislation Amendment (Elections) Act, which had extended the deadline to 5.00 p.m. on the Thursday before election day. The earlier deadline will ensure that there is sufficient time for registered electoral material to be inspected by other parties.

I now move to the amendments to the Electoral Funding Act at schedule 2 to the bill. To improve political party governance standards, the bill inserts a new section 96B that states that a party must adopt a code of conduct and give a copy of the code to the Electoral Commission. That implements recommendation 2 of the governance report and is intended to set minimum standards and expectations for parties. The code must provide for the following things: the obligations of members of the party to act lawfully and ethically; the management of actual, potential and perceived conflicts of interest; the duty of senior office holders to report alleged contraventions of the Electoral Funding Act to the Electoral Commission; procedures for promoting standards of conduct within the party; and procedures for handling internal complaints, including protections for whistleblowers. Parties will be required to provide any amended codes of conduct to the Electoral Commission within 30 days of amendment. The Electoral Commission will publish copies of all codes of conduct on its website.

The bill inserts a new section 96C that requires a party to submit an annual declaration in respect of the code of conduct before 1 March each year, setting out that the party has adopted a code of conduct that complies with the legislation; the steps that the party has taken over the previous year to ensure members of the party have

complied with the code of conduct; and any instances of noncompliance with the code by senior office holders over the previous year. The bill inserts new section 96 (3A), which states that a party is not eligible for a quarterly payment or quarterly advance payment from the Administration Fund unless the party has given the Electoral Commission a copy of the code of conduct adopted by the party under new section 96B and the Electoral Commission is satisfied that the code complies with the requirements of new section 96B. The required content of the code of conduct is clearly set out in new section 96B, enabling the commission to objectively and consistently assess whether each party's code meets the requirements. The new section 96 (3B) provides that a party will also not be eligible for a quarterly payment from the Administration Fund unless the Electoral Commission is satisfied that the party has submitted the required annual declarations in relation to its code of conduct.

Making payment from the Administration Fund conditional on a party adopting a code of conduct, giving it to the Electoral Commission and submitting an associated annual declaration implements recommendation 3 of the governance report. Consistent with recommendation 4 of the joint standing committee, while the Administration Fund payments will be contingent on the Electoral Commission receiving this declaration, the amendments ensure that parties are not penalised for single or inadvertent breaches of the code of conduct but are intended to discourage systemic noncompliance. These amendments to the Electoral Funding Act are about improving openness, transparency and public confidence. This is an appropriate point to thank the joint standing committee for its work, including the chair, the Hon. Peter Primrose. That was a really important recommendation. We want higher standards, but we want public confidence in the system. We do not want this to be a system where a one-off, honest mistake reduces public confidence. If there is systemic noncompliance, we expect the law to be enforced strongly.

Under new section 96D, parties will be required to submit another annual declaration in respect of compliance with record-keeping obligations under the Electoral Funding Act if the party has received a quarterly payment or quarterly advance payment from the Administration Fund in that year. This implements recommendation 5 of the governance report. The bill also includes an offence for noncompliance with this requirement, with a maximum penalty of 200 penalty units. The Electoral Commission will be required to publish all declarations on its website, excluding any personal information.

The bill's provisions implementing the governance report recommendations will commence on 1 January 2027. Under transitional arrangements, entitlement to quarterly payments and quarterly advance payments for the second quarter of 2027, starting on 1 April 2027, will depend on parties submitting their code of conduct to the Electoral Commission by 1 February 2027, with an accompanying declaration that it meets the legislative requirements. Thereafter, annual declarations will be due by 1 March each year. The new framework will strengthen governance standards for registered political parties by increasing transparency and accountability. In this way, the bill will also support public confidence in political parties and the electoral system by improving oversight of party conduct and compliance with legislative obligations. Schedule 2 [1] and [2] to the bill amend section 4 of the Electoral Funding Act to include a new definition of "controlled entity", which, of a party, is defined to mean "a body or organisation, whether incorporated or unincorporated, that is controlled within the meaning of the Corporations Act 2001 of the Commonwealth, section 50AA, by the party.

Currently, where an entity is controlled by a party, there is some ambiguity as to whether that entity should be treated as an associated entity or as the party itself for the purposes of the Electoral Funding Act, including donation caps and disclosure obligations. This is because section 9 (1) of the Electoral Funding Act provides that anything done by, on behalf of or for the benefit of, or any property held by, or in trust for, or for the members of, a controlled entity is taken to be done by the party. The bill amends the definition of "associated entity" in the Electoral Funding Act to clarify that a controlled entity is not an associated entity. This amendment will clarify that a controlled entity is subject to the same aggregated donation caps and disclosure obligations as the party.

I move to schedule 2 [2] and [3] to the bill, which deal with political donations. Under section 5 (1) of the Electoral Funding Act, a political donation is a gift made to, or for the benefit of, a party, elected member, candidate, group of candidates, or other person or entity, including an associated entity or third-party campaigner in New South Wales. Subsection 5 (2) of the Electoral Funding Act provides that a gift also includes an amount paid by a person as a contribution, entry fee or other payment to entitle that or any other person to participate in or otherwise obtain any benefit from a fundraising venture or function, being an amount that forms part of the gross proceeds of the venture or function. Schedule 2 [2] and [3] to the bill operate to clarify that the purchase of a promotional merchandise item for sale as part of a fundraising venture or function is a gift and therefore captured as a political donation and subject to the relevant disclosure obligations and caps. Item [2] defines "promotional merchandise item" as "an item containing electoral matter, within the meaning of the Electoral Act 2017, and includes an item of clothing, umbrella, hat, badge or water bottle".

Schedule 2 [4] to the bill amends the meaning of "electoral expenditure" for the purposes of part 4 of the Act, which governs public funding of State election campaigns. This amendment will ensure that parties and candidates are not reimbursed from the Election Campaigns Fund for expenditure incurred on promotional merchandise that they have then onsold throughout an election campaign, causing, effectively, double dipping. This will include items of clothing, umbrellas, hats, badges, water bottles or similar merchandise. The purpose of the amendment is to address a scenario where a party or candidate incurs electoral expenditure for an election on promotional merchandise, sells it potentially at a profit—or not—and then makes a claim for reimbursement from the Election Campaigns Fund for the incurred expenditure.

I note that, under section 5 (4) of the Electoral Funding Act, all payments made to a New South Wales branch of a party from the Federal branch of the party, or from another State or Territory branch of the party, or from another party must be treated as gifts and are subject to the rules relating to political donations. All such payments must be disclosed to the NSW Electoral Commission as political donations, therefore, and must be within the relevant annual caps. Schedule 2 [5] to the bill inserts new section 37 (3) (c1) into the Electoral Act, which expressly clarifies that any amount of a political donation to a party that was paid into a Federal campaign account kept by the party must not be paid into the State campaign account of that party.

Finally, schedule 2 to the bill amends section 88 of the Electoral Funding Act in relation to an Independent member's eligibility for Administration Fund payments. Currently, an Independent elected member who is not re-elected at the 2027 State election on 13 March 2027 will not be entitled to a quarterly payment from the Administration Fund for the quarter in which the election is held. This is because an Independent member's eligibility for administrative funding is currently determined at the end of the quarter, on 31 March 2027, at which point the Independent member would no longer be an elected member. The bill amends section 88 (2) to provide that, for an Independent member to be eligible for a quarterly payment from the Administration Fund for a quarter during which a dissolution or expiry of the Legislative Assembly occurs, the Electoral Commission must be satisfied that the elected member is not a member or representative of any party on the date immediately before the date of the dissolution or expiry. This is consistent with the approach to determining a party's eligibility for Administration Fund payments, as the number of endorsed elected members is determined as at the date immediately before the date of dissolution or expiry of the Legislative Assembly.

The proposed amendments in the bill implement recommendations of the bipartisan Joint Standing Committee on Electoral Matters. The bill has also been subject to consultation with the Opposition and members of the crossbench. I thank members for their feedback during that consultation. The bill advances the work to improve our electoral system by improving voters' experience at voting centres and strengthening political party governance, transparency and accountability. I commend the bill to the House.

Debate adjourned.

NATIONAL PARK ESTATE (GREAT KOALA NATIONAL PARK RESERVATIONS) BILL 2026

Second Reading Speech

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (15:49): I move:

That this bill be now read a second time.

It gives me great pleasure to introduce the National Park Estate (Great Koala National Park Reservations) Bill 2026. The bill represents a significant milestone in the delivery of the New South Wales Government's election commitment to establish a Great Koala National Park on the Mid North Coast of New South Wales. The bill will reserve over 178,000 hectares of State forest and other Crown lands under the National Parks and Wildlife Act 1974, creating the most significant addition to the New South Wales reserve system in decades.

I acknowledge the lands described in this bill are the ancestral country of the Gumbaynggirr and Dunghutti Aboriginal peoples, who have maintained a continuous connection to these landscapes for thousands of years. I pay my respects to Elders past, present and emerging, and acknowledge the important contribution of Aboriginal communities, organisations and knowledge holders in shaping the pathway to establishment of the Great Koala National Park. These lands contain places of deep cultural significance, including important cultural landscapes, songlines, campsites, gathering places and areas connected to story, ceremony and ongoing cultural practice. The bill provides an important foundation for future joint management arrangements and stronger Aboriginal involvement in the stewardship of these lands.

"Dunggiirr Jagun" means "koala country" in the language of the Gumbaynggirr people. Gumbaynggirr and Dunghutti Aboriginal people helped inform the New South Wales Government's decision. They are continuing to guide decisions and management, and those arrangements are being further developed. For the first time in New South Wales, the Great Koala National Park will engage Aboriginal rangers who are employed within

Aboriginal controlled organisations. This will help build long-term capacity and skill bases within Aboriginal organisations and support genuine economic empowerment. The park will facilitate enhanced access to country and better protection of significant Aboriginal cultural heritage sites.

Koala conservation is at the heart of this park's creation. The Great Koala National Park will protect one of the largest known koala populations in New South Wales, estimated at around 12,000 healthy koalas, within a landscape rich in koala food trees and identified as important climate change refugia. As the impact of climate change becomes more pronounced, protecting refuge areas for koalas and other threatened species is increasingly important. Establishment of the park will also protect a landscape of national conservation significance for other threatened species and ecological communities. The number of threatened fauna species recorded in the Great Koala National Park is commensurate with other existing iconic and biodiverse reserves, such as the Blue Mountains National Park.

The creation of a Great Koala National Park has been the subject of extensive community interest and passionate advocacy over many years, over a decade. Environmental groups, including the National Parks Association, North East Forest Alliance, North Coast Environment Council, Nambucca Valley Conservation Association, Bellingen Environment Centre, the Nature Conservation Council of NSW, Labor Environment Action Network, WWF Australia and the Australian Climate and Biodiversity Foundation, amongst many others, have led the campaign advocating for the park's reservation and built widespread support within the local community and across the State. I place on record and acknowledge their many years of work. Local government, communities and recreational users have also contributed to the development of the proposal now before the House.

In establishing the Great Koala National Park, the Government has sought to protect nationally significant environmental values while recognising the social, cultural and recreational values those forests support. The Government's vision is for the Great Koala National Park to be one of the most significant conservation initiatives in New South Wales as well as a must-see destination attracting visitors and contributing to the local economy. When people visit Australia, I want them to go and see the Great Barrier Reef, Uluru and the Great Koala National Park.

The bill gives effect to the Government's commitment to secure these values for future generations. This bill, and the creation of the park, will mean that our children's children can visit those amazing forests, walk amongst those giant trees and spot precious animals such as koalas in the wild. The bill will commence on a day appointed by proclamation, but only after the Clean Energy Regulator has declared an eligible carbon project under the Carbon Credits (Carbon Farming Initiative) Act 2011. I confirm that today the Clean Energy Regulator has registered this project. As a result of the registration, we hope to open the park before the end of the year, subject, of course, to the passage of the bill in this place today.

I seek leave to have the balance of my second reading speech incorporated in *Hansard*.

Leave granted.

Revenue generated through the carbon project will support the long- term conservation and management of these lands.

The Government has also committed that these credits will not be sold to fossil fuel projects. This commitment will be registered with the Commonwealth Clean Energy Regulator.

The bill will transfer certain State forest, Crown land and other lands to the national park estate.

The bill will deliver important conservation outcomes

The Great Koala National Park will protect one of the most significant koala populations in New South Wales.

Koala drone surveys undertaken across the assessment area between April and July 2024 estimated a population of between 10,300 and 14,540 koalas, with a mean estimate of 12,111 koalas. By securing large areas of connected, high-quality habitat, this bill will help safeguard that population for future generations.

While koalas are the flagship species for this new national park, they are far from the only beneficiaries. The new park supports an extraordinary diversity of native plants and animals, including 66 threatened fauna species and 37 threatened flora species.

Establishment of the park will strengthen protection for a range of threatened species, including the southern greater glider, yellow-bellied glider and glossy black-cockatoo. It will also protect significant populations of threatened plants, including spider orchids that are not currently protected elsewhere in the New South Wales national park estate.

The bill will provide enhanced protections for important old -growth forests and protect key water catchments that contribute to the Bellingen, Nambucca and Nymboida water supplies.

These forests also provide important climate refugia, offering species a greater chance of persisting as temperatures rise and climatic conditions change.

The park also has exceptional connectivity values — providing crucial corridors for species to move and breed. The east-west links and altitudinal gradient from the coastal lowlands up the escarpment and over to the adjoining New England Tablelands is particularly important for many species.

Protecting these forests is an enduring investment in our natural heritage, safeguarding a landscape rich in biodiversity, natural beauty and cultural significance for future generations.

The process to identify the boundaries of the Great Koala National Park involved extensive assessment and consultation, including: an independent economic and social assessment of impacts on local jobs, communities and employment; the establishment of industry, community and Aboriginal advisory panels to inform the assessment process; and expert environmental and cultural heritage assessments to ensure the protection of environmental values and cultural heritage.

Together, these assessments provided a comprehensive examination of the national park proposal.

In determining the final reservation proposal and reserve categories contained in this bill, the Government carefully considered the evidence gathered through this process and a broad range of additional stakeholder feedback.

The Government acknowledges that creating the Great Koala National Park has implications for parts of the native timber industry and for workers and communities that have historically depended on timber harvesting from these forests.

The Government planned carefully to minimise the impacts where possible and has worked directly with affected businesses, workers and communities to support this transition.

The Government has put in place a comprehensive support package for affected workers and businesses, including redundancy support, retraining and upskilling assistance, relocation support, and access to financial, legal and mental health services.

Financial assistance is also available to eligible businesses affected by the reduction in timber supply, including support for business planning, transition activities and investment in new business opportunities.

The Government has committed a $6 million community grants package to support regional economic development, tourism and local business growth, helping communities realise new opportunities arising from establishment of the Great Koala National Park.

The Government recognises that adjustment will take time and remains committed to working alongside local communities as these changes take effect.

The Government also recognises that the transition associated with establishment of the Great Koala National Park will affect some Forestry Corporation employees.

To support that transition, the bill includes a provision enabling affected Forestry Corporation staff to be appointed to suitable roles within the National Parks and Wildlife Service without the need for a competitive recruitment process, helping retain valuable local skills, experience and knowledge within the region.

While acknowledging the impacts, the Great Koala National Park presents significant opportunities for the Mid North Coast community.

The Government is making a significant investment in the long-term management of the park, including establishing 100 additional National Parks and Wildlife Service positions to deliver enhanced fire management, feral animal and weed control, ecological rehabilitation and visitor management.

As a result of this investment, a higher level of fire and invasive species management will be undertaken in the forests than has occurred historically.

Already, the National Parks and Wildlife Service has been ramping up preparedness in the area with new technology, surveillance and equipment to strengthen bushfire detection and response.

A network of remote cameras and satellite wildfire detection is being rolled out across the park footprint giving National Parks and Wildlife 24/7 awareness of fire within the landscape.

Aboriginal roles will make up at least 15 per cent of the new positions, creating opportunities across a wide range of park management functions.

Through partnerships with local councils, Aboriginal communities, tourism operators and other stakeholders, the Government will support new visitor experiences, recreation opportunities and nature-based tourism that showcase the region's unique environmental and cultural values.

The creation of the Great Koala National Park marks the beginning of a transformative new chapter for the Mid North Coast. As a significant environmental, cultural and tourism asset, it will support jobs, strengthen regional communities and protect one of New South Wales most important landscapes for future generations.

Beyond the formal advisory panel process, the New South Wales Government, through the National Parks and Wildlife service, continues to undertake extensive and ongoing stakeholder engagement and community consultation throughout the development park.

The Great Koala National Park Have Your Say survey received almost 4,000 responses.

The key findings are set out in the *What we heard report*, which brings together the feedback and outcomes from the Have Your Say survey and broader stakeholder engagement undertaken.

It reveals people in the local region and across New South Wales widely appreciate the area for its recreation opportunities, outstanding conservation values, natural beauty and wellbeing benefits.

There is strong support for improved protection for koalas and other threatened species while also ensuring that a broad range of recreational uses are available in the park.

The Government carefully considered the views expressed through this engagement alongside environmental, cultural, social and economic assessments when developing the reservation proposal before the House.

This feedback informed a range of decisions reflected in the bill, including proposed reserve categories, boundary refinements, recreation and access arrangements, and future management approaches.

Consultation and engagement with Aboriginal communities, local stakeholders, recreational users and the broader community will continue as the park is established and future management arrangements are developed.

Community input will help shape future plans of management, guiding recreation opportunities and investment in trails and visitor infrastructure while protecting the park's outstanding natural and cultural values.

The reserve categories proposed in this bill reflect extensive consultation, rigorous assessment and the unique circumstances of the Great Koala National Park.

In determining reserve categories, the Government considered high-value conservation and cultural landscapes alongside long-standing community use of State forests, established recreational activities, and existing visitor infrastructure.

The Government recognises that State forests have supported generations of recreational use.

We have listened carefully to the views of the public and recreational groups, including four-wheel drive and motorcycle enthusiasts, campers, bushwalkers and mountain-bike riders, about how they use the area now, and what opportunities they would like in the future.

Far from being "locked up", these new reserves will remain open for public enjoyment, with enhanced opportunities for new and existing recreational access.

These reserves will continue to provide opportunities for the public to connect with and enjoy the natural environment through walking, cycling, four-wheel driving, trail-bike riding, horse riding, nature-based recreation and other activities consistent with the management objectives of each reserve category.

The Government recognises that these recreational uses each have a long and valued tradition of how people enjoy the Australian bush and great outdoors. In today's world, these recreational pursuits and opportunities for social connection and connection with nature are more important than ever.

The bill includes provisions allowing the Minister to approve motor racing events on existing roads in regional parks in appropriate circumstances. This recognises the long history of car rally events in the region, and ongoing community interest, while ensuring environmental, cultural and public safety considerations remain paramount.

The Great Koala National Park demonstrates how environmental protection, cultural recognition and community access can be achieved together through extensive consultation, thoughtful and balanced reserve planning. Our hope is that it is seen as a best practice model for years to come.

Most of the lands reserved through the bill will be designated as national park.

National park is the principal reserve category within the Great Koala National Park and has been applied to extensive areas of high conservation value forest.

These areas will protect important koala habitat and other significant environmental values while continuing to provide opportunities for appropriate public access and nature-based recreation.

Nature reserves have been applied to areas containing particularly sensitive environmental values, including significant threatened species habitat, old -growth forest and other high conservation value ecosystems.

These areas are generally less suited to intensive recreational use and will receive the highest level of protection available under the reserve system.

Most of the flora reserves will be reserved as nature reserves, as well as sensible additions to existing nature reserves in the area.

Reserving these lands as nature reserve will help maintain their conservation values for future generations.

The bill creates a series of new regional parks.

Regional parks have been designated in areas that support conservation values, while also accommodating established recreational use and community access.

Many of these areas are located near regional centres, including Coffs Harbour, Nambucca Heads, Bellingen and Kempsey, and support long-standing recreational activities, established visitor infrastructure and high levels of community use.

Regional park status ensures these lands remain protected as part of the national park estate while continuing to support a diverse range of recreational opportunities.

This outcome is a clear demonstration of our commitment to listen to the diversity of community views about how people want to be able to access and enjoy all that the Great Koala National Park has to offer.

Two new Aboriginal Areas will be created over places of particular cultural significance identified through consultation with the Aboriginal Advisory Panel.

This reserve category recognises the importance of protecting Aboriginal cultural heritage, cultural landscapes and ongoing connections to Country.

These areas will provide opportunities for greater Aboriginal involvement in the management and interpretation of these important places.

The Government is committed to undertaking a landscape -scale cultural mapping exercise in the future, to better identify and protect areas of particular significance to the Aboriginal community.

Some lands included in the bill cannot immediately be reserved because they are subject to existing leasehold or other legal interests.

The bill vests these lands in the Minister under part 11 of the National Parks and Wildlife Act 1974, providing a pathway for their ongoing management while those interests are addressed.

This includes around 17,000 hectares of land subject to perpetual leases.

The New South Wales Government is engaging directly to acquire these leasehold interests in accordance with the Land Acquisition (Just Terms Compensation) Act 1991, which provides fair compensation and an open and transparent process.

When existing interests are resolved, the lands can be formally reserved and incorporated into the adjoining national park or nature reserve, ensuring long-term conservation management consistent with surrounding reserved lands.

The bill updates reserve categories of a small number of existing reserves to better reflect current land use, cultural values and conservation objectives.

Seven existing State Conservation Areas will be recategorised as national park. This strengthens their conservation status and reflects the cessation of mineral interests and activities within these reserves.

The bill also recategorises Sherwood Nature Reserve as a combination of national park and Aboriginal area. This approach better reflects the area's significant cultural values while also supporting appropriate recreation and public access.

The new reserve names have been generously gifted by the local Gumbaynggirr and Dunghutti Aboriginal communities.

The New South Wales Government is honoured to accept these names and recognises them as an enduring contribution by the Gumbaynggirr and Dunghutti peoples to the people of New South Wales.

These names keep traditional language, culture and connection to Country visible and respected, strengthening understanding of the rich Aboriginal heritage of this landscape for generations to come.

The bill also corrects the spelling of several existing reserves to reflect contemporary Aboriginal language advice.

The Government sees Aboriginal involvement in park management as central to the long-term success of the Great Koala National Park.

The Aboriginal Advisory Panel has played an instrumental role in ensuring Aboriginal cultural heritage and knowledge are reflected in the creation of the Great Koala National Park.

The bill lays the foundation for future joint management arrangements and stronger Aboriginal participation in conservation, visitor services, cultural heritage management and land stewardship.

For the first time, the New South Wales Government is seeking to develop a whole-of-Country joint management model with an Aboriginal nation. This represents an important opportunity to strengthen Aboriginal leadership in the stewardship of Country and may provide a model for future joint management arrangements across New South Wales.

Following extensive collaboration with Elders and Traditional Custodians through the Aboriginal Advisory Panel, the Great Koala National Park will create new opportunities for Aboriginal employment and leadership in park management.

In addition to the provisions in this bill, the New South Wales Government is supporting the creation of eight externally hosted Aboriginal Ranger positions. Employed by local Aboriginal organisations, these rangers will work alongside national parks staff to embed cultural knowledge, cultural burning, Caring for Country practices and Aboriginal stewardship at the heart of the park's long-term management.

Consistent with Government policy, most State forest plantations have been excluded from the Great Koala National Park and will continue to be managed by the Forestry Corporation of NSW for ongoing timber production.

The Government has been clear in this regard since 2023. The Government remains committed to a sustainable plantation timber industry and recognises the important role plantations play in supporting regional jobs and timber supply.

The bill includes specific provisions to maintain access to Forestry Corporation plantation assets that remain outside the park.

National Parks and Forestry Corporation have undertaken work to ensure the final boundaries provide access to plantations, facilitate operational management, and ensure the integrity of the park.

Clear and rational boundaries are essential for both agencies to effectively conduct management operations.

Access roads and associated operational arrangements have been carefully designed to support the ongoing management and harvesting of plantation forests.

In limited locations, achieving a practical boundary outcome required the retention of small areas of native State forest adjacent to plantation areas.

These "buffer" areas provide operational access and separation that supports the ongoing management of adjoining plantations.

While these lands will remain State forest, the bill establishes a process to identify these lands and makes clear they are not available for timber harvesting.

By prohibiting prescribed forestry operations in these retained native State forests, we are ensuring these areas continue to contribute to the conservation outcomes in the landscape whilst maintaining operational access to plantations.

The bill includes a mechanism to make minor or consequential boundary adjustments following reservation.

The provision is designed to address surveying issues, road alignments, tenure anomalies and similar matters.

Strict safeguards apply, including Ministerial approvals and certification that adjustments cannot significantly diminish either the national park estate or State forest estate.

Similar provisions have been used successfully in previous reservation legislation.

The Government recognises that reservation of a public land estate of this scale and complexity cannot always resolve every tenure and administrative matter before legislation is introduced.

The bill therefore includes limited mechanisms to allow certain public lands to be added to the national park estate following commencement where this is necessary to resolve tenure, boundary or land administration matters, or to complete implementation of the reservation package.

These provisions are intended to facilitate delivery of the reservation outcome approved by Parliament and ensure identified public lands can be incorporated into the national park estate in an orderly and efficient manner.

Appropriate safeguards apply to the exercise of these powers, including Ministerial oversight and statutory limitations on how and when the powers may be exercised.

The bill contains provisions to preserve existing lawful rights and interests where appropriate, ensuring the establishment of the Great Koala National Park does not unnecessarily disrupt existing arrangements.

At the same time, the bill extinguishes rights that are inconsistent with the long-term reservation and management of these lands as part of the national park estate. This includes forestry rights and, where relevant, carbon sequestration rights that arise as forestry rights under the Conveyancing Act 1919.

The lands affected by this bill contain a range of other existing interests, including recreational clubs operating under permit, apiary sites, utilities and other authorised uses. The bill provides for these interests to continue in accordance with existing legislative arrangements.

This approach enables the Government to deliver the Great Koala National Park while providing certainty for existing interest holders and supporting an orderly transition into the national park estate.

Creating the park is only the first step.

Detailed planning will follow to guide conservation, visitor access, cultural heritage protection and recreation.

The Government will continue to work with Aboriginal communities, local councils, stakeholders and park users as management arrangements are developed.

Future management planning will ensure the park's environmental, cultural and recreational values are protected and enhanced over time.

As required for all parks, statutory plans of management will be prepared, publicly exhibited, and then adopted for reserves in the Great Koala National Park.

This bill is about more than lines on a map.

It is about protecting one of New South Wales' most significant environmental and cultural landscapes while ensuring current and future generations can continue to experience and enjoy it.

It delivers on the Government's commitment to establish the Great Koala National Park, securing habitat for koalas and many other threatened species, recognising the enduring connection of the Gumbaynggirr and Dunghutti peoples to Country, and providing a foundation for sustainable recreation, tourism and regional economic opportunities.

Through this bill, the Government is delivering a vision for the Great Koala National Park that protects environmental and cultural values, supports community access and provides a strong foundation for long-term stewardship. This approach is informed by extensive consultation, rigorous assessment and a shared commitment to the future of these forests.

The Great Koala National Park will be a landmark addition to the national park estate and a lasting investment in the environmental, cultural and economic future of the Mid North Coast and New South Wales.

I commend the bill to the House.

Second Reading Debate

The Hon. SARAH MITCHELL (15:54): I contribute to debate on the National Park Estate (Great Koala National Park Reservations) Bill 2026 on behalf of The Nationals. I note that my colleague the Hon. Jacqui Munro will make a contribution on behalf of the Liberal Party because, as was evident in debate in the lower House, we have differing positions on this legislation. The Nationals strongly oppose the bill and certainly made that clear in the other place. We are concerned by the damage being inflicted on the timber industry on the Mid North Coast. Some of the impacts of that were evident before the legislation had even reached or passed this Parliament. There has already been an impact on jobs in the region, and barriers will be put in place for local communities who want to access public forests in their own backyard.

The Nationals believe that the bill and the idea behind the park are fundamentally flawed. We believe that the Government has disregarded scientific evidence, ignored expert advice and pushed ahead with a proposal that will neither protect koalas nor support decarbonisation, while causing profound harm to our regional communities and the timber industry. Before I turn to the detail of the bill, I acknowledge my colleagues from The Nationals in the other place. From day one they have fought hard for the timber industry and for the communities that they represent, ever since the park was announced as an election commitment and then as something that Labor wants to deliver now that it is in government. I particularly mention the Leader of The Nationals in the other place, the member for Coffs Harbour, Gurmesh Singh. He has been relentless, taking the concerns of timber workers, mill

owners, contractors and their families to this Government at every opportunity, and exposing the flawed numbers sitting underneath the whole scheme.

In addition, our colleagues in the other place, including the member for Clarence, Richie Williamson, the member for Oxley, Michael Kemp, and the member for Myall Lakes, Tanya Thompson, have done exactly the same thing for their communities. They have stood up for the mills, the haulage operators and the small businesses in their towns that rely on having a working forest. They have refused to let the Government pretend that those jobs do not matter, because they do matter. We will continue to fight for those workers and their families. Those local MPs know their communities. They live and work in those communities, unlike members opposite. They know the people who will be affected by this bill. The timber communities of the North Coast could not have asked for stronger advocates in Parliament, and I am incredibly proud to stand beside my colleagues as we fight this bill.

I start with some of the issues raised by my colleagues in the other place, particularly around the carbon method underpinning the park, which is the improved native forest management [INFM] method. We know from some of the public commentary, discussions and discourse that some conservationists and even some of our colleagues in The Greens have been troubled by that methodology because of concerns about its calculations. We do not think those calculations stand up to scrutiny, and they risk bringing the entire system into disrepute. According to Timber NSW, 88 per cent of New South Wales public native forests are already protected in national parks or conservation reserves, only 12 per cent of the State forest estate is available for harvesting and just 0.3 per cent is harvested in any given year. That means roughly four trees in every 10,000 each year. However, the INFM method assumes that those forests are completely decimated and bulldozed. It then measures what the forest looks like after only 15 years of regrowth and ignores the 85 years of growth that follow.

As we see it, there are two big faults. First, the methodology overstates the loss by assuming every area that would have been harvested is clear-felled and flattened, when in reality selected trees are taken and the rest are left standing. Second, it only counts the forest that grows back in 15 years, not over the full 100. Put simply, the method makes the assumption that foresters cut down 10,000 trees from a 10,000-tree forest when they might only take four. It then pays the Government for saving all 10,000 when most of them were never going to be cut down. It does not add up. It has been reported that that approach could overstate the carbon benefit by up to 100 per cent before any of the other integrity concerns about the methodology are even considered. We are very troubled that the Government is relying on those inflated calculations to boost the number of Australian carbon credit units issued—and the revenue that flows from them—without delivering the corresponding environmental benefit.

We also have another serious concern about the incentive that method creates for governments to squeeze and eventually extinguish private native forestry. The leakage provisions in the method require that private native forestry does not increase as a result of the Government ending harvesting in State forests. If it does, the number of carbon credits falls. Logically, a cap on private native forestry becomes a mechanism to close down what is left of the local timber industry on the Mid North Coast. The INFM method must be approved before this park takes effect, which tells us everything. This is not about conservation; it is about revenue, and we strongly object to the way it has been set up.

I now turn to the issue of koalas. We are concerned that the Government is disregarding its own evidence about koala populations and the forestry industry's ability to operate alongside them. Like many other Nats MPs, I have met with a number of timber operators and businesses on the Mid North Coast over the years. It is clear that the timber and forestry industries can co-exist with koala conservation. Some members of this House have forgotten that this is not an either/or proposition. Research commissioned by the Government found that selective logging has no significant effect on koala density. In fact, work by the Natural Resources Commission shows that selectively harvested forests have higher koala density than the national parks next door.

As I said, forestry and conservation can work hand in hand, as they have done for years. Managed forests have better maintained road networks and regulated, selective harvesting practices that produce the healthy canopies koalas depend on. New South Wales has one of the most sustainable and tightly regulated timber industries in the world. It is disappointing that the Government has taken these steps, because they paint a critical regional industry in such a poor light and will lead to the absolute decimation of the industry on the Mid North Coast. In the previous Parliament, Labor continued to claim that koalas would be extinct in New South Wales by 2050. Labor put koala numbers at around 36,000, but that has turned out to be untrue. The CSIRO now estimates that there are around 275,000 koalas in New South Wales, with national numbers approaching one million.

We have a housing crisis in this State. Housing targets come up time and again both in this House and in the other place. It is a massive issue, particularly for young people who want to get into housing in this State. The reality is that the cost of materials and construction is spiralling upwards, and members have seen in their local communities that supply cannot keep up with demand. Common sense says that we should back local industries

that can help rather than wipe them out. Recently I discussed this issue with some of my lower House colleagues. This week, the Premier told the Legislative Assembly:

> There are cities around the world that have deindustrialised over the past 20 years. They got rid of domestic manufacturing and sovereign capacity, and they have all regretted it. Ten years after closing those industries, none of them has said it was the right decision to make because those jobs cannot be replaced. Those pay packets and apprenticeships cannot be replaced.

The Premier spoke those words about industry shutting down while introducing a bill that will shut down the sovereign capacity of the local timber industry in New South Wales. He says one thing in Parliament and a different thing when he is out in the real world. No timber means no power poles, no pallets, no frames and nothing to build the homes we so desperately need. We have a longstanding industry producing high-quality hardwood, but the Minns Labor Government wants to shut it down in favour of imports. That decision will wipe out around 40 per cent of the State's hardwood supply and add to the compounding costs of building, pushing homes even further out of reach for young people in this State.

The Government says this is about protecting the environment, but the end result will mean we lose oversight of the ethical environmental standards that Labor claims to care about. We cannot enforce standards on timber that comes from overseas. There are also biosecurity risks that come with imported timber, and the recent fire ant issue has shown that the Government cannot be trusted to manage those risks. As the former New South Wales education Minister, I am keenly aware of the importance of apprenticeships for young people, particularly in rural and regional communities. There are young people who could have built a career in this industry, but they will lose that pathway with the passage of this bill. Young people had a future in the timber industry. It is an incredible shame that that pathway will be closed to them after today.

This Government is sacrificing more than 5,000 jobs on the North Coast while committing money to protect jobs at Tomago in the Hunter Valley. Nobody begrudges the Hunter its jobs. We absolutely endorse support for jobs in the Hunter Valley. Every trip that Labor makes to the Hunter comes with a media release, and every Labor decision about the North Coast comes with more lost jobs. Labor is propping up jobs in the Hunter and slashing jobs on the North Coast, which does not make sense. The Government has once again shown that it does not understand regional New South Wales. The industry has made it clear that it feels let down by the Labor Government. The compensation on offer does not properly offset the impact on regional businesses and communities.

Members on this side of the House have asked the Government questions on behalf of timber businesses and the timber industry, and I do not have time to name them all today. I acknowledge Matt and Kirsty Parker, who are strong advocates for their industry. For many families, the forestry industry and supporting industries put food on the table. For families like the Parkers, the industry is generational. Forestry has kept these towns afloat for decades. We are ripping out the backbone of their local economy in the middle of a cost-of-living crisis without putting proper support in place. These are real people who we know and respect, and they have families. This Government decision is devastating and has absolutely gutted those families, which is why we are fighting against this bill.

It is extraordinary that a Labor government is actively shutting down opportunities for workers. It is disgraceful, and I never thought that I would see it. This is about more than money; it is about identity, skills and a long-term future for forestry workers who deserve meaningful employment. I think it is appalling that the Government has failed to come to the table to listen and learn from the industry. During her second reading speech, the Minister for the Environment spoke about bringing more tourists to the region and wanting the area to be somewhere that people visit alongside the Great Barrier Reef and other Australian landmarks. Labor keeps selling the idea that visitors to the Mid North Coast will be able to see koalas on their morning walk.

I live in Gunnedah, which has had a healthy koala population for a long time. We call Gunnedah the koala capital, but I think that Port Macquarie is also called the koala capital. We might have to duke it out with them for the title. Koalas are quiet animals. They sit high up in the canopy and are quite sleepy. A community might have quite a large koala population and not see koalas that often. We are selling a pup to people overseas by telling them that they will see an abundance of koalas at the Great Koala National Park. During his contribution to debate on this bill in the other place, the member for Coffs Harbour said:

> The First Fleet arrived in Australia in 1788. The first recorded sighting of a koala by a European did not occur until 1798. It took 10 years …

The Government is saying that, all of a sudden, every tourist who comes to Australia will see koalas everywhere they go. I have a question for Labor about people visiting the park and having an enjoyable experience, whether or not there is a koala sighting: What will visitors be able to do in these forests once this park is proclaimed that they cannot already do today? They can already walk, camp, drive and ride to explore the forest. The honest answer is that visitors will be able to do less once the park is proclaimed.

The Leader of the Nationals in the other place said that the Coffs coast and Mid North Coast are great four-wheel drive and trail bike destinations. The combination of beaches, regional centres and forest trails brings families and events to the region, and they spend money in local cafes. We do not know how many trails will be closed for good. There is no map, and there is no transparency. Once the trails are gone, those visitors will have no reason to go to that part of New South Wales, and they will no longer stimulate the local economy.

Before I conclude my remarks, I turn to concerns about the fire risks the park poses to communities and to the wildlife the Government says it is going to save. We know the damage of bushfires in this State. We have all seen it in various communities over the years. We know what they can do to communities. A terrible bushfire season can have tragic impacts. The people who live near, work in and manage forests are more acutely aware of that than any of us. It has been raised in the other place that since the Great Koala National Park was announced, a number of national parks staff have spoken in confidence to their local members, and they are genuinely worried. For them, this is not about politics; it is about what happens the next time a fire comes through these forests and what the impacts of that will be. They are practical concerns that come from lived experience on the ground.

A working forest is a managed forest. It has crews on the ground. They know the country, heavy machinery is close at hand and a network of roads and trails is available to let firefighters get in there fast and hold a containment line. Forestry crews have stood alongside the RFS and national parks workers on fire grounds for decades. I have spoken to some of the guys who have been on the ground when a fire happens. They are genuinely worried about what the impacts will be. When we lock that forest up, close the trails, send the crews and the machinery away, all of that capacity on the ground is lost. It will mean fewer tracks, fewer people, fewer machines, slower access and fuel building up, year after year, in country that will be harder to reach. It will be harder to burn that fuel safely. Of course, fires do not stop at park boundaries. They will come for the farms, the homes, the towns next door and, I hate to say it, the wildlife as well. A koala cannot outrun a fire.

The Government needs to answer some simple questions. Where is the fire management plan for the Great Koala National Park? How many trails will remain open for firefighting access? Who will replace the forestry crews and machinery that are on hand today? What funding has been set aside for hazard reduction that this park will need? If the Government cannot answer those questions today—and until it can—it is not ready to proclaim this park. I cannot put this more strongly: The Nationals will always stand up for our timber industry, particularly on the Mid North Coast, and for the workers and the families who depend on it. For the reasons that I have outlined, we oppose the bill and will move some amendments in the Committee stage. We are very concerned about what is happening. The Labor Government should be ashamed of shutting down another great Australian industry. The communities of the North Coast will not forget it.

Ms SUE HIGGINSON (16:11): On behalf of The Greens, I speak in support of the National Park Estate (Great Koala National Park Reservations) Bill 2026. What an amazing moment this is. For the people who have spent decades fighting for these forests, this is a very significant moment. I share their joy at finally seeing this bill before Parliament. I also understand why, for some of those people, that joy is accompanied by anger about the logging that continued while this Government was assessing the Great Koala National Park, and the decision to make its creation conditional on the generation of revenue from monetizing the carbon that will not be released from logging the forests.

I acknowledge the Gadigal people of the Eora Nation on whose stolen and unceded country we are discussing this legislation, and I pay respect to their Elders, past and present. I acknowledge the Gumbaynggirr and Dunghutti peoples and their clans, the traditional custodians of the forests that are the subject of this bill, and the First Nations people who are here or watching this debate from country. These forests are living cultural landscapes that hold lore, ceremony, knowledge and the relationships between generations. Dunggiirr, the koala, has profound significance in Gumbaynggirr culture. The values of these forests were known and cared for long before ecologists surveyed their wildlife, campaigners drew the boundaries of the proposed park, or governments took responsibility for deciding their future. Aunty Alison Buchanan's words remind us that the destruction of a forest is also damage to country, culture and the ability to pass on knowledge. She says:

> For my people, seeing our forests destroyed represents a profound loss of cultural heritage, spiritual connection, and traditional livelihoods …

I particularly acknowledge Uncle Micklo Jarrett, Aunty Alison Buchanan, Aunty Yvette Pacey and Sandy Greenwood. They have been defending country through the logging of Newry, Pine Creek and other forests, against the very public institutions that ought to have been protecting those places. I recognise the Aboriginal organisations and knowledge holders who took part in the park assessment and advisory process. Some Elders have welcomed aspects of the park and the prospect of jobs and resources for caring for country, while others have been and felt excluded from decisions or have objected to the continued logging and the carbon arrangements.

Those concerns remain and they cannot be dealt with simply by acknowledging traditional custodians at the beginning of a future management plan. The history of this park is also the history of more than 50 years of local campaigns around Sawtell, Coffs Harbour, the Bellingen Valley and the hinterland. In the 1990s, forest defenders, including me and people who became my family, took on logging at Chaelundi and at Pine Creek. The protection secured at Pine Creek contributed to the creation of Bongil Bongil National Park, but the remaining forests continued to be logged, including areas that are central to the Forest Bridge Proposal that I will discuss shortly.

Between 2010 and 2015, the National Parks Association of NSW, Bellingen Environment Centre, Nambucca Valley Conservation Association, Clarence Environment Centre and the North Coast Environment Council Inc worked together to turn the community's ambition into a detailed conservation proposal: ecologist and all-round legend David Scotts mapped the koala populations and the forests they depended on; Ashley Love drove the original Great Koala National Park proposal; and Dr Oisin Sweeney helped develop the scientific blueprint. It was a serious piece of work that identified the land and the wildlife corridors needed for koala populations to survive.

There have been so many people and organisations who carried that work forward. I acknowledge the North East Forest Alliance, Friends of Pine Creek, Forest Ecology Alliance, Nature Conservation Council, Bob Brown Foundation, Wilderness Australia, WWF-Australia, the Bellingen Activist Network, the Knitting Nannas and the many local groups that conducted surveys, confronted logging operations, took legal action and refused to abandon the campaign. I thank Dr Grahame Douglas; Dailan Pugh, who is in the President's gallery today; Susie Russell; Lyn Orrego; Paula Flack; Sharon Peterson; Susan Harwood; Liz Jeremy; Dr Stuart Blanch; Doro Babeck; Scott Daines; Peter Elzer, who is in the gallery; and the many local business advocates including Kevin Doye and Lindy Davis, who came to Parliament with their petition.

There are many more names that should be recorded in the history of this park. The community's work has involved research, public meetings, letters, protests and forest camps. I particularly acknowledge the people who put their work and lives on hold to put their bodies on the line to stop the destruction in the name of forest protection, many of whom I had the privilege of representing in court. The Greens have played a real part in that history as well. The work and commitment of hundreds of our members in the Clarence Valley, Coffs Harbour, Bellingen, New England, Nambucca-Macleay and Northern Rivers branches of The Greens, has been alongside the community and in defence of these precious forests that will now be protected. In this and the other place, The Greens have supported the communities and forest defenders, questioned the Government, used Parliament to expose the vandalism of our environment, and tried to legislate the protection that is only now being delivered.

In 2021 my colleague, and conservation champion, Ms Cate Faehrmann introduced a bill to reserve around 175,000 hectares of State forest and combine it with existing parks to create a 315,000-hectare great Koala national park, with provisions for conservation planning, tourism and a supported transition for workers. Labor voted with the Coalition to defeat it in June 2022, even though a Liberal member of this place, the Hon. Catherine Cusack, crossed the floor to support it. I have worked on this issue since coming to Parliament, particularly since Labor was elected in 2023 and the logging continued in forests that the Government had promised to save. My colleague Kobi Shetty, the member for Balmain, has also worked through this legislation in the Legislative Assembly. The Greens have secured some improvements to the protection provided to additional forests and to the reserve categories in the bill. Kobi Shetty has done that while making it clear that our support for establishing the park is not in question. We will continue that work here, including through amendments concerning the Forest Bridge.

The Labor Party has members who must be, and deserve to be, recognised. Luke Foley made Labor's original commitment in 2015. Felicity Wade and others in Labor's environment movement worked for years to keep that commitment alive. Chris Minns renewed the promise before the 2023 election. I particularly thank the Hon. Penny Sharpe, the Minister for the Environment—whose birthday is today—her staff, the public servants and the National Parks and Wildlife Service staff who have brought the legislation forward. The Government has committed $140 million towards the park, creating more than 100 additional National Parks and Wildlife Service positions, Aboriginal ranger opportunities and assistance to workers and communities affected by the end of logging within the park's boundaries.

The Minister for the Environment, the Hon. Penny Sharpe, has spent a considerable amount of her political life arguing for better environmental protection in New South Wales. This park is a major conservation achievement for her and for the Minns Government. I want Labor to regard it as a success because governments should see that protecting threatened species and ending forest destruction is good for communities, and our environmental, social and economic wellbeing—and damn good government. This Government has more opportunities to achieve lasting environmental outcomes and the forests that are still exposed to logging elsewhere in New South Wales are a pressing place to start.

The Government's *State of the Environment* report that was tabled last year should inform those decisions. All five assessed plant indicators were poor and deteriorating. All five animal indicators were getting worse. The ecological carrying capacity of New South Wales is estimated at just 29 per cent of its pre-industrial level while the *biodiversity outlook report* projects that, without effective management, only around half of listed threatened terrestrial species will survive over the next century. There are 657 threatened plant species and 343 threatened animal species on the detailed figures used in the report. The latest public clearing figures show a further 16 per cent increase in native vegetation clearing between 2023 and 2024. Sixty per cent of that clearing was classified as unallocated, which means that the department could not identify a formal authorisation or allowable activity through its monitoring process.

The condition of biodiversity in New South Wales is getting worse despite repeated commitments to halt its decline. This legislation will add more than 178,000 hectares of State forest and Crown land to the reserve estate, which will form part of a protected landscape of more 475,000 hectares with the existing national parks and reserves. As leading koala expert Dr Steve Phillips said, "The creation of the GKNP will stand in history as the most significant contribution to koala conservation in New South Wales since the species was first listed as vulnerable during the 1990s." I highlight the conversation from an earlier contribution about the Gunnedah koala population. Numbers of koalas do not necessarily reflect population health. We need to be scientific and honest about this. Considering the declining numbers of koalas across the State, today's decision to create the Great Koala National Park [GKNP] is more about individual koala numbers. If anyone does not recognise, realise and understand that, they need to listen to the experts.

The Government estimates that the assessed forest supports around 12,000 koalas and 36,000 greater gliders. Surveys recorded 66 threatened fauna and 37 threatened flora species, and the assessment records 44 per cent of threatened mammals. These forests have old growth trees, with hollows used by gliders and the forest owl; habitat for spotted tail quolls; rare plants; and important water catchments for the Bellingen, Nambucca and Nymboida. Many are climate refuges that will become more important as temperatures increase and species need to move through the landscape. The decision to protect them is significant, but the delay has had consequences that must be called out.

Labor first promised the park in 2015 and was elected on that commitment in 2023. The Government then allowed the Forestry Corporation to continue logging while its assessment proceeded. The North East Forest Alliance calculated that 7,185 hectares within the then proposed park footprint were logged in the first 21 months of the Minns Government at a rate 62 per cent higher than under the Coalition. The people who camped at Newry surveyed greater gliders in Orara East and opposed logging at Boambee and Pine Creek. They were watching habitat being destroyed while the Government was telling them that it intended to protect it. It was a painful and hard period.

Logging removed mature trees and hollows that took many decades—sometimes centuries—to develop, and it caused harm to cultural landscapes that cannot be repaired through the later declaration of a national park. The Government made the decision to continue those operations until September 2025. I welcome the protection it is delivering now, but the destruction carried out during those two and a half years was a disgrace, given the ongoing assessment of those same areas for protection. Other forest proposals must not be treated in the same way. There is also a serious problem with the forests excluded from the assessment because the Forestry Corporation classifies them as plantations. We need to distinguish native forest from genuinely planted softwood plantations and genuinely planted hardwood plantations. A forest that was clear-felled and subsequently regenerated naturally does not become a plantation simply because it has been logged before. Nor does the fact that trees were planted decades ago mean that a forest has no significant wildlife habitat, water catchment or cultural value today.

The Plantations and Reafforestation Act defines a plantation principally by the planted origin of its predominant canopy and expressly distinguishes plantations from native forests. The Government's park assessment generally excluded authorised plantation areas, so it did not comprehensively examine the value of those forests before deciding to leave them exposed to logging. The National Parks Association has identified parts of Pine Creek that are classified as hardwood plantation and have the structure and floristic diversity of naturally occurring forest. It reported around 1,200 hectares of koala hubs within hardwood plantation boundaries that were excluded from the original protection arrangements.

Our policy is the policy that would serve New South Wales best in forest protection and genuine farmed forestry. It calls for an independent assessment of these areas, including whether they are genuine plantations or naturally regenerated public native forests, and what conservation values they hold. Forestry Corporation's plantation classifications should not determine the fate of threatened species habitat without independent scrutiny. Genuine plantation forestry has a future in New South Wales, including both hardwood and softwood timber

production. Destruction of functioning native forest and critical wildlife habitat is not a necessary condition of that future.

The Forest Bridge proposal developed by Friends of Pine Creek makes the problem concrete. It seeks protection of approximately 1,650 hectares across Pine Creek and Tuckers Nob, including land classified as hardwood plantation, to connect Bongil Bongil National Park with the forests towards Bindarri, Dorrigo and New England. Some of these areas have naturally regenerated; others were planted and have since developed substantial habitat values. The coastal forests that escaped the worst of the 2019-20 fires are particularly important refuges, and the connection to higher elevation habitat will matter as the climate changes. The Greens will move amendments to improve the protection of that corridor, and I will address the precise land and mechanisms at the Committee stage.

The carbon credit condition is another matter that should be troubling all members who supported the original promise. Section 2 of the bill prevents commencement until the Commonwealth Clean Energy Regulator has declared an eligible carbon project covering the relevant land. I understand that it has now done so. Labor promised to create a national park for koalas and threatened forests, yet its legal creation is now dependent on establishing a scheme to generate Australian carbon credit units from protecting those same forests. That condition was not in the promise made to the community. That placed the conservation movement and The Greens in an unacceptable position when the Commonwealth's improved native forest management [INFM] method came before the Federal Parliament. The original method was capable of generating credits while allowing native forest logging to continue elsewhere.

We successfully negotiated changes that strengthened the permanent reductions required in the surrounding regional forest agreement area from the original 20 per cent to 25 per cent from 2028 and to 30 per cent for projects registered after 2030. The changes closed loopholes that would have allowed seeded native forest regrowth to be classified as plantation to avoid the method's protections using the classifications in the *Australia's State of the Forests Report: Synthesis 2023*. We also secured a legal mechanism to give effect to a State commitment to exclude coal and gas projects from buying credits generated under the method. Those are real concessions. The stronger logging reductions will protect forests beyond the Great Koala National Park itself.

Our improvement of the flawed proposal was not an endorsement of carbon trading from existing forests. Our objection remains that an industrial polluter can acquire a tradeable credit arising from forest protection and use it to avoid reducing its own emissions. Forest protection has direct benefits for carbon storage, sequestration, biodiversity and country, but those benefits should not become an excuse to keep emitting greenhouse gases somewhere else. The Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage has committed to excluding fossil fuel projects from buying credits from the park, and The Greens helped secure the legal pathway for that commitment. Credits will still be available to other industries that should be reducing their pollution.

The Government should keep and cancel the credits generated by the Great Koala National Park rather than sell them for use as offsets. It should pay for conservation through reliable public funding; disclose how many credits are issued, how much the project costs and any liabilities it creates; and ensure that the forest's actual emissions benefits contribute to meeting the State's legislated 2035 and 2050 climate commitments. Cancelling the credits does not, of itself, produce an additional reduction in the State's emissions inventory, but it would stop another polluter using the park's protection as a justification for emissions elsewhere. It is entirely possible, it is what we should do and The Greens will fight to make sure it happens.

I also acknowledge the division the arrangements have caused within the environment movement. Some organisations supported the INFM method because they believed it was necessary to secure the park, while other conservationists, including Gumbaynggirr Elders, could not accept the commodification of country or the use of forest protection to offset pollution. We can disagree about that mechanism and continue working together for the protection of public native forests. I will continue opposing forest offsets while supporting the permanent protection that the bill finally provides for our forests.

The future management of the park also needs to reflect the reason for protecting it. Around 13 per cent of the newly protected estate has been proposed as regional park rather than national park. Those are areas of important conservation value, and The Greens opposed reserving them in a category that accommodates activities inconsistent with that value. We also oppose permitting motor racing in these forests. Racing is an inappropriate activity in threatened species habitat and on living cultural landscapes. Management arrangements must be co-developed with the traditional custodians and grounded in free, prior and informed consent, with real authority over decisions affecting country and the resources needed for Aboriginal-led land management.

The Greens secured stronger protection for parts of the reserve estate in the Legislative Assembly, and those principles will continue to guide our scrutiny of the remaining provisions. I recognise the workers and

families affected by the end of logging within the park, including those who have spent years working in the forests. The Government's transition package includes redundancy top-ups, retraining support, assistance to affected businesses and communities, and a special pathway for suitable Forestry Corporation employees to move into jobs at the National Parks and Wildlife Service. That support is welcome, but workers have been failed by governments that continued to present public native forest logging as a secure economic future when Forestry Corporation's native forest division recorded approximately $105 million in losses—of public money—over the five years to 2024-25. Workers deserve an orderly statewide transition, with investment in genuine plantation timber, forest restoration, national park management and Aboriginal land management, rather than being left to carry the consequences of another abrupt decision in a struggling sector.

Forest destruction has not ended in New South Wales. Outside the boundary of the Great Koala National Park, the Richmond River Koala Parks proposal and the wider north-east forests contain significant threatened species habitat still exposed to logging. Conservationists have also developed the Great Southern Forest proposal, covering the forests of southern New South Wales, to protect threatened species, waterways and important habitat connections. The Government should place immediate moratoriums on logging in those proposed conservation areas while their permanent protection is determined. Public native forest logging must end across New South Wales, with a proper transition plan for the workers and communities affected. It is a legacy industry, but it is time to close the door on native forest logging.

The Parliament is now in a position to deliver a park that people have spent decades asking for, and I acknowledge the role the Hon. Penny Sharpe and the Minns Government have played in getting us here. There is no reason for the Government to regard this bill as the limit of what it can do for conservation. Its own reports document worsening biodiversity. It has to commit to halt and reverse those losses, and it has the proposals before it to begin that work in more of our forests. The Greens support the bill and will seek to strengthen it by including protection of the forest bridge. We should pass the legislation, secure the park and continue the work of ending native forest logging and the destruction of our forests in New South Wales.

I conclude by saying that there is a visceral feeling right now in this place. We are finally talking about ending the destruction of that place and protecting it in perpetuity, for evermore. Passing legislation to create a national park of this magnitude feels good. We should hold onto that feeling and we should come back and do it again. We should do it for the Great Southern Forest and the rest of the forests in the north. Now is the time. Hold this feeling, know what it feels like and do not let it go, because winning something like this for future generations, for biodiversity, for the longevity of the incredible planet that we live on and for the forest ecosystems that are nowhere else on this planet is a damn fine thing.

The Hon. JACQUI MUNRO (16:37): I contribute to debate on the National Park Estate (Great Koala National Park Reservations) Bill 2026 on behalf of the Liberal Party. I indicate at the outset that the Liberal Party supports the bill, although the Coalition will move amendments to improve it. I thank the member for North Shore in the other place, Felicity Wilson, the new shadow Minister for the Environment, for engaging so thoroughly with this complicated and complex matter in a very short time. The Liberal Party's support should not be mistaken for an endorsement of every element of the Government's approach or of the process that has brought us here.

The koala is probably the closest thing that this country has to a global brand ambassador. People can find one on a fridge magnet in almost any airport in the world, but the koala is not just a souvenir and not just important for tourism. It is a living animal, but in New South Wales it is endangered. Protecting viable koala populations and their habitat is plainly an important responsibility of government and the wider community, but wanting an outcome is not the same as delivering one. Good intentions do not manage a fire trail. A press conference does not control foxes. Declaring a national park does not compensate a timber worker, replace a lost contract or guarantee that a regional mill remains viable. Drawing a line around hundreds of thousands of hectares does not, by itself, tell us whether koala populations will recover in addition to a wider ecosystem. These distinctions are critical in considering the bill. There are legitimate arguments for the Great Koala National Park, but there are also legitimate questions about its design, its economic consequences, the science relied upon to justify particular decisions, the powers this bill gives the executive, the management of the new park and the adequacy of the Government's transition arrangements. Supporting the conservation objective does not require us to pretend those problems do not exist. Our support for the bill is therefore not a blank cheque.

The Government should be held accountable for what it has promised and for the consequences of the decisions it has made. The bill does not arrive in a vacuum. It builds on more than a decade of work, much of it undertaken by the former Liberal-Nationals Government. In March 2016, the then Minister for the Environment, Mark Speakman, who is the member for Cronulla in the other place, asked the then chief scientist, Professor Mary O'Kane, to conduct an independent review into koala decline. Her December 2016 report, delivered with an advisory committee of independent experts, started with the evidence. It estimated around 36,000 koalas existed in New South Wales. It found a 26 per cent decline over the previous three koala generations—roughly 15 to

21 years—and projected that decline to continue. It identified habitat loss and fragmentation, vehicle strike, disease and dog attacks among the major threats, with those threats varying considerably between regions. That last point remains important today. There is no single cause of koala decline, and there is no single policy response capable of reversing it.

The review recommended a whole-of-government strategy aimed at first stabilising and then increasing koala numbers. It recommended better population data, improved habitat mapping, research into the interaction between forestry and koala populations, and examination of the legislative settings affecting koala conservation. The Coalition acted on that advice. In 2018 we delivered the first NSW Koala Strategy, committing $44.7 million to habitat protection, roadkill hotspots, wildlife care training and research, including $20 million to acquire and permanently protect priority koala habitat in the national park estate. In 2022 we went further, with the $193.3 million NSW Koala Strategy and a goal of doubling koala numbers by 2050. That included over $100 million to protect, restore and manage more than 47,000 hectares of koala habitat and to create new koala reserves and parks; $43.4 million for statewide population monitoring, genetic biobanking and chlamydia research; $23.2 million to address roadkill hotspots and support wildlife rescue, veterinary training and translocation programs; and almost $20 million to support local councils, Aboriginal land councils and community groups.

Importantly, that strategy did not depend upon a single intervention. It protected habitat across different land tenures, invested in science and population monitoring, addressed vehicle strike and wildlife care and acquired high-value private land. Through targeted acquisitions, the Coalition added more than 15,000 hectares of private koala habitat to public reserves across the Hunter, Southern Highlands and North Coast, including Guula Ngurra National Park. The same applies to the national park estate more broadly. In 2019 the Coalition set a target of adding 200,000 hectares to the estate. That target was met a year early and subsequently doubled. By the end of 2022, more than 600,000 hectares had been added through the expansion program. I make those points because this debate is sometimes presented as though there are only two positions: Support this particular park in precisely this form or be indifferent to koala conservation. That is simply not the case. There are different ways of protecting habitat, different ways of allocating conservation resources and legitimate questions about how environmental benefits should be weighed alongside economic and social consequences.

The former Government's approach demonstrated that substantial conservation gains can be pursued without treating regional industry as an afterthought. When motions concerning the Great Koala National Park were debated in the other place last year, many Liberal members abstained. They did so for a straightforward reason: They clearly supported the objective of protecting koala habitat, but at that stage the Parliament had been presented with an announcement rather than legislation. We know this Government is susceptible to policy by press release. The park's boundaries were uncertain. The treatment of timber workers and businesses was uncertain. Fire management arrangements were uncertain. Funding was uncertain. We said we would assess the legislation when the Government produced it. We now have that legislation. I note the Improved Native Forest Management Method—the Australian Carbon Credit Unit Scheme—which has been approved in the Federal Parliament, has very recently been approved by the Clean Energy Regulator. I believe that happened about an hour ago. It was the final hurdle to funding the Great Koala National Park.

The bill transfers more than 178,000 hectares of State forest, together with smaller parcels of Crown land, into the National Parks and Wildlife Service estate. Together with existing parks and reserves, it creates a conservation area of approximately 476,000 hectares on the Mid North Coast. That is a major change in land tenure and a major change in public policy. Because of its scale, it deserves more scrutiny, not less. There is a conservation case for increasing the protection and connectivity of koala habitat. Fragmentation is an established threat, and the Black Summer bushfires inflicted substantial damage on koala populations and habitat. But the debate becomes less useful when legitimate complexity is replaced with slogans. The decline of koalas has several causes. Bushfire, habitat loss and fragmentation, vehicle strike, dog attacks and disease have all contributed. Forestry is one part of that debate, and this is an area where the evidence deserves to be represented accurately.

Studies done by the Department of Primary Industries and Regional Development found that regulated selective harvesting in north-eastern forests had no statistically significant effect on koala occupancy or bellow rates. The Natural Resources Commission study released in September 2025 similarly found no significant change in reported koala density three years after harvesting. That work also found that control sites in national parks recorded a significant decline in male koala density between 2020 and 2023. The decline is likely associated with drought and canopy dieback that affected those forests. That evidence matters and it should not be dismissed simply because it complicates the political argument for the park. There are also legitimate questions about the limits of those studies, including what particular monitoring methods tell us about breeding females, mature feed trees and the cumulative effects of repeated harvesting over longer periods. Separate research has also raised questions about the ecological value of some areas classified as hardwood plantation.

Therefore the responsible conclusion is not that forestry has been proved harmless, but nor is it that the scientific evidence establishes that regulated native forestry is principally responsible for koala decline. That distinction is important because governments should be candid about what their evidence establishes and what remains uncertain. The case for greater habitat protection can be made without overstating the case against forestry. Indeed, if the principal argument for this park is connectivity and long-term habitat security, the Government should make that argument directly and demonstrate why the boundaries it has selected provide sufficient additional conservation benefit to justify the economic and social costs. That is a more demanding test than simply declaring that a larger national park must necessarily be better policy.

There is another important problem with the bill—it is not a statewide koala strategy. The Government has still not released its final koala conservation strategy or its plan for nature. Koalas outside this park remain exposed to vehicle strike, disease, urban development, habitat fragmentation and other threats. If the Government wants this Parliament to accept the Great Koala National Park represents a major step towards securing the future of the species, it should also explain how the measure fits within a coherent statewide plan. The Government's model links the cessation of native forest harvesting with the generation of Australian carbon credit units through an avoided-emissions approach. Whatever the eventual value of that revenue stream, carbon-market revenue should not be treated as though it were guaranteed government funding. Markets fluctuate and methodologies can be complex. Revenue depends on the number of credits generated and the price obtained for them.

The Parliament therefore deserves transparency. How many credits are expected to be generated? What assumptions underpin those estimates? What happens if revenue is materially lower than forecast? Most importantly, where will the money go? The Liberal Party's position is that revenue generated from this decision should be transparently accounted for and directed towards the communities and purposes most directly connected with it: workers transitioning into new employment, businesses adjusting to altered timber supply, regional economic diversification and the long-term management of the park. That should include regular public reporting of credits generated and sold, prices achieved, revenue received and expenditure. The Parliament should not have to reverse-engineer the economics of one of the Government's signature environmental policies.

A further issue concerns the structure of the legislation. The Opposition has serious concerns about the Henry VIII provisions and the breadth of powers allowing boundaries and landholdings to be altered through future Executive orders. Those powers warrant careful scrutiny. A Parliament should be reluctant to pass legislation that subsequently allows the Executive to alter significant elements of the statutory scheme without returning to Parliament for equivalent scrutiny. Decisions involving public land, national parks, private and regional interests and the future availability of productive forests can have consequences lasting generations. Administrative flexibility may sometimes be necessary, but convenience for the Executive is not, by itself, sufficient justification for diminishing parliamentary oversight.

The Opposition moved amendments in the other place dealing with carbon credit revenue, reporting, Executive powers and park management. My colleague the Hon. Sarah Mitchell will move amendments to that effect on behalf of the Opposition in this place. There is another danger in this debate: assuming that reservation is the same thing as conservation. It is not. Establishing a national park creates a substantial and continuing management obligation. The Government has said it will create 100 additional National Parks and Wildlife Service positions for fire management, feral animal and weed control, ecological rehabilitation and visitor management. Those positions need to be filled, funded and retained. The Parliament should receive transparent reporting on whether that occurs.

Fire management is particularly important. A change in land tenure does not remove bushfire risk. Fire trails still need to be accessible and maintained, and hazard reduction and other mitigation work still needs to occur, where appropriate. Weeds and feral animals still need to be controlled and previously harvested areas still require active management. This is particularly important when we consider the architecture of the Australian Carbon Credit Unit Scheme, because if the improved native forest management scheme requires that the Government, for example, has to give back money if a bushfire occurs or if we are liable for bushfires, fire management will become a critical component of the park's success.

There is also the question of public access. The Government has said that existing motor vehicle, mountain biking and other recreational activities will be maintained. Communities are entitled to more detail on that. Which tracks will remain open? Which activities will be permitted in each reserve category? Who will maintain the infrastructure? How will increased visitor numbers be managed? When will the plan of management be completed? Those are not peripheral matters. They will determine how the park operates in practice and whether surrounding communities regard it as an asset or something imposed upon them. The park must also be managed in genuine partnership with the Gumbaynggirr and Dunghutti peoples and with the communities living alongside it. Consultation is most meaningful when it occurs before a decision becomes a fait accompli.

This bill presents the Parliament with a genuine policy trade-off. There is a legitimate conservation objective in securing large areas of connected koala habitat and other native ecosystems. There are also costs and unresolved questions. There are workers whose jobs are affected and businesses whose commercial arrangements have been disrupted. There are questions about future hardwood supply, imported timber, the Government's transition package, fire management, recreational access, carbon credit revenue and the breadth of Executive power contained in the legislation. Those matters do not cease to be important because the word koala appears in the title of the policy; nor should concern for regional employment be caricatured as indifference to conservation.

Our Coalition partners, The Nationals, have raised serious concerns on behalf of the communities they represent. These concerns deserve to be heard and answered on their merits. The Liberal Party's position is that protecting koala habitat is an important objective, but conservation policy must still satisfy the ordinary tests we should apply to any major government intervention: evidence, proportionality, transparency, competent implementation and fair treatment of those who bear its costs. For that reason, our support for this bill comes with clear expectations. We will judge the policy on whether the koala population and ecosystem health actually improve. We will judge it on whether the park is properly managed for fire, pests, weeds, recreation and ecological restoration. We will judge it on whether displaced workers, contractors, manufacturers and regional communities receive meaningful transition support rather than announcements and promises.

We will judge it on whether the Government is transparent about carbon credit revenue and the expenditure of public money and whether the Government respects the proper role of Parliament as this new regime develops. There is nothing inconsistent about supporting additional protection for koala habitat while being critical of the way this Government has designed and implemented that protection. Indeed, this Parliament fails in its responsibility if a worthy objective becomes an excuse not to examine the means chosen to achieve it. The Government now carries the burden and opportunity of demonstrating that the environmental benefits promised by this intervention are delivered, that the economic consequences are properly addressed and that the park is competently managed for decades rather than celebrated for a news cycle.

The Hon. MARK BANASIAK (16:55): I speak on the National Park Estate (Great Koala National Park Reservations) Bill 2026. The Government presents this legislation as a great environmental achievement, but if we strip away the glossy announcements, carefully selected photographs and political backslapping, what are we actually being asked to support? The permanent removal of productive native forest from the timber industry, the destruction of certainty for regional businesses and workers, the transfer of vast areas of public land into a management system with a very different approach to access and productive use, and a carbon credit arrangement that raises serious questions about additionality, financial accountability and the treatment of private landowners. Under the banner of saving koalas, the Government expects everyone to applaud.

Apparently if we call something a national park, that is enough. Never mind the jobs, the timber and the communities, and never mind whether the forest will actually be managed any better. A national park declaration is not scientific evidence, a change of land tenure is not proof of improved biodiversity, and a press conference is not a forest management plan. The Government wants to talk about the number of hectares it can declare protected, which is just more political optics. I want to talk about what happens to those hectares afterwards. Who maintains the roads? Who manages the fuel loads? Who controls invasive species? Who measures forest health? Who takes responsibility when management fails? Who pays for the consequences? Those questions do not disappear when the Forestry Corporation sign comes down and the National Parks and Wildlife Service sign goes up. They simply become the responsibility of a different bureaucracy. Parliament should not confuse that administrative transfer with an ecological improvement. We only need to look at how existing parks are currently mismanaged.

Let us talk about the koalas, because this Government has spent years presenting native timber harvesting as though it were the central obstacle to koala conservation. It has reduced a complicated ecological issue to a convenient political slogan: logging bad, national parks good. End of discussion. That is not what the Government's own research tells us. The NSW Natural Resources Commission oversaw independent research into koalas and selective timber harvesting on the North Coast. Researchers examined koala density, movement, occupancy, diet and habitat quality. What did they find? At the research sites, selective harvesting did not adversely affect koala density or the nutritional quality of koala habitat. Koala density was comparable between State forests and national parks with similar forest types. That is not a timber industry press release; that is research conducted under the New South Wales Government's own koala strategy.

The evidence does not stop there. Researchers returned to the study sites three years after harvesting. Again, they found no significant effect of selective harvesting on male koala density at those sites. But here is the finding that should make every member of this House sit up and pay attention: At the national park control sites, male koala density had declined significantly between 2020 and 2023, with researchers identifying drought and canopy dieback as likely contributing factors. The Government proposes to eliminate regulated harvesting from a substantial area of forest, yet its own research did not demonstrate that selective harvesting was reducing koala

density at the sites examined. The decline recorded in the national park control sites is a timely reminder that simply reserving land does not remove the ecological threats facing koalas.

The Government's own research raises questions that its political messaging cannot answer, so I ask the Minister where is the comparative assessment. Where is the evidence that the change in tenure will deliver better results? Where is the proof that national park management will outperform properly regulated, actively managed State forests? How will the Government measure whether the policy actually works? Counting hectares reserved is not the same as counting koalas saved. A koala cannot be saved by a boundary line and a ministerial announcement, and the people of New South Wales deserve more than parroted slogans and jingoism as answers to those questions.

Experienced forestry professionals have challenged the assumptions underlying large-scale forest lock-ups. Vic Jurskis, a former New South Wales forestry professional, has written extensively about koala ecology. He gave evidence to a parliamentary inquiry into koala populations. He challenged conventional interpretations of historical koala abundance and argued that forest condition, nutrient availability and fire regimes are central to understanding koala populations. The fundamental question he raises is important: Are we managing forests for long-term ecological health, or are we treating the absence of timber harvesting as an environmental achievement in itself? Those are two very different things. Koalas do not eat the words "national park"; they eat eucalyptus leaves. Their survival depends on a functioning habitat, the nutritional quality of their food, and the management of threats including fire, drought and disease.

Robert Onfray, another experienced forester, has also written about the wildlife he encountered in working forests. He has described finding koalas, gliders and forest owls in forests that had undergone repeated harvesting. His observations challenge the suggestion that a harvested forest is necessarily without conservation value. More recently, Onfray has questioned whether national park management is being assessed against genuine improvements in ecological health. That is the exact question that this Parliament should be asking. It is one thing to catalogue the species in a national park and another to demonstrate that decades of management have improved the condition of that ecosystem.

A protected area is a legal designation and a healthy forest is an ecological outcome, and the two should never be confused. Even Forestry Australia, the professional organisation representing forest scientists, growers and managers, has publicly questioned the Great Koala National Park proposal. Its president, Dr Michelle Freeman, has argued that declaring a national park does not automatically guarantee biodiversity conservation or the long-term survival of koalas. Those questions cannot be answered by dismissing everyone who disagrees with the Government. They require evidence, which should have been central to the debate from the beginning but was not.

The Government estimates that approximately 12,000 koalas live within the Great Koala National Park assessment area. That is a significant population, and it raises an obvious question: Where have those koalas been living? They have been living in a landscape that includes forests with a history of timber production, forests that have been managed, forests that have been harvested and forests that have supported productive industry alongside wildlife habitat. Yet we are now told that the solution is to remove timber production entirely. The existence of koalas in those forests does not prove that harvesting is perfect, but it certainly does not prove that all harvesting must end. The Government must demonstrate why the existing management framework is inadequate and why its proposed replacement will deliver better results. Instead, it seems to expect Parliament to accept the proposition that a national park is inherently superior.

The koalas have been living in those working forests. The Government needs to explain why it believes those forests must stop working. I chaired the Legislative Council inquiry into the long-term sustainability of the timber and forest products industry. I heard directly from mill operators, harvesting contractors, workers, regional businesses, industry representatives and tourism representatives, and one issue came through repeatedly: certainty—certainty of timber supply, certainty for investment, certainty for employment and certainty for the next generation entering the industry. Mills do not operate on political promises, contractors do not finance machinery on the strength of a ministerial media release, and apprentices do not commit to an industry if governments keep threatening its future.

The legislation removes productive forest from the timber supply system and then offers transition assistance as though that somehow resolves the problem. It does not. A redundancy payment is not an industry policy. A retraining course is not a timber supply agreement. A sawmill cannot be replaced with a press release. The Government points to opportunities for some Forestry Corporation workers to move into National Parks and Wildlife Service employment, but that is not a guarantee of equivalent employment for every affected worker. It is not a guarantee for contractors, mill employees, haulage operators, maintenance businesses or the many small enterprises that depend on the industry, and it certainly does not replace the productive capacity that is being removed.

The Government wants to talk about the number of jobs that it might create through tourism, but what about the jobs it is putting at risk through this decision? What about the families who have built their lives around those industries? What about the regional towns that rely on the spending generated by those workers? During the inquiry, we asked one of the tourism operators who would potentially benefit from the Great Koala National Park how many jobs would come out of it. He said, "Probably about five or 10, but most of them are my mates anyway." That is the great ecotourism boost from the Great Koala National Park: five to 10 jobs for someone's mates. When the transition funding runs out, those communities will still be living with the consequences of the decision.

The Government wants more houses but less timber. The contradiction becomes even more extraordinary when we consider housing. The Government says New South Wales desperately needs more homes. It wants faster construction and greater housing supply, and it wants to address affordability. At the same time, it is removing productive native forest from the domestic timber supply system. Where does the Government expect replacement timber to come from? What volumes will no longer be produced? Which products will be affected? What will replacement material cost? What are the environmental consequences of obtaining that timber elsewhere? Timber demand does not disappear because a Minister declares a national park.

If the material is still needed, someone else must supply it. That may mean greater reliance on other producers. It may mean imports. It may mean higher costs. It may mean environmental impacts being shifted outside New South Wales rather than eliminated. The environmental consequences of timber production are not resolved by exporting timber and refusing to count it. Domestic manufacturing capability is not strengthened by progressively removing access to the resources that support it. The Government cannot keep promising to build more homes while treating domestic timber production as something to be eliminated.

Public land does not belong to the bureaucracy. I also chaired the parliamentary inquiry into access restrictions to public lands and waterways. That inquiry examined an issue that is directly relevant to this legislation: Public land belongs to the public. It does not belong to the department managing it, it does not belong to the Minister responsible for it and it certainly does not belong exclusively to whichever interest group has the Government's ear. The Government says that the Great Koala National Park will provide recreational opportunities—bushwalking, camping, mountain biking and other tourism activities—but those announcements do not answer the question of what existing lawful activities will remain available. What happens to people who have used those forests for generations? Many people camp, ride horses, fish, hunt where lawful, drive forest roads and enjoy traditional outdoor recreation. Changing State forest into national park dramatically changes the activities permitted on that land.

The legislation includes mechanisms affecting roads and access arrangements, so we want to know exactly what the Government intends to preserve. Which roads will remain open? Which activities will continue? What restrictions will be imposed? Who will make those decisions? How will affected communities challenge closures that are not supported by evidence? A promise of access in a press release is not the same as an enforceable right of access in legislation. People should not have to discover after the bill passes that the places they have visited for decades are now subject to new restrictions, or see a temporary road closure become a permanent one. They should not be expected to accept that every new restriction is justified simply because the land has become a national park.

A forest is not managed by drawing a line on a map. The Government has made much of the size of the proposed park, but hectares are not outcomes. A large reserve can still suffer serious damage from intense bushfires, invasive species, weeds, disease and declining forest condition. Those threats do not disappear when the tenure changes. The responsibilities remain: road maintenance, fuel management, pest animal control, weed management, fire preparedness, ecological monitoring and the long-term costs of carrying out that work. Research by the Natural Resources Commission into the 2019-20 wildfires found that more severe fire was associated with larger declines in koala density. That should focus the Government's attention on practical forest management.

How many kilometres of roads will require maintenance? What are the long-term fuel management targets? What arrangements will protect neighbouring landholders? How will pest animals be controlled? What performance measures will establish whether the forest is healthier? What happens when management costs exceed the Government's projections? The koala does not care which Minister is responsible for the forest when the fire arrives. What matters is whether the forest has been managed effectively. The Government wants credit for the area it proposes to reserve. It must also accept responsibility for what happens to that land afterwards. If the forest becomes less healthy after it is reserved, as most national parks do, the size of the reserve is no defence.

There is another aspect of the legislation which deserves serious examination—the carbon credit scheme being used to underpin the park. Apparently, simply locking up a forest is no longer enough. Now the Government wants to turn that decision into a revenue stream. The Government has made the final creation of the park dependent on the successful registration of a carbon project. A project supposedly driven by an urgent need to protect koalas is dependent on securing approval to generate carbon credits. The Government has previously

estimated that this project could generate approximately 3.7 million carbon credits over 15 years. How does it propose to generate those credits? It is not by planting millions of new trees, nor by restoring a landscape that has been cleared, but by stopping timber harvesting in forests that already exist. Those forests already contain substantial carbon stocks, already support koala populations and have been managed for timber production under an existing regulatory framework. The Government wants to be paid for carbon it says will remain in trees because it has decided not to harvest them. That only works until the next fire rages through.

Under the Commonwealth's carbon credit legislation, the fundamental principle is additionality. The emissions reduction must be genuine and additional to what would otherwise have occurred. That is the principle. Unfortunately, though, that is not what is being proposed. What is proposed is one rule for the Government and another for private landholders. Many of the landholders I have spoken to who have native vegetation on their properties have tested that theory. They have asked whether they could apply for the same carbon credit accounting scheme that the Government is using to fund the national park. Lo and behold, the answer is, "No, you can't." They are being told to bulldoze the native vegetation and replant it. Then they might be able to claim carbon credits. That is the hypocrisy of this Government. It is one rule for the Government so it can access the scheme but it has shut it off for everyone else. The Government has helped to write the rules. Now it is going to qualify itself under the rules so that it can collect the credits while private landholders are left outside the gate.

It is a clear double standard in public policy. Why is the stewardship of private landholders worth less? Why is their decision to retain native vegetation treated differently? Why does a government agency have access to a financial mechanism that private landowners have been told is unavailable to them? The Government should be asked to open its carbon books and show us the baseline, the additionality calculations and the expected revenue. Then it should explain why that particular methodology was designed for government-owned forests rather than being made available on equivalent terms to private landholders. The legislation is not about simply drawing a new boundary around a forest. It is about the future of a regional industry, domestic timber production, access to our public land and the long-term management of forests. Also, it is about a carbon credit arrangement with eligibility rules that exclude private landholders—landholders who have spoken directly to me.

The Government has made promises and must now demonstrate that those promises are supported by evidence. The Natural Resources Commission's research raises serious questions about the simplistic claim that the bill is based on. Experienced foresters have challenged assumptions about forest ecology and management. The timber industry faces the loss of a productive resource and investment certainty. Public land users face uncertainty about future access, and taxpayers deserve transparency about the financial arrangements underpinning the park. I do not accept that declaring a national park is, in itself, evidence of environmental success. I do not accept that removing a productive industry automatically improves forest health. I also do not accept that promises of transition are an adequate substitute for a credible future for affected regional communities. The Government wants credit for what it intends to protect. But it must accept responsibility for what its decision removes: jobs, timber, business and access. It must also accept the obligation to demonstrate that the forests are actually better managed.

There is a difference between conservation that produces measurable results and conservation that produces a headline. There is a difference between supporting regional communities and offering them compensation after their industries have been dismantled. There is a difference between genuine carbon abatement and carbon accounting that depends on assumptions the public has not been permitted to examine. A park boundary is not a conservation outcome. A transition package is not a replacement industry. A carbon credit is not proof of an emissions reduction until the underlying accounting withstands scrutiny. That is the standard the legislation should be held to. The people who work in those forests, the communities that depend on them and the landowners being denied access to the same carbon credit methodology deserve answers. They do not deserve another announcement, another glossy brochure or another lecture about how they should be grateful for the Government's decision. I move:

> That the question be amended by omitting "now" and inserting at the end "this day six months".

The Hon. NICHOLE OVERALL (17:14): I contribute to debate on the National Park Estate (Great Koala National Park Reservations) Bill 2026. The park is also called the GKNP. It should more accurately be called the GKCC, the great koala carbon con. Earlier this month I was very pleased to speak at the Forestry Australia Symposium in Canberra. Forestry Australia is the professional association representing Australia's forest scientists, farm foresters and forestry experts. Around 250 members attended the symposium—all of them people who genuinely care about and for our forest environments and want to see only the best outcomes for them. The association's promotional material sums up just how critical forestry is:

> Forestry is central to some of the biggest policy issues facing Australia today, from housing to agricultural income, to trade balances and security, climate action and adaptation, and risk management and nature repair. Without a successful forestry sector, Australia cannot meet its goals.

Boom, there it is. This is about more than housing, manufacturing, productivity, sovereign capability, the environment or even koalas. It is about the future of all of those things. At the symposium I said that The Nationals and I were a hundred per cent in agreement with Forestry Australia's statement and a hundred per cent in the corner of sustainable forestry and the timber industry. Despite the Timber, Furnishing and Textiles Union vehemently stating a similarly clear position, Labor is failing those communities and industries. What Labor is doing now yet again spells it out. It is telling more than 5,000 workers that they do not matter and that Labor is more interested in pandering to environmental populism instead of fighting for the workers it once claimed to represent. It is not hard to see that the only workers Labor really gives a toss about are inner-city, work-from-home, white-collar professionals—and The Greens.

At the symposium I also pointed out that Labor is getting zapped by the electric fence it has been trying to straddle. On the one hand, it claims to acknowledge the critical need for forestry and the timber industry and the multitude of reasons we need it while, on the other hand, literally legislating it out of existence. Labor is attempting to create two separate futures and promising to achieve unattainable climate pipe dreams. It will send timber demand offshore to places that have who knows what regulation. We do not have any control over it, regardless of all the nonsense that we will only take it from countries that have signed a virtually useless piece of paper that is really about only virtue signalling and sanctimony rather than real-world outcomes.

Speaking of The Greens, none of this is about vision at all, let alone actual knowledge. It is peddling a vibe, not science. Coming to actual numbers, 88 per cent of public native forests in this State are already protected, as the Hon. Sarah Mitchell mentioned. A mere 12 per cent are available for harvesting. Of that 12 per cent, 0.3 per cent is harvested in any given year—0.3 per cent for father's sake! To paraphrase the Scottish philosopher David Hume, this is not about a grand idea or plan; it is nothing but manipulating emotion. Labor says, "We are saving koalas"—like the rest of us do not also love koalas! Give us a break. As the Hon. Sarah Mitchell and the Hon. Mark Banasiak have pointed out, koala figures are not as dire as the doomsayers are trying to claim. The CSIRO estimates there to be approximately 275,000 koalas in New South Wales. I am pleased to say that we have them in Monaro as well as Gunnedah. National counts are approaching one million. Clearly Labor is not counting koalas with the same overgenerous methodology that it applies to brumbies.

We already have both koalas and well-managed forests. We can continue to provide a healthy forestry habitat for the animals that live there and a sustainable industry that respects the forests and the lands where timber workers do their jobs diligently and productively. The sustainable forestry and timber industry in New South Wales is among the most sustainable and tightly regulated in the world. Labor is happy to crow about that for other industries in such circumstances—those relating to waste management, even—but The Greens paint forestry as some sort of evil destructive force. What about the critical forestry management and its significant achievements? What about the fire management that has taken place over decades now? The just-decided apparent changes to fire management are not yet tried or tested, so there is ongoing risk to people and wildlife. A managed forest is a working, healthy and sustainable forest. Once that forest is locked up in a tone-deaf appeal for votes, that management is taken away.

This is not an argument about what is being protected. Forests, the environment and koalas are protected. But there are real questions. What positive, constructive outcomes will actually be produced? Transition is simply not good enough. We cannot take away from the timber workers who have invested decades of their lives in an industry and suddenly tell them to go and serve coffee. The carbon credit stuff is worse than smoke and mirrors; it is sleight of hand that would make Houdini proud. As has been laid out by The Nationals at the Federal level, if the environmental benefit would have occurred anyway, the policy is little more than pretence. Unless there are genuine emission reductions or carbon storage that would not otherwise have occurred, these claims are as hollow as this Government's soul when it comes to protecting workers.

There are a few other hard questions that the public might want to ask when all of this land is locked up and so many are locked out of its future. Will my kids be able to afford to buy a house, let alone build one? What do you mean they bring in timber from places without proper protections, plans or assessed management because we will otherwise not have any supply left to build the stuff we want and need? How are our regional areas actually going to be supported into the future and not just in the short term? Just how many koalas are being saved, and can that be proven?

Sustainable forestry and the timber sector have a terrific story to tell, and the work of the people that I met at the Forestry Australia Symposium demonstrates that. I truly hope they will be able to continue telling their story. When 5,000 people lose their jobs, and when countless businesses, local services, other industries and families who rely on them close their doors and leave town, where will this Government be? Where will we all be? Ultimately, the only thing that is not sustainable about our regulated, well-balanced and well-managed forestry industry is what Labor is trying to do to it.

The Hon. MARK LATHAM (17:22): I oppose the National Park Estate (Great Koala National Park Reservations) Bill 2026 for a number of reasons. I start with the point that the Hon. Sarah Mitchell ended on, and that is to say that the park is a fire risk. That is the reality. But it is also true that the whole issue started with the fires of 2019-20, when koalas in New South Wales were supposedly going extinct. That has not happened. In fact, at that time The Greens forecast that every subsequent summer in New South Wales would be an inferno. In every summer after 2019-20 we were going to burn, as occurred in that season. Thereafter, of course, it has not stopped raining. I wish The Greens would come into the racetrack, instead of protesting outside, and tell me what they think is about to happen so that I can bet the opposite way, make a fortune and retire.

So many of those sorts of predictions have gone skew-wiff. At the start of the great climate change debates, the poster boy for the climate advocates was the polar bear. Again, they were supposed to become extinct as the North Pole ice cap melted, but we now have more polar bears on this planet than ever before. Less of the planet has been subjected to wildfires. There were fewer storms in the Atlantic in the current season. The Pacific Islands are definitely not sinking. I can report from a recent trip to Samoa that they are far from sinking. There are no climate refugees. Tim Flannery was humiliated by saying the rivers and dams would never fill again. They are overflowing.

The Hon. Rod Roberts: Where does he live?

The Hon. MARK LATHAM: He lives on the water on the Hawkesbury River, apparently, and I thank the Hon. Rod Roberts for bringing me to my next point. Are water levels rising? It seems that every prominent politician on the left, current or retired—whether we are talking about Anthony Albanese, Malcolm Turnbull, Jacinda Ardern, Barack Obama or Joe Biden—buys a big mansion on the water, apparently undeterred by the terrible, horrendous danger of rising sea levels. Of course, we welcome Jacinda Ardern to Dee Why—a very firm climate change advocate living right there on the beach. She would be worried about koalas as well. Finally, the Great Barrier Reef has never been in better condition.

The reality is that we currently have 893 national parks and reserves covering about 9.5 per cent of the State's land mass. In terms of the tourism potential of this latest park, we just do not have enough visitors to get a substantial number of visits to the 393—about to become 394—national parks. The trick that the Minister and others use when deploying Roy Morgan Research to survey who visits national parks every year is that they just get a gross number. They never break down the figures by park. Undoubtedly, the great bulk of national park visitations are in those surrounding Sydney: the Royal National Park, the Blue Mountains and Ku-ring-gai Chase. The further from Sydney and the newer the park, the fewer the visitors. Unfortunately, since the time of Bob Carr—and this bill is part of it now—there has been an auction between the parties as to who can set up the next national park.

The Hon. Rod Roberts: Lock it up.

The Hon. MARK LATHAM: Lock up the land but, electorally, there is some advantage seen in just declaring a park—any park—no matter how meritorious. Matt Kean took it to a new level in the previous term of Parliament. He had those bare rocks at Lithgow declared a park. I do not think it has had its first visitor yet. Further west, literally out back of Bourke, he found some scrubland, paid $20 for it and said it was a national park. Again, it has no visitors. The Minister and the Government never break down the number of visitors at each of the 893 national parks and reserves because, rest assured, some of them would have no visitors or minimal visitations. Certainly, no tourists from overseas have visited them. There is some idea that this koala park will be a tourist attraction matching Sydney Harbour or the Great Barrier Reef, but the point has been made repeatedly that it is very hard to spot the koalas in the trees, for obvious reasons. They have been here a lot longer than us, and they worked out that the best protection from Indigenous hunters is to get up in the canopy and blend in. It was only John Brown who found one and laid into the koalas one day.

The Hon. Rod Roberts: We know what happened then too.

The Hon. MARK LATHAM: I saw him at Randwick races later on and he looked a little bit like a koala who had been on the eucalypts—discombobulated. But most tourists, of course, land in Sydney, nip over to Taronga Park Zoo, get a koala photo and move on. That is the extent of tourism for koalas in New South Wales. The proposed park has 4 per cent of the State's koalas, which I do not think justifies locking up the land and abolishing the timber jobs that are involved. Compare that with the debacle at Appin, where most of the koalas are located. If we were serious about koala protection, the urban development there would have been halted years ago. We have 4 per cent of the koalas in the State at the proposed park. But at Appin, for the bulk of them, it is a construction zone. A housing estate is being built, and very few koalas will survive. The best the Government can do is build an underpass on Appin Road, acquire the former Appin greyhound track and say it is a koala corridor. Unless those koalas are trained in traffic management and direction at koala school and have a lollipop koala who gets them through the underpass and away through the corridor, it is farcical.

It is true that koalas migrate from the Georges River to Nepean River through that land corridor, for obvious reasons. But the governments that got involved in the auction for national parks also approved housing developments from Rosemeadow down to Appin, which is effectively destroying the koala habitat. If the Government was going to do something useful, it would stop that housing development, acquire the land—along with the greyhound track if it really needed to—and do something genuine for koala protection in New South Wales. I can assure members that barely any of those koalas at Appin will survive, for the simple reason that the corridor is full of bulldozers, housing construction and the development of residential estates.

There is very little to commend this initiative, other than to say it is the latest government bid in the ongoing auction to lock up land symbolically, for no practical purpose, while destroying timber industry jobs, creating uncertainty and, in net terms, distracting from Appin, which is where the real action is in koala protection in New South Wales. This bill creates something that will stand, barely visited or cared about, like most of the more recent national parks. It is expensive for the taxpayer but of no great purpose. As we now look to go to 894 national parks and reserves, enough is enough.

The Hon. SCOTT BARRETT (17:29): The Nationals always have and always will support the timber industry. That is why we oppose the National Park Estate (Great Koala National Park Reservations) Bill 2026. The area we are talking about, along the Mid North Coast, is a beautiful part of the State. I have not spent as much time there as I would like, and not as much time as other members have, but I know it is a special part of the State. It has been put to me that it is a special part of the State not despite of but because of the timber industry that has been running sustainably for more than 200 years. With that comes a beautiful town and beautiful people, who care about and look after the land.

It is the same in western New South Wales. We are talking about a particular park in this debate, but these issues mirror a lot of the issues in western New South Wales. There has been a big expansion of national parks on country that is deemed worthy of turning into a national park because of the way it has been managed for 200 years by people who care about the land and its future and want to see it conserved and protected. They do that under their own steam. In the past five years one million hectares of land out west has been turned into national parks. That is hurting regional communities. I say that because it mirrors what is happening on the Mid North Coast, including the loss of jobs in that area and the impact that is having on local economic activity.

I remind members that this country is seen as valuable because of the way it has been managed. The previous speaker, the Hon. Mark Latham, spoke about visitation to national parks, and he is right. The top 10 visited national parks are within a short drive of Sydney, plus Kosciuszko, which has its own attraction. It is not only more than 50 per cent—the majority of people who visit our national parks visit those 10. When the moratorium was first announced last year on Father's Day, the impact was immediate. It hit six mills and around 300 workers. Timber NSW warned that more than 40 per cent of the supply to North Coast hardwood sawmills sits inside that footprint. In July, Forestry Corporation announced another 50 job cuts, with 52 of them in Coffs Harbour, and cited the park as a major factor. That is just some of the damage that has already being done.

Those numbers only tell part of the story. Every job in a mill supports jobs beyond the mill gate—the contract harvesters, the haulage drivers, the mechanics who service the trucks, fuel suppliers and even the cafe that sells the morning coffee. Many of those people who have lost their jobs or will lose their jobs will leave that town. That leaves less work for the kid who mows their lawn or the bloke who fixes their fences. Possibly, that means fewer kids in the school, which might now need to close, and fewer clients for the hairdresser. One of the first things I did when I was elected to this place under the former Government was participate in the Portfolio Committee No. 4 – Customer Service and Natural Resources inquiry into the sustainability of the timber industry. A lot of weight was put on a University of Newcastle report that supported the proposed park.

I was new to this place, but it blew me away that the report could blatantly state that locking up the area for the park would affect only a couple of hundred jobs, but it would create thousands of jobs. The couple of hundred jobs that it counted that would be lost were purely direct jobs. The jobs that were counted as jobs created included jobs along the supply line, like the baristas and bus drivers. But the report did not include jobs that would be affected by the mills shutting like the mechanics, tyre fitters and saw doctors. People working indirect jobs will be very much hurt by the job losses. Fewer workers in the timber industry means fewer people in the main street as well. The impacts will be huge. When a mill closes in a regional town, the money does not move elsewhere in that town; it leaves that town. We are hearing that 5,000-plus jobs will be lost.

One of the other concerns is that we are pushing the environmental problem overseas. I have heard members of this place talking about how we have to shut down some industries because they are having a negative impact overseas, yet we are knowingly doing that with this park. The demand for this timber has not decreased. People still want this timber. Shutting down the timber industry in New South Wales will force us to import timber from Asian and Russian forests, deceptively sent through China. No-one can tell me that those countries have the

same regulations that we have to protect the environment. They do not have the same record of balancing forestry with protecting the native environment.

A number of members also raised fire concerns. We need to speak strongly about how good a job Forestry Corporation does to protect that country from fires. It has trained firefighters, with equipment and satellite imagery. We have not heard how all of that will be replaced. One of the big issues a number of members raised in this place and in the other place is that we talk about how good this will be for tourism, but what will people be able to do in this proposed park that they cannot do already? The answer to that, I believe, is that they will be able to do less. There will be less camping, less four-wheel driving and less riding. We will lose motor sport from the area, which brings hundreds of thousands of dollars into the community. That will all be lost, and all for headlines that do not deliver any real outcomes.

To close, I quote a Labor Party member who is in the Chamber. When I heard it, it reminded me of the Labor Party that I imagined when I was a kid in shearing sheds, talking to shearers about politics. This morning the Hon. Mark Buttigieg said, "No-one is more committed to the protection of our environment than me, but not at the expense of people's livelihoods. They are real people who have to put food on the table." He was talking about miners. He said, "Telling a 55-year-old coalminer they will have to drive taxis or inspect koalas in forests does not cut it." That is why I cannot support the bill. We are talking about real people's lives, livelihoods and communities. The Hon. Mark Buttigieg continued, "We will not sacrifice working people's lives on the altar of absolutism."

There would be a better way to do this. The Great Koala National Park is great for getting headlines, but not so great for getting outcomes. I also note that the people leading the charge against the bill are people who have grown up and lived in the affected area. The members who represent the communities of the Mid North Coast are some of the loudest voices against the bill. I acknowledge the hard work of my Nationals colleagues in the other place. I urge members to oppose the bill.

The Hon. EMMA HURST (17:37): On behalf of the Animal Justice Party, I speak in support of the National Park Estate (Great Koala National Park Reservations) Bill 2026. The bill is a huge win for the community advocates who have fought for more than a decade to establish a koala national park. I thank them for their tireless work. Many of them are in Parliament today to celebrate this win. Habitat loss is one of the greatest drivers of biodiversity decline in New South Wales. For years experts have told us that protecting habitat and preventing its loss and fragmentation is critical to reversing that decline and halting extinctions.

The Portfolio Committee No. 7 – Planning and Environment inquiry into koala populations and habitat in New South Wales found that habitat loss and fragmentation were the most serious threats to koala populations in this State, and it highlighted the urgent need to protect habitat and wildlife corridors. Koalas depend on trees for food and shelter, and on connected forest corridors to move through the landscape and find mates. Without those, they cannot survive, let alone thrive. The bill will protect more than 178,000 hectares of forest. These newly protected areas will connect with existing national parks to create the Great Koala National Park. An estimated 12,000 koalas live within the park area, the largest koala population in the State.

The park is also reported to be home to 66 other threatened species, including the yellow-bellied glider, greater glider, powerful owl, sooty owl and glossy black cockatoo. As a member of the Animal Justice Party, I want to be clear that my circle of compassion does not end at threatened species; I care about every animal that calls this park home, whether threatened, native or introduced. Each of them is a sentient being, capable of feeling pain. Each deserves a safe and secure home, free from the threat of logging, with the food and shelter they need to thrive. I am glad this park brings them closer to that future.

The Great Koala National Park will not only protect animals and the environment; it is also expected to create new jobs and attract tourism to the Mid North Coast. I note that the bill includes a support package for forestry workers to ensure a just transition. As I said at the outset, this win belongs to the community and to the forest activists and advocates who have fought for it for so long. I acknowledge their work, including that of First Nations leaders, animal protection and environment groups, scientists and local community groups, each of whom has never stopped speaking up for the koalas, the greater gliders and all the other animals who live in New South Wales forests. It has been a long and hard-fought battle, and this victory is theirs.

I do have some concerns about the limitations of the bill. They include the 13 per cent of the park set aside as regional parkland rather than national park, where activities such as car rallies may continue. I am also concerned that key areas where koalas and other animals live have not been included in the Great Koala National Park. Most notably, that includes the Forest Bridge area, which covers parts of Pine Creek and Tuckers Nob State forests and would create a critical east-west wildlife corridor. We know koalas and other animals live in that area. We know how critical wildlife corridors are. Adding that small section to the park would have little impact on the forestry industry, but it could have enormous benefits for conservation and for the individual animals who call it

home. The member for Pittwater, Jacqui Scruby, fought for amendments regarding the Forest Bridge area in the other place. I place on record that I will support similar amendments from The Greens on that issue, and I thank all the community advocates, including Friends of Pine Creek, who have campaigned on it for so long.

Establishing the Great Koala National Park is something to be celebrated, but we cannot stop there. This must be one step in a much larger journey towards truly prioritising and protecting animals and the environment, including ending native forest logging, stopping excessive land clearing and overdevelopment, and ensuring real action on the climate crisis. Lastly, I thank the Government and the environment Minister for introducing the bill. I have not always agreed with the actions taken by this Government, but this is clearly a welcomed step forward in protecting animals and native forests in New South Wales. I commend the bill to the House.

The Hon. ROBERT BORSAK (17:41): I contribute to debate in support of the statements made by my colleague the Hon. Mark Banasiak concerning the Minns Labor Government's unnecessary and economically destructive National Park Estate (Great Koala National Park Reservations) Bill 2026. I make it absolutely clear that the Shooters, Fishers and Farmers Party will continue to fight for regional families, workers, businesses and communities whose livelihoods are threatened by this Government's decisions. We will continue standing up for the people who manage our forests, produce our timber, support our regional economies and contribute so much to the prosperity of New South Wales.

The proposed Great Koala National Park threatens established forestry employment, undermines regional communities and transfers another enormous area of productive forest into an already extensive national parks estate—and for what? It is supposedly to protect koalas already living and breeding in the very forests the Government claims must be permanently removed from timber production. The Shooters, Fishers and Farmers Party supports koala conservation, healthy forests, native wildlife and responsible land management, but conservation is not the same thing as locking up land. It does not require destroying productive industries or excluding people who have managed those forests for generations.

The proposal would add more than 178,000 hectares to the national parks estate, creating a reserve system of approximately 475,000 hectares. If koalas are already surviving in those sustainably managed forests, why must forestry be shut down to save them? The koala population figures tell a different story. For years Australians have been subjected to alarming predictions about koalas disappearing from our landscapes. Those predictions have been used to justify extraordinary restrictions on land management and productive industries, but recent scientific research presents a substantially different picture of koala abundance. The Government's 2025 koala baseline survey estimated approximately 274,000 koalas in New South Wales, with a confidence interval of 231,000 to 320,000 animals. The research involved thermal drones, acoustic monitoring and extensive surveys across national parks, State forests and private land.

The CSIRO's National Koala Monitoring Program also produced substantially higher estimates than earlier assessments. Its 2025 estimate for the combined listed populations in New South Wales, Queensland and the Australian Capital Territory was between 398,000 and 569,000 koalas. Scientists caution that those revisions largely reflect improved survey methods rather than proof of a population explosion. I acknowledge that distinction, but common sense should now prevail. If earlier estimates were so incomplete, surely the Government should reassess the assumptions underpinning major conservation decisions.

Koalas are legally classified as endangered throughout New South Wales following a decision made in 2022. Before that decision, particular local populations—including those at Pittwater, Hawks Nest and Tea Gardens, and between the Tweed and Brunswick Rivers—had been separately recognised as endangered. However, the conservation circumstances of koalas vary considerably across their geographic range. Some populations face serious local threats, while others remain numerous, including populations occupying forests harvested for generations. Indeed, the Commonwealth endangered listing does not extend to koalas in Victoria and South Australia, where some populations are sufficiently abundant to require active management. The critical distinction is between the legal classification of a species and the conservation circumstances of particular populations.

A statewide endangered listing does not mean every local population is declining, nor does it automatically establish that closing productive forests is the most effective conservation response. The Government must demonstrate, using current scientific evidence, precisely how ending sustainable forestry will improve koala conservation outcomes compared with properly regulated multiple-use forest management. Repetition does not make misinformation scientific truth. The other matter that needs addressing is the exaggerated claims, misinformation and selective use of evidence by elements of the radical environment movement—that is, The Greens. Just because radical environmental activists repeat a claim over and over again does not make it a scientific truth. Repetition is not evidence, political campaigning is not scientific research and a green environmental organisation's press release is not a substitute for properly collected, independently assessed scientific data.

We are repeatedly told that koalas cannot survive in sustainably managed production forests, yet Government surveys have identified substantial koala populations in the very forests harvested and regenerated for generations. That challenges sweeping claims that forestry and koala conservation are fundamentally incompatible. There is a profound irony there. Some of the loudest voices demanding that governments follow the science appear reluctant to acknowledge findings that challenge their preferred political outcomes. They cannot selectively embrace science when it supports their agenda and reject it when it does not.

Genuine scientific integrity requires examining all the evidence, acknowledging uncertainty and revising assumptions when better information becomes available. Those claiming sustainable forestry is incompatible with healthy koala populations should demonstrate that proposition scientifically. Let them explain the koalas already occupying those working forests. Let them produce comparative population data and evidence that permanent forestry closure will deliver better outcomes than properly regulated forest management. The test of genuine commitment to science is whether an organisation accepts evidence that challenges its own claims.

Koalas have survived in working forests for generations. The forests being transferred into the proposed national park are not untouched wilderness. Many have been managed for timber production for more than a century. Generations of forestry workers have harvested timber, regenerated forests, maintained roads and undertaken practical land management. Throughout that history, koalas have continued occupying those landscapes. Government surveys estimated between 10,311 and 14,541 koalas within the proposed national park assessment area, with a central estimate of approximately 12,111 animals. Members should think about that. Approximately 12,000 koalas living in a landscape containing forests that have been managed for timber production for many decades demonstrates that koalas can persist in working forest landscapes, although it does not establish that harvesting has no impact on their populations. The question is whether ending forestry will produce sufficient additional conservation benefits to justify the enormous economic and social consequences.

Where harvesting practices require improvement, we should improve them; where important habitat requires protection, we should protect it; and where monitoring reveals genuine declines, we should respond with targeted management. But we should not destroy an entire regional industry when conservation and sustainable production can potentially operate in unison. Behind the social and economic costs of this announcement are real people whose livelihoods depend upon forestry. The Government acknowledges that approximately 500 forestry-related jobs have been affected by its harvesting moratorium, including workers associated with six timber mills. Industry representatives argue that the broader consequences extend to contractors, transport operators, machinery suppliers and downstream manufacturers.

Losing a mill does not simply mean losing a workplace; it means families facing unemployment, local businesses losing customers and young people losing the opportunity to remain in their community—and the consequences will flow through mechanics and engineering workshops, transport companies, sporting clubs, schools and retailers. The Government has offered redundancy assistance, retraining, counselling and promises of tourism employment, but retraining courses do not create jobs, tourism brochures do not replace sawmills, and forestry contractors cannot simply turn specialised machinery and decades of investment into tourism businesses. The Government has announced $6 million in community grants, but it has not established that tourism will replace the economic activity being removed. Forestry and tourism can co-exist. People already camp, bushwalk, horseride, fish, hunt and undertake other recreational activities in State forests. Why eliminate timber production when forests can support conservation, recreation and employment simultaneously?

How much fire preparation is needed for millions of hectares of land? The National Parks and Wildlife Service already manages approximately 8.44 million hectares across New South Wales, which requires fire management, maintained access, feral animal control, weed management and protection of neighbouring communities. The Government wants to transfer another enormous area into that system. In answer to questions from Parliament, the Government said that the National Parks and Wildlife Service treated 96,243 hectares through hazard reduction activities in 2023-24. That number fell to just 74,050 hectares in 2024-25, which is a reduction of more than 23 per cent.

More recently, the NSW Rural Fire Service reported that more than 75,000 hectares of land was treated through hazard reduction across New South Wales between April 2026 and July 2026, and that figure includes work undertaken by multiple agencies across public and private land, not just national parks. Meanwhile, the Government has confirmed that the National Parks and Wildlife Service's annual fire trail maintenance fell from 28,033 kilometres before the 2023-24 bushfire season to 24,177 kilometres before the 2025-26 season. I acknowledge that hazard reduction must be targeted and that weather conditions influence the amount of burning undertaken. Nevertheless, these figures raise serious questions about the resources available to manage a national park estate that already exceeds eight million hectares.

Before the Government adds another 178,000 hectares to the national park estate, it should tell Parliament precisely how much hazard reduction the National Parks and Wildlife Service completed in 2025-26, what

proportion of its identified high-risk treatment program was delivered and what additional resources will be provided for the 2026-27 bushfire season. The Black Summer bushfires demonstrated that national park status does not protect forests from catastrophic fire. Native wildlife like koalas and neighbouring communities remain vulnerable, regardless of land tenure. Forestry operations maintain roads and infrastructure, and these practical management capabilities can assist emergency response. The Government must explain how those capabilities will be retained or replaced. A national park sign does not prevent bushfires—effective land management does.

Perhaps the most extraordinary aspect of the proposed national park is its dependence upon a Commonwealth carbon credit scheme to help finance its future management. The Government announced $140 million in establishment funding, made up of $80 million in 2023 and another $60 million in 2025, but the bill makes commencement of the reservation provisions conditional upon the Clean Energy Regulator declaring an eligible carbon project. The Government made the creation of this national park legally dependent upon registration under a Federal carbon credit scheme—it is written in the legislative arrangements.

The Government estimates that the project could generate approximately 6.4 million tonnes of carbon abatement and sequestration over 25 years, with earlier projections suggesting approximately 3.7 million Australian carbon credit units over the first 15 years. The value of those credits depends on the carbon market, raising serious questions about the financial credibility of the entire national park model. We are closing an established timber industry and removing productive forests from sustainable use, and we are replacing part of that economic activity with anticipated carbon credit revenue. This politically constructed financial model relies on uncertain future carbon revenue to support present commitments, an arrangement that critics have described as a carbon credit Ponzi scheme. That is a political criticism and not a finding of fraud, but the financial questions are entirely legitimate.

In February 2026 the Government was asked what would happen if carbon revenue failed to materialise, whether any alternative funding had been identified and whether the park could proceed regardless. It indicated that those decisions had not yet been made, which is an extraordinary position to take. The Government is prepared to disrupt an established industry without demonstrating how the park's long-term management will be financed if carbon revenues fall short. Sustainably harvested timber is renewable. Growing forests absorb carbon, harvested wood products can store carbon and timber can be a substitute for emission-intensive materials. A credible assessment must consider those benefits alongside carbon stored in unharvested forests, and whether New South Wales timber production will simply be replaced by timber sourced elsewhere.

If this national park model is economically and environmentally sound, it should withstand independent scrutiny without relying upon optimistic assumptions about future carbon credit revenue. Conservation must deliver outcomes, not just hectares. The Shooters, Fishers and Farmers Party supports practical conservation that delivers measurable environmental outcomes, protects habitat, controls feral animals, manages bushfire risk, maintains access, uses scientific monitoring to guide decisions and recognises that sustainable resource use and conservation can co-exist. The Government should retain productive State forests, improve environmental safeguards where necessary and protect important koala habitat through targeted management. It should also develop a practical conservation strategy with forestry professionals, local communities, Aboriginal land managers and scientists. Success should be measured by koala population outcomes, forest health and effective threat management, not how many hectares are transferred to the national park estate.

New South Wales should not have to choose between protecting koalas and supporting forestry workers—we can have both. New scientific evidence estimates that there are approximately 274,000 koalas in New South Wales, and thousands of koalas have occupied forests managed for timber production for generations. We have an established regional industry that supplies renewable timber products and supports families and communities, and the National Parks and Wildlife Service already has substantial fire management and conservation obligations for millions of hectares of land. The Government's proposal will close productive forests, disrupt regional communities and create another enormous national park that is dependent on a Federal carbon credit arrangement for its long-term funding. Conservation should be measured by results, not political announcements.

The Government has not demonstrated that removing sustainable forestry will produce better environmental outcomes than properly regulated multi-use management. It must demonstrate that the economic damage is justified and that the park can be properly financed and managed without further burdens upon taxpayers. We cannot save a koala simply by putting a national park sign on a locked gate. The way to protect koalas is through effective landscape management, habitat protection and responsible threat management. We will not build a stronger regional New South Wales by destroying established industries and replacing them with uncertain financial promises. The Shooters, Fishers and Farmers Party will continue to stand with regional families, forestry workers and communities whose futures are threatened by this Government's decisions. Koalas deserve proper conservation, forestry workers deserve a future, and the people of New South Wales deserve both.

I move:

That the question be amended by omitting "this bill be now read a second time" and inserting instead "this bill be referred to Portfolio Committee No. 4 – Regional NSW for inquiry and report by 16 November 2026".

Debate adjourned.

Business of the House

SUSPENSION OF STANDING AND SESSIONAL ORDERS: HARD ADJOURNMENT

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (18:00): I seek leave to amend business of the House notice of motion No. 1 by:

Inserting at the end the following new paragraphs:

(2) That, notwithstanding anything to the contrary in the standing and sessional orders, the President leave the chair at 12.00 midnight on Thursday 22 October 2026, and the House stand suspended until the ringing of a long bell at 9.00 a.m. on Friday 23 October 2026.

(3) That, at the conclusion of consideration of the National Park Estate (Great Koala National Park Reservations) Bill 2026, a Minister is to move the motion for the adjournment of the House.

Leave granted.

The Hon. PENNY SHARPE: Accordingly, I move:

(1) That Standing Order 34 relating to the hard adjournment at 10.00 p.m. be suspended for Thursday 22 October 2026 only.

(2) That, notwithstanding anything to the contrary in the standing and sessional orders, the President leave the chair at 12.00 midnight on Thursday 22 October 2026, and the House stand suspended until the ringing of a long bell at 9.00 a.m. on Friday 23 October 2026.

(3) That, at the conclusion of consideration of the National Park Estate (Great Koala National Park Reservations) Bill 2026, a Minister is to move the motion for the adjournment of the House.

I have spoken to most members of the House and they understand what we are trying to do here tonight. The Government is seeking to lift the hard adjournment until midnight tonight. If the National Park Estate (Great Koala National Park Reservations) Bill 2026 is not completed by midnight tonight, we would then go on a long bell and come back at 9.00 a.m. tomorrow morning to finish the bill. The Government has made its desire to finish this bill very clear. Obviously, there have previously been long conversations in this House about the lifting of the hard adjournment, the circumstances in which we do it and the way in which we do it. I have spoken to all members who are in the Chamber. I understand that there are some who will not support this motion, but I have listened carefully to everyone, and I think this is a way through that will mean that the Government can get its business done, people can participate in the debate on the bill in the way that they wish to and we can work through it in a methodical way. I request the support of the House for this motion.

The Hon. DAMIEN TUDEHOPE (18:02): The Opposition has a longstanding objection to the lifting of the hard adjournment in this manner to accommodate the Government's business. I understand and do not disparage the concessions which are being made by the Leader of the Government. I acknowledge that they are made in good spirit. Madam Deputy President, you have most eloquently previously expressed the rationale as to why this House should not be sitting beyond 10 o'clock during the sittings of this House. A component of this motion is to bring the National Park Estate (Great Koala National Park Reservations) Bill 2026 back before the House tomorrow. I can understand that part of the motion. However, the lifting of the hard adjournment to sit until midnight tonight is against the very spirit of acknowledging that it is not good workplace practice for this House to sit until midnight on any night, let alone this one, to accommodate the Government's business. The Government has it within its power to achieve that end.

I make this point. There were two bills that took precedence over the National Park Estate (Great Koala National Park Reservations) Bill 2026 today. Cumulatively, they took approximately an hour and a half to deal with. If the Government was serious about wanting this particular bill passed, it would have given it priority over the two bills debated by the House earlier tonight. The Government controls its own business, as it is entitled to do. But it should do so against a background where it knows that if it brings a motion of this nature, seeking to lift the hard adjournment, the Opposition will consistently oppose that motion. I understand the Government's rationale. I appreciate the steps that the Leader of the Government has taken to try to ensure that members of the Chamber understand where the Government is coming from. But the Opposition's position is that we should be supporting good workplace practice in priority to just about everything else that the Government wants to achieve.

I make this further point. The Government says it wants to pass the National Park Estate (Great Koala National Park Reservations) Bill 2026. For the life of me, I am staggered as to why it is an urgent bill. It is urgent in terms of the Government's priorities, but it is hardly urgent in terms of any consequences which naturally flow

from it which need to be addressed immediately. There is no reason why this bill could not be debated tomorrow and in fact, if not completed tomorrow, it could be brought back in the first sitting week in November. This is the Government's priority. It has a large agenda that it wants to get through. I get all that. But in many respects, if the Government were to work with the Opposition, it could achieve that without the necessity of sitting beyond 10 o'clock at night. The Opposition will be opposing the motion.

The Hon. SARAH MITCHELL (18:06): I make a brief contribution to support what my colleague the Hon. Damien Tudehope has said about the lifting of the hard adjournment. It is something that the Opposition opposes on principle. He rightly made the point that the Government is in charge of its own agenda. It is no secret that The Nationals hate this particular piece of legislation. We do not want the National Park Estate (Great Koala National Park Reservations) Bill 2026 to pass, and we will do what we need to do to stop that. But the Government has been wanting to do this for 3½ years. It was an election commitment. Yes, we are in the closing weeks of this parliamentary term, but if the Government has not managed its business and done the work to bring on bills they promised to deliver, or to prioritise them, that is on them. Timber workers on the Mid North Coast will not be at all upset if consideration of this bill is delayed. The reality is that any parties who purport not to support the bill should also be voting against a lifting of the hard adjournment. If they do not, then I think that speaks for itself.

The Hon. ROBERT BORSAK (18:07): The Shooters, Fishers and Farmers Party is more than supportive of lifting the hard adjournment. I do not agree with the midnight finish. If necessary, we should bat on and finish consideration of the National Park Estate (Great Koala National Park Reservations) Bill 2026. I have sat in this place for the past 3½ years and watched various crossbench parties waste the time of the House, especially on Government business days. I have seen the Opposition do it in conjunction with the crossbench, wasting all sorts of time. It is about time that we gave this particular bill the credible examination that it needs and the criticism that it needs to cop. That needs to go on until it is finally finished. Whether we come back tomorrow is another issue. At the end of the day, this is not a matter of saying, "We've got limited time." The Opposition is doing what it always does, trying to chop off proper debate and then drag it out until we get to a stage where nothing gets properly considered. That is why the Opposition is in trouble with voters. It has been playing games rather than properly considering and opposing bills like this one.

The Hon. EMMA HURST (18:08): I oppose lifting the hard adjournment. I think everybody knows what happened to me last year. I do not want to talk about myself, but what came out of my situation was an inquiry which gave people in this place a voice to speak out. When I talk about the people in this place, I do not mean those of us who get to stand here and say our piece. I am talking about the other people in and outside of this Chamber who are affected by this decision: the Clerks, procedural staff, catering staff and other parliamentary services staff. Members who have read those submissions—and I suggest that those who have not read the submissions should abstain from voting until they have—would know that they highlight very serious work health and safety issues. They say lifting the hard adjournment creates a high risk. I quote one of the submissions, "It is manifestly harmful to people's physical and mental health." The submissions highlight that others do not get the opportunity to vote when these matters are put forward.

I agree that the National Park Estate (Great Koala National Park Reservations) Bill is important, but I do not understand why we are lifting the hard adjournment when we are talking about resuming debate tomorrow. Why not finish at 10 o'clock, have a proper night's sleep, then come back at nine o'clock to finish the bill. I want the bill to be passed. I very strongly support it. The Minister knows that. When she spoke to me, I said I am happy to come back tomorrow. I want members who oppose the bill to have an opportunity to put their position to the House. I support what this House is all about, but there are ways of working through this. If we stay until midnight, we get home at 1.00 a.m., go to sleep and we are up at 6.00 a.m. We will get only a few hours sleep and we do not know how long we will be here tomorrow. Nobody wants to resume debate on the bill tomorrow—we probably all have cancel existing plans—but it is the only reasonable way forward. That is why I will not support lifting the hard adjournment. I would support a motion to resume debate tomorrow at 9.00 a.m. after the House adjourns at 10.30 p.m. tonight.

The Hon. WES FANG (18:10): I will make a few brief comments after the contribution of the Hon. Robert Borsak. Firstly, I endorse the comments made by the Hon. Emma Hurst. There is a level of sensibility around this. All members in this House accept that the Government wants to pass the National Park Estate (Great Koala National Park Reservations) Bill 2026, and it will. But all members should have the opportunity to contribute to debate and represent the communities they feel need a voice in Parliament. That is totally appropriate. But if we extend the deadline until midnight instead of adjourning at 10.30 p.m. and returning at 9.00 a.m., what the Hon. Emma Hurst said is correct. I note the Ministers all have drivers who will drive them home and bring them back tomorrow, but other members in this Chamber who do not have that support. I know of two members who have had car accidents because of a lack of sleep when they had to travel. They suffered from a lack of sleep either because of a late sitting or an early start. The motion asks that members do both to debate this bill. I suggest that the motion should ask that members do one or the other, not both.

The Hon. Stephen Lawrence: If it is dangerous to drive, get a taxi. It is irresponsible.

The Hon. WES FANG: I acknowledge the interjection. No, it is not irresponsible. It is absolutely not irresponsible.

The Hon. Stephen Lawrence: To drive home tired? Yes, it is.

The Hon. WES FANG: Some members actually have things to do, mate.

The DEPUTY PRESIDENT (The Hon. Taylor Martin): The Hon. Wes Fang will address his remarks through the Chair.

Ms Sue Higginson: Point of order: It is really important that we are not debating across the Chamber. Members are making reasonable points, but we should keep order in the House. The Hon. Wes Fang really should address his remarks through the Chair.

The DEPUTY PRESIDENT (The Hon. Taylor Martin): I agree. The volume has come down.

The Hon. WES FANG: It would be sensible to maintain the 10.00 p.m. hard adjournment tonight and then resume at 9.00 a.m. tomorrow. Otherwise, we lift the hard adjournment and continue until midnight but not resume at 9.00 a.m. tomorrow. If we leave here past midnight, we will not get home until 1.00 a.m. and we will not get to sleep until 1.30 a.m. or 2.00 a.m. The Hon. Emma Hurst is right. We will set our alarms for 6.00 a.m., which means we will get four to five hours sleep at most before returning to Parliament. That is worst thing we can do. We will debate this bill all day on a lack of sleep.

[*Interruption*]

The Hon. WES FANG: The Hon. Cameron Murphy is a deadset dickhead.

The DEPUTY PRESIDENT (The Hon. Taylor Martin): I call the Hon. Wes Fang to order for the first time.

The Hon. WES FANG: The Hon. Cameron Murphy does that all the time. He thinks he is funny. I do not understand; he should know better. We should be reasonable about this motion. If we resume at 9.00 a.m. tomorrow, we should keep the hard adjournment at 10.00 p.m. If we continue until midnight, we should look at some other arrangement. I back in what the Hon. Emma Hurst said. Members have spoken in this House previously about working family friendly hours. This is not the time to suspend the hard adjournment. We all accept that the bill will be passed at some point, but we cannot talk about family friendly hours and being sensible and responsible—

The Hon. Jacqui Munro: And caring for workers.

The Hon. WES FANG: Yes. Let's be honest. It is not just us. We are talking about the 42 members in this Chamber, but there is the staff. We always talk about the staff until we do not. Members opposite, who are supposed to represent workers in this House, where is their voice?

The Hon. Stephen Lawrence: Stop filibustering all the time. You are wasting hours and hours of time.

The Hon. WES FANG: If the Hon. Stephen Lawrence wants to see filibustering, watch me speak on every amendment. I will show him filibustering, if he wants. We had an agreement, but if this is what the Hon. Stephen Lawrence wants to do, watch out.

The DEPUTY PRESIDENT (The Hon. Taylor Martin): I remind the Hon. Wes Fang that he is on one call to order.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (18:15): In reply: I do not seek to take up a lot of the time of the House. I make the following points: This has been an ongoing discussion through this entire term of Parliament. The motion before the House is an attempt to find the right balance. I make the following points. The Government has 24 bills that are currently before the House. We are prioritising the bills. At the same time, we want members to contribute, and that takes time.

I am a little bit annoyed by the constant reflection on the way in which the Government prioritises bills. It is up to the Government how it prioritises its bills and we are doing that in the best way we can. The motion before the House is an attempt to balance two things. I spoke to a lot of members in the Chamber. Some members should perhaps think about what their colleagues told me in the contribution to this debate, which is what is the right balance to get through what we want to get through tonight. The Government has been very clear about it. This motion comes as no surprise.

We will give ourselves a little bit of extra time, if we are able to. We might be able to get the National Park Estate (Great Koala National Park Reservations) Bill 2026 finalised tonight. At the same time, I will not stand in the way of members who wish to make a long contribution to debate on the bill. That is the balance we struck in moving the motion. I simply reiterate that this motion is not a surprise. I have spoken to many members about it. I know we disagree on where we draw the line, but the motion I moved is balancing priorities and building as much consensus as I can get in the Chamber on how we manage that. All members have a view, but those have strong views on these matters should perhaps have a bit more respect for the conversations that have taken place.

The PRESIDENT: The question is that the motion be agreed to.

The House divided.

Ayes 21
Noes 15
Majority.....6

AYES

Banasiak	Govind	Mookhey
Borsak	Graham	Moriarty
Boyd	Higginson	Murphy (teller)
Buckingham	Jackson	Nanva (teller)
Cohn	Kaine	Primrose
D'Adam	Lawrence	Sharpe
Faehrmann	Mihailuk	Suvaal

NOES

Barrett	Martin	Rath (teller)
Carter	Merton	Roberts
Fang (teller)	Mitchell	Ruddick
Farlow	Munro	Tudehope
Hurst	Overall	Ward

PAIRS

Buttigieg	MacDonald
Houssos	Maclaren-Jones

Motion agreed to.

The PRESIDENT: I shall now leave the chair. The House will resume at 7.30 p.m.

Bills

NATIONAL PARK ESTATE (GREAT KOALA NATIONAL PARK RESERVATIONS) BILL 2026

Second Reading Debate

Debate resumed from an earlier hour.

The Hon. JEREMY BUCKINGHAM (19:31): I contribute to debate on the National Park Estate (Great Koala National Park Reservations) Bill 2026, which is an incredibly important bill and is incredibly good news for the ecology, the environment and the people of the Mid North Coast. It has been a long road to get here. It took decades of work from community members, environmentalists and this Government to build the support needed to create the framework for this incredibly important addendum to our natural estate. I congratulate our excellent Minister for the Environment on shepherding the park through to fruition. She is incredibly humble, but it is a testament to her tenacity that she got the bill up in a way that has built a lot of support in the community. I should know—I live in Bellingen, and there are no protests in the street.

The timber industry workers there recognise that they have to move out of hardwood native forest logging and into plantations. There is a transition package for people to move to the National Parks and Wildlife Service, and there are hundreds of millions of dollars coming down range for investment in the Dorrigo Rainforest Centre and the walks along the Dorrigo escarpment. Now there is the Great Koala National Park, which will be a jewel in the crown of the North Coast. The Hon. Mark Latham said that no-one goes to those parks. What a joke! Close

to 175,000 people a year go to the Dorrigo National Park. With the addition of the Great Koala National Park, it will increase to more than one-quarter of a million people.

The people on the Mid North Coast recognise that tourism is the backbone and lifeblood of their economy. Around 70 per cent of the visitors to those national parks are from outside of the region, and now it is not just the Big Banana or the fantastic surf beaches that are magnets for those tourists. The Bongil Bongil National Park and the various interconnected reserves will do the work of protecting our natural heritage estate. The Government has erred—I think rightly—on the side of allowing different tenures so different access opportunities and uses for those forests can be offered. They are absolutely chock-a-block full of people all the time, swimming in the rivers, walking dogs in certain areas and birdwatching.

One of my favourite things to do is to look for wompoo pigeons and spangled drongos. If members have never seen a male spangled drongo in the wild, they must go and see one. I am not talking about the Hon. Wes Fang; I am talking about the beautiful rainforest bird. The plethora of birds in the forests is incredible. One of the most biodiverse places for avian species on this earth is in that part of the Mid North Coast, at the intersection of the mountains, the riverine ecosystems, the wetlands and the coastal ecosystems. There are also many migratory birds. Birdwatchers should definitely go there. It is an absolute hotspot for a range of species, and they are coming back in big numbers. There are raptors, peregrine falcons, goshawks, eagles, sea eagles—I could go on and on, but I will not.

As I said, the park has been a long time coming. I must acknowledge the work of the North East Forest Alliance, the Bellingen Environment Centre, Ashley Love, Dailan Pugh and Susie Russell, to name a few. I acknowledge the local community up there, and also the Hon. Luke Foley. Who can forget the front page of *The Daily Telegraph* with an illustration of him as "Luke Foliage" the koala—I have got to rate that headline; whoever wrote it gets 10 out of 10—when it announced the then Opposition members' commitment to the Great Koala National Park. Now in government, here they are delivering it.

A lot of people said, "They'll never deliver it. They'll back away. They won't deliver it in full." But 176,000 hectares has been added to the estate, creating links between those nature reserves. It is absolutely fantastic. It is not without an economic cost. There is no doubt the taxpayers of New South Wales will have to chip in. With the moratorium on native timber harvesting, the timber industry will have to restructure. As a former sawmiller, I know a little bit about the timber industry. My family ran a sawmill in Tasmania of a minor species.

The Hon. Wes Fang: You sold out your mates.

The Hon. JEREMY BUCKINGHAM: We didn't sell out or anything like that. People decided to use timber from species other than our rainforest species and our hardwood species for construction. This place is probably built out of hardwood, but there are no frames of homes being built out of Australian oak and Australian hardwoods in New South Wales. It is heavy, hard to nail and more expensive than the product that we get from the softwood plantations. About 91 per cent of timber used in this State comes from plantations, and 84 per cent of that comes from softwood plantations. The majority of the rest is not coming from Indonesian rainforests or the Siberian taiga; it is coming from New Zealand radiata pine plantations.

The builders and the construction industry have voted with their feet. They wanted a softer, easier to handle timber for their construction, and that is what they have chosen. Furniture-grade timber can be sourced from our plantations. Foresty Corporation is logging in Pine Creek State Forest at a place the community calls Forest Bridge. I recognise the concerns the community have about Pine Creek, as they do with the Tarkeeth. But we have to recognise that we cannot tell the timber industry that it has to go to plantations, as we move out of native forest logging, and then at the first juncture say, "Except this one here, which is absolutely critical to you keeping up with sawlogs". That is why, despite some intensive lobbying locally, I have not supported that. I have been up there and had a look.

I also put on record that State forests are not always open for use, as some members have said. In a forest that is earmarked for logging, you cannot always do the things that you can do in a State forest, because it is a working forest. Often there is heavy machinery there, trucks are coming and going, and it is not the sort of place where you want to go for a bushwalk, walk the dog or look for a spangled drongo or a wompoo pigeon. The bill will result in there being more uses for these forests. There is recognition of the Gumbaynggirr people, making sure that Aboriginal cultural values and joint management are enshrined in the bill. There is a range of different reserve land tenures in the bill.

The Forestry NSW workforce transition is a key element. The bill contains provisions to support employment transition for affected Forestry Corporation employees by enabling appointments to the National Parks and Wildlife Service. Those people know the forests. They know the roads. It will not be the case that, when they are part of the national park, those forests will not be managed and will all of a sudden be at risk of burning

down. As I am prone to do, I digress momentarily into the area of ecological transition. These forests have not burnt down. They did not burn down in the 2019 Black Summer fires because a lot of them have transitioned, in terms of ecological succession, into rainforest.

The Hon. Wes Fang: It has nothing to do with the fact that there were Forestry Corporation employees there that put the fires out.

The Hon. JEREMY BUCKINGHAM: It had nothing to do with the fact that the Forestry Corporation was there. We did not cut them down for 80 years and they turned into rainforest. They went from closed eucalypt forests into subtropical rainforests, which stay pretty wet and do not burn down as easily because they are not dominated by eucalypt species. That can be seen a lot. Members who might be flying up and down the coast should have a look.

The Hon. Wes Fang: Koalas live on eucalypts!

The Hon. JEREMY BUCKINGHAM: Keep an eye out for a spangled drongo and its call from the wild. In those areas koalas can be heard. If you want to be alarmed in the middle of the night—

[*Interruption*]

There you go! That is a very good impression of a koala from Ms Sue Higginson. It is of course a hotspot of 12,000 koalas, a key population there. But it is not just the koalas. My favourite bird, the coastal emu, does not rate much of a mention, but it is an endangered species that is genetically located only in that area. They are struggling to survive with the fragmentation caused by agriculture, roads and the incursion of dogs. It is fantastic we now have this park on the books for operation. I have expressed my interest in the operational elements of this park. The community wants to know the who, what, when, where and how of the operations of it, where the structures are going to be built and all the rest. This is the jewel in the crown. There are not many places in this State where you can swim in clean wild rivers. If you swim in the Wilsons River and the Richmond River on the North Coast, you will come out covered with mud, silt and acid sulphate.

But it is not so for the Bellinger River, Kalang River and Crystal Creek. If members ever get the chance, they should get up to Crystal Creek. It is like Tahiti up there; it is unbelievable. It is getting a reputation around the world. These are clean beaches. As a result of this bill, people will be able to go from the Bongil Bongil, the beaches down there at the Wenonah Headland, all the way up to Dorrigo. It is all protected; it is all recovering. Our southern greater glider; glossy black cockatoos; rare spider orchids, including Dendrobium melaleucaphilum; the cryptic forest twiner, Tylophora woollsii; Floyd's grass; Beadle's grevillea—the list goes on and on. If you are a plant buff, you will absolutely love it up there. You may never have seen these plants, but now you will. The king orchids are in the wild and are absolutely amazing. People will be coming from all around the world. There is also the opportunity for Aboriginal-led tourism, with specific reserves for the Gumbaynggirr people.

Being on country with some of the Gumbaynggirr Elders, it is absolutely amazing to hear some of the stories they tell about their interactions with the Dunghutti people, their oral histories remembering Captain Cook going past, gliding up Smoky Cape—"Off you go, Captain Cook. We know what you're about"—and their stories of the history of colonisation. White fellas got up into that country only in the 1860s. We have had a massive impact there. Photos of Bellingen and Dorrigo in the 1920s show that not a stick was left there. They absolutely denuded the place for forestry, dairying and cattle. There were no trees left. What is there now is almost entirely regeneration and recovery, and the stewardship of many generations. I finish with the words of Sir David Attenborough, who said, "Surely we have a responsibility to leave for future generations a planet that is healthy and inhabitable by all species."

That is what the creation of this park does. It delivers intergenerational equity, an ecological asset for all time, protected by legislation and welcomed by the vast majority of people. There is no campaign on the ground in Bellingen to overturn this. The businesses know that tourism is the future. They know that having clean water, a healthy environment and those thriving ecosystems are the reasons people live there. That is what they want protected, and that is what this bill does. I commend the Government for the work it has done, including the Minister for Primary Industries, the Hon. Tara Moriarty. It has been a full team effort to bring the community along to build the social licence for what will be one of the most fantastic parks in Australia. I commend the bill to the House.

Ms CATE FAEHRMANN (19:46): I speak in debate on and wholeheartedly support the National Park Estate (Great Koala National Park Reservations) Bill 2026. I begin by honouring the contribution of my wonderful colleague Ms Sue Higginson—her longstanding advocacy for forests, for nature, and working and campaigning with all the wonderful Northern Rivers, Mid North Coast, Coffs Harbour and Bellingen forest folk over so many years. It is truly incredible that we are finally here after so much effort and attention. Hundreds of really dedicated people have worked incredibly hard, and thousands of people have been passionate about protecting the koala and

have worked tirelessly for many years. Groups of hundreds have spent hundreds of hours, if not thousands or tens of thousands of hours—I point to Dailan Pugh in the President's gallery—raising awareness about the plight of the koala, which is representative of their habitat, the forests.

I know something of how hard the work has been: the strategy meetings; the full-day workshops; the full-day meetings where campaigners came together, so frustrated about the ongoing logging and destruction of forests, to come up with tactics and lobbying strategies and ways to get the message into the media; and the desperation that comes from witnessing so much destruction over so many decades. Tonight I think about how much effort and frustration it has taken to get to this point. People talk about blood, sweat and tears. There really have been a lot of tears involved—tears when standing in forests and seeing such beautiful nature that we know is koala habitat being destroyed. After campaigning and campaigning, I remember quite a few discussions about whether anything would be left.

The first time I was in Parliament, from 2010 to 2013, I had the environment portfolio. We campaigned hard to protect forests, end broadscale land clearing and stop development in the habitats of threatened species. At that time we did not have a dedicated koala focus. When I came back to Parliament in 2018, along with the environment portfolio there was a dedicated koala portfolio. That was a result of the dedicated koala habitat protection campaign that Ms Sue Higginson outlined in wonderful detail. Dawn Walker, a former colleague, held that portfolio for The Greens because of her work on the Northern Rivers.

After the 2019 State election I was elected chair of Portfolio Committee No. 7 – Planning and Environment. I had a discussion with my team that led to the first inquiry that committee ran, which was about koalas and the protection of their habitat. I had a moment where I thought, "Oh, my God, of course that is what we need to do. If we just talk about forests, I don't think we're going to get far. But everybody loves koalas, right?" We were protecting forests for the beautiful wildlife, but so many people could not see the forest for the trees. Many people do not get the beauty and the integrity of nature. Australians who are not really into nature need help to understand, and that is what we did with the koala inquiry. Before then, the movement made the very strategic decision to say, "This is what's at stake; this is why we need to protect the forests. This is just one creature that we will protect." The koala was the only one that would turn hearts and minds for us, so I thank our gorgeous koalas for being so adorable.

Koalas were in a lot of trouble when we got the inquiry underway. Matt Kean was the Coalition environment Minister, and he talked a lot about the need to save koalas and put a lot of money into the Koala Strategy. The NSW Chief Scientist and Engineer's report in 2016 found that to maintain koala viability, large areas of connected habitat were needed, but that did not lead to the former Coalition Government doing anything at all to protect that habitat. Of course, we know what an impossible task that would have been with The Nationals as the junior Coalition partner. For the record, the Hon. Wes Fang is nodding furiously. On 20 June 2019 we launched the koala populations and habitat in New South Wales inquiry. It was the start of the bushfire season that year. At least 5,000 koalas were estimated to be lost in those fires—potentially more. We all remember those images: the woman who used the shirt off her back to rescue a poor burnt koala from an active fireground and a firefighter giving a stressed koala a drink of water from a water bottle. It was heartbreaking, and it put the focus on the nation's koalas like never before.

The committee did a wonderful job. The community was incredible. They were really into that inquiry and saw it as the vehicle to hopefully give voice to the Great Koala National Park proposal, among others. The committee found that without urgent government intervention to protect habitats and address all other threats, the koala would become extinct in New South Wales before 2050. I acknowledge the efforts of the current Minister for the Environment, who was on that committee with me and former Liberal member the Hon. Catherine Cusack. We all worked extremely well together. The final report got us to a very good place. One of the recommendations from that report—recommendation 41—was that the Government investigate the establishment of the Great Koala National Park. Obviously, every member who knows the committee process will realise that recommendation was a compromise. It was probably drafted without the word "investigate" in there, but that is what we got. That report was handed down more than six years ago, now.

In the last term of Parliament, as Ms Sue Higginson mentioned, we introduced a bill to create the Great Koala National Park. The Coalition and the Labor Party voted that bill down. At that time, in 2022, the koala was listed as endangered at both State and Federal levels. Some 7,185 hectares of the proposed Great Koala National Park was logged in the 21 months following the Minns Government coming to power, according to data by the good folk at the North East Forest Alliance. A moratorium on logging within the proposed boundaries of the park was finally announced in September 2025. We have two weeks of Parliament left in the year and we are probably sitting until midnight tomorrow. I wish we had done this in 2023 or 2024, so those parks could have been protected for a couple of years by now and some of the thousands of hectares would not have been logged.

However, this is a very positive bill. I put on record some of the wonderful actions that have taken place to protect koalas over the years. The community loves koalas so much that I could barely believe it during the committee inquiry. Members will remember the koala wars and what we called the koala killing bill—the koala State environmental planning policy that the Coalition Government wanted to introduce in the previous Parliament. It nearly brought down the Coalition. Barilaro called koalas "tree rats". Catherine Cusack got 11,000 emails urging her to cross the floor, which she did. Those emails were from a lot of people in her area on the Northern Rivers and the Mid North Coast, as well as people from other parts of the country and even internationally.

I should probably give a shout-out to some of those people, who really love their koalas, because I am sure they are watching. During COVID, we held a Save Our Koalas national day of action. People turned out all over the State in their masks and held socially distanced events in parks. They held up placards all across the State about saving the koala. We thought we might get only a few people participating—"Who are all these people?" I think koalas are cute, but I love that people are obsessed. We have created protected habitats and protected areas of nature via those beautiful animals, so I thank the koalas for being so cute.

Wonderful local environment groups like the North East Forest Alliance, Bellingen Environment Centre, Nambucca Valley Conservation Association, Forest Ecology Alliance, Knitting Nannas and others have regularly held events outside the offices of local members and of Forestry. It has been such a hard slog to get the attention of mainstream and local media. That does not come from nowhere; it comes from everybody's deep value of and love for nature and koalas. It is very heartwarming to be here because of their efforts.

I mentioned the efforts of local environmental and conservation organisations, and everybody knows and has talked about what the bill does. But, as my colleague Ms Sue Higginson has said, it is a pity that Labor had to create the park off the back of carbon credits. It should not have been that way. It is the first time a national park had to be created with carbon credits. The park was at risk without a carbon credit scheme. Our wonderful and diverse environmental movement is still healing from the impact of having that held over its head. I echo the contribution of Ms Sue Higginson that it has been a very frustrating and challenging moment for the movement. But now the bill is passing. We are protecting those wonderful forests for koalas, nature and the community. I acknowledge the hurt that a lot of people have felt about the decision to require a carbon credit scheme for the national park. We continue to fight for the forests together, but things should not have been that way.

I also acknowledge that a lot of people are still fighting for the protection of forests. The campaigners are out trying to protect forests right now. Ms Sue Higginson spoke about the Forest Bridge proposal, Pine Creek State Forest and Tuckers Knob. I visited the Pine Creek forest with the Friends of Pine Creek, John Pile and all the wonderful people who have spent their lives protecting their forests. Yes, Pine Creek forest may not be a particular classification of forest, but it certainly has ecological values and ecological integrity, and provides vital koala habitat. I thank the campaigners who are planning to go to protect the sacred country of the Gumbaynggirr people there.

I wish we could say that all those wonderful, beautiful areas with big, gorgeous trees were also protected. We will not stop campaigning and working with the community until they are. It is also important to remember, as Ms Sue Higginson and other members have also mentioned, the campaign for the beautiful forests in the proposed Great Southern Forest Park, which are the habitat of the greater glider, platypus and other animals. We will not stop until those absolutely wonderful forests are also protected.

We know that the campaign to protect koala habitat goes further. The koala inquiry did not just talk about a Great Koala National Park; it talked about the need to protect habitat wherever koalas exist, particularly where there are important populations. I cannot fail to mention the decimation of the population of koalas on the roads in Campbelltown in Sydney's south-west. Slaughter would be a better word for it. As I have spoken about a lot in this place, koala habitat has been completely cleared for housing development. Because of the feud between developers and the Government over who will build a wildlife crossing or six, not enough area has been protected. For goodness sake, it is not that hard to protect that population of koalas.

There have been coalmine expansions every other week. The planning department is signing off on a plan to expand coalmines that destroy koala habitat. In fact, in 2025 there was a report released by a range of NGOs, including Mudgee District Environment Group, Nature Conservation Council and Lock the Gate, called *Koalas or Coal Mines*. It identified 24 proposed coalmines that will clear important koala habitat, resulting in a combined loss of 400 hectares of koala habitat. That includes coalmine expansions such as Yancoal's proposed Moolarben OC3 expansion near Mudgee. That alone will impact on 113 hectares of koala habitat. The Minister's own Environment and Heritage Group said the expansion:

> … threatens koala habitat that is "critical to the survival of the species" and "would significantly contribute" to four other animal species and one critically endangered ecological community becoming extinct in NSW.

We know we are on a losing ticket with coalmines and coalmine expansions under this Government. I will keep it positive: Yay for the Great Koala National Park! We are here with a very good news story from this Labor Government. I acknowledge the efforts by the Minister for the Environment, who has put in incredibly hard work to get us here today. It is also great that the Opposition has acknowledged all the hard work of The Greens in getting us here today because, listening to the Opposition, this is all our doing. I thank Dailan Pugh of North East Forest Alliance for all his incredible work. He is in the gallery today. I also acknowledge Susie Russell, Paula Flack, Ashley Love, Deanna Markovina and our wonderful Bellingen crew. I thank former CEO of the National Parks Association, Kevin Evans, for his amazing work. I commend the bill to the House.

Ms ABIGAIL BOYD (20:06): I contribute to debate on the National Park Estate (Great Koala National Park Reservations) Bill 2026. Firstly, I echo the thanks and appreciation already so ably conferred by my colleagues Ms Sue Higginson and Ms Cate Faehrmann—both of whom have had a long history with the campaign for this Great Koala National Park—to all of the countless climate, ecology and forest campaigners, both within and outside Parliament, who have advocated and fought over decades for the formation of a Great Koala National Park. As my colleague alluded to just now, for some of us, including me, this is a truly bittersweet moment.

When the bill is passed later today—or perhaps some time tomorrow—it will be a moment for celebration, but for me it will also be a time of grieving. I grieve for the forest destruction that has been allowed to occur in the time that people have been calling for this action. I grieve for the forest destruction that has occurred since Labor, in opposition, joined The Greens in adopting as its policy the declaration of the Great Koala National Park. I grieve for the forest destruction that has occurred and escalated every single day since this Government came to power, dangling the declaration over the heads of communities and activists desperate and distraught at the ecological devastation being perpetrated before their eyes. That it took until today, with only four days of Government business remaining for this entire parliamentary term, for the bill to even arrive in this Chamber is a damning indictment on the Minns Labor Government and its Ministers.

I also grieve for the people and animals of this planet, both current and future generations, who will pay the cruel price of the climate vandalism being perpetrated by this Government. It has added to its sad and sorry rap sheet of a litany of climate-destroying decisions by making the park contingent on the Government's ability to create and sell carbon credits to polluting industries, based on the utterly falsified and unmeritorious claim that the reservation represents genuine additional avoided deforestation. NSW Labor first promised to establish the Great Koala National Park in 2015 and promised to do so again in early 2023. That election promise was not contingent on the registration of a carbon offsets project. Subsequent policy announcements by the Minns Labor Government in late 2023 likewise did not indicate any such contingency.

That all started to change, however, once Labor came to power and started work on developing what is now called the improved native forest management method, a carbon crediting methodology that was ultimately adopted by the Commonwealth Government under its Australia Carbon Credit Unit Scheme in June this year. That methodology is profoundly and fundamentally flawed and will only serve as a net negative when it comes to action on climate change. First, the method will allow abatement projects, like the Great Koala National Park, that are not genuinely additional to what would have occurred in the ordinary course of events. The method substitutes the two relevant default additionality requirements under the Act with a new additionality requirement and simultaneously exempts States from the new requirement in circumstances that are tailored precisely to the New South Wales Great Koala National Park. As the *Koalas for Coal* working paper so aptly states:

> The regulatory reverse-engineering entailed in this exemption makes a mockery of the additionality criterion, which is foundational to any attempt to demonstrate carbon credit integrity …

Regulatory reverse engineering is quite simply par for the course with Labor governments, perhaps most recently and devastatingly encapsulated by the Minns Labor Government's plans to directly overwrite the ruling of a landmark High Court decision and write bespoke legislation permitting the Mount Pleasant coalmine to increase its coal production by 32 per cent. Premier Chris Minns has been clear that his intention and that of the Government is to go against the ruling of the High Court and authorise MACH Energy to increase the annual coal output at its Mount Pleasant coalmine by four megatonnes to 16.5 megatonnes per year until 2032. These are the climate credentials of this reckless, feckless and hopelessly captured Labor Government. Like government, like carbon credit methodology, they are entirely without credibility or integrity when it comes to the urgent action required to do our part to prevent the most catastrophic impacts of climate change.

This week the United Nations Environment Programme announced that the world needs to cut carbon emissions by nearly one-fifth in the next four years and by close to half within a decade to avoid overshooting climate targets by a disastrous margin. Although the window has closed on holding temperature rises to 1.5 degrees Celsius, in line with scientific advice, limiting the overshoot of that target is still possible, according to the latest United Nations report. But that would require cutting greenhouse gases by 18 per cent by 2030 and by 45 per cent by 2035 to yield a good chance of limiting temperature rises to 1.7 degrees Celsius above

pre-industrial levels. That would still allow events such as the record heatwaves and climate devastation and disasters of the last few months to become frequent and common but could help prevent them from getting drastically worse.

The executive director of the United Nations Environment Programme, Inger Andersen, has condemned governments such as this one and the ones that preceded it for their failure to act despite being warned for years that time was running out. She said that the United Nations used to say there was still an opportunity if the world made a herculean effort to stay within the 1.5 degrees Celsius limit. She also stated:

> It's now clear the herculean effort was not made. We procrastinated, and now we are saying this window has closed.

Nevertheless, she has urged countries to keep the 1.5 degrees Celsius goal—the centrepiece of the Paris climate agreement—stating:

> We can make the overshoot as brief and as short as possible. It's not time to throw in the towel and give up. This is about how to find our way back, as shortly and quickly as possible.

Allowing the carbon stored temporarily in the trees supporting the existence of our precious koala population to be monetised through the creation of carbon offsets that will make it easier for heavy climate polluters to cause more of the climate pollution that is burning down those same trees and devastating ecological communities is not finding our way back. It is an active choice to forge deeper into a terrifyingly dangerous and unpredictable climate future. A carbon credit is supposed to represent the equivalent of one tonne of avoided carbon dioxide equivalent that would otherwise have been released into the atmosphere. If carbon credits are generated from the Great Koala National Park, it is estimated it will create about 3.7 million carbon credits. Once sold, they will allow 3.7 million tonnes of carbon dioxide to be released into the atmosphere while purporting to be carbon neutral. That is a farce.

For the Labor Government to make the protection of the park contingent on that level of climate destruction is unconscionable, and it sets a terrible precedent. Why would any government beset with the same rotten neoliberal ideological mindset as this one elect to do any other climate mitigation measure at all unless and until it can identify a method, or create a new one, that will enable it to generate financially valuable carbon credits via the Federal Government's Australian carbon credit units scheme? The commodification of nature will be utterly complete, and, with it, its death sentence surely written. Neoliberal economic ideology that seeks to commodify nature is at the root of that destruction and harm. Let the uprisings in France be a warning to this Government and all who seek to form government. Student protests over education underfunding and racialisation soon developed into a national mobilisation on 6 October, involving half a million students, teachers, parents and trade unions taking to the streets in protest against the French Government's campaign of austerity and repression.

A key complaint of the student protest was excessively high temperatures in classrooms, which exceeded 40 degrees Celsius with no air conditioning or adequate ventilation during the 2026 European heatwaves that were turbocharged by climate change. Professional firefighters joined the national protests in large numbers, saying that a lack of firefighting resources was laid bare during the summer's huge wildfires. Years of funding cuts have left schools crumbling, but those exceptional temperatures provided the spark. The demand for more school funding is also a demand for climate adaptation. The national mobilisation that has risen up is a rejection of the deeply flawed and failing leadership of neoliberalism's final boss, French President Emmanuel Macron.

Terrifyingly, but in keeping with historical precedent, the failures of economic liberalism breed fascism, providing legitimacy to capitalist dictatorship and the unbridled power of capital. In France, fascist candidate Marine Le Pen threatens to win the upcoming presidential elections. That prospect should serve as a dire warning to the Labor Government, which is pursuing a similarly flawed, austerity-ridden neoliberal agenda, with right-wing reactionaries breathing down its neck. It is the wrong way. Go back. The people demand climate and economic justice. They demand ecological restoration and care, and a rejection of the dehumanisation of capitalist excess. I say this in good faith and in the hope of a better outcome and a better future: It is not too late to sever the link between the Great Koala National Park and the carbon credit unit production industry.

I rejoice in the creation of the Great Koala National Park. I am in awe of and eternal gratitude to the brave environmental and forest defenders who have dedicated their lives, sweat and passion towards its creation. I take immense pride in being a very small part of that movement of people who have taken the beautiful idea of nature preservation forward from imagination to what will soon be reality. I am endlessly inspired by the ability of people to come together in selfless defence of nature and one another to organise for and deliver real change in this world. There is truly no greater force on earth than the collective will of good people working together in common cause. Here is to many more victories for the people. I proudly join my colleagues in supporting the bill.

The Hon. WES FANG (20:16): I contribute to debate on the National Park Estate (Great Koala National Park Reservations) Bill 2026. I acknowledge the contribution of Ms Abigail Boyd, who eloquently approached the issue of carbon credits. Let us be honest, the first thing I say about the bill and the park is that they have

nothing to do with koalas. That is pretty clear, despite the name, because the 4 per cent of koalas who are in the park that exists at the moment will not magically fill the 170,000-plus hectares of land that will be swallowed up and locked away by that koala sanctuary, which it effectively is under the legislation. The park is not about koalas, but it is also built on a lie. A number of members have spoken about that today. The Great Koala National Park exists because the State Government has provided that name. It has effectively gone to the Federal Government and sought—

Ms Cate Faehrmann: No, it was the National Parks Association.

The Hon. WES FANG: I listened to members' contributions to debate in silence. If Ms Cate Faehrmann wishes to contribute, she may do so in the Committee stage. The Great Koala National Park is that in name only. It is really a carbon credit Ponzi scheme that will fall down at some point in future. Ms Abigail Boyd was quite accurate in her assessment of the way the scheme was developed. Those carbon credits did not exist before the Minister decided she was going to create a way to fund the park. Effectively, the Government is doing so by saying, "We're not cutting down these trees. Therefore, there's additionality." That is not the case. Even members of The Greens acknowledge that is not the case.

I know that there was an internal war at the Federal level about the way this process was being examined and legislated because—let's be honest—if the goal of carbon credits is to reduce carbon emissions, that is not going to happen with this scheme. These carbon credits are being created out of nothing. If that is the case—and it is—it shows that the whole issue of carbon credits and the net zero scheme in Australia is built on a lie. We are not cutting carbon emissions by selling those credits. That just does not happen. Members who support this legislation can lie to themselves that these carbon credits are real and that selling them will make a difference to the environment, but they know it is a lie. It is a lie because those carbon credits did not exist beforehand. The Government created a new scheme that does not really exist, and the contributions to this second reading debate have demonstrated that.

That is the problem with a lot of this stuff. The Government says, "This is a carbon credit," but is it really? I would suggest that it is not. Even members of The Greens, who want to see another national park, acknowledge that the way the Government has gone about this is a lie. That cannot be escaped. The scheme is further demonstrated to be based on a lie when the Government says it will not sell those carbon credits to industries involved with fossil fuel. It will only sell the carbon credits to certain industries. That is not how a carbon credit scheme works. If the carbon credits were genuine, they would go into the market. The whole idea of a market is that carbon credits can be purchased. When the Government artificially creates a circumstance where only certain industries can purchase those credits, it has effectively admitted that the whole thing is a lie.

Given that we know this is a lie and the whole carbon credit scheme has been cooked up to try to generate enough money to fund the national park, why are we doing it? It would seem to hark back to election commitments that were made. I accept that. I am not desensitised to the politics of this. Some members of this House, particularly The Greens, are ecstatic about the bill because they have been campaigning for that national park for quite a while. Fair play to them. They have been consistent, at least, in advocating for and seeking to encourage this national park to be declared. Linking it to koalas was a clever strategy. Fair play to whoever decided to link this national park to koalas.

But it is not really about koalas. It is about shutting down native timber forestry in New South Wales. Labor did it in Victoria but went down a different path, just saying, "We are no longer going to have native forestry in Victoria." Labor is trying something different here, calling it the Great Koala National Park. Somehow that will save the koalas, even though the science indicates that that is completely absurd. Following the science, I think Brad Law said that koala numbers in forestry areas tend to do better because they prefer smaller trees with fresh growth. They survive well in those areas because they are well maintained, normally free of pests and weeds and all of those issues that create a risk for koalas, and ultimately the maintenance of roads and fire equipment means that the areas tend to be more protected from fire. The Hon. Jeremy Buckingham shot himself in the foot when he said that the wetter areas are much better in the Great Koala National Park because there are species other than eucalyptus. I thought the whole point of having the Great Koala National Park was to protect eucalyptus species because that is what koalas eat. I do not know what he was smoking there. One can only suggest.

We have heard from members in this place today that this park will be great because it will protect koalas and be a great tourist attraction and that all these wonderful things will come out of locking up all of this land. But, bar one or two members—such as Ms Sue Higginson, who comes from around that area, and the Hon. Jeremy Buckingham, who suggests that he does as well, although there may be some question about that—all of the people who are looking to shut down this area live in Sydney. People in rural and regional New South Wales are sick to death of people from Sydney telling them how to live.

There is absolute disgust from regional people because, every time people in Sydney want to make a change, it impacts us. It is not industry in Sydney they are shutting down. It is not in industry in Sydney where we see job losses. We do not build the transmission lines and the solar and wind farms in Sydney. We are not shutting down industry here in Sydney. It is always in rural and regional New South Wales. I hear the laughing from members of the Labor Party. I note that most of them live in Sydney. All of them are laughing at those rural and regional people as I am telling them that this is an issue. The Hon. Anthony D'Adam loves to laugh at it. He is having a great old laugh at those people who have lost their jobs in the forestry industry.

The Hon. Anthony D'Adam: I'm laughing at you because you live in Sydney, LARPing as a rural MP.

The Hon. WES FANG: You pretended to be somebody who fought for workers, mate.

The Hon. Mark Banasiak: Point of order—

The Hon. PETER PRIMROSE: Order! I will hear the point of order.

The Hon. Mark Banasiak: There is far too much chatter in the House. There seems to be a toing and froing. The Hon. Wes Fang is directing his comments to the Hon. Anthony D'Adam rather than through the Chair and the Hon. Anthony D'Adam is responding to those comments. It is a shemozzle.

The ASSISTANT PRESIDENT (The Hon. Peter Primrose): I uphold the point of order. We have had a well-organised debate so far. I remind members to direct their comments through the Chair. Members will be respectful and allow the Hon. Wes Fang to be heard in silence.

The Hon. WES FANG: I struggle with the idea that it is the Labor Party that has shut down the forestry industry. It was supposed to be the party of the worker, but now it is the party of the activist and the greenie. That is a shame. Now it is the National Party that represents timber and forestry workers. We represent those people who have lost their jobs. We are the party they talk to because they could not get an audience with the Minister. I do not know how many times I met with forestry workers in Parliament who said they could not get a meeting with Minister Sharpe. She would not meet with them.

We have to ask ourselves, what sort of Minister does not meet with workers from the industry that will be impacted and shut down through legislation? What sort of Minister would do that? What sort of Labor Minister would not meet with the industry she is going to shut down? That is a disgrace. It goes to show how far Labor is from its mandate. It has moved away from being the party of the workers towards being the party of the activist. We need only to look at the Hon. Anthony D'Adam on that side of the House to work out exactly what the party's priorities are.

Rural and regional communities deserve to have good jobs that, at the end of the day, make them feel proud. They deserve jobs that for a hard day's work give them a fair day's pay. That used to be the Labor Party's mantra. But now we are supposed to tell those forestry workers that they can go and be baristas, Uber drivers and tour guides. What are they going to do? How many more industries do we need to shut down in New South Wales? Manufacturing has already gone by the wayside. Jobs that are reliant on affordable energy, reasonable housing and that require workers to be involved in and engaged with machinery, like forestry, are all going by the wayside. Somehow this Labor Government thinks we can just give those workers jobs in cafes. That was until we forced re-usable cups on cafes, which we did earlier today.

I have already explained to the House that locking up land in a national park is not always the best way to manage it. During the 2020 bushfires in my area, I saw firsthand when the Kosciuszko National Park burned, it burned big and hard. It was the case that a number of the animals that resided in that national park were lost. Unfortunately, perhaps that is the future of this national park, because we know that when land is locked up and we allow National Parks to manage it instead of Forestry, pests and weeds are not managed and there are worse outcomes when there are bushfires. That has been demonstrated time and again. I suspect history may show the suggestions that this park is going to protect koalas to be incorrect.

The final thing I will touch on in the minute or so that I have left—unfortunately, we only get 20 minutes in the second reading debate—is that there are separate positions on this bill in the Coalition. The National Party has continually stood up for and represented forestry workers. Unfortunately, The Nationals will be separating from our Liberal Party colleagues on this bill, and I know that there are certain Liberal Party colleagues of mine who are disappointed that is the case. I acknowledge that I am not sure everybody in the Liberal Party is as steadfastly locked behind that decision as perhaps the vote will indicate. There is one person in particular who I single out: Mark Speakman. I may not be long for this place, Mr Assistant President, and I may or may not have a number of legacies. But the shortness of the Hon. Mark Speakman's leadership of the Opposition is one legacy I will claim. Noting his comments in debate on this bill in the other place, the fact he was happy to throw forestry

workers under the bus and that he did so as a sopping wet left Liberal, I am glad that he is gone from the leadership. I conclude my remarks there.

The ASSISTANT PRESIDENT (The Hon. Peter Primrose): I welcome to the President's gallery Mr Johnson Hsiung, president of the World Taiwanese Chamber of Commerce, his executive team and Jordan Lane, MP. They are guests of the Hon. Natalie Ward. They are very welcome to Parliament.

The Hon. MARK BANASIAK (20:37): Mr Assistant President, I wish to speak to the amendments moved during debate.

The ASSISTANT PRESIDENT (The Hon. Peter Primrose): Having consulted the Clerk, under the standing orders you can speak on another amendment at this point of the debate but not the amendment you moved.

The Hon. MARK BANASIAK: I briefly speak to the amendment moved by my colleague the Hon. Robert Borsak, which seeks to refer the bill to an inquiry. It is wise that we do so, given the concerns that have been raised in this debate thus far, particularly around the carbon credit accounting scheme. Those matters are unresolved and are causing angst amongst a wide selection of members of this House, including those from The Greens. In her contribution to debate Ms Cate Faehrmann talked about how that has torn apart both her party and a lot of the environmental organisations. That is disappointing, I guess, from their perspective. From the outside looking in, it seems that environmental organisations are always quite united in their causes. To hear that they have been torn apart by this Government's decision is, I think, worth exploring in the inquiry. More importantly, it is worth exploring and getting more details about how the carbon credit accounting scheme is actually supposed to work in the delivery of the park, and to really test the Government's theories and accounting standards. With those brief words, I throw my full support behind the amendment to refer the bill to an inquiry.

Ms SUE HIGGINSON (20:40): The Greens vehemently oppose the amendment to send the bill to a committee for inquiry. I remind the Hon. Mark Banasiak that, during the selection of bills process, we tried all those sorts of things and none of it came about. That involved the whole crossbench and representatives from both sides of Parliament. At this point it is a ridiculous ploy to suggest that the bill should now be referred to an inquiry. I remind the Hon. Mark Banasiak that the Selection of Bills Committee has a very democratic process. Every part of the crossbench has a representative there, as does the Opposition and the Government. We were all there, and we voted not to send the bill to a committee.

The member also made a very poor attempt to suggest that he is acting on behalf of The Greens and our movement because we are torn. The contribution of my colleague Ms Cate Faehrmann was that we are well and truly a recovering movement. The reality is that the Improved Native Forest Management [INFM] method has been done. Not only was the INFM done, but this project was submitted and approved. There is nothing relevant now for this House to explore. The carbon credit scheme and the Great Koala National Park project have been submitted to the Commonwealth under the Commonwealth scheme. It is done and dusted. This is not even an attempt at being opportunistic. Let us be honest: It is just a massive waste of time. Some members want to pass this bill in good faith. The numbers are on the side of the Government. The amendment is just in bad faith. It is unfair. It is more than a waste of people's time. I ask members to please cease and desist, and let the House do its business.

The Hon. SARAH MITCHELL (20:42): I speak on behalf of The Nationals on the two amendments moved during the course of debate, if I am able to do that now. I think I can speak to both.

The ASSISTANT PRESIDENT (The Hon. Peter Primrose): For the information of members, if a member contributed to debate before the amendments were moved, as the Hon. Sarah Mitchell did, they may speak a second time on the amendments. Other members spoke in debate after the amendments were moved and therefore cannot speak a second time.

The Hon. SARAH MITCHELL: Thank you for that clarification, Mr Assistant President. I place on record the views of The Nationals in relation to both amendments. One amendment was moved by the Hon. Mark Banasiak and one by the Hon. Robert Borsak. The Nationals will support both amendments. The first amendment, moved by the Hon. Mark Banasiak, basically punts the bill into the never-never. I do not know the parliamentary term but that is probably how I would describe it, in very ineloquent terms. The Nationals are very opposed to the bill. We do not want it to pass. As I said in my contribution to the second reading debate—and I will not reiterate those remarks—we are concerned about the impact on the local community and the timber industry in particular. We would, of course, support any motion that stops this bill from passing.

The second amendment, to refer the bill to a committee—after the first amendment presumably fails, because I can count the numbers—also presents a good opportunity. I was not going to engage with what Ms Sue Higginson said, and I do not mean that in a disrespectful way, but members in this place have been told to cease

and desist. This Parliament actually does good work with committees. Ms Sue Higginson is entitled to have her view, and I speak from my perspective. I listened to the contributions even after I spoke, and I have had my own engagement with people on the ground who are in the industry.

As the Hon. Wes Fang said in his contribution to the second reading debate, people from the timber industry and their families have wanted to meet with the Government to understand this better. They have not been happy with the packages. We have asked so many questions about it in the House throughout the course of this year. Those people do not get to stand in front of Government Ministers and members and put their case. We have to do that on their behalf. If everything the Government says stacks up, that will come to light in a committee inquiry into the bill. An inquiry would also give people in our communities a voice on how the bill impacts them. They have not had that chance.

The one way that they have been able to give some sort of indication of what they think of the bill is through their vote at elections. When Labor took this proposal as an election commitment to the last election, not one Labor MP was put in up there. Who did those communities put in place in those electorates? They put in National Party MPs in Coffs Harbour, Clarence, Oxley and Myall Lakes. The people who are directly impacted by the park would have voted for Labor if they wanted it, but they did not. A committee inquiry would give them a chance to have their voices heard. The Parliament does some of its best work when it hears directly from the people who will be impacted by the legislation we are about to pass. The Nats absolutely support the referral of the bill to a committee if that opportunity arises through a vote of this House.

The Hon. JACQUI MUNRO (20:45): On behalf of the Liberal Party, I indicate that we do not support the amendment moved by the Hon. Mark Banasiak, nor the amendment moved by the Hon. Robert Borsak. I acknowledge that the members may wish to utilise any mechanism available in this House to delay the bill. The Liberal Party would like to see the bill passed, although during the Committee stage we will move amendments that we think will improve it. Fundamentally, as the Hon. Sarah Mitchell said, this is a numbers matter and the bill will be passed. The Liberal Party made a commitment, and we want to see it through. Therefore, we do not support any delay, whether by way of committee referral or otherwise.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (20:46): In reply: I thank all members for their contributions to debate on the National Park Estate (Great Koala National Park Reservations) Bill 2026. The bill establishes the legislative framework for the creation of the Great Koala National Park [GKNP] in north-eastern New South Wales. It has been decades in the making. Premier Wran and the Labor Government protected the rainforests of the north-east—some of which will become part of the GKNP—working in partnership with those who campaigned for them for a long time.

The environmental vision of the Labor Government under Premier Bob Carr led to record-breaking creation of national parks across the State. Again, they worked closely with those who sought to protect nature, and they found a way to do so. With today's bill, the Minns Government now joins that important legacy. The debate contained a lot of discussion about the Improved Native Forest Management [INFM] carbon project. I am thrilled that we found a way to support forests and value them for their carbon, water and biodiversity, rather than extracting from them.

Creating the Great Koala National Park is one of the most important things we can do to save koalas in New South Wales. It is about protecting the places where koalas live. They cannot survive without the trees to support them. It is also about creating an area that people can explore and enjoy for generations, where they can walk through the trees, camp with their family, ride their bikes, take holidays and just spend time in nature. The importance of the park cannot be understated. It will protect is one of the most environmentally and culturally significant landscapes in Australia. The park will connect existing reserves to create a vast protected area of over 475,000 hectares, the second largest in New South Wales after Kosciuszko. It represents a new era of landscape-scale conservation in New South Wales. Protecting large areas of land means wildlife has room to move, breed and grow in strength and genetic diversity. With a changing climate and more compounding threats than ever before, our precious wildlife needs large and interconnected protected areas to survive and thrive for generations to come.

The park paves a new way for Aboriginal leadership and management in New South Wales. For the first time, a whole-of-country approach will be taken across this vast landscape, supported by the creation of eight Aboriginal ranger positions within Aboriginal community controlled organisations, which is a first for the State. The Great Koala National Park has been a dream for more than a decade, and today—or maybe tomorrow—it will become a reality. I ask for the indulgence of the House while I pay tribute to some of the hundreds of people who have worked towards this moment for many years. I apologise in advance to anyone that I miss.

I acknowledge Uncle John Kelly, Auntie Jennie Rosser and all of the Gumbaynggirr and Dunghutti people who have advocated for the park, been a part of the Aboriginal advisory panel and generously shared their cultural knowledge, including Amie Jacky, Angela Brown, Cathy Thomas, Cheryl Brown, Ciaron Dunn, Darren Skinner, Dean Kelly, Narelle Wilson, Michele Donovan, Michael Donovan, Milly Webb, Shirley Duroux, Tony Perkins and many more. I acknowledge the original work of Ashley Love, who worked closely with the former leader of the Labor Party Luke Foley and staff from his office, including Felicity Wade. They put forward a network of State forests that they thought should be considered for the creation of the Great Koala National Park, and their work led to Labor's original commitment to move forward with the project.

I acknowledge the team from the National Parks Association, including Gary Dunnett, Liz Jeremy, Danielle Ryan and Grahame Douglas. Gary had his last day at the National Parks Association last week, after decades of work. I hope that he feels some satisfaction when the bill is passed tonight. I thank staff from the Nature Conservation Council, particularly Jacqui Mumford and Clancy Barnard. I thank Lyndon Schneiders, Warrick Jordan, Wilson Harris, Skye Laris and the tenacious Ken Henry from the Australian Climate and Biodiversity Foundation. I thank the team from World Wildlife Fund for Nature Australia, including Dermot O'Gorman and Stuart Blanch. I put on record that the koalas they have been handing around look a bit weird.

I thank the passionate people from the Labor Environment Action Network. The Labor Party has some incredible people who are strong advocates for the environment, and they push us to do better all the time. In particular, I acknowledge Felicity Wade, Penny Pedersen and David Mason. I acknowledge Dailan Pugh from North East Forest Alliance. I have walked in the forests with Dailan, and I have some of his pictures. He has been a persistent nagger and an important guide and mentor to me. I acknowledge the many years he has worked to save those forests. I also acknowledge Susie Russell from the North Coast Environment Council, who never takes a backward step. I thank Susie for being willing to trust me and trust that we would eventually get there.

I acknowledge Jeff Angel from the Total Environment Centre, who was here when Wran protected the forests and is still here today. He is happy about both this bill and the plastics bill. I acknowledge Patricia Edwards from the Clarence Environment Centre, Ashley Love from the Bellingen Environment Centre and Paula Flack from the Nambucca Valley Conservation Association. I acknowledge the Labor Party members from around the Coffs and Mid North Coast regions who, I have been advised, have been watching this debate today. In particular, I acknowledge Susan Jenvey, Tony Judge, Wendy Backhous, Paul Sekfy, Bill Smith and the late June Smith, a Labor candidate who ran in the Coffs Harbour electorate and supported the creation of the Great Koala National Park. June will be missed tonight. I also thank Asren Pugh, who will hopefully be elected as a new member of this place, for all of his work on the project.

I acknowledge the Department of Climate Change, Energy, the Environment and Water and the National Parks and Wildlife Service, and I particularly thank the team at the Coffs Harbour branch. They have been on the ground building the park and working with stakeholders and Aboriginal organisations to do something quite amazing, and they have also become Australian Carbon Credit Unit Scheme policy experts. I am so glad that they are here today. This was a lot of work and, as a Minister, I am profoundly grateful to them. The work they have done is incredible. Unfortunately, because of the world we now live in, I am not able to name all of the public servants on my list. People find them online and go after them, and I will not expose them to that. I tell them that they all rock and they are all excellent. I cannot wait to join them so they can show me some more koalas.

The Government does not support the amendments of the Hon. Robert Borsak and the Hon. Mark Banasiak. It is their right to put those amendments forward, but one of the amendments basically kills the bill and the other tries to send the bill into the never-never before the election. The bill has been a long time coming. There has been a lot of consultation. The bill is carefully structured. We have listened to what people have told us. The bill is one of the largest conservation actions taken since the creation of the regional forest agreements over 25 years ago. The creation of this national park has taken a long time; it does not need to be any longer. We should pass the bill.

I understand some of the carbon credit work has been challenging, but the bill is about valuing forests for a range of different things. We should use the ability to sequester carbon. If we can find ways for polluters who are killing the planet to contribute to its care and upkeep, I am totally okay with that. This Government is okay with that. I am very grateful we have found a way to move through that. I understand the legitimate concerns around monetising nature, but we are valuing nature for what it provides to nature and our planet in a way where taxpayers do not have to pay for all of it. That does not fix all of the problems.

I correct the record. There have been some allegations and misrepresentations throughout the debate. The Government has been very clear about the way in which it will use the income from carbon credits. It will be for manufacturing industries. We have had a lot of talk about jobs over the past couple of weeks. The State is going through a rapid energy transition. That is challenging, and we want jobs to do that. The income from carbon credits is not going to fossil fuel companies. It is going to manufacturing industries and others, and that is a good thing. We will continue to do that. Finally, there are big passions and people have big feelings about the bill. At the end

of the day, when I look back on this in 20 years time, I will always remember what Neville Wran said. The greatest thing he thought he did was save the rainforests. We are going to save some koalas today. I commend the bill to the House.

The PRESIDENT: The question is that this bill be now read a second time, to which the Hon. Robert Borsak and the Hon. Mark Banasiak have moved amendments. If the Hon. Robert Borsak's amendment is agreed to, the Hon. Mark Banasiak's amendment will lapse. Members should be aware that if the Hon. Mark Banasiak's motion is agreed to, it will have the effect of disposing of the bill. The effect of that would be that the bill could not be considered again in the current session of the Parliament.

The question is that the amendment of the Hon. Robert Borsak be agreed to.

The House divided.

Ayes 8
Noes 27
Majority.....19

AYES

Banasiak	Fang (teller)	Roberts
Barrett	Mitchell (teller)	Ruddick
Borsak	Overall	

NOES

Boyd	Graham	Moriarty
Buckingham	Higginson	Munro
Buttigieg	Houssos	Murphy (teller)
Carter	Hurst	Nanva (teller)
Cohn	Jackson	Primrose
D'Adam	Kaine	Sharpe
Faehrmann	Lawrence	Suvaal
Farlow	Merton	Tudehope
Govind	Mookhey	Ward

Amendment negatived.

The PRESIDENT: We will now move to the amendment of the Hon. Mark Banasiak. If the Hon. Mark Banasiak's motion is agreed to, it will have the effect of disposing of the bill. That would mean the bill could not be considered again in this session of Parliament. The question is that the motion of the Hon. Mark Banasiak be agreed to. Is leave granted to ring the bells for one minute?

Leave granted.

The House divided.

Ayes 8
Noes 27
Majority.....19

AYES

Banasiak	Fang (teller)	Roberts
Barrett	Mitchell (teller)	Ruddick
Borsak	Overall	

NOES

Boyd	Graham	Moriarty
Buckingham	Higginson	Munro
Buttigieg	Houssos	Murphy (teller)
Carter	Hurst	Nanva (teller)
Cohn	Jackson	Primrose
D'Adam	Kaine	Sharpe
Faehrmann	Lawrence	Suvaal

NOES

Farlow	Merton	Tudehope
Govind	Mookhey	Ward

Amendment negatived.

The PRESIDENT: The question is that this bill be now read a second time. Is leave granted to ring the bells for one minute?

Leave granted.

The House divided.

Ayes 27
Noes 8
Majority.....19

AYES

Boyd	Graham	Moriarty
Buckingham	Higginson	Munro
Buttigieg	Houssos	Murphy (teller)
Carter	Hurst	Nanva (teller)
Cohn	Jackson	Primrose
D'Adam	Kaine	Sharpe
Faehrmann	Lawrence	Suvaal
Farlow	Merton	Tudehope
Govind	Mookhey	Ward

NOES

Banasiak	Fang (teller)	Roberts
Barrett	Mitchell (teller)	Ruddick
Borsak	Overall	

Motion agreed to.

In Committee

The CHAIR (The Hon. Rod Roberts): There being no objection, the Committee will deal with the bill as a whole. I have 10 sheets of amendments. I have three Greens amendments on sheet c2026-305B, three Greens amendments on sheet c2026-303C, three Greens amendments on sheet c2026-308B, three Greens amendments on sheet c2026-302B, two Greens amendments on sheet c2026-306B and four Greens amendments on sheet c2026-267D. I have 10 amendments of the Shooters, Fishers and Farmers Party on sheet c2026-313A, 100 Shooters, Fishers and Farmers Party amendments on sheet c2026-309AA, and 27 Shooters, Fishers and Farmers Party amendments on sheet c2026-309B. I have nine Opposition amendments on sheet c2026-314A. I recommend those leading the parties and those interested to obtain a running sheet, which may be of assistance. I call Ms Sue Higginson to move Greens amendments as she deems appropriate.

Ms SUE HIGGINSON (21:14): By leave: I move The Greens amendments Nos 1 to 4 on sheet c2026-267D, amendments Nos 1 and 2 on sheet c2026-306B, amendments Nos 1 to 3 on sheet c2026-302B, amendments Nos 1 to 3 on sheet c2026-308B, amendments Nos 1 to 3 on sheet c2026-303C and amendments Nos 1 to 3 on sheet c2026-305B in globo:

[c2026-267D]

No. 1 **Forest Bridge Proposal—option 1**

Page 4, clause 11(1), line 12. Omit "section 1". Insert instead "sections 1 and 8".

No. 2 **Forest Bridge Proposal—option 1**

Page 6, clause 16. Insert after line 32—

(2A) The Governor may, by order published on the NSW legislation website, amend Schedule 1 to move a description of land from Schedule 1, section 8 to Schedule 1, section 1 with appropriate descriptive details required for the table in Schedule 1, section 1.

No. 3 **Forest Bridge Proposal—option 1**

Page 37, proposed Schedule 1. Insert after line 5—

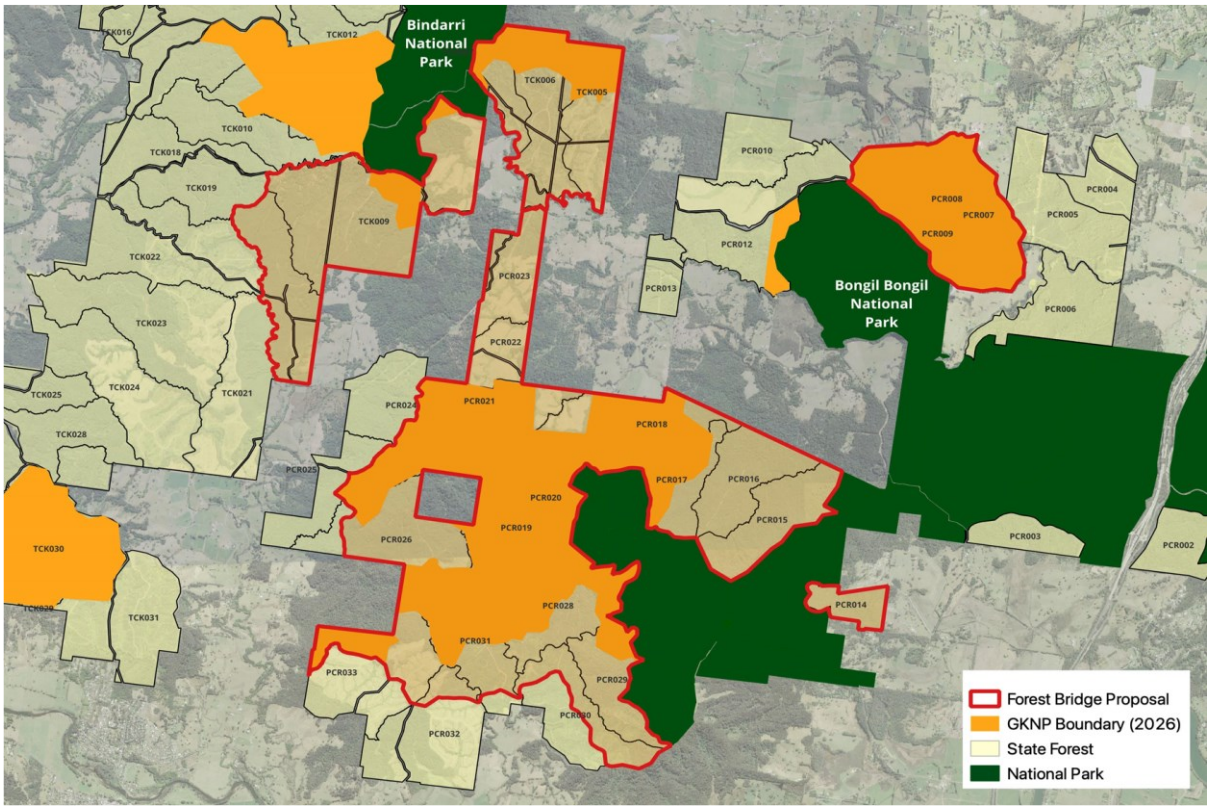
8 State forests in Forest Bridge Proposal area

State forest land within the heavy unbroken red lines on the Forest Bridge Proposal area map in Schedule 2A.

No. 4 **Forest Bridge Proposal—option 1**

Page 38. Insert after proposed Schedule 2—

Schedule 2A Forest Bridge Proposal area map



[c2026-306B]

No. 1 **Forest Bridge Proposal—option 2**

Page 15. Insert after line 32—

40A Assessment of State forests for reservation

(1) The Minister administering the *Forestry Act 2012* must ensure that no forestry operations, within the meaning of that Act, occur on designated forestry land for 36 months after the prescribed date.

(2) The NPW Minister must, within 12 months after the prescribed date, commence assessment of designated forestry land for reservation as part of the Great Koala National Park.

(3) Assessment under subsection (2) must be completed within 36 months after the prescribed date.

(4) In this section—

designated forestry land means State forests in the Forest Bridge Proposal area.

Forest Bridge Proposal area means the land within the heavy unbroken red lines on the Forest Bridge Proposal area map in Schedule 7A.

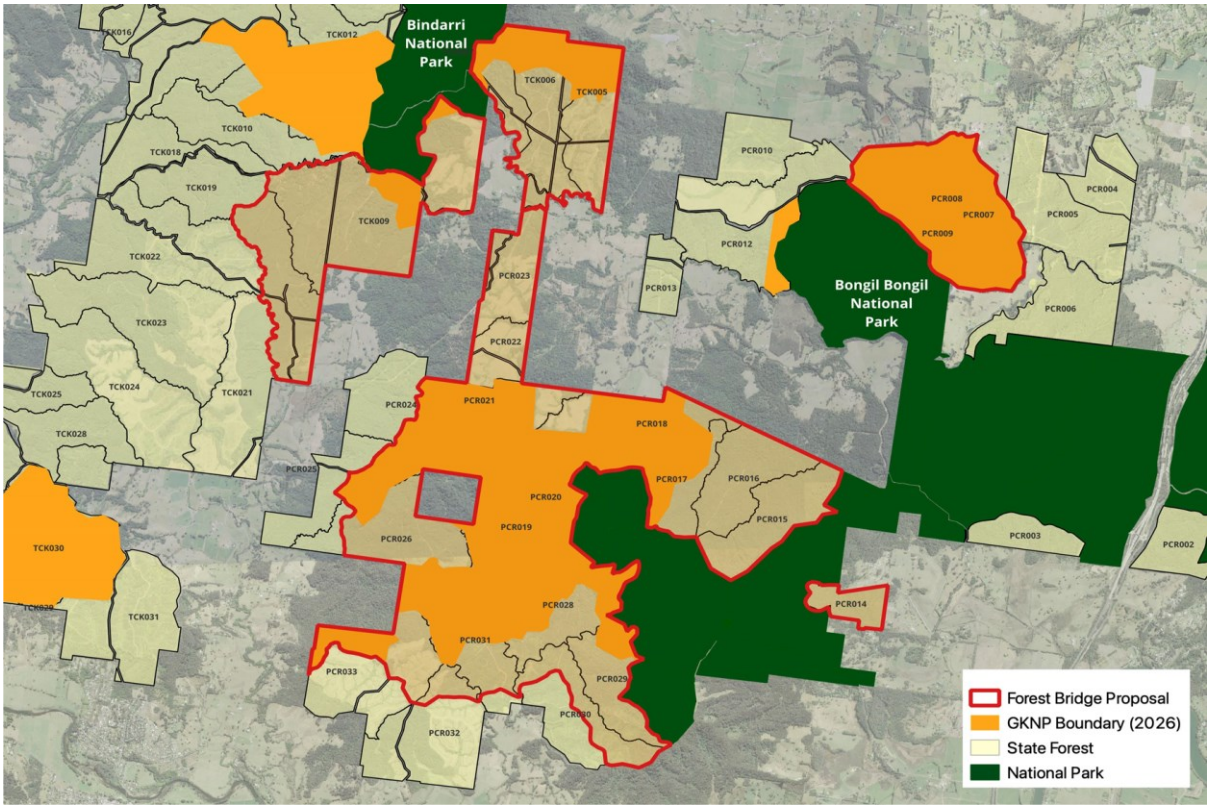
prescribed date means the date of assent to this Act.

No. 2 **Forest Bridge Proposal—option 2**

Page 43. Insert after line 8—

Schedule 7A Forest Bridge Proposal area map

section 40A(4), definition of "Forest Bridge Proposal area"



[c2026-302B]

No. 1 **Forest Bridge Proposal—option 1A**

Page 4, clause 11(1), line 12. Omit "section 1". Insert instead "sections 1 and 8".

No. 2 **Forest Bridge Proposal—option 1A**

Page 6, clause 16. Insert after line 32—

(2A) The Governor may, by order published on the NSW legislation website, amend Schedule 1 to move a description of land from Schedule 1, section 8 to Schedule 1, section 1 with appropriate descriptive details required for the table in Schedule 1, section 1.

No. 3 **Forest Bridge Proposal—option 1A**

Page 37, proposed Schedule 1. Insert after line 5—

8 State forests in Forest Bridge Proposal area

The land in—

(a) Pine Creek State Forest, compartments 14–17, 22 and 23, and

(b) Tuckers Nob State Forest, compartments 5 and 6.

[c2026-308B]

No. 1 **Forest Bridge Proposal—option 2A**

Page 15. Insert after line 32—

40A Assessment of State forests for reservation

(1) The Minister administering the *Forestry Act 2012* must ensure that no forestry operations, within the meaning of the Act, occur on designated forestry land for 36 months after the prescribed date.

(2) The NPW Minister must, within 12 months after the prescribed date, begin an assessment of designated forestry land for reservation as part of the Great Koala National Park.

(3) The assessment under subsection (2) must be completed within 36 months after the prescribed date.

(4) In this section—

designated forestry land means the following State forests—

(a) Pine Creek State Forest, compartments 14–17, 22 and 23,

(b) Tuckers Nob State Forest, compartments 5 and 6.

prescribed date means the date of assent to this Act.

No. 2 **Forest Bridge Proposal—option 2B**

Page 15. Insert after line 32—

40A Assessment of State forests for reservation

(1) The Minister administering the Forestry Act 2012 must ensure that no forestry operations, within the meaning of the Act, occur on designated forestry land for 36 months after the prescribed date.

(2) The NPW Minister must, within 12 months after the prescribed date, begin an assessment of designated forestry land for reservation as part of the Great Koala National Park.

(3) The assessment under subsection (2) must be completed within 36 months after the prescribed date.

(4) In this section—

designated forestry land means Pine Creek State Forest, compartments 14–17.

prescribed date means the date of assent to this Act.

No. 3 **Forest Bridge Proposal—option 2C**

Page 15. Insert after line 32—

40A Assessment of State forests for reservation

(1) The Minister administering the *Forestry Act 2012* must ensure that no forestry operations, within the meaning of the Act, occur on designated forestry land for 36 months after the prescribed date.

(2) The NPW Minister must, within 12 months after the prescribed date, begin an assessment of designated forestry land for reservation as part of the Great Koala National Park.

(3) The assessment under subsection (2) must be completed within 36 months after the prescribed date.

(4) In this section—

designated forestry land means the following State forests—

(a) Pine Creek State Forest, compartments 22 and 23,

(b) Tuckers Nob State Forest, compartments 5 and 6.

prescribed date means the date of assent to this Act.

[c2026-303C]

No. 1 **Forest Bridge Proposal—option 1B**

Page 4, clause 11(1), line 12. Omit "section 1". Insert instead "sections 1 and 8".

No. 2 **Forest Bridge Proposal—option 1B**

Page 6, clause 16. Insert after line 32—

(2A) The Governor may, by order published on the NSW legislation website, amend Schedule 1 to move a description of land from Schedule 1, section 8 to Schedule 1, section 1 with appropriate descriptive details required for the table in the section.

No. 3 **Forest Bridge Proposal—option 1B**

Page 37, proposed Schedule 1. Insert after line 5—

8 State forests in Forest Bridge Proposal area

The land in Pine Creek State Forest, compartments 14–17.

[c2026-305B]

No. 1 **Forest Bridge Proposal—option 1C**

Page 4, clause 11(1), line 12. Omit "section 1". Insert instead "sections 1 and 8".

No. 2 **Forest Bridge Proposal—option 1C**

Page 6, clause 16. Insert after line 32—

(2A) The Governor may, by order published on the NSW legislation website, amend Schedule 1 to move a description of land from Schedule 1, section 8 to Schedule 1, section 1 with appropriate descriptive details required for the table in the section.

No. 3 **Forest Bridge Proposal—option 1C**

Page 37, proposed Schedule 1. Insert after line 5—

8 State forests in Forest Bridge Proposal area

The land in—

(a) Pine Creek State Forest, compartments 22 and 23, and

(b) Tuckers Nob State Forest, compartments 5 and 6.

These amendments do a number of things. They would reserve the remaining State forest land within the Forest Bridge proposal as national park. Friends of Pine Creek have spent more than five years developing and defending this proposal, drawing on decades of research into the koala population south of Coffs Harbour. The area is on Gumbaynggirr country, between Bongil Bongil National Park on the coast and Bindarri National Park to the west. Both parks have been recognised by the New South Wales Government as assets of international significance for koalas. This missing connection is a relatively small area of public forest, but it is essential to the movement of wildlife between the coast and the hinterland towards the Dorrigo National Park and the New England National Park.

The original Forest Bridge proposal covers approximately 1,650 hectares. Its proponents deliberately designed the boundary around the corridor and allowed for productive plantations along some external edges to remain outside the reserve. This is a considered conservation proposal developed by people who know these forests and have watched the consequences of logging them. In 1996, ecologist Dr Andrew Smith identified Pine Creek as the most important State forest around Coffs Harbour for koala conservation based on its koala records, habitat and connection between coastal and hinterland populations. The forest also supports gliders, spotted-tailed quolls and other animals that need large, connected areas of habitat to survive.

The coastal forest around Bongil Bongil National Park escaped the Black Summer fires, making the protection of this connection particularly important as the climate changes. Some of the land is native forest and some is classified as hardwood plantation. There are genuine planted timber crops in this landscape, but the plantation classification also covers original vegetation and naturally regenerated forests with significant ecological value. We should assess and protect those values rather than allow Forestry Corporation's timber classifications to determine the boundaries of a national park. The Government has already included parts of this landscape in the bill, and the Legislative Assembly agreed to strengthen the protection of Bongil Bongil National Park by reserving land as national park rather than regional park. I welcome that outcome.

The bill also contemplates the reservation of additional State forest land by order. Parliament therefore now has the opportunity to complete the Forest Bridge while it is legislating for the larger park. Leaving this gap available for clear-fell logging threatens the very connection that makes these protected areas so important. The Greens ask the Committee to reserve the remaining State forest land within the mapped Forest Bridge area and give that part of the Great Koala National Park the permanent protection it warrants.

Ultimately, the amendments seek to reserve the whole of the Forest Bridge area. But, if that were not to happen, the amendments seek to place a moratorium over the Forest Bridge area now and have it assessed for its inevitable inclusion in the Great Koala National Park. There is no doubt in my mind that, as we get more connected and more awake to the realities of what it would take to make the very best Great Koala National Park we can have, the areas that connect some of the most important parts of the GKNP are essential for koalas. These amendments seek to have the whole of the Forest Bridge area included, but, if not included now, then set aside. Stop logging, assess them and then include them in time.

The other amendments seek to go piece by piece. If all this Parliament does tonight is reserve that one small area that connects the north and the south components from Pine Creek to the northern parts, we should do it now. We should not leave them out. We know those areas are absolutely essential for the safe passage and movement of the wildlife that relies on what, after tonight, will be the Great Koala National Park. The Forestry Corporation maintains that its logging operations in Pine Creek State Forest are conducted entirely within authorised hardwood plantations. But that is a classification that has been challenged by conservation scientists and the National Parks Association, who have documented natural forest vegetation within the compartments.

The idea that it is legitimate plantation is not completely true. The desperate call to protect those areas tonight and include them—if not as part of the park, then set them aside—is because the management practice adopted is one of the worst for those areas at this time. It is a clear-fell operation. Forestry Corporation has this year already resumed clear-felling in Pine Creek. Friends of Pine Creek reported in October that logging was underway in compartment 32 and that subsequent planned operations would enter the proposed Forest Bridge corridor. The plantation regulator has also recognised unique or special wildlife values within the authorised plantation in both Pine Creek and Tuckers Nob, imposing additional conditions on Forestry Corporation.

Those determinations do not settle which compartment should be permanently protected, but they absolutely demonstrate that the conservation concerns warrant proper examination. There are genuine hardwood plantations in this landscape—nobody doubts that—alongside naturally regenerated native forests, the areas containing original vegetation. An independent assessment should establish the present ecological condition of each compartment, its significance for threatened species, the integrity of the plantation classifications and its contribution to the surrounding national parks. If we set aside those areas now, stop the logging, protect them and assess them, the Government would retain responsibility for determining the appropriate long-term reservation of the forests.

There is no reasonable conservation justification for allowing further clear-felling while the evidence required to make the decision about their ultimate fate is being gathered. The compartments adjoining Bongil Bongil National Park, compartments 14, 16, 15 and 17 of Pine Creek, contain some of the most extensively researched koala habitat on the North Coast. There are important differences in the condition and history of each compartment, but the scientific evidence demonstrates the extraordinary conservation value of these forests. Compartment 14 was a mapped koala hub. According to research published by Wilderness Australia and the National Parks Association, the forest that the Forestry Corporation clear-felled in October and November 2023 contained mature tallowwood and grey gum occupied by multiple koalas. Adjoining areas of northern grey ironbark, brush box and forest oak were also destroyed, and substantial areas of the logged compartment subsequently became heavily infested with lantana. That is what logging does. It trashes the joint, lets in invasive species and degrades the entire ecosystem.

In September 2023, Friends of Pine Creek recorded a koala in compartment 15, together with koala scat inside the plantation boundary and the adjoining Bongil Bongil National Park. The National Parks Association has photographed the forest either side of that boundary, where the vegetation continues across the line that separates land protected for conservation from land available for logging. In compartment 16, the National Parks Association documented mixed species native forest classified as plantation and, in compartment 17, it documented rainforest vegetation within the plantation classification. Those forests have ecological values that require and deserve permanent protection.

The importance of Pine Creek extends well beyond koalas. A government-commissioned ecological assessment associated with the Pacific Highway upgrade recorded giant barred frogs along Pine Creek, little bent-wing bat calls within the State forest and 13 vulnerable rusty plum plants in or near the road corridor through the forest. My dear friends the yellow-bellied gliders had also previously been recorded in the wider study area. Those records are from the broader Pine Creek landscape, but they demonstrate the significance of the forest ecosystems adjoining the national park.

The research of Andrew Smith and John Pile also provides compelling evidence about breeding koalas. Their studies found that females depend on mature, structurally complex forests containing preferred food trees, particularly tallowwood and grey gum. Their dietary research identified more than 16 tree species consumed by koalas in Pine Creek, with tallowwood accounting for 39 per cent of the leaf fragments identified in scat samples, while blackbutt was consumed substantially less than its availability would suggest. Those forests provide habitat for breeding, feeding and movement through an important coastal koala population. Their values cannot be maintained through repeated clear-felling and replacement with less diverse timber crops.

The alternative to immediately adding compartments 14, 15, 16 and 17 into the Great Koala National Park would be, as suggested with the entire Forest Bridge, to put a moratorium on them, set them aside, assess them and then determine their future. I have no doubt that any proper assessment would recommend their inclusion into the park. Andrew Smith and John Pile's 2023 research into koalas in Pine Creek identified just how restricted the opportunities for movement from those coastal forests have become. The population is largely isolated by the Bellinger River to the south, the Pacific Highway and coastline to the east, and extensive clearing to the north and west.

The researchers identified just two narrow forest corridors remaining connecting Pine Creek to the forests of the Great Dividing Range through Tuckers Nob State Forest and private land. I cannot impart enough to all members that it cannot be underestimated how important it is to protect that little connection of compartments 22 and 23 so that the Great Koala National Park will completely achieve the objective we are seeking—that is, to allow the free, safe, proper movement from areas that are currently protected to other areas that will be protected tonight. We also need to remember that, in the past couple of months, a koala was killed in broad daylight during a logging operation. It is not necessary to operate like this.

We also know that the logging threat continues right now. Earlier this month, reports emerged of new logging plans for Tuckers Nob, prompting renewed community protests and concerns from Gumbaynggirr Elders about the protection of cultural and environmental values. In Pine Creek, Forestry Corporation has already resumed clear-fell logging in plantation compartments that were excluded from the Great Koala National Park

assessment area. The assessment of the four compartments—compartments 22 and 23 and Tuckers Nob compartments 5 and 6—needs to establish what originally and naturally regenerated native forest remains, the habitat available for koalas and other threatened wildlife, and whether the existing connections can survive further clearing. I seriously doubt that they can. The assessment should examine the opportunities to restore degraded sections of the corridor, rather than treating their previous logging as a reason to exclude them from conservation.

The assessment should be undertaken independently, with Gumbaynggirr traditional owners properly involved in decisions affecting their country. The Greens beg the Parliament and the Government to take note of the amendments. I have worked very hard to canvass members. I do not think that I will get the necessary support tonight, notwithstanding our efforts and the clear-cut case before us. If we were doing the right thing, we would be supporting the amendments. My intention in moving the amendments is to place on public record the work that now needs to be done. Tonight we will create the Great Koala National Park. I have no doubt in my mind or in my heart that we will soon add these small but vital and significant areas to the Great Koala National Park. I commend the amendments to the Committee.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (21:31): I am not surprised by the amendments and thank the member for moving them. There has been an ongoing discussion about what is and is not included in the Great Koala National Park. Tuckers Knob and Pine Creek State Forest have been at the pointy end of that discussion. I understand the passion of the local community and those who wish to add those areas to the park, but I have to be very up-front, as the Government has been throughout the process, that the Government supports plantation forestry. Those are plantation forests, and we believe it is very important to continue harvesting them. I understand the passion of the member and the locals whom I have met, but the Government supports plantation hardwood forestry, and those are plantation forests. Therefore the Government cannot support the amendments.

The Hon. SARAH MITCHELL (21:32): Although my colleague the Hon. Jacqui Munro may also make a contribution, I indicate that the Opposition also opposes the amendments. My understanding is that the amendments are quite similar to those moved by the member for Pittwater in the other place, which the Opposition also opposed. Opposition members have been clear throughout the debate that we cannot support incorporating additional land into the Great Koala National Park. Expanding the national park estate should not come at the cost of further forestry land and the industry jobs that depend on it. I understand why people in the community are sometimes a bit cynical. When he spoke to similar amendments moved in the other place, my colleague the member for Coffs Harbour pointed out that every time native hardwood harvesting has been raised, communities get the same message from the left, "Come out of native forest. Move into plantations." As the Minister said, the amendments add plantation lands to the park.

I can count. I understand that the bill will pass eventually, whether it is tonight or tomorrow. But The Greens, of course, want to go further and include plantations. Communities have been told for a long time that plantations are the answer in terms of having sustainable wood products, but they are now being asked to give those up too. As I said, this is why there is a deep lack of trust among timber communities in what The Greens put forward. It does feel like death by a thousand cuts. An inch is given; then a mile is taken. We do not support any of The Greens amendments. We did not do so in the other place and we do not support them in this place tonight either.

The Hon. JACQUI MUNRO (21:34): I contribute to debate to ensure clarity—because obviously The Nationals and the Liberals will be voting separately on some amendments—that we are voting together on these amendments. The Liberals support the position of the Government and as outlined by my colleague the Hon. Sarah Mitchell.

The Hon. MARK BANASIAK (21:35): The Shooters, Fishers and Farmers Party vehemently opposes the amendments. They are just another veiled ambit land grab. I distinctly remember the evidence that we took during the parliamentary inquiry into the sustainable timber industry. We heard quite clearly from the people in Coffs Harbour that they were quite frustrated with the hypocrisy and lack of good faith from The Greens, who tried to push the industry into plantations and then, in the next breath, when there were plantations in the area wanted to take them too. The lack of good-faith discussions around this issue has continued. Even after the announcement of the Great Koala National Park, some Greens members jumped on the bandwagon straightaway and said, "We want to take private native forestry as well."

We cannot support the amendments. As I said, they are just a blatant land grab. I also seek a procedural clarification from you, Mr Chair. Ms Sue Higginson moved her amendments in globo. But then, when explaining the amendments from different sheets, she seemed to indicate that one set of amendments would include the land as part of the proposal while another set of amendments—what I would probably call a contingency or backup set of amendments—would create a moratorium on harvesting in those areas should the first set of amendments not pass. Even if the numbers are not there to support any of the amendments, would it be wise procedurally for the

two sets of amendments to be put separately as one set of amendments is potentially contingent on the other passing or not passing? I seek your advice on that.

The CHAIR (The Hon. Rod Roberts): Before I seek advice from the learned Clerks, it appears to me from glancing around the Chamber that the amendments will not succeed in any form. Therefore, I do not think the Hon. Mark Banasiak's concerns, although valid, will hold.

The Hon. Mark Banasiak: I am just concerned about the good order of the House, Mr Chair.

The CHAIR (The Hon. Rod Roberts): I am sure you are, and I appreciate your concern. But I think the amendments will be defeated and there will be no contingency because they will all be wiped out. I think Ms Sue Higginson wishes to make a contribution.

Ms SUE HIGGINSON (21:38): Yes. I thank all members who made a contribution. I am sad that they are not coming on the good journey with me to support the amendments. I will deal with this idea that there is bad faith somehow or that The Greens are shifting the goalposts again or doing this or that. It does not work like that, and members need to wake up to what we are trying to do here. It is not a land grab. I am not grabbing land—and I am certainly not grabbing it for myself or Ms Cate Faehrmann or the Hon. Stephen Lawrence or the Hon. Sarah Mitchell. This is about sustaining ecosystems and their functions, which sustain us all. It is about clean water, carbon sequestration, the living planet and koalas surviving into the future. Going forward, it is the reality of what we are all going to do together to protect the forests from fire and invasive species. This is how it goes. If members think we are trying to go after plantations for plantations' sake, they have not listened to a word I have said.

The Hon. Robert Borsak: And neither should we listen to a bloody word you say.

Ms SUE HIGGINSON: The interjections are disorderly.

The CHAIR (The Hon. Rod Roberts): We have a long night in front of us. I am not calling the Hon. Robert Borsak to order but ask him to stop interjecting.

Ms SUE HIGGINSON: Members are struggling because they think The Greens are going after plantations and we never made a deal to go after plantations. A lot of landholders, conservationists, scientists, mums and dads, nurses and teachers who live around these forests are saying, "Hang on. I am seeing that these forests are used regularly and persistently by some of the world's most iconic, wondrous and globally significant threatened species. I really don't think we should just be cutting them down and turning them into woodchips, toilet paper, fence posts, tomato stakes and firewood." In the case of the forests I am talking about, the timber is actually sent to the sugar mill, burnt and sold by Cape Byron Power as green power, which is a lie. They have got to be kidding.

Members should not talk to me about the incredible, noble timber industry, as though that is somehow what is taking place. It is not like that anymore. It is actually a really sad state of affairs. The highest and best use of those forests is to take pride in world-class land management, where we do it together and where children and young people are involved. We could have well-managed forests, regeneration, recovery and forests alive with wonderful, globally significant animals and clean water running through them rather than nuking them. Have members been to a plantation up north? It is literally clear-felled and then nuked with chemicals as far as the eye can see. People cannot breathe or let their kids go there. Not long ago the Coffs Harbour water supply literally went on red alert because of plantation chemical application.

The Hon. Wes Fang: Point of order: I appreciate that second reading debate contributions allow for wide latitude, but during Committee of the Whole, members usually speak to the amendments. I am not sure that Ms Sue Higginson is doing that. I suggest she has gone off on a tangent. Given that we are in for a long night and potentially a long day tomorrow, the member should restrict her contribution to speaking about the amendments and procedural issues around them.

The CHAIR (The Hon. Rod Roberts): The Hon. Wes Fang is correct. Ms Sue Higginson has generously agreed to move her amendments in globo to help move things along, so I do not call her to order. As I was discussing a matter with the Clerks, I was not paying particular attention to her contribution. But Ms Sue Higginson knows the rules and will make her contribution relevant to her amendments.

Ms SUE HIGGINSON: As always, the Chair has been gracious, considerate and kind.

The Hon. Wes Fang: Don't suck up.

Ms SUE HIGGINSON: It is in earnest. The Chair is always considerate when I am moving amendments. I was talking about the plantations because the amendments were about them. I am addressing the comments that were raised in response to the amendments. I invite any member to visit a plantation operation in Coffs Harbour and the forests that I am talking about: Pine Creek and Tuckers Nob. Aunty Alison Buchanan is pleading with and

begging everybody to protect those areas. They are her cultural landscapes. The desecration that takes place in a plantation operation is very severe. It is industrial scale land management and it is dangerous land management. It kills animals in the forest, including a koala just a few weeks ago. I forget his name, but it was a tragic incident. I think his name was Pine Creek Ben. That is what those plantation operations do. As I said when I moved the amendments, I have no doubt whatsoever about that. The truth is that the plantation industry there is not returning a dollar. It is not returning enough to make a viable industry, unlike the plantations—

The Hon. Robert Borsak: That's because you people gutted it.

The Hon. Mark Banasiak: That's because you've waged lawfare against it.

The CHAIR (The Hon. Rod Roberts): Order!

Ms SUE HIGGINSON: You're like those two old men in *The Muppet Show*.

The CHAIR (The Hon. Rod Roberts): This is my last warning. I will start calling members to order.

The Hon. Mark Banasiak: Apologies, Chair.

The CHAIR (The Hon. Rod Roberts): I accept your apology.

Ms SUE HIGGINSON: The plantations we are talking about today—which I have been to and stood in—that I seek to include in the park through the amendments are much more akin to beautiful native forests. Members may go and see them. Some of them may look like plantations, but the understorey is growing. They are remarkable, high-value areas and they are growing. The truth is that they should be managed to regenerate back into the native forest that they were and are becoming, because they have come from a gene pool that is thousands of years old. The fact is, if we clear-fell them again, we will lose the biodiversity they contain.

With that, I absolutely reject the idea that this was done in bad faith or that it is about a land grab. That is preposterous. I have my own land; I do not need to grab any more land. This is about the best interests of conservation—clean water and carbon sequestration—and the mental and physical wellbeing of the communities who rely on and live around those areas. Of course, it is also about the better integrity of the Great Koala National Park, which members of Parliament are doing brilliant work right now to create.

The Hon. WES FANG (21:46): I will not speak for long, and I genuinely mean that, but I raise one issue with the amendments. I had to double-check with my colleagues that Ms Sue Higginson had moved an amendment to effectively annex plantations. At every budget estimates hearing when she and I disagree on issues of native forestry, Ms Sue Higginson always responds by saying that plantations are the answer and that we need to get on board with plantations. But in this case The Greens are now trying to stop harvesting plantations. They want to put in place a moratorium or annex that land, which is extraordinary.

It is disingenuous to put one position but then move amendments that suggest otherwise, as Ms Sue Higginson is trying to do. The amendments go against the policy on The Greens website. The Greens say on their website that they support plantations. How can they say one thing on their website to indicate that they support forestry plantations but then move amendments like this in Committee? It is extraordinary that they say one thing on their policy website and then move amendments in this place that completely oppose that policy. I understand that there is some conflict within The Greens. There is disagreement about the fact that some of them have sold out to support this fallacy of a—

Ms Sue Higginson: Point of order: Whether Greens members are united or divided—we are clearly united—in terms of our political standing on different issues has nothing to do with the amendments.

The CHAIR (The Hon. Rod Roberts): I was in deep conversation with the Clerk during that part of the Hon. Wes Fang's contribution and was not paying attention. I ask him to ensure that his contribution is relevant to the amendments before the Committee.

The Hon. WES FANG: There is clearly a level of hypocrisy in the difference between what The Greens publish on their website and the amendments that they have moved. I ask them to perhaps consider that. The Greens website shows their front-facing policy position for the good people of New South Wales, and these amendments runs contrary to that. Their policy is the contract and agreement they have with the people. They should reflect on that and on whether they might want to withdraw these amendments because they are clearly in conflict with what is published on their website.

The CHAIR (The Hon. Rod Roberts): I return to the proposition raised earlier by the Hon. Mark Banasiak. He raised a valid point, and I am not going to influence his decision. It is apparent to me that all of these amendments will be defeated, but if he wishes the questions to be put separately we will do it that way. However, we would have to leave these amendments and move on to others because we would have to re-marshal these

amendments to suit. As I said, I am not going to influence the member, but I appeal to his good sense in making his determination.

The Hon. MARK BANASIAK (21:52): Chair, I cede to your concession that we allow the amendments to be put in one question, but that should not become practice.

The CHAIR (The Hon. Rod Roberts): I understand what the member is saying. As the Chair, I appreciate it, as does the Committee, I am sure. I did not want to influence the member; he had a valid point. That is why I raised it and gave him the option. But we can read the tea leaves in the room, and I think these amendments will not be an issue for much longer. Do we have an agreement?

The Hon. Mark Banasiak: We have an agreement, Chair.

The CHAIR (The Hon. Rod Roberts): In that case, bear with me while I go through all of these amendments, because I have to do so for procedural reasons. Ms Sue Higginson has moved The Greens amendments Nos 1 to 4 on sheet c2026-267D, amendments Nos 1 and 2 on sheet c2026-306B, amendments Nos 1 to 3 on sheet c2026-302B, amendments Nos 1 to 3 on sheet c2026-308B, amendments Nos 1 to 3 on sheet c2026-303C and amendments Nos 1 to 3 on sheet c2026-305B. The question is that the amendments be agreed to.

The Committee divided.

Ayes 6
Noes 27
Majority.....21

AYES

Boyd (teller)	Cohn	Higginson (teller)
Buckingham	Faehrmann	Hurst

NOES

Banasiak	Govind	Moriarty
Barrett	Graham	Munro
Borsak	Houssos	Murphy (teller)
Buttigieg	Jackson	Nanva (teller)
Carter	Kaine	Overall
D'Adam	Lawrence	Primrose
Fang	Merton	Ruddick
Farlow	Mitchell	Sharpe
Franklin	Mookhey	Tudehope

Amendments negatived.

The CHAIR (The Hon. Rod Roberts): We will now move on to Opposition amendments.

The Hon. SARAH MITCHELL (22:01): By leave: I move Opposition amendments Nos 1 to 3 and 7 on sheet c2026-314A in globo:

No. 1 **Sale of carbon credits**

Page 2, clause 3. Insert after line 16—

Australian carbon credit unit, for Part 4A—see section 37A.

No. 2 **Sale of carbon credits**

Page 2, clause 3. Insert after line 29—

financial year, for Part 4A—see section 37A.

No. 3 **Sale of carbon credits**

Page 2, clause 3. Insert after line 35—

relevant ACCUs, for Part 4A—see section 37A.

No. 7 **Sale of carbon credits**

Page 14. Insert after line 41—

Part 4A Sale of Australian carbon credit units

37A Definitions

In this part—

Australian carbon credit unit has the same meaning as in the *Carbon Credits (Carbon Farming Initiative) Act 2011* of the Commonwealth.

financial year means the period of 12 months commencing on 1 July in a year.

relevant ACCUs means Australian carbon credit units issued to the State in connection with the reservation of land by this Act.

37B Use of revenue from sale of Australian carbon credit units

The NPW Minister must ensure that in each financial year, money equivalent to the money raised by the State in connection with a sale, transfer or other dealing with relevant ACCUs is used for the following—

(a) supporting communities and workers affected by the transition away from forestry industries as a consequence of the reservation of land by this Act,

(b) the development, in local government areas that include land reserved by this Act, of the following—

(i) tourism and recreation facilities,

(ii) with the concurrence of the NPW Minister—other infrastructure,

(c) the management of the national park estate land reserved under this Act.

37C Report to Parliament

(1) The NPW Minister must, by 1 October in each year, table a report in each House of Parliament about the State's dealings with relevant ACCUs in the previous financial year.

(2) The report must include information about the following—

(a) the number of relevant ACCUs sold, transferred or otherwise dealt with by the State,

(b) the names of the persons to whom relevant ACCUs were transferred, including by sale, or who otherwise received a benefit from a dealing with relevant ACCUs and the number of relevant ACCUs involved,

(c) the range of prices paid for the sale, transfer or other dealings with relevant ACCUs,

(d) the number of relevant ACCUs relinquished under the *Carbon Credits (Carbon Farming Initiative) Act 2011* of the Commonwealth, Part 15 and the reasons the ACCUs were relinquished,

(e) if the State has entered into an option or forward contract in relation to relevant ACCUs—

(i) the names of the other parties to the option or contract, and

(ii) the number of relevant ACCUs subject to the option or contract,

(f) the number of relevant ACCUs held by the State at the end of the financial year to which the report relates,

(g) the allocation of money under section 37B.

The amendments are about the sale of carbon credits. The Opposition intends to make sure that there is a clear and transparent commitment to regional communities that those who will be affected by the introduction of the park will receive a fair share of the benefits, and also that there is transparency through the Parliament so that the community knows how any revenue generated from the sale of carbon credits is used. These four amendments create a new part 4A of the bill, dealing with the Australian carbon credit units generated through the Great Koala National Park. As I said, the amendments are about ensuring transparency and the right accountability measures for the carbon credits generated. Through these amendments, we would also like the Minister to table a report in both Houses of Parliament each year about the State's dealings with the relevant Australian carbon credit units in the previous financial year. These amendments are really all about accountability.

The proposed sections in amendment No. 7 go to making sure that the revenue from this carbon credit dealing is directed back to the local community. In particular, there are three areas we would like to see that revenue focused on. We want to make sure the funding is directed towards the local communities and the workers of the timber industry affected by this legislation, particularly on the Mid North Coast. We also want to make sure there is investment by the Government in local tourism, community infrastructure and the management of the national park estate reserved under the legislation, including for biosecurity and fire risk mitigation. The residents and communities on the Mid North Coast will shoulder the burden of the Great Koala National Park. We strongly believe they should get any benefits that come as a result, which is exactly what these amendments do. They are about ensuring that the money goes back into those communities.

Without these amendments to the bill—which would make it crystal clear in the legislation that this money will go back to those communities—we are concerned that the revenue from some of these credits will just end up protecting the Government's bottom line and not actually supporting the communities that are most impacted. A guarantee of support for the workers in the timber industry who are affected and will be affected by Labor's decision to close that industry on the Mid North Coast—which is what this bill will do—is a big issue that we have raised in other debates in this Chamber. We think these are sensible amendments that will make sure the Government looks after those whom it is tearing the industry away from.

We also want to make sure that we have recreational facilities for tourists. Again, in putting this bill forward the Government has said the park will bring all these people to the community. We want an ironclad guarantee in the legislation that funding will be available in order to do that. We think these amendments will make that pretty clear. They are sensible amendments. They will give those communities comfort that any sort of revenue generated does not fill a budget black hole for Labor but comes back into regional communities, which is where we think that money should be spent. We hope the Committee will support the amendments.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (22:06): The Government does not support the amendments. They were moved during consideration in the lower House and debated there, so I am not going to go into it in detail. But the point is that the Government has already committed $6 million out of consolidated revenue to tourism and work in this area. The transition package in relation to impacted workers is already funded. The creation of the park and the issues the member raised are not being funded through carbon credits. What this Government has committed to is that any money from carbon credits will be used for management of the park. These amendments are unnecessary and we do not support them.

The Hon. MARK BANASIAK (22:07): I indicate that the Shooters, Fishers and Farmers Party will support the Opposition amendments. We think they are sensible amendments that go to the concerns raised during the second reading debate around the carbon credit accounting scheme. In other schemes we have seen money supposedly set aside for certain projects or certain uses—such as with the regional development fund, where it went to pools in The Rocks.

The Hon. Penny Sharpe: That wasn't us.

The Hon. MARK BANASIAK: I acknowledge the interjection, although I know I should not. That was not done by this Government. But these amendments would give the community the surety that the money is going to the right place. I think reporting to Parliament and keeping it informed in terms of how this money is spent and what it is going towards is an excellent provision. Parliament is better when it is properly informed. We can make better decisions based on that information. With those remarks, I support the amendments.

The Hon. SARAH MITCHELL (22:08): I respond briefly to the Minister, who said that money has already been set aside. That may be true. However, the concern comes from the local community. It was also raised by my colleagues during debate in the other place. Those North Coast communities find it hard to take the Government at its word on some of the issues surrounding the national park. The amendments put those guarantees in black and white. Before the previous election, when the Government committed to the park, it said, "No, we will still be able to have a viable timber industry after the creation of this park." We now know that is not the case, so there is not a lot of faith in the Government among those communities.

To be frank, the Government tends to say one thing and do another. That is why The Nationals want to protect that money and make sure that the right amount is invested back into community facilities and support for the timber industry. My response to the Minister is that if the Government will do those things anyway and ensure that everyone in the community is looked after, why not support the amendments and put that commitment in black and white, with no confusion? That would provide certainty for the local community. If the Government does not support the amendments, it is no wonder there is deep mistrust and concern about Labor's intentions, when it is not prepared to put its money where its mouth is.

The CHAIR (The Hon. Rod Roberts): The Hon. Sarah Mitchell has moved Opposition amendments Nos 1 to 3 and 7 on sheet c2026-314A. The question is that the amendments be agreed to.

The Committee divided.

Ayes 14
Noes 19
Majority.....5

AYES

Banasiak	Farlow	Overall

AYES

Barrett	Franklin	Rath (teller)
Borsak	Merton	Ruddick
Carter	Mitchell	Tudehope
Fang (teller)	Munro	

NOES

Boyd	Higginson	Moriarty
Buckingham	Houssos	Murphy (teller)
Cohn	Hurst	Nanva (teller)
D'Adam	Jackson	Primrose
Faehrmann	Kaine	Sharpe
Govind	Lawrence	Suvaal
Graham		

PAIRS

MacDonald	Mookhey
Maclaren-Jones	Buttigieg

Amendments negatived.

The Hon. SARAH MITCHELL (22:17): I move Opposition amendment No. 4 on sheet c2026-314A:

No. 4 **Continued perpetual leases**

Page 13. Insert after line 16—

33A Continued perpetual leases

Despite another provision of this Act, land subject to a continued perpetual lease must not be reserved by or under this Act without the written consent of the lessee.

This amendment requires landholders with perpetual leases to agree to any land being reserved under the provisions of the bill for the purpose of the State forest. We think it is important that we protect the rights of existing perpetual leaseholders by ensuring that the land cannot be brought into the reservation process without their consent. Again, these points were mentioned in the lower House, so I will not speak for too long. The reality is that people have entered into perpetual leases on land in this area, and they have done so in good faith. Those landholders have made improvements to the land, and they cannot be ignored in the passage of this legislation. I understand that the Government is undertaking just terms compensation negotiations with perpetual leaseholders, whose leases are generally family assets. Some of the leases have been held for more than a century. Some residents may have lawfully built a cottage on their perpetual lease. Those structures would be acquired by the State Government through the compulsory acquisition process, effectively kicking people out of their home.

This amendment makes it clear that the leaseholders need to be consulted and need to agree to their leases being extinguished. This is about making sure that the Government consults with people who entered into a perpetual lease in good faith and who made improvements to the land. I conclude by aligning myself with the comments of the member for Coffs Harbour, who made some very good points on this issue in the other place. We are not talking about big pieces of land or people who are harvesting timber or clear-felling land. These families and groups hold perpetual leases and might have a cottage. Until this bill came into play, they had expected to hold the land forever. This amendment will give them a bit of respect and a proper process. We urge the Committee to support our amendment.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (22:20): The member is right to raise the issue of people who will be impacted by this bill. To be clear, the bill does not extinguish existing perpetual lease interests without compensation. We are working through this process in accordance with the Land Acquisition (Just Terms Compensation) Act, which is a fair and transparent compensation framework. The Government does not support this amendment.

The Hon. MARK BANASIAK (22:21): We support this sensible Opposition amendment, which provides some certainty for people who have signed up to a perpetual lease. I turn now to the Leader of the Government's comments. The compulsory acquisition process in the Act has a lot of flaws, which several governments have

tried to fix, to no avail. There is no political will to fix this, because it benefits both sides of politics. Members should not rely on the Act as a smokescreen to not support this amendment.

The Hon. WES FANG (22:21): I speak in support of this amendment. I note that when the Minister spoke about the just terms Act, she did not use the word "fair". I do not think that any member in this place would say that the just terms Act will provide fair compensation to these people, which is why we have moved this amendment. These leaseholders signed perpetual leases in good faith. Some of them may have had only a short-term connection with the area, but I suspect that the majority of them have quite a long-term connection with the area. Many of these perpetual leaseholders have invested so much into their lease areas. I do not use the word "investment" in its financial sense alone. There are emotional, physical and financial investments. These leaseholders have dedicated themselves to their leases, and it is not unreasonable to expect the Government to adopt a certain level of consideration when it seeks to compulsorily acquire their leases.

Members need to put themselves in the shoes of someone who holds a perpetual lease in one of these areas and consider how this process has been rolled out. The Labor Party obviously made an election commitment, but I do not think that the boundaries that were published prior to the election would have necessarily provided every single one of the leaseholders with fair warning that this process was going to be considered at the end of a parliamentary term, right before an election. It has been just under four years since the Labor Party won government. At the time of the election, the leaseholders would not necessarily have realised that their lease would be captured by the Great Koala National Park.

The Coalition has discussed the impacts of the issues with those stakeholders, which is why we bring this amendment to the Committee. There is a lack of transparency about how those leases are going to be progressed. Those landholders made physical, emotional and financial investments, in good faith, in leases that they thought were going to be for much longer terms. The amendment seeks to provide them with the ability to have their voice heard in a way that is captured not just by the Land Acquisition (Just Terms Compensation) Act because, as the Hon. Mark Banasiak indicated, there is an understanding amongst a lot of members of this House, if not all members, that the Act does not necessarily provide for fair and reasonable compensation for compulsory acquisition of those leases. While the Minister sought to allay some of the fears communicated by the Hon. Sarah Mitchell by saying that there is a process, the amendment will ensure that process is providing a greater level of consultation with the leaseholders. Dialogue will then arise from that consultation, and that may provide the perpetual leaseholders with a feeling that they are being heard in circumstances where they may not necessarily have realised less than four years ago that their leases would be captured by the Great Koala National Park.

The Opposition has engaged with a number of the stakeholders impacted by the decisions of this Government and its bill. Our amendment is informed by those consultations and will ensure that the Government better consults with those leaseholders. It may be the case that the consultation process does not result in an agreement on all sides for an appropriate and just compensation package. By passing this amendment, at least those conversations will be had. Some stakeholders have articulated to us that they feel there has not necessarily been the consultation process that the Government indicated may be on the table when it announced the Great Koala National Park. The Opposition wants to make sure that the stakeholders who were not captured initially but whose perpetual leases are being extinguished and who are being offered fair and just compensation packages for those investments are also captured by this amendment.

For those leaseholders who are perhaps anxious and concerned about the process, this amendment will provide them with a level of certainty and clarity. I do not think any member in this place would begrudge or deny perpetual leaseholders the opportunity to have their voices heard, and nobody would expect them to forgo those perpetual leases and the investments that they have made—in many cases, long-term investments—in places that are home to their family and that they hold dear. On this side of the Chamber, we recognise that value. We understand that some perpetual leaseholders are concerned that their leases may be compulsorily acquired without appropriate and well-considered compensation. With those few words, I suggest that the amendment is supportable.

The Hon. Chris Rath: More! We want more.

The Hon. WES FANG: I never leave my fans disappointed.

The Hon. Sarah Mitchell: Wes always leaves them wanting more.

The Hon. WES FANG: It sounds like I am being called to give an encore. I have got my second wind. However, I did say that I would keep my contribution brief, and my word is my bond. I conclude by encouraging members to support the amendment. Nobody should be dispossessed of the place that they hold dear without fair and adequate compensation.

The Hon. SARAH MITCHELL (22:32): Very briefly, Chair, I want to address—

The Hon. Wes Fang: My "briefly" or your "briefly"?

The Hon. SARAH MITCHELL: My briefly. In her contribution, the Hon. Penny Sharpe made a point about compensation. I put on record in this Chamber, as it was in the other place, that some of our lower House colleagues who have constituents who are caught up in this issue have said that the compensation amounts that have been offered to those people are nowhere near adequate. They are very concerned about it. That was said in the lower House and I just wanted it on record in this Chamber also, in response to the Minister.

The CHAIR (The Hon. Rod Roberts): The Hon. Wes Fang has moved Opposition amendment No. 4 on sheet c2026-314A. The question is that the amendment be agreed to.

The Committee divided.

Ayes 13
Noes 18
Majority.....5

AYES

Banasiak	Franklin	Overall
Barrett	Merton	Rath (teller)
Carter	Mitchell	Ruddick
Fang (teller)	Munro	Tudehope
Farlow		

NOES

Boyd	Higginson	Moriarty
Buckingham	Hurst	Murphy (teller)
Buttigieg	Jackson	Nanva (teller)
Cohn	Kaine	Primrose
Faehrmann	Lawrence	Sharpe
Govind	Mookhey	Suvaal

PAIRS

MacDonald	Houssos
Maclaren-Jones	Graham
Ward	D'Adam

Amendment negatived.

The Hon. SARAH MITCHELL (22:40): By leave: I move Opposition amendments Nos 5 and 6 on sheet c2026-314A in globo:

No. 5 **Motor sport events**

Page 14, clause 35(1), lines 7–10. Omit "on the" from line 7 and all words on lines 8–10. Insert instead "on land reserved by this Act.".

No. 6 **Motor sports**

Page 14, clause 35(4), lines 23 and 24. Omit all words on the lines.

These amendments go to the issue of motor sports and the trails within the proposed Great Koala National Park. The Opposition knows that throughout the footprint of the proposed park there are existing trails and roads that are already used for motor sport activities. As my colleagues in the lower House covered this extensively, I will not speak for long on these particular amendments. But local communities are concerned about what happens to some of these events that have a long history. The amendments try to give certainty to local communities, clubs and event organisations.

The Coalition believes strongly that the creation of new park reservations should not unnecessarily jeopardise activities that have a long history on the park's land. The amendments make clear that motor sport events can continue to be conducted on land reserved by the bill and give the Minister greater flexibility when considering motor sport proposals. The Minister will have the decision-making power, but the Opposition believes these amendments are important to give that clarity in the bill. Again, I acknowledge the Leader of The Nationals, and member for Coffs Harbour who spoke in the other place about the World Rally Championship, which is held

in much of the area that is to become the Great Koala National Park. That event brings tourists to the region. There is concern, if we do not get a guarantee through these amendments, about what that will mean for future events.

The amendments are about giving the Minister the discretion to make decisions. They do not force the Minister to do anything. We are not saying that rallies must occur or that the Minister must approve them, but the amendments will give the Minister discretion to approve them, if the conditions are appropriate and if they line up. We think it is important to have that in the bill. I hope the Committee supports the amendments.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (22:43): The Government does not support the amendments. This matter was well canvassed in the lower House. The Opposition proposes that motor sports events be allowed on all lands reserved under the bill, including national parks, regional parks and nature reserves in Aboriginal areas. That is inappropriate. The Government supports continued racing in the areas where that has occurred historically. That is reflected in the categories set out in the bill. The Government does not support the amendments.

The Hon. MARK BANASIAK (22:44): The Shooters, Fishers and Farmers Party supports both amendments. I will deal with them individually. We support amendment No. 5 because the bill gives the Minister responsible for administering the National Parks and Wildlife Act a power to approve motor races and ancillary activities. As drafted, that power is tied to specified regional park land and access roads on or adjoining a regional park. This amendment replaces that description with land reserved by this Act. That broadens the land on which the approval power can operate. That matters because a change in the legal category attached to a piece of land can otherwise determine whether an event is even capable of being considered under this provision.

Motorsport organisers need a workable process. Clubs cannot plan an event, engage suppliers or give participants certainty if the legislation rules out consideration simply because a route crosses a different reservation category. The Government should be prepared to assess a proposal on its circumstances and the requirements of the approval process. The amendment retains that assessment. The Minister must still consider natural and cultural values, participant and public safety, environmental risks, and the relevant guidelines. Conditions can still be imposed. Supporting a broader approval power does not require us to pretend that every proposal will be suitable.

We should also state clearly what this amendment leaves unresolved. It does not remove the five named regional park exclusions in clause 35 (5), does not guarantee approval and, by replacing the existing wording, does not expressly retain the separate reference to access roads on or adjoining a regional park where those roads fall outside land reserved by this Act. Organisers with routes using those roads will still need clarity about the applicable authorisation. Those limits should be acknowledged. They do not change the fact that expanding the power beyond the present regional park description is a useful improvement for motorsport proposals on reserved land. Regional events depend on practical access arrangements. They involve volunteers, local suppliers, accommodation providers and families who deserve a clear answer about what the law allows to be considered. We support this amendment because it creates a broader opportunity for that consideration. We will continue to press for reliable access and workable approvals, but I think we should take this improvement when it is before us.

Amendment No. 6 removes clause 35 (4), which prevents the Minister from approving motor vehicle use anywhere other than a road that existed immediately before this part commenced. That is a rigid restriction on the approval power, and removing it makes the provision more workable. An event route may need to change over time. Safety considerations, storm damage, maintenance or the practical management of an event can require organisers to propose a different alignment. The law should allow the Minister to examine such a proposal rather than make the date on which a road existed the decisive barrier.

That distinction matters for clubs trying to plan responsibly. An organiser who identifies a safer or more suitable route should be able to have that proposal assessed. A statutory rule tied to the commencement date can prevent the approval process from considering whether the alternative would produce a better result. Removing this subsection does not compel the Minister to approve a race. The other considerations remain, including natural and cultural values, public and participant safety, environmental risks, and relevant guidelines. The Minister can still impose conditions or refuse a proposal. As with amendment No. 5, the five named regional park exclusions also remain. Members should not describe this amendment as removing every restriction on motorsport or guaranteeing unrestricted vehicle access. It removes one particular prohibition within the motor race approval scheme. It also does not itself authorise someone to build a road or start driving through reserved land. What it does is remove the rule that an approval under this section can only permit vehicle use on a road that predates commencement. That allows the approval decision to address the proposal actually put forward.

The Shooters, Fishers and Farmers Party wants legislation that can deal with practical circumstances on the ground. Clubs should be accountable for safety and responsible conduct, and the Government should be

accountable for providing a process capable of assessing their applications fairly. This amendment moves the bill in that direction. It preserves the ministerial assessment while removing the inflexible restriction that can rule out consideration before the merits are examined. For those reasons, I support amendment No. 6 and encourage other members to do the same.

The Hon. WES FANG (22:48): I support these amendments, and I note the words of the Hon. Mark Banasiak encouraging members to do the same. A World Rally Championship race was held on the roads that are now captured in the area prescribed by the legislation. For those who have never seen the World Rally Championship, that race has some of the best drivers using some of the fastest machinery on some of the most challenging courses in the world. The Minister, in her contribution about why it is important to create this new national park, indicated that increased tourism is one of the outcomes the Government is seeking to encourage by prescribing this area as a national park. I assure members that this motorsport event is a huge driver of tourism, and nothing would showcase Australia—and certainly the Great Koala National Park—better than broadcasting it to the world. Motorsport events held all across the world are broadcast all across the world, and that is why so many locations fight for them.

It would be shortsighted for members not to adopt the Opposition amendments. If the goal of the Government really is to drive tourism in regional areas, these amendments will aid that goal by ensuring that we do not unnecessarily put a handbrake on what could be a fantastic event that showcases a beautiful part of New South Wales. Many members in their contributions to the second reading debate mentioned the natural beauty of the area, so why not share it with the world by hosting an event, as we have done previously, on the very roads now part of the Great Koala National Park? If the Government considered these amendments in detail, I cannot see why it would not support them.

To be honest, I am not sure that a motor vehicle poses much of a risk to the koalas or the park. The hosting of a motorsport event in a national park would be so noisy and so busy with spectators that it would preclude the risk of a vehicle injuring any koalas. But the event would certainly boost tourism in the area. It really is a win-win. It is a win for the local economy. It is a win for the workers who have been thrown by the wayside by a Labor government that pretends to support them but has shut down an entire industry with very little warning and expects those same workers, who worked with their hands for so long, to become baristas, tour guides or Uber drivers. The motorsport event that these amendments propose will provide opportunities for those workers to engage in a tourism event in a meaningful way.

If I am honest, I do not know anybody who does not like motorsport. If a person does not like motorsport, there is perhaps something wrong. Motorsport brings out the best in people. It brings joy, happiness and elation to the people. The community has been decimated by job cuts and the death of an industry, and they are disappointed in the Government. We want to try to bring them a bit of joy. Everybody loves motorsport. Everybody loves fast cars. Everybody loves the sound of a turbocharged four-cylinder engine. A V8 or a flat six would be better, but a turbocharged four cylinder—one takes what one can get.

People get a rush from hearing and seeing a vehicle being piloted or driven—or whichever word one wants to use to articulate the skill that those world-class drivers bring to motorsport events—particularly in places like the Great Koala National Park. There is an opportunity to lift a community up—lift their spirits and provide them some joy. This Committee could be considered somewhat miserly and Grinch-like if it were to deny that community that level of joy. The community is in need of boosting, and this may be an opportunity to do that. We bring these amendments in good faith. The Opposition moved very similar amendments, if not exactly the same, in the other place.

The Hon. Sarah Mitchell: Pretty much exactly the same.

The Hon. WES FANG: Pretty close. I do not know what it is about members of the other place. Maybe there are too many metropolitan members who do not like motorsport much, but there is a great affinity for motorsport in rural and regional New South Wales. There is a great history of participation in motorsport, as competitors, as marshals or even on organising committees. The level of joy and excitement that people get from motorsport permeates through a community when an event comes. The Opposition is strong in its conviction that we need to make sure, in the same way we have previously, that we do not provide a disincentive for world-class events to come to areas like the Great Koala National Park in the future.

As I said, any disincentive that may provide a commercial or competitive advantage to our opposition—that is, other locations that want to hold those motorsport events—would be a terrible impediment to the economy of New South Wales. It would also be a second punishment from a decision that was made by a Sydney-centric government for a rural and regional community. I have consulted with that community and spoken to them about their love of motorsport. The Leader of The Nationals, the member for Coffs Harbour, has been a strong advocate for the motorsport community in his area. Indeed, the member for Coffs Harbour before him, Andrew Fraser, was

heavily involved in motorsport as well. Those members have seen the value of motorsport because their communities sees its value.

Their communities are strong advocates for the ability to continue to host motorsport events. It is on the back of their advocacy and desire to see motorsport return to the Mid North Coast that they have asked us to move amendments in the Legislative Council, as we did in the lower House. I am not sure that the Labor Party is particularly fond of motorsports, so its failure to consider that the legislation may be an impediment to hosting future motorsport events on the Mid North Coast might have been an oversight. In keeping with the old adage "Help me help you", the Opposition is trying to help the Government to help our community by moving the amendments.

My friend and colleague the Hon. Sarah Mitchell moved amendments Nos 5 and 6 in globo. By moving them in globo, the Opposition has shown in good faith that it is not filibustering or trying to hold up the bill. The Opposition simply seeks to provide clarity to our communities and an opportunity for members to repent for not adopting the amendments in the other place. The amendments are a second chance to make things right and say that the Government does not hate motorsport or want to impede the motorsport community on the Mid North Coast, but that it wants to see the mid North Coast move ahead.

To conclude, motorsport is important. A number of Opposition members, both in this place and the other place, have made quite clear that the community has asked us to move the amendments. While it is unfortunate that they were not adopted in the other place, members now have an opportunity to look at them again and perhaps provide a little comfort and clarity to the communities that may seek to hold a motorsport event. I cannot be sure but I hope that, through the advocacy for the amendments, we could soon have another motorsport event in that area. If we do not pass the amendments tonight, we may pose a risk to any of the good work to encourage motorsport events on the Mid North Coast. On balance, the benefit of passing the amendments certainly outweighs the risks. I commend the amendments to the Committee.

The CHAIR (The Hon. Rod Roberts): The Hon. Sarah Mitchell has moved Opposition amendments Nos 5 and 6 on sheet c2026-314A. The question is that the amendments be agreed to.

The Committee divided.

Ayes 14
Noes 18
Majority.....4

AYES

Banasiak	Farlow	Overall
Barrett	Franklin	Rath (teller)
Borsak	Merton	Ruddick
Carter	Mitchell	Tudehope
Fang (teller)	Munro	

NOES

Boyd	Graham	Mookhey
Buckingham	Higginson	Murphy (teller)
Buttigieg	Hurst	Nanva (teller)
Cohn	Jackson	Primrose
Faehrmann	Kaine	Sharpe
Govind	Lawrence	Suvaal

PAIRS

MacDonald	Moriarty
Maclaren-Jones	D'Adam
Ward	Houssos

Amendments negatived.

The Hon. SARAH MITCHELL (23:10): I move Opposition amendment No. 8 on sheet c2026-314A:

Page 15. Insert after line 29—

39A Fire trails

> Despite anything in this Act or the *National Parks and Wildlife Act 1974*, fire trails, on land reserved by this Act, may—
>
> (a) following consultation with the Commissioner of the NSW Rural Fire Service—be developed, and
>
> (b) be maintained.

The amendment is about fire trails. Concern about what might happen should there be bushfires in the newly created national park was a pretty consistent theme in some of the second reading debate contributions. Amendments more broadly about fire management were moved in the other place. I understand that those were accepted by the Government, but the part about fire trails was not accepted. Therefore, we place the amendment on record in this place and ask the Committee to support it. If we want to be able to safely and quickly respond to bushfires, we need to make sure that access is available to firefighters. They cannot protect communities if they cannot safely and efficiently reach the fires. One concern with the new national park is whether access for firefighting could become more difficult.

In the past when State forests have transitioned into national parks, the fire risk has increased, given the different ways of managing those forests. That is very likely to be the case here. A significant amount of State forest land will be transferred into the national park estate. That brings with it higher bushfire risk. The amendment gives the Government the capacity to build fire trails in the park if needed. We have been in government, and we know fire trails are expensive. We know that they are not something that a government creates unless it needs to. But if it needs to do that, we do not want the legislation to be an impediment. Just to be very clear, the amendment does not say that the fire trails must be built or that they are compulsory. It simply says that they may be built. We do not want a bushfire getting out of control and there being no allowance within the Act to develop and maintain fire trails if the need arises. We ask the Committee to support it.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (23:13): The amendment fundamentally misunderstands the way in which fire is managed in national parks. I place on record that a lot of rubbish has been spoken in relation to fire management in this State. There is already a rigorous, well-developed process for fire trail management in place across all national parks that will continue to be followed in the Great Koala National Park. In New South Wales, bushfire management trails are governed under the Rural Fires Act and managed through fire access and fire trail plans. Local bushfire management committees develop those plans with the input of all land managers, including Forestry Corporation, the National Parks and Wildlife Service and the Rural Fire Service.

All trails identified in the current fire access and fire trail management plans within State forests identified in the bill will be automatically transferred to the National Parks and Wildlife Service. That is the first reason that the amendment is unnecessary. Secondly, the National Parks and Wildlife Service has more firefighters than Forestry Corporation. It does most of the fire management that occurs in this State, and it does it well. The furphy that I am tired of hearing is that somehow fire risk is worse as a result of that land being a national park. More people will be available to fight fires and there will be more staff on the ground than ever before. To suggest otherwise is, frankly, misleading at best. Thirdly, regarding carbon credit units, if members want any more incentive to keep fires under control—aside from the fact that we are already doing that as much as we can—we would get less carbon credits and earn less income to look after the park if it is burnt down in a fire and we lose carbon.

Those are three very good reasons why fire is a top priority. I have tried to be very polite in this debate, and it is right that members raise those issues, but I am tired of the misinformation, particularly from the National Party, about the way in which fires are managed and the care with which that work is undertaken. I am also very tired of that insult to the over 1,000 professional firefighters in the National Parks and Wildlife Service, who put their lives on the line every single fire season. They manage the vast majority of hazard reduction burns and they look after that land very carefully.

The Hon. MARK BANASIAK (23:15): The Shooters, Fishers and Farmers Party supports the amendment, which makes clear that fire trails on land reserved by this bill may be developed following consultation with the Commissioner of the NSW Rural Fire Service and may be maintained despite provisions in this bill or the National Parks and Wildlife Act. That is a practical provision. A fire management strategy must be supported by useable access on the ground. People responding to fires need routes that they can travel on, and the location and condition of those routes must be considered before an emergency develops. The Minister said the Rural Fire Service Association is largely responsible for the management of fire trails in this State. I put on record some of the concerns provided by the Rural Fire Service Association to the inquiry that I chaired into—

The Hon. Penny Sharpe: The Rural Fire Service. You're talking about the Rural Fire Service Association.

The Hon. MARK BANASIAK: Yes. At the inquiry into access restrictions to public lands, the Rural Fire Service Association raised serious concerns about a reduction in dedicated fire trail funding and tenure-blind prioritisation. Because of those issues, the association was very concerned about the ability to safely fight fires in national parks. The association specifically identified national parks as being problematic in terms of knowing whether a fire trail will be safely accessible when its members go to fight fires. It specifically identified national parks as being of concern. To be frank, I have been sent lots of photos of national parks in my time where it was quite obvious that people were deliberately dropping trees across trails to stop vehicle access. Those photos cannot be interpreted in any other way.

Ultimately, trees were deliberately dropped across tracks to prohibit access. That practice should not be used by any government agency because it puts at risk another government agency when those workers go to fight fires. We support the amendment. We think it is sensible. I urge the Government to address more broadly the funding shortfall for fire trails in this State. The evidence from the agency that fights those fires shows quite clearly that it has serious concerns about being able to do that work safely during the next bushfire season.

The Hon. WES FANG (23:19): I speak in support my colleague the Hon. Sarah Mitchell, and I congratulate her on bringing this amendment to the Committee and providing the Government an opportunity to once again repent and correct an error that occurred in the other place, where the amendment was not supported. The Hon. Mark Banasiak has been quite clear as to the importance of the amendment. That is not to say that the Hon. Sarah Mitchell did not clearly articulate why it was important, but I think the Hon. Mark Banasiak provided an additional level of clarity by articulating what he has seen. There certainly have to be some questions asked about how the trees that he mentioned came to be across those roads. It may be that there are left-wing activists who seek to destroy, disrupt or impede access to areas of the park.

There have certainly been some lunatic left-wing activists who seek to engage in that sort of conduct to frustrate access to some areas, but this amendment will not create a great impediment for the Minister or the Government in finally gazetting and delivering on their commitment to deliver this park. It provides an additional level of comfort for the community to know that those fire trails may have been made in consultation with the Commissioner of the NSW Rural Fire Service. The Minister was quite strident in her contribution to debate on this amendment. In doing so, she articulated a number of criticisms of my colleagues. My interpretation is that she was saying that the Coalition was unfairly critical of our national parks firefighting teams, but nothing could be further from the truth.

The Opposition moved the amendment in good faith. We respect and acknowledge the vast experience and enormous level of professionalism of the firefighters in the NSW National Parks and Wildlife Service. In no way do we seek to undermine that. We want to ensure that they have at their disposal the best tools and the ability to do the job they love and have dedicated so much time and training towards. This amendment puts a further feather in the cap of those firefighters by ensuring they have every opportunity to make those fire trails the best they can be. It provides for the coordination that will almost certainly be needed in the unlikely event of a bushfire in that area, with the Rural Fire Service commissioner providing a level of consultation to the NSW National Parks and Wildlife Service firefighting and maintenance teams. It is so important that we do not forget that the maintenance team is also involved in ensuring that the fire trails are maintained.

The Minister was quick to single out the work of the National Parks and Wildlife Service firefighting team, but I think she was a bit too quick and left out the great work of those other members of the National Parks and Wildlife Service who actually do the enabling work that allows the firefighters to be successful in the work they do. The amendment makes sure not only that the firefighters the Minister referred to in her contribution are provided every opportunity for success in fighting fires in the Great Koala National Park area but also that those other workers who are tasked with their fantastic work—often done without accolades—are too. They do the work that ensures that those firefighters have the tools they need for success.

The amendment itself effectively says that, despite anything in the Act or the National Parks and Wildlife Service Act 1974, fire trails on the land reserved by the Act may follow consultation with the Commissioner of the Rural Fire Service. That is such a sensible and supportable amendment because, as much as the Minister was strident in her support for the professionalism of the National Parks and Wildlife Service firefighters, there is no harm or issue with seeking external guidance from or consultation with other relevant experts. This amendment effectively provides a level of guidance, but it also enshrines in the legislation a clear provision saying that this Chamber and the other House—should it be the case that this Committee adopts the amendment and the bill returns to the other place—can effectively articulate that they have a level of agreement that the commissioner is somebody who should provide the National Parks and Wildlife Service a level of consultation in developing those fire trails.

This amendment not only does that but also ensures that they may be maintained. The Minister touched on something in the contribution she made about this amendment. She was critical of some of the contributions in

the second reading speech about the observed fires that have occurred in national parks previously. This amendment will effectively say that the fire trails may be maintained. I know I have used this line previously, but this is one of those times when Government members should help us to help them. We do not want to see any criticism of how a fire may have been fought coloured or tainted through the prism of a lack of maintenance of those fire trails.

Whilst the Minister was strong in her support for the professionalism of the National Parks and Wildlife Service team, it would be unfair of the Committee to not provide every single tool that is possible to those firefighters so that they can demonstrate that professionalism. If it is the case that the Minister calls any criticism unfair, that criticism should be minimised as much as possible. As the Hon. Sarah Mitchell articulated in her contribution to debate on the amendment, it says "it may". There is nothing in the amendment that will create a burden or enforce aspects of firefighting or consultation or maintenance on the Government. But it does provide a level of certainty and clarity for this Government—and I certainly have some views about the clarity and advice that this Government needs, and it probably needs more than what the amendment before the Committee provides.

It will also provide future governments and others that read the legislation as passed and the Acts that may or may not flow from the passing of the bill with very clear instructions and guidance as to what it is that the Parliament, when passing the bill, thought was best practice and was something that should occur in terms of these fire trails. It is clear that the Minister also indicated in her contribution that there is no doubt that the National Parks and Wildlife Service—and, indeed, the Government—is reliant on those carbon credits to ensure that it minimises the risk of fire as much as possible. Ultimately, the loss of those carbon credits is detrimental to the financials of the maintenance of this Great Koala National Park. If it is so tenuous that it will put a lot of the house of cards at risk if there is a fire—and we have articulated our views about what we think is a Ponzi scheme of carbon credits that the Government has dodged up to try to justify a lot of this—and the Government does need to have this Ponzi scheme uninterrupted so that it can try to con its way through funding this work, then it should be walking towards us on bended knee and thanking us for moving the amendment.

It is unfortunate that the Government does not necessarily want to do that. Maybe that is because, ultimately, the Government is aware that it is a Ponzi scheme and maybe it is not so worried if there is a fire because it knows that it is all, as I said, a house of cards and could collapse at any minute. But the burning of the timber that exists now in the boundaries that will border the Great Koala National Park, as articulated by the Minister in her second reading speech, will perhaps risk, again, damaging the fragile ecosystem that exists there.

I seek an extension of time.

Leave not granted.

The CHAIR (The Hon. Rod Roberts): The Hon. Sarah Mitchell has moved Opposition amendment No. 8 on sheet c2026-314A. The question is that the amendment be agreed to.

The Committee divided.

Ayes 14
Noes 18
Majority.....4

AYES

Banasiak	Farlow	Overall
Barrett	Franklin	Rath (teller)
Borsak	Merton	Ruddick
Carter	Mitchell	Tudehope
Fang (teller)	Munro	

NOES

Boyd	Graham	Mookhey
Buckingham	Higginson	Murphy (teller)
Buttigieg	Hurst	Nanva (teller)
Cohn	Jackson	Primrose
Faehrmann	Kaine	Sharpe
Govind	Lawrence	Suvaal

PAIRS

MacDonald	D'Adam
Maclaren-Jones	Houssos
Ward	Moriarty

Amendment negatived.

The Hon. SARAH MITCHELL (23:41): I move Opposition amendment No. 9 on sheet c2026-314A:

No. 9 **Plan of management**

Page 15. Insert after line 29—

39B Plan of management

(1) A plan of management required to be prepared under the *National Parks and Wildlife Act 1974*, section 72 for reserved land must be prepared within 12 months after the commencement of section 11.

(2) A plan of management for reserved land must include a recreation strategy for the land that deals with the following—

(a) the road, track and trail network available for public recreational use,

(b) camping areas, including dispersed camping areas,

(c) areas in which dogs and horses may be permitted,

(d) proposed recreation infrastructure and a timetable for delivering the infrastructure.

(3) The NPW Minister must table a plan of management for reserved land in each House of Parliament within 5 sitting days of the House after the plan is adopted.

(4) In this section—

reserved land means land listed in Schedule 1, sections 1–5.

The amendment goes to a plan of management. Any national park requires a plan, but, by requiring a plan of management to be adopted within 12 months, we will give the public clarity on where they can undertake activities. The absence of a legislated requirement for a plan means that the Government can simply gazette the park and have no plan of management. This is a commonsense amendment that should have been considered as part of the original bill. I move this amendment for the reasons outlined in the debate in the other place. It is about providing certainty for the community, because we are still hearing a lot of concerns about what will happen to access once the land becomes part of the national park estate. People want certainty about whether tracks will remain open, camping will continue or horseriding will be permitted, and about how recreational facilities will be improved and the land will be managed over the long term.

I briefly place on record in this place the concerns of some lower House members about the feedback they have received from their communities. There have been stakeholder meetings. Members—including the member for Coffs Harbour, the member for Clarence, the member for Oxley and the member for Myall Lakes—have told me that people are curious, including representatives from four-wheel drive clubs, mountain bike clubs, motorbike clubs and other groups that will want to use the new national park. The consistent and common feedback is that people have not yet been told where they will be allowed to do various activities. There is uncertainty around that. There have been no maps, trails or anything else provided to identify the locations where people will be able to do those activities. This amendment is important for the bill, and that is why we hope that members will support it.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (23:43): The Government prefers the bill as it is and does not support the amendment.

The Hon. MARK BANASIAK (23:44): The Shooters, Fishers and Farmers Party supports the amendment. It requires relevant management plans to be prepared within 12 months of the commencement of section 11. It also requires a recreation strategy addressing the public road; track and rail network; camping, including dispersed camping areas, where dogs and horses may be permitted; and proposed recreation infrastructure with a delivery timetable. Those are practical questions that people who use these forests will want answered. They need to know where they can travel, where they can jump, where they can camp and what facilities are actually proposed. General statements about recreation do not give a family or a local club enough information to plan an activity.

The requirement to address dispersed camping is particularly useful. Recreation should not be discussed only in terms of a handful of developed visitor sites. The planning process should expressly consider different ways people use the landscape and explain how those uses will be managed. The same applies to dogs and horses. This amendment requires a strategy to deal with areas where they may be permitted. It does not make those activities lawful everywhere, and it requires these questions to be addressed in the plan rather than granting blanket permission. The timetable for proposed infrastructure also improves accountability. People should be able to distinguish a proposal with an identified delivery schedule from an aspiration that could be repeated for years without progress.

Once a plan is adopted, it must be tabled within five sitting days of each House of Parliament. That gives Parliament access to the document and an opportunity to question whether the recreation commitments have been properly addressed. The 12-month deadline concerns preparation. This amendment does not expressly require adoption within that same period. It does not guarantee that existing routes will remain open, and we will continue to press those issues in the broader protection of existing access. Even with those limits—requiring a timely plan, express recreation strategy and parliamentary tabling—it is a worthwhile improvement. The Government should be willing to put its recreation promise into documents that people can read and Parliament can examine.

This issue was brought up extensively in the inquiry into access to public lands and waterways by a broad range of recreational users. They are calling out for a comprehensive understanding of what can and cannot be done across not just national parks but all public land in New South Wales so they can freely engage in recreation and cross-tenures as part of that recreation. Many people love traversing through our public lands and experiencing all different types of public land, but they struggle to do that because there is no clear map or indication of what can be done where. Perhaps starting slowly with the Great Koala National Park is a good way of gradually introducing such a proposal and implementing a map or scheme. With those remarks, I commend the amendment to the Committee.

The Hon. WES FANG (23:47): Despite the invitation from the Hon. Stephen Lawrence to filibuster this bill, clearly we have not been filibustering, and I expect that we will vote on this amendment tonight. I will keep my remarks very brief to indicate that members can thank the Hon. Stephen Lawrence for the fact that we are still discussing these amendments. I put that on record.

The Hon. Stephen Lawrence: You shouldn't let other people control you, Wes.

The Hon. WES FANG: Let us see just how much control there is tomorrow.

The Hon. Stephen Lawrence: It is all about control.

The Hon. WES FANG: Yes, it is. I am sure the 41 other members in this place are loving your contribution, my friend.

The CHAIR (The Hon. Rod Roberts): I draw the Hon. Wes Fang back to the amendment before the Committee.

The Hon. WES FANG: This is an incredibly sensible amendment. My colleagues the Hon. Sarah Mitchell and the Hon. Mark Banasiak have outlined quite clearly why the amendment should be adopted by the Committee. If those two arguments were not enough to persuade the minds of the Legislative Council, then I simply point members to the fantastic contribution of the Leader of The Nationals, the member for Coffs Harbour, in the other place. He so clearly articulated in his contribution the way that this amendment will benefit the community and also the Government by ensuring that the plan of management that could be developed, submitted and adopted actually aids us in so many ways. Road trails, track networks and camping areas where dogs and horses may be permitted are all things that the Government says it wants to bring to the area by way of increasing tourism. Developing this park as a tourist attraction can be further aided and enhanced by adopting this amendment. It is almost impossible to comprehend why the Government, in reading this amendment, does not actually value or recognise what the amendment will bring it.

The work that has gone on behind the scenes of this amendment has been done with a level of consideration, forethought and consultation—which I think is the most important aspect of this. Members have seen that this Government is very poor on consultation in a number of bills that have come before them this week. The Opposition has already articulated quite clearly the concerns we have about the consultation on this bill. This small amendment might be minor in stature, but it is so important and major in terms of its ability to guide and shape the park and to make it better. We often say that this Government needs to be better. It has the opportunity to make this bill better with this small amendment that has such a mighty heart. I note that there will be a five-minute division and a count of the vote before we hit midnight. I take the opportunity to again encourage members to support this amendment. I tell members who are perhaps being guided by a caucus decision to not necessarily let that bind them. This is about the park. This is about making sure—

The Hon. Mark Banasiak: He's right, Steve. Don't let anyone control you.

The Hon. WES FANG: You knew exactly where I was going! Members should not let a decision of the caucus bind them, because they are their own people. I know that there are Government members who perhaps feel curtailed by the decisions of a left-wing Minister who does not necessarily value a lot of the things that we are trying to bring forward with this amendment. They should not let that stop them. I ask them to look into their heart and look at the amendment that is before them, and allow themselves to be the park and to be the amendment. In circumstances where an amendment speaks such volumes, I ask members to let its voice be heard. I commend the amendment to the Committee.

The CHAIR (The Hon. Rod Roberts): The Hon. Sarah Mitchell has moved Opposition amendment No. 9 on sheet c2026-314A. The question is that the amendment be agreed to.

The Committee divided.

Ayes 14
Noes 18
Majority.....4

AYES

Banasiak	Farlow	Overall
Barrett	Franklin	Rath (teller)
Borsak	Merton	Ruddick
Carter	Mitchell	Tudehope
Fang (teller)	Munro	

NOES

Boyd	Graham	Mookhey
Buckingham	Higginson	Murphy (teller)
Buttigieg	Hurst	Nanva (teller)
Cohn	Jackson	Primrose
Faehrmann	Kaine	Sharpe
Govind	Lawrence	Suvaal

PAIRS

MacDonald	Moriarty
Maclaren-Jones	Houssos
Ward	D'Adam

Amendment negatived.

The CHAIR (The Hon. Rod Roberts): According to the resolution of the House, I will leave the chair until the ringing of the long bell.

[*The Chair (The Hon. Rod Roberts) left the chair pursuant to resolution at 00:00 on Friday 23 October 2026.*] [*Continuation of sitting of Thursday 22 October 2026.*]

[*The bells having been rung, the Committee of the Whole resumed at 09:00 with Temporary Chair (The Hon. Taylor Martin) in the chair.*]

The Hon. MARK BANASIAK (09:01): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 1, 2, 4 and 8 on sheet c2026-309B in globo:

No. 1 **Pre-implementation report**

Page 2, clause 2, lines 7–10. Omit all words on the lines. Insert instead—

(1) This Act commences as follows—

(a) for Part 1—on the date of assent to this Act,

(b) otherwise—on a day or days to be appointed by proclamation.

(2) A day appointed under subsection (1)(b) must not be earlier than—

(a) the day on which a relevant project declaration is made, and

(b) the day that is 30 days after the pre-implementation report is tabled in both Houses of Parliament.

No. 2 **Pre-implementation report**

Page 2, clause 3. Insert after line 31—

pre-implementation report—see section 7A(1).

No. 4 **Pre-implementation report**

Page 2, clause 3. Insert after line 36—

relevant project declaration means a declaration made under the *Carbon Credits (Carbon Farming Initiative) Act 2011* of the Commonwealth, section 27 that includes land specified in Schedule 1.

No. 8 **Pre-implementation report**

Page 3. Insert after line 29—

7A Pre-implementation report

(1) The NPW Minister must prepare and table in both Houses of Parliament a ***pre-implementation report*** that sets out the way the government proposes to implement this Act.

(2) Without limiting subsection (1), the pre-implementation report must include the following—

(a) the details of eligible offsets projects included in a relevant project declaration, including the following—

(i) the name of the project,

(ii) the name of the project proponent,

(iii) the land covered by the project,

(iv) the carbon credit methodology used for the project,

(v) the status of the project with the Clean Energy Regulator of the Commonwealth, including—

(A) outstanding approvals, and

(B) conditions attaching to an approval,

(vi) the names of persons with an interest in Australian carbon credit units created for the project,

(vii) when the Australian carbon credit units are expected to be registered,

(viii) when the Government expects to start generating revenue from Australian carbon credit units,

(b) the financial estimates and assumptions underpinning implementation, including the following—

(i) the number of Australian carbon credit units forecast to be created and when the credits will be issued,

(ii) when the Australian carbon credit units are expected to be sold and the anticipated sale price,

(iii) forecast gross and net revenue from the sale of Australian carbon credit units,

(iv) the forecast cost associated with establishing and managing the Great Koala National Park,

(v) whether there is expected to be a shortfall in revenue and if so, how implementation costs will be met,

(vi) material risks associated with financial modelling and assumptions,

(c) the ongoing obligations to the State from the project, including—

(i) restrictions on future land use,

(ii) monitoring, reporting and verification,

(iii) obligations arising from bushfire, drought, illegal clearing or another event that reduces carbon storage,

(iv) circumstances in which Australian carbon credit units may be required to be relinquished, replaced or otherwise accounted for,

(v) the government agency or other party with legal and financial responsibility for eligible offsets projects,

(vi) arrangements to manage or mitigate risk, including insurance or contingency funding,

(d) the actual and forecast impact of land transfers and forestry operations on the following—

(i) forestry corporation employees,

(ii) harvesting and haulage contracts, timber mills and other businesses dependent on timber supply,

(iii) other businesses relying on access to State forests,

(iv) employment and economic activity in affected regional communities,

(e) the details of each assistance, compensation, retraining, redeployment or business transition program associated with the establishment of the Great Koala National Park, including—

(i) the government agency administering the program,

(ii) the funding allocation and whether funding is capped,

(iii) eligibility criteria for participation,

(iv) exclusions and application deadlines,

(v) how assistance under the program is assessed,

(vi) the expected timeframes for determining eligibility and making payments,

(vii) review and complaint mechanisms,

(f) the arrangements for maintaining access—

(i) to private property and leased land, and

(ii) for maintaining public utilities, and

(iii) for recreational and other lawful activities,

(g) the allocation of responsibilities for road maintenance and emergency access.

(3) The pre-implementation report must also include details about the following, include staffing allocations and implementation timetables—

(a) strategies for bushfire prevention and management, including hazard reduction,

(b) pest animal and weed control.

(4) In this section—

Australian carbon credit unit has the same meaning as in the *Carbon Credits (Carbon Farming Initiative) Act 2011* of the Commonwealth.

This package of amendments requires the Government to explain its implementation plan before the main provisions start. Parliaments should not be asked to accept costs, carbon liabilities and access consequences on trust and then receive the details after the decision has taken effect. The sequence should be disclosure first, followed by the time to examine it. Amendment No. 1 starts at part 1 on assent and leaves the remaining provisions to proclamation, subject to proposed conditions. A relevant carbon project declaration must have been made and at least 30 days must have passed since the implementation report was tabled in both Houses. Amendments Nos 2 and 4 supply the definitions linking that condition to the report and the formal Commonwealth project declaration covering schedule 1 land.

Amendment No. 8 sets out the regulatory substance of the report. It must identify the project proponent, land methodology, regulatory status, credit interest and expected timing of credits and revenue. The financial information includes forecast credits, prices, gross and net receipts, establishment and management costs, funding shortfalls and material risks. It must also explain the continuing obligations, land use restrictions, monitoring and verification, consequences of fire and other reversals, possible credit replacement or relinquishment, responsible parties and risk mitigation.

The report extends beyond carbon. It covers employment, business effects, assistance programs, funding caps, eligibility, exclusions, deadlines, decision payment times, review arrangements, and it must explain access for holdings, utilities, lawful recreation, road and emergency responsibilities, and staffing and timetables for fire, pests and weeds. This package does not guarantee the forecasts or approve carbon project merits. It requires the Government to state its case in a document that the Parliament can examine before the main changes proceed. We believe that is a reasonable condition on implementation. I ask the Committee to support the amendments.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (09:03): On behalf of the Government, I indicate that we oppose these amendments. Rather than repeating myself, I flag to the Committee that there is a whole range of amendments being put forward by the Shooters, Fishers and Farmers Party, essentially trying to set up a bespoke system for the Great Koala National Park when those matters are dealt with through the plans of management and various advisory committees that already exist for national parks. They are well known and well understood, and there are a bunch of those.

In terms of the implementation, the National Parks and Wildlife Act is quite comprehensive. It has a whole range of rules that already set out the existing arrangements. Rather than repeating myself, I will note the issues now. They are around a pre-implementation report, access roads, maps, existing interests, the way vested land operates, easements and rights of way, motorsports, annual reporting and a whole range of other matters. I flag that the Government will not support all those amendments, on the basis that they are covered in the existing way in which parks operate across the State. We do not believe that it is wise to set up a bespoke system just for this park. Long term, the member wants to talk to us about the reforms to the way in which parks are done overall—I am sure he probably does. Our door is always open, but I just flag to the Committee that we will oppose all of those amendments.

The Hon. SARAH MITCHELL (09:05): I offer a contribution to debate on behalf of The Nationals and indicate that we support these amendments. In debate yesterday—although technically, in *Hansard*, it will be earlier today—

The Hon. Penny Sharpe: It's still my birthday.

The Hon. SARAH MITCHELL: It is still Penny's birthday. It is the festival of Penny, a gift that keeps giving. We raised our concerns on community consultation, or lack thereof. Many questions still come about how the park would operate and where access would be available, so we think that the suggestion in these amendments to put in place a pre-implementation plan and a report back to Parliament is sound. The Minister commented that the National Parks and Wildlife Act already covers a lot of those issues and that it does not make sense to set up bespoke arrangements for this park. However, Government members have spent a lot of time out in the community saying that the park being set up is special and wonderful. It would be akin to visiting the Great Barrier Reef and all of those other places.

On the one hand, they are happy to put it out there as the gold standard mega national park that will do all those things. Yet when we want another layer of protection, scrutiny and transparency for the community, the argument is that is not necessary. It does not hurt to have more plans in place for pre-implementation. The Nats have always pushed for certainty for the community. We know that the Government will do this park and that the legislation will pass this place eventually, but we are happy to support any measures like these amendments that will put in more stringent processes in place to make sure that it is done in a proper way.

The Hon. JACQUI MUNRO (09:07): On behalf of the Liberal Party, I indicate that we do not support these amendments. While we are sympathetic to the aims of the member for greater scrutiny, we believe enough provisions exist in the bill that go to the member's intention. Therefore, we do not support the amendments.

The Hon. WES FANG (09:07): I support my colleague the Hon. Sarah Mitchell in her confirmation that the National Party supports the amendments moved by the Shooters, Fishers and Farmers Party. I also support the member who moved the amendments, the Hon. Mark Banasiak and note that he did it in good faith. The first thing I want to say about the amendments probably covers off part of the contribution of the Leader of the Government. For the Leader of the Government to stand up in this place and effectively say that she is going to make one contribution for the amendments that are before us and that will be it to save time is disrespectful to the process of the Parliament and actually disrespectful to the member moving the amendments. With each amendment that is moved, whether they were moved after leave was sought to move those amendments as a group or they are moved singularly, there is a need to look at, examine and vote on each as they are moved. Making a blanket statement that effectively covers all of the amendments is problematic and disingenuous of the Government.

I suggest to the Leader of the Government that there should be a little bit more meat on the bone, shall I say, in terms of contributions, because ultimately this bill will have a dramatic impact on rural and regional New South Wales, particularly on the Mid North Coast. In those circumstances, the community is owed at least a detailed and thorough explanation if the Government seeks to oppose the amendment. I encourage the Leader of the Government to make a further contribution in relation to this set of amendments. It is quite clear that the amendment moved by the Hon. Mark Banasiak is easily supported, because it provides an opportunity for the Government to further examine and provide a pre-implementation report, in particular, not only to the Parliament, which is the nexus where the issues will be managed, but also for our communities.

Ultimately our communities will be bearing the brunt of these decisions. In circumstances in which the Government seeks to make sweeping and wideranging changes, it is incumbent on the Government to provide clarity to the community. This pre-implementation report that the amendment seeks to have included is quite clear. For the benefit of the Committee, let me outline in greater detail some of that pre-implementation report for members who may not have looked at the amendment. Amendment No. 8, Pre-implementation report, states:

Page 3. Insert after line 29—

7A Pre-implementation report

(1) The NPW Minister must prepare and table in both Houses of Parliament a ***pre-implementation report*** that sets out the way the government proposes to implement this Act.

That is important. It is not an unreasonable suggestion to adopt as an amendment to the bill. It is quite sensible that, prior to implementation, the Government outlines how, why and the impacts et cetera that are almost expected. Because of the breadth of the changes moved by the Government, and because the requirement for that report was not part of the bill in the first instance, the Hon. Mark Banasiak had to move this amendment. The amendment continues:

(2) Without limiting subsection (1), the pre-implementation report must include the following—

(a) the details of eligible offsets projects included in a relevant project declaration, including the following—

(i) the name of the project,

(ii) the name of the project proponent,

(iii) the land covered by the project,

(iv) the carbon credit methodology used for the project,

(v) the status of the project with the Clean Energy Regulator of the Commonwealth, including—

(A) outstanding approvals, and

(B) conditions attaching to an approval,

The Opposition has outlined clearly in the second reading stage and during consideration of amendments that there are a number of questions about the manner in which the carbon credit scheme will be rolled out in the park. The pre-implementation report would provide further clarity for communities that are screaming out for more information about carbon credits. It is clear that there are questions about the carbon credit program that will fund the park. I need only refer to the contribution yesterday of Ms Abigail Boyd to know the questions that even The Greens have about the scheme and whether it will actually reduce carbon as a carbon credit scheme. Amendment No. 8, which includes a requirement for a pre-implementation report, will provide clarity to the community about the carbon credit scheme. I will continue on. Subparagraphs (vi), (vii) and (viii) state:

(vi) the names of persons with an interest in Australian carbon credit units created for the project,

(vii) when the Australian carbon credit units are expected to be registered,

(viii) when the Government expects to start generating revenue from Australian carbon credit units,

That is, I think, incredibly important for the Parliament. I am sure the Treasurer in particular is interested in these figures, but it is also clear that the community and the Parliament should be made aware of these at the time. By adopting a pre-implementation report, as is proposed by this amendment, a lot of these matters will be able to be ventilated and clarity provided to the Parliament and to the wider community, the same community that is impacted by these changes. I will move on, because I know I am fast running out of time and there is a lot to say. Paragraph (b) (i) states:

(b) the financial estimates and assumptions underpinning implementation, including the following—

(i) the number of Australian carbon credit units forecast to be created and when the credits will be issued,

This aspect of the pre-implementation report is incredibly important for the Parliament to understand what the forecasting is. Obviously, I suspect there has been modelling in terms of what has been proposed by the Government in terms of the carbon credit scheme, but also I think the modelling is incredibly important because we know that the Leader of the Government in particular has indicated that it is a government policy in relation to these carbon credits that they will not be sold to any industry that is involved in fossil fuel. They are going to be sold, indeed, to manufacturing industries, but they are not actually going to be sold to any fossil fuel industries.

There clearly has to be a question about how they are going to delineate a lot of these things, because I suspect a lot of manufacturing industries will, in some way, involve a level of fossil fuel. The Government has not quite articulated that policy in granular detail, and that granular detail may well impact the way that these forecasts are modelled. The pre-implementation report seeking to have that forecasting published prior to

implementation will provide the community with some better understanding about how these matters are going to be progressed by the Government.

It is notable that in the second reading debate yesterday, one voice was completely missing. The forestry Minister was not heard at all. I wonder why the Minister responsible for forestry in this State did not speak on the second reading of this bill. That is a matter for her and a matter for the Government, but it did not provide clarity about what the Government is going to do in terms of these matters. That is disappointing because our communities did not get a chance to hear from the forestry Minister about effectively shutting down forestry in this area.

The Hon. Anthony D'Adam: Point of order: The member's comments should address the amendment before the Committee. Reflections on the forestry Minister and whether or not they participated in the second reading debate is not speaking to the amendment. The member should be drawn back to the substance of the amendment.

The Hon. WES FANG: To the point of order: I was clearly speaking to the amendment. I said that the fact that the Minister did not make a contribution in the second reading debate means there are questions around the pre-implementation of this policy. Given that the Minister did not actually provide a contribution to the second reading debate, hopefully this amendment on the pre-implementation report will provide further clarity to the Parliament. That is my submission in terms of the point of order.

The TEMPORARY CHAIR (The Hon. Taylor Martin): It is early in this second half of Thursday, according to *Hansard*. I draw the Hon. Wes Fang back to the amendment and we will go on from there. The member had a good point, so I will allow the Hon. Wes Fang to redress.

The Hon. WES FANG: Roger that. Moving on into further detail of the amendment, paragraph (b) (ii) states:

> (ii) when the Australian carbon credit units are expected to be sold and the anticipated sale price,

This clearly is something that is absolutely required as part of the pre-implementation report. We, as a Parliament, need to know exactly what revenue is going to be generated, because there has not been any clarity around the modelling that underpins a lot of the assumptions about the park. In fact, I would encourage the mover of the amendment to clarify whether the sale price he is referring to is a global price or an Australia-only price. Once I have completed my contribution, it would be good if he could clarify what he was anticipating—whether it was a global market price or an Australian market price only—given that the Minister has indicated there will be restrictions around the part of the market these credits can be sold on. I seek clarity because that I think the Committee needs to know that now.

Paragraph (b) (iii) states:

> (iii) forecast gross and net revenue from the sale of Australian carbon credit units …

Again, this is vitally important because the Minister has articulated the policy of the Government's that these carbon credits effectively have a big asterisk next to them. That big asterisk means that they cannot be used in fossil fuel industries. That raises a number of questions about the way that the Government is seeking to take these carbon credits to the market. The idea of having a market-based scheme is that the market will dictate a price and then an equilibrium will be found where the seller and the buyer will effectively work out a price that the exchange can occur at. If it is the case that that we are seeking to artificially limit the market by saying that there will be no fossil fuel industries that are able to purchase these credits, I think it is pretty clear that the general market where these carbon credits are being traded is not applicable to the carbon credits that apply to this park.

Ultimately, you would expect that industries that use fossil fuel are typically the ones that are required to purchase carbon credits, so when the Government says, "We will not sell those carbon credits to certain industries," it is effectively limiting the base to which those credits can be sold. In effect, that limits the price that can be achieved. It is not as if the Government can go to the Parliament and say, "This is the price that carbon credits can be sold at," because the market is being artificially controlled by the Government when it says that fossil fuel organisations cannot be part of the scheme. I am running out of time. I will ask the member to clarify those points that I asked about.

The Hon. MARK BANASIAK (09:22): The Hon. Wes Fang asked me about the report and whether it would be a domestic price or a global price. I think the will of the Committee would be that it would want to see both. I think that is how it should be interpreted. That is my reply.

The Hon. WES FANG (09:23): Continuing on, I think paragraph (b) (iii) is important because we know that the carbon credits that are in the market need to be understood. I have made it pretty clear that I expect that there will be a price impact from limiting the market. By a pre-implementation report being provided to the

Parliament about that forecasting, the Parliament and the community will be able to better understand the revenue that will be generated from the park. That is incredibly important. I reiterate that it is not just members of this place who are seeking to better understand the changes of this Government through the pre-implementation report; it is also our communities, because our communities have been the most impacted by the changes. It is not an unreasonable thing. For the Leader of the Government to stand up and effectively dismiss the amendment by saying it is covered under the national parks and wildlife legislation that currently exists is disingenuous.

This park, in particular, is special. The Hon. Sarah Mitchell was clear in her contribution that there are perhaps a number of special provisions with this park. I do not know of any other park that is so reliant on the sale of carbon credits. We know the Government sought a change to the way that carbon credit accrual could be measured and sold. The Federal Government has clearly adopted those changes. I know there were issues in the Federal Parliament about that. That is not a matter for us. As a State Parliament, we have these amendments that will provide some clarity about those credits. The Hon. Sarah Mitchell was right to say that the park is special because of those carbon credits.

Part of the reason why the pre-implementation report is so important to adopt as an amendment is because the Government could seek to do this time and time again, maybe with other national parks or other areas. Other amendments have been moved in this place and have been tailored to looking at that issue. That is why the pre-implementation report is important. Moving to (b) (iv), it says "the forecast cost associated with establishing and managing the Great Koala National Park". Whilst that is buried down in proposed section 7A (2) (b) (iv), it should have perhaps been moved right to the top because it is really the nub of the issue. There has been a lack of clarity from this Government about the cost associated with the establishment and management of the Great Koala National Park.

The pre-implementation report will provide to the community, the Parliament and the Treasurer—because I'm not sure the Treasurer even knows what this is going to cost—greater clarity around the cost of having the Great Koala National Park rolled out and gazetted. That is incredibly important for the Parliament to understand. It is incredibly important for our communities to understand. They have had a lot of upheaval in terms of industry, jobs and, indeed, the social fabric of those communities. A pre-implementation report providing clarity about how the costs are going to be measured and adopted by the Parliament and the Government, even if they are forecasts, will force the Government to put on the table what the forecasts are. At this stage, I am not sure that has been provided with a level of certainty.

There are guidelines, estimates and guesses. The pre-implementation report requiring the publishing of the forecasts means that the community will have greater clarity and there will be an opportunity for the Parliament and those members to understand the costs. I ask the Hon. Mark Banasiak if he could clarify, in a further contribution, whether it is just the forecast as a sum total figure, or whether it also includes the modelling, as that is not clear. Proposed section 7A (1) (b) states:

> (iv) the forecast cost associated with establishing and managing the Great Koala National Park,

I ask the member to provide some more clarity to the Committee in a later contribution. Moving on, the subsection further states:

> (v) whether there is expected to be a shortfall in revenue and if so, how implementation costs will be met,

I said that the other amendment should be moved straight to the top—number two with a freight train. I was going to say something else with another vernacular but, given the current circumstances, it is probably not appropriate. Knowing "whether there is expected to be a shortfall in revenue and if so, how implementation costs will be met" is so important for our communities. The carbon credit scheme—the Ponzi scheme, as I like to call it—that the Government is rolling out, which even Ms Abigail Boyd has said will not do anything to reduce a single tonne of carbon, is literally an accounting trick to try to get extra money from the Federal Government by way of carbon credits. If we curtail the number of entities that can purchase those carbon credits, it is important that the community and the Parliament know what the shortfall is and how it will be met.

I can see why the Government is so quick to dismiss this amendment. I can see why the Leader of the Government seeks to pull the wool over everyone's eyes by saying that we do not need a pre-implementation report because it is all there and it will all happen. It is quite clear why the Government does not want this amendment passed: because the amendment would effectively require the Government to provide clarity about the funding that it will receive from the carbon credits, the total cost of the park and, most importantly, how the cost of any shortfall in revenue will be met. The Government does not want to admit that the park may have a dramatic impact on the finances of the State Government. Creating the park is a "do it at all costs" matter for the Government. That is why the pre-implementation report is so important.

Whilst the Minister was very quick to dismiss the amendment, if people take the time to read it, as I have done, it is clear that some of what the member seeks to move is entirely reasonable. I am surprised there are not more parties supporting the amendment. Any party that pretends to be fiscally responsible and that claims to support transparency and accountability in how things are rolled out should support the amendment, because it requires the Government to clearly outline a lot of those matters prior to implementation. The Leader of the Government was reasonably clear in her contribution about what she viewed as a significant piece of legislation that would outline those matters, but I do not think the bill outlines these particular points. These particular points are incredibly important for the Committee to adopt because, at the moment, there are a lot of questions about the cost and any shortfall. Ultimately, the pre-implementation report, if adopted, will provide clarity prior to adoption. That is the key aspect of this amendment: "prior to the adoption".

The Hon. Jeremy Buckingham: Point of order: I take a point of order under Standing Order 98, which relates to tedious repetition. I have been listening carefully to the honourable member's contribution—a valedictory speech, I would also call it. He has made the same point about the pre-implementation plan six times now—just over and over again. It is clearly not adding to the debate and is clearly a tactic to delay a vote on the amendments. It is certainly repetitive and definitely tedious.

The Hon. Mark Latham: To the point of order: I must say that I found the contribution of the Hon. Wes Fang to be informative and of interest. It is only 35 minutes into the continuation of the sitting. As a consequence, it is hard to speak about repetition at this early stage on a Friday morning. What is more, I did not hear the matter repeated six times. If it was repeated a couple of times, it was with an energy and vibrancy in the honourable member's voice that made it quite fascinating and absorbing. As a consequence, the member, who is experienced in the House and obviously seeking re-election on the basis of these contributions, should be allowed to be in full flight and full flow.

The Hon. Scott Barrett: To the point of order: There is no way the Hon. Wes Fang's contribution can be considered repetitive, because he is clearly going through the amendments, line by line, and talking to each one of them. If he were talking about the same amendment over and again, fair enough. But he is clearly working through the list that he has in front of him. The issue of repetition is clearly not on the table here.

The TEMPORARY CHAIR (The Hon. Taylor Martin): I have considered all the contributions to the point of order. I sense a theme here. The Hon. Wes Fang will be mindful of what his colleagues have all just said. There are just under two minutes left for his contribution. The Hon. Wes Fang has the call.

The Hon. WES FANG: I note that I have asked a clarifying point of the mover. Before I ask him to respond to that, I will just say that subsection (b) (vi) says "material risks associated with financial modelling and assumptions." It is pretty clear that there are potentially material risks associated with financing. We hear the Treasurer all the time in question time talking about the cost of financing of the debt. If it is the case that there is going to be a shortfall in the funding for this park, I think it is not unreasonable for a pre-implementation report to indicate to the House and also the community about the financing model of that shortfall. These are all points that are very sensible and that are reasonable. The Hon. Mark Banasiak has moved them in incredibly good faith. There are further points that I will address after the member has had a chance to speak. But there are clearly some issues that the member is seeking to address in this amendment. Maybe the Hon. Mark Banasiak can actually provide some clarity.

The TEMPORARY CHAIR (The Hon. Taylor Martin): As there are no further members seeking the call, I will put the question. The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 1, 2, 4 and 8 on sheet c2026-309B. The question is that the amendments be agreed to.

The Committee divided.

Ayes 9
Noes 23
Majority.....14

AYES

Banasiak (teller)	Fang (teller)	Mitchell
Barrett	Franklin	Overall
Borsak	Latham	Ruddick

NOES

Boyd	Hurst	Murphy
Buckingham	Jackson	Nanva (teller)

NOES

Buttigieg	Kaine	Primrose
D'Adam	Lawrence	Rath (teller)
Faehrmann	Merton	Sharpe
Farlow	Mookhey	Suvaal
Govind	Moriarty	Tudehope
Higginson	Munro	

Amendments negatived.

The Hon. MARK BANASIAK (09:45): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 3, 6, 12, 13 and 15 on sheet c2026-309B in globo:

No. 3 **Existing access roads**

Page 2, clause 3, line 36. Omit "***relevant land holding***". Insert instead "***protected holding***".

No. 6 **Roads Act 1993**

Page 3, clause 5, lines 20–22. Omit all words on the lines.

No. 12 **Existing access roads**

Page 9, clause 24, lines 35–38. Omit all words on the lines. Insert instead—

protected holding means the following—

(a) land held by an owner within the meaning of the *National Parks and Wildlife Act 1974*,

(b) land held as a holding within the meaning of the *Crown Land Management Act 2016*,

(c) land subject to a continued relevant lease.

No. 13 **Existing access roads**

Page 10, clause 25(7), lines 18 and 19. Omit all words on the lines. Insert instead—

(7) The NPW Minister must not close an access road that is the only practical means of accessing a protected holding.

No. 15 **Existing access roads**

Page 11, clause 26(3)(b), lines 5–7. Omit all words on the lines. Insert instead—

(b) if the road is the only practicable means of access to a protected holding—the road may, despite the reservation, continue to be used to access the protected holding.

It makes sense to move the road-related amendments in globo.

The TEMPORARY CHAIR (The Hon. Taylor Martin): For the benefit of members, it was suggested previously that Shooters, Fishers and Farmers Party amendments Nos 3, 12, 13 and 15 on sheet c2026-309B would be moved in globo. The Hon. Mark Banasiak has also moved amendment No. 6 on the same sheet.

The Hon. MARK BANASIAK: The amendments protect necessary access to lawful holdings and make clear that that protection extends to specified leasehold land as well as private ownership. A person can depend on a single road regardless of whether their tenure is freehold or a continuing Crown lease. The legislation should recognise that practical dependence. Amendment No. 3 changes the definition reference to "protected holding". Amendment No. 12 supplies the detailed scope of land, including land held by an owner under national parks legislation, a holding under Crown land legislation and land under a continued relevant lease. The wording identifies the category as protected. It does not turn every informal use of land into a protected holding.

Amendment No. 13 prevents the Minister from closing an access road where it is the only practical means of reaching that protected holding. That is a focused safeguard. It does not give a person a general right to select any route through reserve land for any purpose. Amendment No. 15 addresses what happens later, when an access road becomes reserved. It permits continued use where the road is the only practical means of access to a protected holding despite the reservation. That includes the bill's mechanism under which a road may become reserved after 10 years. That latter point matters. Protecting access at the beginning is insufficient if the protection disappears when the road status changes. The person may still occupy the same holding and depend on the same road years afterwards.

Taken together, the amendments align the definition, the closure protection and the post-reservation protection, and give lawful holders a clearer basis for continued access while leaving the protection within its defined scope. Amendment No. 6 goes to Roads Act consent requirements. It removes the bill's special exemption

from section 138 of the Roads Act. The usual consent requirements would therefore apply where that section requires them for things done on or to a road. The legislation would not provide a blanket exemption from that process. A road can serve people and activities beyond the immediate park proposal. The normal legal process for consent to work on or affect the road should not be displaced by a broad exemption without good reason. The amendment removes that special exemption and leaves the ordinary section 138 requirements to operate where applicable. With those words, I commend the amendments to the Committee.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (09:49): The Government does not support the amendments. There are provisions within the National Parks and Wildlife Act that recognise access roads and easements as existing interests. Those provisions work in national parks across the State. A separate system for this park is unnecessary.

The Hon. SARAH MITCHELL (09:49): The Nationals support the amendments. The arguments put forward by the Hon. Mark Banasiak are sound. As with the amendments that we are proposing on this bill, these amendments add a bit more clarity and certainty, particularly for some of those existing access roads that the member just mentioned in his contributions, by ensuring that the Minister does not close an access road if that is the only practical means of accessing a protected holding. We make a bad bill slightly better by putting some of those provisions in place. Therefore, The Nationals are happy to support the amendments.

The Hon. JACQUI MUNRO (09:50): On behalf of the Liberal Party, I indicate that we do not support the amendments for the reasons the Government has already outlined.

The Hon. WES FANG (09:50): I was carefully listening to the debate, and I felt compelled to make a contribution in terms of the amendments moved by the Hon. Mark Banasiak. Having perused the amendments for a second time as the member was moving them, I noted that the Government and our Liberal colleagues have indicated that they are not prepared to support them, and I think they may not have understood them in detail. I want to understand why they are not prepared to support the amendments. Looking at amendment No. 3, obviously, there are existing access roads. It is clear—and we spoke about this in detail during the second reading debate and the debate on the amendments—that there will be a number of access roads within the park. We already discussed a number of reasons for the need for access in the park.

The Government has spoken about the park being a tourist spot. Good quality access is obviously needed for tourism, but it is also important for firefighting, emergency services and any number of other reasons that are not necessarily considered when quickly dismissing these amendments as moved in globo. Amendment No. 3, "Existing access roads", seeks to omit "relevant land holding" and insert instead "protected holding" at page 2, clause 3, line 36. That will be further explained as I move through the amendments, but I think that is a reasonable amendment. The member has also moved amendment No. 6, "Roads Act 1993". It seeks to omit all words on lines 20 to 22 at page 3, clause 5.

That is a simple amendment that obviously should not be looked at on its own because it is, indeed, moved in globo with other amendments. The member could have moved that amendment separately but, as the amendments were moved as a package, it needs to be viewed through that prism. I will continue with a detailed explanation as I work my way through these fantastic amendments moved by the Hon. Mark Banasiak. Amendment No. 12, which has also been moved by the member, is titled "Existing access roads". The amendment, just for clarity for the House, because I note that not a lot of members actually have copies of these amendments—and I encourage them to come and get a copy of the amendments if they are trying to follow along, and I am sure that the amendments are available online for those following along at home. It states:

> Page 9, clause 24, at lines 35-38, omit all words on the lines. Insert instead—
>
> ***protected holding*** means the following—
>
> (a) land held by an owner within the meaning of the *National Parks and Wildlife Act 1974*,
>
> (b) land held as a holding within the meaning of the *Crown Land Management Act 2016*,
>
> (c) land subject to a continued relevant lease.

Viewed on its own, I understand that would be perhaps somewhat nondescript, but I will turn back to the amendment that was earlier discussed, which is amendment No. 3. What we are seeking to do here, I guess, in this package of amendments—we are discussing a protected holding, and amendment No. 12 provides that definition in the bill. I think that what is important about the member moving these amendments in globo is that the—

The Hon. Emily Suvaal: Point of order: The Hon. Wes Fang has now said the word "amendment" about 30 or 40 times. It is unclear to me how this is enhancing the debate. Simply reflecting on amendments and reading them out verbatim is tedious repetition, and I ask you to call him to order.

The Hon. Sarah Mitchell: To the point of order: With the greatest of respect to the Hon. Emily Suvaal, I must say that we are literally in the Committee stage, considering amendments. This is the time to talk about amendments. The member is addressing the amendments before the Committee. He is entitled to do that under the rules of debate of the Committee, and that is exactly what he is doing.

The Hon. Stephen Lawrence: To the point of order: Standing Order 98 is designed to deal with tedious repetition or continued irrelevance, and it has a long lineage in Westminster parliaments. That standing order and one similar to it are designed to deal with the exact situation of a member not seeking to make a genuine contribution but simply seeking to prolong debate. Members can speak to the point of order and try to pretend that that is not occurring. But the reality is that all members in this Chamber know that the Hon. Wes Fang is engaging in that sort of idiosyncratic personal behaviour, and he is tediously repeating himself. He is engaging in prolonged irrelevance. It is a real situation, and it is to be determined not just by reference to analysing what he is saying and making arguments based on that. The rules exist because of those things but also because of the effect of the behaviour on members and their families and on the staff of the Parliament. We should confront what is actually going on. All members know that the Hon. Wes Fang is not genuinely making a contribution. He is engaging in—

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Stephen Lawrence has made his point.

The Hon. Stephen Lawrence: The member's behaviour should be stopped and an order made that it stop. If there needs to be division about that, it should occur.

The TEMPORARY CHAIR (The Hon. Taylor Martin): I understand the point that the member is making.

The Hon. Sarah Mitchell: Further to the point of order—

The TEMPORARY CHAIR (The Hon. Taylor Martin): I am keen to hear from the Deputy Leader of the Opposition. Other members are also indicating that they wish to make contributions to debate on the point of order.

The Hon. Sarah Mitchell: As I said in my earlier contribution, the member is entitled to speak to amendments. It is very interesting that we have been in the Chamber for less than an hour and Government members are already a little bit testy. We are here because the House determined that we would sit until midnight last night and come back at 9.00 a.m. today to consider this legislation. It is a Government bill, and we are back today as the result of a Government motion. Government members now try to take points of order to stop Opposition members speaking to legislation that they are entitled to speak to. This is our job. This is what we have been elected to do. If Government members are unhappy that we are here on a Friday, that is a matter for them. We could have left it to the next sitting week, but we did not. To try to cut off members who want to make genuine contributions is not how this House works. We are a house of review. If we want to debate every single amendment to the bill, we can. We are entitled to do that without the Government trying to stop it.

The Hon. Anthony D'Adam: To the point of order: This place operates not just according to its standing orders but also according to the norms of behaviour. This is an important lesson that the Parliament has failed to recognise. When members stretch the norms and press the rules too far, ultimately change comes—the Cullen case is a classic example of that—and does irreparable damage to the institution. When the majority clearly is of one opinion and there is a clear sentiment that the bill will pass, persistent obstruction will do irreparable damage to the norms of the institution.

The Hon. Scott Barrett: To the point of order: I share the anger. I am furious that we are here. I want to go home. I want to see my family. I have other commitments at home with them. But all that is happening today is the Hon. Wes Fang using the rules of Parliament to get his point across. If he wants to use that to delay a bill he does not like, he is well within his rights to do that, in the same way that other members used the rules of the House to bring us back today and extend the sitting last night until midnight so that they can pass a bill that they want to pass. We are verging on the spirit of cricket debate here. There are either rules or there are not. No member has accused the Hon. Wes Fang of being outside the rules as yet. There have been suggestions that he is outside the rules but there is no ruling yet. As much as I want to go home, he is entitled to do this, as is any member.

The Hon. Jacqui Munro: To the point of order: I add my voice to the debate because the sanctimony coming from the Government is quite extraordinary. We are here because the Government has basically forced us to be here, along with other members who voted with the Government who are not here themselves. We have to be here. The member is absolutely entitled to have his say on any matter within the standing orders. He is being relevant to the matters at hand. Yes, it is detailed work. That is part of our job. I also do not particularly want to be here, but we have been asked to be here by the Government and forced to be here by the House. Members who

voted with the Government are not here, which is enormously frustrating. The Government needs to check its privilege and sit down and listen, because it caused this problem.

The Hon. Emily Suvaal: Further to the point of order: I clarify for the Committee that the point of order I raised was about tedious repetition. We have strayed into canvassing a range of matters, some of which reflect the conduct of other members. That is unparliamentary. In the most recent contribution, the Hon. Jacqui Munro commented on members who may or may not be here. It is in breach of the standing orders to comment on a member's presence in the Chamber. There is precedent for that. I ask her to withdraw those disorderly remarks.

The TEMPORARY CHAIR (The Hon. Taylor Martin): That is a matter for the Hon. Jacqui Munro to consider. I will not get into points of order taken on points of order.

The Hon. Wes Fang: Further to the point of order: To the numbers of points of order that have been taken, I make the point that I was previously a Deputy President and Chair of Committee of the Whole. I specifically recall circumstances where we had to come back the next day to debate amendments to bills. The first time I chaired in Committee was on a Friday sitting to debate amendments to the Roads and Crimes Legislation Amendment Bill 2022 regarding the blockading of transport routes. The Greens members were unhappy with that and moved a number of amendments. As Chair, I did not curtail a member speaking on any of those amendments. That is the spirit of this Committee.

The TEMPORARY CHAIR (The Hon. Taylor Martin): Members will come to order.

The Hon. WES FANG: Ultimately, a number of members have used the standing orders to achieve outcomes in this place. What I am simply doing is speaking to the amendments, I think in a relevant way, and I will continue to do so. That is the only submission I make.

The TEMPORARY CHAIR (The Hon. Taylor Martin): I have heard all I need to hear on this matter. To the point of order raised by the Parliamentary Secretary, as it happens, I was closely listening to the Hon. Wes Fang's contribution and following along with Shooters, Fishers and Farmers Party amendment sheet c2026-309B. The member was talking to the amendments as they were moved. I am inclined to agree with the argument of the Deputy Leader of the Opposition. The Hon. Wes Fang has the call.

The Hon. WES FANG: I do not have much time left, which is unfortunate because there are so many more parts to these amendments. Amendment No. 12 is relevant in terms of moving amendment No. 3. They are, I guess, linked because it is a protected holding. I will stop there, but if another member speaks I may speak again.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 3, 6, 12, 13 and 15 on sheet c2026-309B. The question is that the amendments be agreed to.

The Committee divided.

Ayes 8
Noes 20
Majority.....12

AYES

Banasiak (teller)	Franklin	Overall
Barrett	Latham	Ruddick
Fang (teller)	Mitchell	

NOES

Buckingham	Hurst	Murphy
Buttigieg	Jackson	Nanva (teller)
D'Adam	Kaine	Primrose
Faehrmann	Lawrence	Rath (teller)
Farlow	Merton	Suvaal
Govind	Moriarty	Tudehope
Higginson	Munro	

Amendments negatived.

The Hon. MARK BANASIAK (10:13): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 5, 9, 22 and 27 on sheet c2026-309B in globo:

No. 5 **Henry VIII provisions**

Page 2, clause 3, lines 38–42. Omit all words on the lines.

No. 9 **Henry VIII provisions**

Pages 5–7, line 5 on page 5 to line 15 on page 7. Omit all words on the lines.

No. 22 **Henry VIII provisions**

Page 13, clauses 32 and 33, lines 1–16. Omit all words on the lines.

No. 27 **Henry VIII provisions**

Page 42, proposed Schedule 6, lines 1 and 2 and table. Omit all words on the lines and the table.

These amendments remove the Henry VIII clauses. This place has had a chequered history with Henry VIII clauses, and quite a few members have raised individual concerns about Henry VIII clauses in legislation. I personally think they diminish the power of this House to review and make legislation. We should remove clauses that essentially overrule and ultimately undermine the legislation that is passed in both Houses of Parliament. If changes are needed to the park in any shape or fashion, we should have a full and wholesome debate about it, like we are having today. With those remarks, I commend the amendments to the Committee.

The Hon. EMILY SUVAAL (10:14): The Government does not support the amendments. The bill includes targeted implementation powers to amend certain schedules making minor boundary adjustments and to reserve additional land following the commencement. This was canvassed extensively in the other place. As the member for Coffs Harbour explained in the Legislative Assembly, when the boundary is surveyed, it might be two-thirds of the way onto the road rather than on the edge of the road. From speaking to my colleagues, I am advised that the Henry VIII provisions are usually for 10 years. These amendments will make it four years. We recognise the level of interest in this matter, but it is important that these provisions are retained. We oppose deleting them.

The Hon. SARAH MITCHELL (10:15): On behalf of The Nationals, I indicate that we support these amendments moved by the Hon. Mark Banasiak. We moved amendments in the other place relating to the Henry VIII provisions in the bill, which were not successful. The fact is we already have concerns about the way that the Government is setting up this park. As I canvassed in my second reading debate contribution, we are concerned about the lack of community consultation and we are deeply concerned about the impact on the timber industry. When we go through the legislation, it is particularly jarring to note that the bill contains clauses that will allow the Minister—whoever that may be—to make unchecked changes, through regulation, to increase the boundaries of the park.

Much like what the Hon. Mark Banasiak said in his contribution, if there is a need—for whatever reason—to make changes to the size of this park, and the government or the Minister of the day may well have legitimate reasons at any given point to do that, then we should be a required to discuss those changes in this place. There should be a provision that legislation is needed to increase the size of the park. We should not cede sovereignty to the Executive on this, because any unchecked government could increase the size of the park across all manner of land under this bill. It is important that there is proper parliamentary scrutiny relating to any proposed additions of land to the park. The fact that this bill sets up a national park estate for the Great Koala National Park is proof that the Government thinks that it should be done this through the Parliament.

We are debating legislation to set new boundaries for a new park right now. Yet, in the same legislation, the Government basically wants a green light to add as much as it wants and whenever it wants. What does that mean for the future? We think it allows too much unchecked potential for the Government to exploit this legislation and add things without consultation and consideration of the impact on local industry. As I said, my colleagues in the lower House had particularly strong views on this. We tried to make some changes to the Henry VIII clauses in the other House. We were not successful, but we think it is worth reconsidering them here. The amendments moved by the Hon. Mark Banasiak are sound, and we think they make a lot of sense.

The Hon. JACQUI MUNRO (10:18): I indicate that the Liberals support these amendments for the reasons that the Hon. Sarah Mitchell has outlined. I raised this issue in my contribution to the second reading debate and it has been canvassed widely in the other place. We are comfortable supporting these amendments, given the simple principle of unchecked power. We want to ensure that proper scrutiny is applied to any further changes.

The Hon. SCOTT BARRETT (10:18): I will not go into too much of the detail around these amendments, as I think they have been very well covered by the Deputy Leader of the Opposition and also by members in the other place. The concerning point for me is the unchecked power, which the Hon. Jacqui Munro just spoke about, where the Minister or the secretary can decide to expand the national park. The Government

recently released its NSW National Parks Establishment Plan, which was out for consultation until 12 October and is now closed. This process even skips over the consultation that the Government was supposedly doing on the establishment plan. I think the plan itself is slightly flawed. In the whole document, which is 100-plus pages, the only reference to the impact that national parks have on communities states:

> In some areas, particularly more remote parts of NSW, expansion of the national park estate is sometimes associated with community concerns about impacts on agricultural land use, employment, local services, and regional economies.

This park is going to have a massive impact on all of those things but, for the sake of time, I will not rehash them all in this contribution. Another part of the establishment plan covers the assessment themes that need to be considered before expanding or establishing a national park, which include threat urgency, social and economic considerations, cost effectiveness, long-term management capacity and resourcing needs. The Henry VIII clause in the bill skips all of that. I support these amendments because they will remove that clause.

The Hon. WES FANG (10:20): I make a few brief comments on the amendments moved by the Hon. Mark Banasiak. From the outset, it is important to note that our Coalition colleagues in the Liberal Party have agreed to support these amendments, and that in and of itself is an indication of how important we think they are. There has been quite a lot of discussion and contributions to debate about these amendments, both in this place and in the other place. Unchecked Executive power is not a good thing. The Hon. Mark Banasiak brought these amendments before the Committee in good faith. The Henry VIII provision allows unfettered changes that will not necessarily be considered by the Parliament.

I think it is very clear to all members, whether they be in this Chamber or outside, that people are concerned about the way that this park has been brought to the public and brought to the Parliament. There is a concern that if we do not pass these amendments the Minister will have the ability to change the scope and size of the park without proper checks and balances. As members of The Nationals, the Shooters, Fishers and Farmers Party, and the Liberal Party, we feel that it is important that those changes be brought before Parliament so we can look at them in a stringent and structural way before any adoption. I have also heard from community members about why these amendments are so important.

When the Minister made the election commitment for the Great Koala National Park prior to the previous election, she sought to provide an area on a map—which I will call a pre-election stunt, and other members can call it whatever they want. The area that was prescribed prior to the election was a lot smaller than the area that has been put into this bill, which is why the community is so concerned about the Government's unfettered power and why they support us supporting these amendments. It is interesting that the members that are in this place that are advocating for these amendments are the members that have representatives that live in those areas. As members of The Nationals, we know that our communities seek to have any changes to this park examined and tested by the Parliament prior to the adoption. Was it only amendment No. 9 that was moved by the Hon. Mark Banasiak?

The TEMPORARY CHAIR (The Hon. Taylor Martin): He moved amendments Nos 5, 9, 22 and 27.

The Hon. WES FANG: I just wanted to make sure they were all moved in globo. It is clear that the amendments that have all been moved are linked in a way that would provide clarity to the Committee in terms of the bill. Amendment No. 5, titled "Henry VIII provisions", states:

> Page 2, clause 3, lines 38-42. Omit all words on the lines.

As I have outlined, that amendment removes the Henry VIII provisions. Moving to amendment No. 9, which is also titled "Henry VIII provisions", it states:

> Pages 5-7, line 5 on page 5 to line 15 on page 7. Omit all words on the lines.

That amendment ensures there is consistency in the bill. I thank the Hon. Mark Banasiak, who has helpfully made sure that all these amendments are moved in globo so that we do not find ourselves in a confusing circumstance where some amendments may be passed and other amendments may not be passed. For an already contentious bill, it would be the case that any further contention would create a level of uncertainty in the community that we would really seek to avoid in these circumstances. I move to the second group of two amendments. Amendment No. 22 has also been moved by the member and can be found on sheet c2026-309B, just for clarity for the Committee. I have received some messages from people who are following along at home, and I want to make sure that they are able to exactly follow my contribution in terms of this debate, as people are in the Chamber as well, which is on page 5. Amendment No. 22, also titled "Henry VIII provisions", helpfully, indicates:

> Page 13, clauses 32 and 33, lines 1-16. Omit all words on the lines.

The Hon. Jeremy Buckingham: Point of order: Clearly this is an effort by the member to delay a vote on the amendments. This is wasting the time of this Parliament at the enormous expense of the people of

New South Wales. I just listened very carefully to the member's last four minutes of contribution, and that was describing an amendment. He was not talking to the substance of the matter. He was just rereading the amendment onto the *Hansard*. That is repetition and incredibly tedious. I ask that he be asked to come to a substantive debate or to cease speaking under Standing Order 98.

The Hon. Sarah Mitchell: To the point of order: I am not sure if the Hon. Jeremy Buckingham was in the Chamber when a point of order was taken about this before. My remarks are the same: The Hon. Wes Fang is entitled to speak to amendments, as long as he is being relevant, which he is. The Hon. Jeremy Buckingham also made a comment about the expense of us being here today. If I am not mistaken, the member voted for the motion for us to be here today. We are sitting today to get through the bill. It will take as long as it takes, and the Hon. Wes Fang is entitled to debate amendments.

The TEMPORARY CHAIR (The Hon. Taylor Martin): I appreciate the Hon. Jeremy Buckingham's assessment of the Hon. Wes Fang's motivation. I listened carefully to the member's point of order to hear the relevant standing order under which it was taken. I was listening very intently to the Hon. Wes Fang's contribution. I do not believe it was repetitive. This is the Committee stage; he was talking to the amendments. The Hon. Wes Fang has the call.

The Hon. WES FANG: I am not sure exactly where I was interrupted. I will start where I think I was up to. I might just start that little bit of my contribution again. I believe I was talking about amendment sheet c2026-309B. That is the one we are looking at. On page five, about two-thirds of the way down the page, is amendment No. 22. It is also helpfully titled "Henry VIII provisions". I cannot remember exactly, but I think I may have outlined to the House that this particular amendment seeks to amend clauses 32 and 33 on page 13 of the bill by omitting all words on lines 1 to 16. It is consistent with the previous two amendments I spoke about, in that it is seeking to ensure the comprehensive and thorough removal of all aspects of the Henry VIII provisions from the bill. If adopted, the amendments will see all of those Henry VIII provisions removed.

Helpfully, the Hon. Mark Banasiak has moved the amendments in globo, so if the Committee adopts them, they will extinguish all of the Henry VIII provisions contained within the bill. If these amendments are not adopted in globo, all aspects of the Henry VIII provisions that exist within the bill will be retained. We will not have the situation where, if the amendments had been moved separately or voted on in seriatim, some of the Henry VIII provisions in the bill are retained and others are removed. That would certainly create a level of uncertainty and concern within the community as to exactly what powers exist with the Executive to make changes. I note that I am running out of time. I want to keep this contribution short, so I will move to the last of the amendments that were moved, amendment No. 27. For the clarity of all members, I want to make sure that there is no question about which amendment I am discussing at this point. Members will find this amendment on sheet c2026-309B. It is amendment—

The Hon. Jeremy Buckingham: Point of order: My point of order is taken under Standing Order 98, continued irrelevance and tedious repetition. For members' edification, Standing Order 98 states:

> The President or the Chair of Committees may call the attention of the House or the committee to continued irrelevance or tedious repetition of a matter already presented in debate…

It is not just that the member may be repeating himself, but also that he may be saying things that other members have already said in debate. These matters have already been canvassed and debated in the contributions of the Hon. Mark Banasiak and the Hon. Sarah Mitchell, and then again by the member. Accordingly, I ask that you direct the member to cease speaking, Mr Temporary Chair.

The Hon. WES FANG: To the point of order: Whilst I accept the Hon. Jeremy Buckingham's contention, and there are certainly rules that this Committee operates under and we operate under not only standing orders but also conventions, if we were to consider to the nth degree what the Hon. Jeremy Buckingham said in his contribution to the point of order, it would be that we would just circulate amendments and vote on them without anybody speaking on them, because there is nothing to add in debate. The whole point of having a debate is for members to articulate what it is that they are speaking about and the reasons they are speaking about them. They are reinforcing, in certain aspects, some of the positions that other members may have put, supporting those positions, or even adding large or small bits. That is the whole point of having a Parliament. The whole point of having two Houses and being able to speak in the Parliament is so that different positions and different arguments can be heard. We are here to persuade.

The TEMPORARY CHAIR (The Hon. Taylor Martin): To be fair, no member in the Chamber needs to be educated on what a Parliament is or what it does. We are in a Parliament. I am happy to rule on the point of order. I did not need any help, but I gave the Hon. Wes Fang the opportunity to be heard. I listened intently to the substance of his original contribution. However, the member's speaking time has now expired. Perhaps he can continue on another amendment.

The Hon. Jeremy Buckingham: Further to the point of order: I think it would help the Committee if it had a ruling on the point of order.

The TEMPORARY CHAIR (The Hon. Taylor Martin): There is no point of order. I listened intently to the Hon. Wes Fang's original contribution to debate. It stuck to the amendments that the Hon. Mark Banasiak proposed. I also carefully listened for any repetition. There was not any. The Hon. Jeremy Buckingham may be displeased with the Hon. Wes Fang's contribution but it was in order.

The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 5, 9, 22 and 27 on sheet c2026-309B. The question is that the amendments be agreed to.

The Committee divided.

Ayes 11
Noes 15
Majority.....4

AYES

Banasiak (teller)	Franklin	Munro
Barrett	Latham	Rath
Fang (teller)	Merton	Ruddick
Farlow	Mitchell	

NOES

Boyd	Govind	Moriarty
Buckingham	Higginson	Murphy (teller)
Buttigieg	Hurst	Nanva (teller)
D'Adam	Kaine	Primrose
Faehrmann	Lawrence	Suvaal

PAIRS

Carter	Graham
Maclaren-Jones	Houssos
Overall	Jackson
Tudehope	Mookhey
Ward	Sharpe

Amendments negatived.

The Hon. MARK BANASIAK (10:45): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 7, 10, 11, 14 and 16 to 21 on sheet c2026-309B in globo:

No. 7 **Maps**

Page 3, clause 7. Insert after line 29—

(2) Each map referred to in a schedule must be published on a publicly available government website.

(3) The Secretary must give notice of the publication of a map by notice in the Gazette.

(4) A reservation or vesting of land by this Act does not take effect before the day that is 30 days after the day notice of the publication of the relevant map is published in the Gazette.

(5) A map published in accordance with this section must clearly identify the following—

(a) the boundaries of the land,

(b) existing access roads on the land,

(c) the category of reservation of the land or that the land is vested in the NPW Minister.

(6) In this section—

category of reservation has the same meaning as in Part 3, Division 2.

No. 10 **Existing interests**

Page 8, clause 21. Insert after line 10—

(2) An application for the renewal or extension of an existing interest must—

(a) be in the form approved by the NPW Minister, and

(b) be decided by the Minister under the *National Parks and Wildlife Act 1974*, section 39 within 90 days after the application is made, and

(c) not be refused only because the existing interest is on land reserved by Division 2 or vested in the NPW Minister under section 19.

(3) The NPW Minister must give the applicant written notice of—

(a) the NPW Minister's decision, and

(b) if the NPW Minister refuses the application—the reasons for refusal.

(4) An application to renew or extend an existing interest preserves the interest, as the interest existed when the application was made, until the NPW Minister gives the applicant written notice of the NPW Minister's decision.

(5) In this section—

existing interest has the same meaning as in the *National Parks and Wildlife Act 1974*, section 39.

No. 11 **Activities on vested land**

Page 9, clause 22. Insert after line 5—

(1A) The Secretary must not withhold authorisation unless an alternative relevant road can lawfully and reasonably be used to access the vested land.

No. 14 **Easements and rights of way**

Page 10, section 26(1)(a). Insert after line 33—

(ia) easements and rights of way that are preserved, and

No. 16 **Easements and rights of way**

Page 11, clause 27(2)(b)(i), line 19. Omit ", interests, easements and rights of way". Insert instead "and interests".

No. 17 **Easements and rights of way**

Page 11, clause 27(4)(b)(i), line 43. Omit ", interests, easements and rights of way". Insert instead "and interests".

No. 18 **Narrowing existing access road**

Page 12, clause 27. Insert after line 9—

(5) Before making an exclusion order to narrow an existing access road, the NPW Minister must—

(a) give all persons known to have the benefit of an easement or right of way affected by the proposed narrowing (***affected persons***) not less than 30 days written notice of the proposed narrowing and invite the persons to make a submission on the proposed narrowing, and

(b) consider all submissions made by affected persons, and

(c) not make the proposed exclusion order unless satisfied that affected persons will continue to be able to use the road for the lawful purposes for which the affected persons used the road before the proposed narrowing, and

(d) give written notice of the decision, including reasons for the decision.

No. 19 **Easements and rights of way**

Page 12, clause 28(1), line 11. Omit "extinguished". Insert instead "preserved".

No. 20 **Easements and rights of way**

Page 12, clause 28(2), lines 13 and 14. Omit all words on the lines. Insert instead—

(2) Despite this section, an easement or right of way may be extinguished by the relevant order under section 26(1) if the NPW Minister is satisfied that all persons known to have the benefit of the easement or right of way have given written consent to the extinguishment of the easement or right of way.

No. 21 **Easements and rights of way**

Page 12, clause 28(3), line 15. Omit "by an order under section 26(1)(a)". Insert instead "in accordance with this section".

Amendment No. 7 requires the maps referred to in the schedules to be published online, with notice in the gazette. They must clearly show boundaries, existing access roads and the land's reservation or ownership status. Reservation or vesting cannot take effect until at least 30 days after notice of the relevant map is published. People should be able to see which land is changing status before the change takes legal effect. I think that is quite sensible. A map held inside the department is not enough for a neighbour or operator trying to understand the

boundary and access consequences. Publication must be public, identifiable and sufficiently clear to be useful, and this amendment allows that to occur. Amendments Nos 14 and 16 to 21 deal with easements, rights of way and safeguards before road narrowing. These amendments change the treatment of existing easements and rights of way from automatic loss to preservation, with safeguards around road changes. A legal access right can be central to the use of a holding. It should not disappear simply because the Government makes an order changing the road's status. These amendments provide certainty around those easements and rights of way.

Amendment No. 10 relates to protecting continuing leases and permits during renewal. It gives holders of existing interests a clearer renewal process, with a decision within 90 days of applying and written reasons for refusal. Renewal cannot be refused simply because the land has become reserved land or vested in the Minister. The interest continues on its existing terms until written notice of the decision is given. Renewal itself is not guaranteed. Amendment No. 11 goes to protections for road access to vested land. It limits when the secretary can refuse an authorisation under clause 22. Authorisation cannot be withheld unless another relevant road can lawfully and reasonably provide access to the vested land. These are very sensible amendments that provide certainty for landholders affected by the proposed park, which is important if it is to be successful and accepted by the community. With those remarks, I commend the amendments to the Committee.

The Hon. EMILY SUVAAL (10:48): The Government opposes the amendments. Regarding amendment No. 7, the Great Koala National Park boundary map is already online. Regarding amendment No. 10, the bill and the National Parks and Wildlife Act 1974 already set out provisions that recognise existing interests. These provisions work in national parks across the State. The bill also preserves existing lawful rights, such as recreation clubs operating under permit, apiary sites, utilities and access roads to neighbouring lands. Regarding amendment No. 11, which relates to activities on vested land and existing access roads, the bill and the National Parks and Wildlife Act already set out provisions that recognise access roads and easements as existing interests. These provisions work in national parks across the State. The Government also opposes the remainder of the amendments. The bill and the National Parks and Wildlife Act set out provisions that recognise access roads and easements as existing interests. These provisions work in national parks across the State. Bespoke arrangements are not needed in the Great Koala National Park.

The Hon. SARAH MITCHELL (10:49): On behalf of The Nationals, I indicate that we support all the amendments moved in globo by the honourable member. I address a couple of them individually, the first being amendment No. 7, in relation to maps. We think it is a sensible amendment. As I have said many times both in the second reading debate and in debate on some of the amendments considered so far, there is nothing wrong with having more transparency about the park for the benefit of the community. All this amendment seeks to do is to make sure that every map must be published on a publicly available government website, that notice of the publication be given in the *Government Gazette* and that the vesting of the land does not take effect before the day that is 30 days after the date of notice of the publication.

We just tried to pass an amendment to ensure that the Government could not add new parts to the park willy-nilly. The majority of the Committee decided not to accept those amendments, so the boundaries of the park could change. We think a clause in the bill that provides that maps that clearly identify the boundaries and access roads are made publicly available within a reasonable time frame is important, because those maps could change due to how the bill has been drafted. Given that the Henry VIII clauses persist in the bill, it is necessary to have maps updated more regularly. All this amendment does is put in black and white what the Government says it intends to do anyway, so I do not understand why it would not support it.

I also briefly speak to the amendments in relation to easements, right of way and access roads, particularly amendment No. 18. It seeks to make sure that before there is an exclusion order to narrow an existing access road, the Minister must give all persons known to have benefit of that road not less than 30 days written notice, invite them to make a submission and consider all submissions. In essence, if someone is already using an access road and that road is going to be narrowed, that person has a right not only to be notified but also to put their concerns in a submission and receive a written response that includes the decisions and the reasons for those decisions. This amendment is just enhancing good governance. It is what should happen. It is about showing respect to people who might be using an access road. We are happy to support these amendments. As I said, the rest of the Shooters, Fishers and Farmers Party amendments make sense, so The Nationals are happy to support them all.

The Hon. JACQUI MUNRO (10:52): I indicate that the Liberals do not support these amendments. While we appreciate the intention of the mover and our Nationals colleagues, we believe that the provisions that already exist within the scope of national parks and existing legislation are sufficient to allay the concerns of the mover. As the Hon. Emily Suvaal said, maps are already online and there are already arrangements in place that relate to easements and use of land in national parks.

The Hon. WES FANG (10:52): I make a few brief remarks in relation to the amendments that have been moved by the Hon. Mark Banasiak.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The member will not mislead the Committee.

The Hon. WES FANG: You may say that, Chair, but I could not possibly comment. The first thing is that I was surprised to hear the Hon. Jacqui Munro indicate that the Liberal Party would not support the amendments. I feel as if I need to provide a little bit more clarity and detail to try to encourage them one last time to adopt these amendments.

The Hon. Jacqui Munro: The lady's not for turning.

The Hon. WES FANG: The lady says she is not for turning, but I think perhaps if we reconsidered everything in a little bit more detail, there may be an opportunity to actually shift the dial a little bit.

The Hon. Sarah Mitchell: You might change their minds.

The Hon. WES FANG: As the Hon. Sarah Mitchell has indicated, there are some very supportable provisions in this set of amendments, the first one being amendment No. 7, relating to maps. The Hon. Jacqui Munro referenced maps when she was making her contribution regarding the Liberal Party's support, or not, for the amendments. In terms of that, and for clarity, if people are following along either in the Chamber or at home and are not clear on it, I am discussing amendment No. 7 on sheet c2026-309B for "bravo". It is, helpfully, at the bottom of page 1 but then flows over to page 2. The start of the amendment says:

No. 7 **Maps**

Page 3, clause 7. Insert after line 29—

For those who are looking at the bill, that will go in at page 3, clause 7, after line 29. It says:

(2) Each map referred to in a schedule must be published on a publicly available government website.

I think that is entirely sensible, if not for the clarity of members of Parliament then certainly for the wider community. The publication of those maps is sensible. When the community, for whatever reason—and there are any number of reasons—seek to understand what the boundaries of the park are, there should be open to them an opportunity to search a digital website and find the boundaries. That in itself is not unreasonable. It is entirely sensible to have this amendment moved by the Hon. Mark Banasiak adopted in the bill.

[*A Government member interjected.*]

The Hon. WES FANG: Is the Hon. Emily Suvaal suggesting that I pause my contribution and come back to it? I can pause at 11.00 a.m. or I can continue.

The TEMPORARY CHAIR (The Hon. Taylor Martin): It is 10.56 a.m. The Hon. Wes Fang has the call.

The Hon. WES FANG: The second insertion states:

(3) The Secretary must give notice of the publication of a map by notice in the Gazette.

That speaks to the level of transparency that we are seeking to have included in the bill. We have already discussed the fact that by not passing the previous amendment, the Henry VIII provisions are retained within the bill. It is the case that the Minister may make a change to the boundaries. Any change to the boundaries must be followed with the publication of a map, and the secretary would give notice of that publication in the Gazette. That is a simple and reasonable thing to adopt for transparency, if nothing else. It is very sensible of the Hon. Mark Banasiak to move that amendment. It is exactly why the Hon. Sarah Mitchell indicated that we are prepared to support it. The next insertion states:

(4) A reservation or vesting of land by this Act does not take effect before the day that is 30 days after the day notice of the publication of the relevant map is published in the Gazette.

Again, that provides clarity that any changes that are made do not occur immediately on publication, and it provides 30 days to adopt that prior to it taking effect. That is reasonable. If it is the case that it is on publication in the Gazette, people may not necessarily be aware of that publication of the map. Therefore, it is reasonable that this provision be adopted. There is another insertion that states:

(5) A map published in accordance with this section must clearly identify the following—

(a) the boundaries of the land,

(b) existing access roads on the land,

(c) the category of reservation of the land or that the land is vested in the NPW Minister.

Once again, we understand clearly why this part of the amendment should be adopted. The member could well have moved that amendment on its own instead of moving it in globo because it is entirely sensible in and of itself.

The amendment does not really create an issue for the Government and very little resourcing is required for it, but it provides transparency and clarity to our communities and the Parliament on all of those matters. The Government routinely makes announcements in the *Government Gazette*, which is entirely appropriate. Finally, I note:

> (6) In this section—
>
> ***category of reservation*** has the same meaning as in Part 3, Division 2.

That is obviously included so that there is no confusion about what is meant by the terms in the legislation, which is entirely sensible and should be supported.

The TEMPORARY CHAIR (The Hon. Taylor Martin): I shall now leave the chair. The Committee will resume at 11.15 a.m.

The Hon. WES FANG: I resume my contribution. I believe I was discussing amendment No. 7 that is before us, which is in relation to the maps. Before the break I was discussing that section (6), at the end of amendment No. 7, states:

> (6) In this section—
>
> ***category of reservation*** has the same meaning as in Part 3, Division 2.

From memory—unfortunately I cannot check *Hansard*—I believe I was saying that that removes any ambiguity. It is entirely sensible that the member has brought that amendment to ensure that there is consistency within the bill. Ensuring that the consistency exists is obviously important for anybody who reads legislation after it has passed this House, because, ultimately, whilst the corporate knowledge may exist at the moment in the Government and certainly in the Opposition in terms of what we are debating, these sorts of clarifying insertions are helpful for future members to consider.

The member has also moved a number of other amendments as part of his in globo sets of amendments addressing the existing roads. They are amendments Nos 12, 13 and 15. I think amendment No. 14 was one as well. I want to speak on one of the substantive ones, which is important for this House to consider. Certainly when I indicated that I was seeking to encourage some of my Liberal Party colleagues to adopt these amendments, I was in part referring to amendment No. 18, which is around the narrowing of existing road access. Just for clarity and just so people understand which amendment I am speaking about, it is on sheet c2026-309B and it is found on page 5. It is about one-third of the way down from the top:

> No. 18 **Narrowing existing access road**
>
> Page 12, clause 27. Insert after line 9—
>
> (5) Before making an exclusion order to narrow an existing access road, the NPW Minister must—

That is why it is important. It outlines the steps that the Minister must take. We have certainly consulted in terms of the amendments that our community is expecting. It is clear that the Hon. Mark Banasiak has done the same thing. These are concerns that have been articulated to us by people who, whilst they may disagree with the legislation, are seeking to ensure that there are protections in it. The amendment lists a number of things which the Minister must do, one of which is to:

> (a) give all persons known to have the benefit of an easement or right of way affected by the proposed narrowing (***affected persons***) not less than 30 days written notice of the proposed narrowing and invite the persons to make a submission on the proposed narrowing, and

That is entirely sensible. When the Government is seeking to narrow access to a road, it is not unreasonable that a bill such as this would include provisions that would seek to provide a person or persons the ability to know that it is happening and make a submission. That is an entirely reasonable thing, but also it should have already been included in the bill. For a lot of the aspects around the Great Koala National Park, stakeholders have not felt heard. If the Government was to adopt the amendment, it would prove, at least in some small way, that the Government has taken some of those concerns on board. There is no question that there will be concerns about previous consultations, but at least the bill itself, if the amendment is passed, will contain a requirement for notification and consultation beforehand. It also states:

> (b) consider all submissions made by affected persons, and

That goes to the heart of what we have been saying about this Government for quite a while, which is that it treats consultation as a tick-a-box exercise. It does not genuinely consult. There are any number of pieces of legislation that have recently been before this House where we have clearly articulated that stakeholders have not felt consulted. The inclusion of the amendment is appropriate so that those stakeholders will better understand and know that there is a requirement that they are consulted and that those consultations are actually considered. I think that is where there has been a real lacking in this Government. Whilst we do not necessarily legislate because of

the conduct of the government of the day, it is clear that the current Government has been lacking in its consultation. That is certainly the feedback we are getting from stakeholders. That is why the amendment is important. It then states:

> (c) not make the proposed exclusion order unless satisfied that affected persons will continue to be able to use the road for the lawful purposes for which the affected persons used the road before the proposed narrowing, and

That is obviously sensible. I am surprised that the Government has not jumped at it. Perhaps when the Parliamentary Secretary gave her contribution, she was not given appropriate notes to actually understand that those were the amendments being moved and the impact that they would have. I note I am about to run out of time so maybe another member might want to make another contribution so I can continue.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 7, 10, 11, 14 and 16 to 21 on sheet c2026-309B. The question is that the amendments be agreed to.

The Committee divided.

Ayes 6
Noes 22
Majority.....16

AYES

Banasiak (teller)	Fang (teller)	Mitchell
Barrett	Franklin	Ruddick

NOES

Boyd	Higginson	Murphy
Buckingham	Hurst	Nanva (teller)
Buttigieg	Kaine	Primrose
D'Adam	Lawrence	Rath (teller)
Faehrmann	Mookhey	Sharpe
Farlow	Moriarty	Suvaal
Govind	Munro	Tudehope
Graham		

Amendments negatived.

The Hon. MARK BANASIAK (11:30): By leave: I move The Shooters, Fishers and Farmers Party amendments Nos 23 and 24 on sheet c2026-309B, and amendments Nos 34 and 35 on sheet c2026-309AA in globo:

[c2026-309B]

No. 23 **Motor sport events**

Page 14, clause 35. Insert after line 10—

> (1A) An application for approval must be made in the form approved by the NPW Minister.
>
> (1B) The NPW Minister must decide an application for approval within 90 days after the application, and all reasonably required supporting information, is given to the NPW Minister.

No. 24 **Motor sport events**

Page 14, clause 35. Insert after line 24—

> (4A) The NPW Minister must—
>
> (a) give the applicant for an approval written notice of the decision, including reasons for and the conditions imposed on the approval, and
>
> (b) publish the notice on an appropriate government website and in the other ways the NPW Minister is reasonably satisfied will bring the notice to the attention of the public in the area to which the approval applies.

[c2026-309AA]

No. 34 **Equivalent insurance for motor sport events**

Page 15. Insert after line 40—

> 42AG **Equivalent insurance for motor sport events**

(1) In determining an application under section 35, the NPW Minister must assess the scope and adequacy of the insurance proposed and must not reject insurance solely because the applicant is not affiliated with, or the insurance is not arranged through, a motor sport organisation preferred by the NPW Minister.

(2) If the NPW Minister requires different or additional insurance, the applicant must be given written reasons identifying the material deficiency and a reasonable opportunity to provide equivalent cover.

(3) This section does not require acceptance of inadequate cover or insurance provided contrary to law or confer a power to impose an insurance requirement.

No. 35 **Approvals for recurring motor sport events**

Page 15. Insert after line 40—

42AH **Approvals for recurring motor sport events**

(1) Subject to section 35, including subsections (4) and (5), an approval under that section may authorise a recurring motor race for no more than 5 years if it identifies the locations, maximum number of events and arrangements for annual notification and compliance checking.

(2) The NPW Minister must consider a request for such an approval on its merits and give reasons for requiring separate applications for each year.

(3) The NPW Minister may impose conditions for variation, suspension or revocation where necessary to address a material safety or environmental risk. Such action must follow reasonable notice and an opportunity to respond unless urgent action is necessary.

(4) This section does not authorise a race in a park excluded by section 35(5) or use of a road contrary to section 35(4).

Amendment No. 23 sets a time frame for motorsport applications. The amendment requires a motor race approval application to use the approved form and sets a 90-day decision period. That period starts once the application and all reasonably required reporting information have been supplied. It creates a decision deadline but does not guarantee approval or expand places where races can be approved. Amendment 24 makes those motorsport decisions public. Transparency is always good and is what this House supports. The amendment requires a written notice of the Minister's decision on a motor race application, including reasons and any approval conditions. The notice must also be published online and brought to the attention of the local community. The amendment makes those decision processes more transparent without removing anything to do with existing access restrictions.

Amendments 34 and 35 go to motorsport insurance and recurring approvals. Those two amendments make the administration of motorsport approvals fairer and more workable where the bill already allows approval. One amendment deals with insurance and the other deals with recurring events. They should be judged on those improvements without claiming that they remove separate geographic restrictions that remain in the bill. The insurance amendment requires the Minister to assess the actual scope and adequacy of the cover. Insurance cannot be rejected solely because an applicant is unaffiliated with a preferred motorsport organisation or has obtained the cover through another channel. If the Minister requires a different or additional insurance, the organiser must receive reasons identifying the material deficiency and a reasonable opportunity to provide equivalent cover.

The recurring approval amendment allows an approval to cover a defined recurring race for up to five years. Locations, maximum event numbers, annual notification and compliance checks must be specified, and the Minister must consider a request on its merits and explain a requirement for separate yearly applications. Conditions can address variations, suspension or revocation for material safety or environmental risks, with notice and an opportunity to respond unless urgent action is necessary, and organisers can gain a more predictable process without a loss of accountability. I indicate that I do not intend to ask for division on these amendments.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:34): For the reasons outlined to the Committee before, the Government does not believe that these are necessary. We support motor rallying in the areas it has been, and we believe that the arrangements that exist under the National Parks and Wildlife Act are sufficient.

The Hon. SARAH MITCHELL (11:34): On behalf of The Nationals, I indicate that we support the four amendments that have been moved by the Hon. Mark Banasiak in relation to motorsport events and the equivalent insurance. During the second reading debate I spoke at length about the importance of having motorsports available to continue in this area, and I think some amendments about that were moved earlier. There is a long history of motorsports taking place, and we think that these amendments embed some of that in the legislation. Amendment No. 34 means that the Minister must assess cover for particular motorsport events on their merits, not on which body arranged it. That is a commonsense amendment.

Amendment No. 35 is about having multi-year approvals, up to five years, for established rallies and races. That is a sensible amendment because established rallies and races bring a lot of tourism to many towns. I think

the Hon. Wes Fang spoke about the joy of motorsports in a contribution to debate on an earlier amendment. I am not a big motorsport aficionado, but all power to those who are. In all seriousness, in some of these communities, these events are big drivers of the tourism economy for their areas. We would like to see that continue. What we like about this amendment is that it means less red tape for these clubs and organisers for established rallies and races and being able to bring visitors to regional communities. These amendments make sense, and that is why we are happy to support them.

The Hon. JACQUI MUNRO (11:36): The Liberals will be voting against these amendments, for the reasons the Government has outlined. We believe that there are sufficient provisions and support to achieve what the Hon. Mark Banasiak is trying to achieve.

The Hon. WES FANG (11:37): I encourage those members who have indicated they may not support these amendments. I believe, actually, they are entirely sensible and supportable amendments. Obviously, they are over two pages, but I will address amendments Nos 34 and 35 first, on sheet c2026-309AA, which are about equivalent insurance for motorsport events. This is very reasonable. As much as I have spoken about the joy of motorsport—and I think that has been clear through my contribution and others who have participated in and enjoy observing motorsport—it is somewhat of a dangerous activity at times. There are, of course, ways with which we can ameliorate some of those dangers, but insurance is, obviously, an important aspect.

It is also important that, when a person seeks to bring a motorsport event to an area, the relevant insurances have been considered by the Minister or the body overseeing an area where they wish to undertake that motorsport event. In bringing this amendment, the member, I think, has done so with an eye to ensuring the Minister's stated aim of the park being a wonderful tourist hotspot attended by a large number of people.

I cannot think of a better way to showcase what is a beautiful part of the Mid North Coast than with coverage of a motorsport event. Anybody who follows motorsport will understand that there is often not only the event itself that is covered but also much of the area in the filler or padding that is required for TV coverage. These events can showcase an area to the world. When the World Rally Championship was held in that area, it would have provided an opportunity for the local area to be showcased to the world. If it is the case that the Minister does want to see increased tourism and the Great Koala National Park frequented by a number of visitors, this is a perfect opportunity to extract, and have the natural beauty and terrain of the area exploited for motorsport, which is not necessarily going to have a detrimental impact on what it is that the organisers will seek to do. It will provide coverage all around the world. That may be the case, but we need to ensure that the i's are dotted and the t's are crossed in terms of these issues before an organiser is really prepared to bring an event to these areas.

Amendments Nos 34 and 35 will enshrine in the bill the important first step in encouraging any organiser to consider this area as one that is suitable and appropriate for hosting a motorsport event. Insurances, as I have already outlined, are one of those key matters, but so are approvals. Amendment No. 35 is clear that the approval issue is a live one. If I reflect back on the second reading contributions of Ministers, in this place and the other place, in terms of how it is that the Government is approaching this park, there are competing narratives around whether the Government wishes this to be, effectively, land that is locked away or land that will be accessible and available for people to utilise, not only for certain activities but also for a wider range of activities, including things like motorsport.

Because there has been that dual narrative and because there is a lack of clarity around what the Government intends for this park by way of activities outside of koala spotting and those sorts of tourist opportunities, the member brings the amendments to the Committee in good faith to ensure that the bill enshrines the protection of motorsport in that area. I have spoken about this in my contributions to both the second reading debate and amendments. Those other uses are so important, at a time when the community is fragile from all of the jobs losses and feels betrayed by the Government because the boundaries that were published prior to the election are now certainly a lot more different, like the Government's rhetoric around supporting local jobs and supporting the industry.

The Minister responsible for forestry did not even make a contribution to the second reading debate. That speaks volumes about the actual priorities of the Government. Adopting the amendments will provide the community with a level of clarity that the Government does listen to it and is prepared to adopt sensible and reasonable amendments that will see motorsport enshrined in the legislation. It is something that brings joy to those communities. It is an economic driver for those communities. I have spoken about those timber workers who have lost their jobs. The Labor Government has effectively put them on the scrapheap, which is surprising given that the Timber, Forestry and Textiles Union is so enshrined in what the Labor Party does. The opportunity to participate, observe or even volunteer in some of these activities from time to time might give those workers a little bit of solace and a little bit of comfort.

I have already articulated how motorsport brings a lot of joy. Not only that, it also brings economic benefit to the region. At this time there is a question about what those workers are going to do and what industries are available to them on the Mid North Coast to retrain in as a vocation post-forestry. For many of those workers, forestry has been a multigenerational endeavour. Their grandfathers worked in that industry, their fathers worked there and, indeed, their children expected to work there. I note that the Hon. Sarah Mitchell has already mentioned the Parkers, to whom we have both had an opportunity to speak. They are a multigenerational forestry family. What is it that this Government expects them to do? By adopting this amendment, we will give them knowledge that it may be motorsport that gives them a future in their area. Amendment No. 35, which is at the bottom of page 11 of sheet c2026-309AA, for those who are following, states:

> Page 15. Insert after line 40—
>
> 42AH—
>
> **Approvals for recurring motor sport events**
>
> (1) Subject to section 35, including subsections (4) and (5), an approval under that section may authorise a recurring motor race for no more than 5 years if it identifies the locations, maximum number of events and arrangements for annual notification and compliance checking.

That provides clarity to an organiser that they are not going to see an approval they receive for an event stripped away without some certainty. This is not something that is usually a one-off. Usually a promoter or an event organiser will want a level of certainty and clarity because these are multi-year investments. The member has moved this amendment with recognition that, particularly for these motorsport events, there is a high level of investment. That is exactly what we want to see. We want to see the investment into these regions. Ultimately, if we do not see that investment, what do we have in the region? This Government has already stripped away so much of the identity of those communities by ripping out those forestry jobs, betraying those workers and selling a green dream to try to pick up metropolitan votes at the expense of our regional communities.

This amendment recognises that there is a level of investment required for motorsport events. It also recognises that the investment needs to be certain. The actions of the Government and the way it has conducted itself in bringing this legislation to the Parliament have demonstrated that currently this Government cannot necessarily be trusted by those on the Mid North Coast for the things it says. There is a clear acknowledgement that the government of the day is on the nose up on the Mid North Coast for decisions like this. That is unfortunate for them. But by moving this amendment with the provisions it contains, the member seeks to ensure that those provisions have locked into them some certainty for those promoters who seek or at least attempt to conduct motorsport events. I suspect that there will be other roadblocks along the way, as there are with this Government on everything else it seems to do. But at the very least this amendment will provide some protection and clarity for a member who wants to move those or seek to bring an event. It goes further and states at paragraph (2):

> The NPW Minister must consider a request for such an approval on its merits and give reasons for requiring separate applications for each year.

That is clearly aimed at ensuring that the Minister considers requests in an appropriate way. I suspect, without it being clearly articulated in this amendment, that it is drafted and written with an eye to the fact that there is a belief that this Minister may not actually consider all applications on merit, and so knowing that there may be a need to enshrine it in the bill. But also, we do not necessarily know what other Ministers may do. This could be the worst Minister we have ever had for the National Parks and Wildlife Service, but we may actually see a worse one. Who knows what is going to happen in the future? By ensuring this is part of the legislation, we will protect ourselves against an even worse Minister than the one we have currently got. Paragraph (3) states:

> The NPW Minister may impose conditions for variation, suspension or revocation where necessary to address a material safety or environmental risk. Such action must follow reasonable notice and an opportunity to respond unless urgent action is necessary.

I am reading between the lines in the way that these amendments are drafted, but I think that the member acknowledges that there is a material risk to any event that is held, because it may be the case that there is a lack of trust in the Minister. Now, I am not at all suggesting that this is written with an eye to the current Minister. I suspect it may be, but I cannot speak for the member in making that suggestion. All I can say is that if we were to have a Minister who does not appropriately respond to material safety or environmental risks, and perhaps uses any delegated power they have to derail or upend these motorsport events, that these things are considered. Unfortunately, I note that I am almost out of time. There is so much more to say. Maybe if another member makes a contribution, I can add further.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 23 and 24 on sheet c2026-309B and amendments Nos 34 and 35 on sheet c2026-309AA. The question is that the amendments be agreed to.

Amendments negatived.

The Hon. MARK BANASIAK (11:52): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 25 and 26 on sheet c2026-309B and amendment No. 1 on sheet c2026-309AA in globo:

[c2026-309B]

No. 25 **Annual reporting to Parliament**

Page 15. Insert after line 32—

40A Report to Parliament

(1) The NPW Minister must, by 31 December in each year, table a report in each House of Parliament about activities under this Act in the previous financial year.

(2) The report must include information about the following—

(a) land reserved or vested in the NPW Minister under the Act,

(b) the revenue raised by the State for dealings with relevant ACCUs,

(c) support given to communities and workers affected by the transition away from forestry industries as a consequence of the reservation of land by this Act,

(d) the number of displaced forestry staff employed by the Department in accordance with section 38,

(e) expenditure by the State for the following—

(i) maintenance of the Great Koala National Park,

(ii) road and access maintenance,

(iii) fire management,

(iv) pest animal and weed control.

(3) In this section—

Australian carbon credit unit has the same meaning as in the *Carbon Credits (Carbon Farming Initiative) Act 2011* of the Commonwealth.

financial year means the period of 12 months commencing on 1 July in a year.

relevant ACCUs means Australian carbon credit units issued to the State in connection with the reservation of land by this Act.

No. 26 **Review of Act**

Page 16. Insert after line 26—

44 Review of Act

(1) The NPW Minister must commission an independent review of this Act and the implementation of this Act to determine whether the policy objectives of the Act remain valid and whether the terms of the Act remain appropriate for securing the objectives.

(2) The independent reviewer must—

(a) consider the following—

(i) the implementation of the Act,

(ii) the impact of the Act on landholder interests,

(iii) the impact of the Act on employment and business interests on the mid-north coast,

(iv) the compensation paid to landholders, businesses and displaced workers,

(v) the management of carbon projects associated with the Great Koala National Park,

(vi) the management of fire on land reserved or vested under the Act,

(vii) the management of pest animals and weeds on land reserved or vested under the Act,

(b) consult with local councils, landholders, businesses and workers and recreational users, and

(c) seek public submissions.

(3) The review must be undertaken as soon as possible after the period of 2 years from the commencement of Part 2.

(4) A report on the outcome of the review must be tabled in each House of Parliament within 3 years after the commencement of Part 2.

[c2026-309AA]

No. 1 **Commencement of additional safeguards**

Page 2, clause 2. Insert after line 10—

(3) Despite subsections (1) and (2), Part 1 and sections 39, 41 and 42A-42CU commence on the date of assent to this Act.

These are fantastic procedural amendments of the kind that we often see in bills. Amendments Nos 25 and 26 deal with annual reporting to Parliament on the implementation of the bill. Amendment No. 26 deals with an independent review. We have statutory reviews of that kind in Acts all the time. The amendment simply inserts provision for that independent review particularly in relation to landholders, employment, business impacts, compensation and carbon projects. That is eminently sensible. Amendment No. 1 on sheet c206-309AA deals with the commencement date and brings any additional safeguards into force as soon as the bill receives assent. That is a sensible approach. Before land is transferred or any status is changed, any additional safeguards will therefore be in force and active on assent. People will not be left waiting for those safeguards to come into effect. Because these amendments are so great, I do not think I will need to divide on them.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (11:54): The Government does not support these amendments. Amendment No. 1 on sheet c2026-309AA deals with the safeguard mechanism. In some ways, the Government believes that is redundant at this point, given the project was listed and registered yesterday.

The Hon. SARAH MITCHELL (11:54): On behalf of The Nationals, I indicate that we support these three amendments. We obviously agree with the intention of amendment No. 1 on sheet c2026-309AA. It makes sense that the protections should apply from day one. Amendments Nos 25 and 26 on sheet c2026-309B are sensible. They will ensure that each year we get a report to the Parliament about how things are operating under this Act, what changes there might have been and, in particular, what revenue has been raised by the State for dealing with the relevant Australian carbon credit units [ACCUs].

I spoke about this at length in my contribution to the second reading debate, and I do not intend to rehash the points I made. As National Party MPs, we want to see any of the revenue raised from dealing with the ACCUs invested back into the Mid North Coast and areas of the park. If there is a requirement in the legislation for the government of the day to report annually to Parliament, it puts transparency in place. It will make it clear exactly where that money has gone, how much has been raised and, as paragraph (2) (c) talks about, what support has been given to communities and workers affected by the transition away from forestry industries. That is incredibly important.

We spoke a lot in this place about the impact on the timber industry on the Mid North Coast. Hundreds of people will lose their jobs as a result of the creation of this park. The Government has tried to say in this place, in the other place and to the local community that it will look at transition programs for affected workers. Members have debated the merits of that, or lack thereof. The thought that someone who might have been working in the timber industry for decades can suddenly work as a barista or a tourism operator is far-fetched. It is far removed from their skill set but also from what they want to do for work.

Every timber worker I have met loves their job and is quite devastated at the thought of losing it. However, it will be a good thing to have a report to Parliament to make it clear and apparent how that is all tracking. We know that this Government shies away from transparency and accountability—we have seen it time and time again. We support amendment No. 25 on sheet c2026-309B. The Hon. Mark Banasiak has indicated he does not want to divide on it, but I disagree—I think it is worth making the point.

In the same way, amendment No. 26 is a commonsense amendment. It is about the independent review of the Act and its implementation to determine whether the policy objectives of the Act remain valid. If this fabulous park is going to be the best thing since sliced bread and will bring in all those tourists and be wonderful for everybody, why is the Government so afraid of an independent review of the Act to consider its implementation, its impact on landholder interest and on employment and business interests as well as the compensation paid to those affected industries and displaced workers?

All that amendment No. 26 does is that it requires the Government to do what it says it will do, but with the provision and capacity for an independent review of that Act to be in place. I do not think there should be anything to hide. The Government should support the amendment. The Nats actually considered it but did not move it when we saw the Shooters' amendment. We support it wholeheartedly and may potentially vote on it in order to make that point when the time comes.

The Hon. JACQUI MUNRO (11:58): I indicate that the Liberals do not support these amendments.

The Hon. WES FANG (11:58): I briefly speak on these amendments before the Committee and back in what my colleague the Hon. Sarah Mitchell said. When members look at these three amendments as a group, they will see they are entirely sensible. They seek to provide transparency to this House and the wider public, which is required for this bill. People have a number of questions about the bill, the way the legislation has been brought to the House, and the methodology and assumptions that underpin the Great Koala National Park.

I now turn to the detail of the amendments. Amendment No. 25 is about the annual reporting to Parliament. I do not understand why the Government will not adopt this amendment which requires that a report be provided to Parliament every year in relation to the matters that the Hon. Mark Banasiak has listed. For the sake of clarity, I will make sure that members understand exactly what the Government has said it is not supporting. Amendment No. 25 on page 6 of sheet c2026-309B, states:

Page 15. Insert after line 32—

40A Report to Parliament

(1) The NPW Minister must, by 31 December in each year, table a report in each House of Parliament about activities under this Act in the previous financial year.

That requirement is not too onerous for the Minister, who should have that information to hand. It would be a real problem if the Minister did not have that information to hand, because it is information that should clearly be available to the Minister. The department should soon be providing that information up the chain. I note that the amendment provides the Minister with the ability to get it done by 31 December, which is within six months of the end of the financial year. The amendment gives the Minister six months to provide, by the end of the calendar year, the previous financial year's activities, which is not unreasonable. Amendment No. 25 goes on to state:

(2) The report must include information about the following—

(a) land reserved or vested in the NPW Minister under the Act,

(b) the revenue raised by the State for dealings with relevant ACCUs,

(c) support given to communities and workers affected by the transition away from forestry industries as a consequence of the reservation of land by this Act,

I stop there to discuss that part of the amendment for a moment. Is that the reason why the Government does not want to adopt this amendment? Does the Government not want to provide information to the Parliament and the community about the support it is prepared to give to those workers who have lost their jobs as a result of its decisions? It is an absolute disgrace if that is the reason why the Minister does not want to support the amendment. It is an absolute disgrace that the Minister is refusing to provide any of that information or any of the other information that I have already outlined.

People in our communities have had their livelihood stripped out from where they live. Local communities have been part of the responsible and sustainable renewable forestry activities that have occurred in the area for many decades. Our city-centric Minister lives in the middle of Sydney and travels out to these places every once in a while. The Minister has never understood in great detail what these communities do, nor have they understood the actual impact of losing these jobs or the mental toll and stress created by their decisions. The Government is not prepared to outline what supports it has provided in a financial year, which makes me wonder what the Government is hiding. I encourage my Liberal Party colleagues, who do not support this amendment, to look at this matter again and perhaps reconsider. It is clear that this would not be too onerous for the Minister. In fact, one would think that any government worth its salt would say, or volunteer, this information readily without the requirement to report it to Parliament.

In circumstances where we would expect that a government would be prepared or even promote this level of information, the fact that the Government comes into this place and says it is not prepared to support reporting to Parliament on an annual basis clearly demonstrates the lack of transparency of this Government. It is incumbent on all members of this House to look at these amendments in detail and consider what it is the Government is seeking to shut down by not supporting these amendments. The community has a right to know. The community deserves to know what it is that the Government is not telling them. In circumstances where the member has moved an extraordinarily reasonable amendment to provide that information and clarity to the community, we have to ask why the Government has not elected to support that. The amendment goes further and states:

(d) the number of displaced forestry staff employed by the Department in accordance with section 38,

Once again I highlight that the Government should, one would expect, be promoting that it wants to see these matters told to the public because the Government's decision to shut down these forestry jobs should mean that there is a will from within the Government to ensure that those workers have an opportunity to have those jobs that may come up and that that be reported to the Parliament. That the Government is not prepared to support that either makes me think that there is something quite clear about the fact that the Government perhaps does not

have the will to see those things done and does not have the drive to see those displaced workers employed back in industries that the department is responsible for.

It is a real shame when a member moves amendments such as this that the Government simply dismisses them. I cannot even find the words to articulate what the Minister's dismissive attitude was in terms of this amendment. But this is an amendment that I think is important for those workers because they need to know that they are being supported by this Government. At the moment, there is a clear understanding that they are not being supported, and that is why this is important. The reporting details that the member is asking be provided to the Parliament are reasonably short, but the amendment does include one other section, which is:

(e) expenditure by the State for the following—

(i) maintenance of the Great Koala National Park,

(ii) road and access maintenance,

(iii) fire management,

(iv) pest animal and weed control.

Anybody who has watched question time or followed debates in this place in particular—and I have no doubt it would happen in the other place, although I suspect their debates are less interesting and less articulate—would know that the question around maintenance of national parks, including road maintenance, fire management and pest and weed control, is an issue that keeps recurring, and it recurs for very good reasons. There is a narrative in our communities that national parks can be poor neighbours. Some landholders feel as if the burden of managing those matters tends to fall to the landholder, as opposed to the National Parks and Wildlife Service carrying its fair share.

I do not think that is an unreasonable contribution to make. I am looking over at the Hon. Mark Banasiak to see if he is frowning. He is not frowning, so I think he potentially agrees with me that National Parks could do better in terms of those things. By moving this amendment, he is seeking to understand exactly what contributions are being made in terms of those matters. What does maintenance of the Great Koala National Park cost? I do not understand why that is an unreasonable thing for the Committee to ask. It would be entirely sensible for the Committee to understand the maintenance costs, how the Great Koala National Park is being maintained and the Government's investment in that. They are entirely sensible requirements.

We have already discussed the issue of road access and road maintenance, in part. It has sort of been covered in previous amendments. But there is great concern amongst many in the community—and I am included in that group—that expenditure on maintenance of roads in the Great Koala National Park may not be sufficient or appropriate to ensure that fire and emergency services have continued access. That access is incredibly important, given that the Government itself has suggested that this is going to be somewhere where we see an increased level of tourism. We know that tourists, especially people who have perhaps travelled there, may face any number of medical issues, and so access for emergency services is very important. Road maintenance to ensure continued road access needs to be kept up in a national park, especially in one the Government wants more people to attend. Understanding what the Government is doing by way of maintenance expenditure is entirely relevant and important for the Committee to understand.

On the issue of fire management, the Government belled the cat on this one. Again, members should ask themselves why the Government is not prepared to support an amendment like this. This whole park is, in effect, one big carbon credit for the Government. Those opposite are treating the whole park as a carbon credit. Yesterday the Minister made a very relevant point that should there be a fire in the Great Koala National Park, all of those carbon credits would be gone. They would burn.

The Hon. Jacqui Munro: Up in smoke.

The Hon. WES FANG: They would go up in smoke—much like the Hon. Jeremy Buckingham, if he was here. In that circumstance, the Government has a real motivation to ensure that fire management is maintained and, where required, upgraded. One would think that the Government would be prepared to support this amendment, because it does very much outline why fire management is important in a national park that is, effectively, being treated like one big carbon credit. The issue of pest animal and weed control is, again, one that we keep talking about. It is curious that, noting all of the members who have contributed to debate on the bill so far, there is one Minister that we have not heard from, and that is the Minister for Agriculture, who is responsible for forestry and for pest animal and weed control.

Maybe that is deliberate. Maybe there is a very good reason as to why we have not heard from the agriculture Minister on this bill. But it may be a very good indicator of why it is that the Government is not prepared to support this amendment. Ensuring good pest animal and weed control in a national park is vitally

important to not only the national park itself, but also to surrounding landholders. Locking up that much land creates a haven for those issues. I know I am about to run out of time. I have so much more to say. Hopefully, another member will make a contribution and I can continue on.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 25 and 26 on sheet c2026-309B and amendment No. 1 on sheet c2026-309AA. The question is that the amendments be agreed to.

The Committee divided.

Ayes 6
Noes 20
Majority.....14

AYES

Banasiak (teller)	Borsak	Franklin
Barrett	Fang (teller)	Mitchell

NOES

Boyd	Graham	Munro
Buckingham	Higginson	Murphy
Buttigieg	Hurst	Nanva (teller)
D'Adam	Kaine	Primrose
Faehrmann	Lawrence	Rath (teller)
Farlow	Mookhey	Sharpe
Govind	Moriarty	

Amendments negatived.

The Hon. MARK BANASIAK (12:21): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 1 to 10 on sheet c2026-313A in globo:

No. 1 **Reversal of amendments on sheet c2026-277G agreed by the Legislative Assembly**

Page 4, clause 11(4), line 18. Omit "sections 4 and 7". Insert instead "section 4".

No. 2 **Reversal of amendments on sheet c2026-277G agreed by the Legislative Assembly**

Page 6, clause 16(2), lines 27–32. Omit all words on the lines.

No. 3 **Reversal of amendments on sheet c2026-277G agreed by the Legislative Assembly**

Page 13, clause 33, lines 14–16. Omit all words on the lines.

No. 4 **Reversal of amendments on sheet c2026-277G agreed by the Legislative Assembly**

Page 14, clause 35, lines 25–30. Omit all words on the lines.

No. 5 **Reversal of amendments on sheet c2026-277G agreed by the Legislative Assembly**

Page 14, clause 37, line 41. Omit all words on the line. Insert instead—

> If, in accordance with the *National Parks and Wildlife Act 1974*, section 21(1)(a), the NPW Minister delegates a function under this part to the Secretary, the Secretary may delegate the function to a person employed in the Department.

No. 6 **Reversal of amendments on sheet c2026-277G agreed by the Legislative Assembly**

Page 21, proposed Schedule 1, section 1, table, matter relating to item no 4. Omit "and 1217-01".

No. 7 **Reversal of amendments on sheet c2026-277G agreed by the Legislative Assembly**

Page 21, proposed Schedule 1, section 1, table, matter relating to item no 4. Omit "1,245". Insert instead "963".

No. 8 **Reversal of amendments on sheet c2026-277G agreed by the Legislative Assembly**

Page 27, proposed Schedule 1, section 3, table. Insert after the matter relating to item 1—

2	Bongil Bongil Regional Park	Pine Creek State Forest (part)	537	Original (part)	03/08/1917	Misc R 00385	1217–0	282

No. 9 **Reversal of amendments on sheet c2026-277G agreed by the Legislative Assembly**

Page 38, proposed Schedule 2, line 1. Omit all words on the line, including the map.

No. 10 **Reversal of amendments on sheet c2026-277G agreed by the Legislative Assembly**

Page 44, proposed Schedule 8.1. Insert after line 2—

[1A] Section 21 Delegation

Insert ", the *National Park Estate (Great Koala National Park Reservations) Act 2026*" after "the *National Park Estate (Reservations) Act 2002*" in section 21(3)(a).

I will be quite brief in my contribution to debate. These amendments seek to reverse the amendments passed in the lower House. Those amendments were moved by The Greens to include additional lands to the park estate. Ever since the announcement that the State would get a Great Koala National Park, there has been a lot of argy-bargy in relation to what will be the park's final size and boundaries. A lot of that has been bouncing backwards and forwards in different consultation groups—the community, industry, environmental groups and other community groups. It is not really good faith that a decision is made with those groups and then we come to Parliament and differ from the decision greatly by moving amendments that include additional lands. I do not think that instils confidence in government consultation processes.

I do not think it does anything to improve what the community feels about how consultation generally is done. We should not be arbitrarily moving the goalposts in relation to what has been decided, particularly in the mind of the community, as to what the national park boundaries would be. I think that sets a dangerous precedent that we can arbitrarily change things, despite what the community thinks. I do not think that is good representation and I do not think we should make a habit of doing that. I commend the amendments to the Committee.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (12:23): The Government does not support the amendments. These matters were dealt with in the lower House.

The Hon. SARAH MITCHELL (12:23): On behalf of The Nationals, I indicate that we support the amendments. We opposed The Greens' amendments when they were put in the other place, so we certainly support the amendments here to effectively repeal the amendments that were made in the other place, if that makes sense to those playing at home. I will make a couple of points in relation to this set of amendments because what these amendments really do is ask the Government to go back to standing by the bill that the Government brought to Parliament originally and the deal the Government made with the people on the Mid North Coast. The Hon. Mark Banasiak was spot on in his contribution. Supposedly, there was consultation with the community. The boundaries were meant to be clear. Then we come to Parliament and suddenly, when The Greens in the other place move amendments to change those boundaries, it is all fine to do it on a whim. This bill was supposed to be the product of months of consultation with local communities, recreation groups and industry—and work was done on how that was supposed to happen—but a boundary was literally redrawn and a new map was inserted. In practice, that means that land has been incorporated into the national park with no consultation with the people who actually live there. That is not how land use decisions in this State should be made. This is a house of review, and that is exactly what the Opposition is doing by supporting these amendments of the Shooters.

The other thing I say in support of these amendments—and part of this goes also to earlier amendments that we have discussed—is the constant theme of boundaries having been drawn, then suddenly the Legislative Assembly adding a new bit of land, and the bill still providing that the Government can add more on a whim at the request of the Minister of the day. Consider what that means for the local community, but also for the timber industry in the region. They get told where the lines are going to be, only for them to get changed the next minute and then again changed by The Greens in the lower House, who, with respect, might be very sincere in their intentions. But when a Sydney-based Greens MP, whose electorate is nowhere near the impacted area, does that, it makes people who live in these communities cranky. They feel that city-based parliamentarians are telling them how things should operate without any consideration of what the impact might be on them in their local community. Moving boundary lines at the last minute again and again at the whim of The Greens or the Minister of the day adds uncertainty. That is not good governance and it is not how this Parliament should work.

The Opposition supports the amendments moved by the Shooters, Fishers and Farmers to pull that provision out of the bill. If the Government were happy with the bill as it was, it should not have supported those changes either. These amendments respect the process and the community by returning the bill to the form that the Government designed and consulted on. I commend the amendments to the House.

The Hon. JACQUI MUNRO (12:26): I indicate that the Liberals will be supporting the amendments. I refer members to the comments of my colleague the Hon. Sarah Mitchell.

The Hon. WES FANG (12:26): I rise to make a contribution in relation to the amendments that have been moved on sheet c2026-313A. I reflect on the contributions to this point in relation to these amendments, which have been moved in globo, to encourage other members also to reflect on them and consider the fact that the Government, in good faith, brought to the House, in the initial sense, a bill that prescribed the boundaries of the Great Koala National Park. Not only did it do that through the legislation but, as the Hon. Sarah Mitchell quite clearly articulated in her very sensible contribution, this was something that was reflected in the consultation with the communities that have been impacted by the legislation that has been moved.

In terms of that consultation, I have spoken with a number of affected stakeholders. I have also spoken with a number of the communities that are impacted by these decisions. Again, there is a level of betrayal felt because the Government, in supporting this in the other place, has effectively said to our communities that the consultation was worthless. That may not have been the intention of the Government. I do not know. I suspect it was, but that is only my personal suspicion. By extension, the Government does not really care about the fact that it consulted on the original legislated boundaries. By adopting the amendments of The Greens in the other place, which the Shooters are now seeking to reverse, the Ministers in the Cabinet would have known that they effectively trashed the whole consultation process that occurred in our communities.

The fact that the Government does not seem to care about that and has indicated that it was prepared to support the amendments in the other place but is not prepared to support the reversal in the Legislative Council is interpreted by our communities as not only a betrayal but also an active choice to ignore their voices. It was based on the original boundaries that our communities' voices were heard. That betrayal that is felt in our communities is not something that is readily going to go away. In her brief contribution, the Minister did not take the opportunity to try to correct those matters or allay the fears that the community clearly has around the Government's support of this in the other place. I am sure the Minister has received correspondence or feedback that the Government's adoption of these amendments in the other place has left our community feeling betrayed.

The Government cannot go to the community with a set of boundaries and then adopt in the other place these amendments that effectively rule any consultation null and void. The Minister can, at the drop of a hat, effectively, change those boundaries. That is of concern. The community does not feel as if their voices have been heard. That is a betrayal. It is also of concern because the level of uncertainty that will exist if we do not adopt these amendments in this House is too high. The anger about these amendments in our communities is palpable. That the Government does not see that, has not acknowledged it and is prepared to ignore it is extraordinarily disappointing for our communities.

I urge the Minister to take this opportunity in Committee of the Whole to look at these amendments again and either seek to adopt them and go back to our communities with another round of consultation to listen to them and let them know this is a proposal that the Government is prepared to support, or clearly articulate now why the Government is prepared to ignore the consultation that occurred and not reverse these amendments. I encourage the Minister to consider that. Perhaps my contribution will persuade the Minister that she should clarify the Government's intention. I also speak on behalf of my Nationals friend and colleague in this place the Hon. Nichole Overall, who has unfortunately had to leave because of appointments that could not be altered. She asked me to put on record that she also has great concerns about the amendments adopted in the other place and that she, in consultations with the same communities, has had very similar, if not identical, feedback to the feedback that I have had.

The Hon. Jeremy Buckingham: Point of order: Under Standing Order 98, the honourable member's comments are, by definition, repetition. He is simply repeating on behalf of someone else the exact arguments that he, the Hon. Mark Banasiak and the Hon. Sarah Mitchell have made. He is not only repeating himself but also now repeating on behalf of someone else, like he is sock-puppeting someone. These matters have already been raised in the debate by other members and by himself. He is now, by definition, repeating his arguments on behalf of a third party. It is clear that the intent of the Hon. Wes Fang is to talk ad nauseam to run down the clock. He is not adding to the debate on the amendments. I ask that you direct him to desist.

The Hon. WES FANG: To the point of order: The idea of repetition is that I am repeating myself. By the very definition that the Hon. Jeremy Buckingham articulated—

The Hon. Jeremy Buckingham: Or repeating someone else.

The Hon. WES FANG: I ask the Hon. Jeremy Buckingham to not interrupt while I contribute to the point of order.

The TEMPORARY CHAIR (The Hon. Taylor Martin): I am listening to the Hon. Wes Fang.

The Hon. WES FANG: By putting on record a request of my colleague, the fact that it is the same point is not necessarily repetition because it is on behalf of another member. I suggest that the Hon. Nichole Overall

asking me to make a contribution on her behalf because she is not able to indicate that she also supports the amendments is not repetition at all. It is a separate contribution. I was merely making the point that she asked me to put that on record for her.

The TEMPORARY CHAIR (The Hon. Taylor Martin): I make a few points. First, I wish the Hon. Nichole Overall was here to put her point of view in her own words. I am not sure where she is or why.

The Hon. Sarah Mitchell: Medical appointment.

The TEMPORARY CHAIR (The Hon. Taylor Martin): That is fair enough. Nonetheless, I listened carefully to the contribution of the Deputy Leader of the Opposition, who made a range of good points. I have listened carefully and closely to the contribution of the Hon. Wes Fang. His contribution to the point of order taken by the Hon. Jeremy Buckingham is that it is not repetition if someone else has said it. That is not the case when it comes to Standing Order 98 and the process of this place. If points have been made by other members, a member can raise it as repetition under Standing Order 98. As such, I uphold the point of order. The Hon. Wes Fang will resume his seat. Is any other member seeking the call?

The Hon. Wes Fang: Can I continue my contribution?

The TEMPORARY CHAIR (The Hon. Taylor Martin): No, I have asked you to resume your seat. I uphold the point of order.

The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 1 to 10 on sheet c2026-313A. The question is that the amendments be agreed to.

The Committee divided.

Ayes 10
Noes 16
Majority.....6

AYES

Banasiak (teller)	Farlow	Munro
Barrett	Franklin	Rath
Borsak	Mitchell	Ruddick
Fang (teller)		

NOES

Boyd	Graham	Moriarty
Buckingham	Higginson	Murphy (teller)
Buttigieg	Hurst	Nanva (teller)
D'Adam	Lawrence	Primrose
Faehrmann	Mookhey	Sharpe
Govind		

PAIRS

Maclaren-Jones	Jackson
Merton	Kaine
Overall	Houssos
Ward	Suvaal

Amendments negatived.

The TEMPORARY CHAIR (The Hon. Taylor Martin): For those who are playing at home, by my count we may well have about 20 or so divisions, depending on whether amendments are moved in globo or not—and depending on whether they are divided on.

The Hon. MARK BANASIAK (12:45): I indicate that I do not think it will be 20 at all, but there may be the potential for a short bell division if members keep their contributions concise on this amendment. I move Shooters, Fishers and Farmers Party amendment No. 2 on sheet c2026-309AA:

No. 2 **Regulated hunting in gazetted areas**

Page 15. Insert after line 40—

42A **Regulated hunting in gazetted areas**

(1) In this section—

eligible land means land reserved by this Act as national park or regional park that is public land within the meaning of the *Game and Feral Animal Control Act 2002,* but does not include land declared as wilderness or included in a World Heritage property.

hunting area means eligible land designated under subsection (2).

hunting permission means a permission given under subsection (6).

introduced animal means a feral pig, feral goat, feral deer, fox, rabbit or feral cat living in the wild, but does not include a domestic animal or an animal of a native species.

Regulatory Authority has the same meaning as in the *Game and Feral Animal Control Act 2002.*

(2) The NPW Minister may, by notice published in the Gazette, designate eligible land as an area in which introduced animals specified in the notice may be hunted in accordance with this section.

(3) Before designating land, the NPW Minister must—

(a) obtain the written concurrence of the Minister administering the *Game and Feral Animal Control Act 2002*, and

(b) comply with the public notice and consultation requirements applicable to a declaration under that Act, section 20, and

(c) consider the objectives of the relevant plan of management, existing lawful uses, public safety, native wildlife and cultural heritage.

(4) Despite the *Game and Feral Animal Control Act 2002, section 20A*, a designation under subsection (2) is taken to be a declaration under that Act, section 20. The public notice requirements for the designation are additional to publication in the Gazette.

(5) A prohibition on hunting in a plan of management under the *National Parks and Wildlife Act 1974* does not prevent designation of eligible land or hunting expressly permitted under this section. Apart from that prohibition, a designation or permission does not override an otherwise lawful exclusion or closure. The *Game and Feral Animal Control Act 2002*, section 6B does not displace such an exclusion or closure in connection with hunting under this section.

(6) The Secretary may, with the written concurrence of the Regulatory Authority, give a person aged at least 18 years who holds a current restricted game hunting licence under the *Game and Feral Animal Control Act 2002* written permission to hunt specified introduced animals in a hunting area.

(7) A permission must specify the land, period, animals, permitted methods and conditions. It must not authorise entry onto land excluded from the designation, an activity contrary to the person's licence, or possession or use of equipment contrary to another law.

(8) Before giving a permission, the Secretary must approve arrangements for visitor safety, protection of native wildlife and cultural heritage, animal welfare, clear maps, entry notices, booking limits and coordination with other park and pest control operations. The Secretary must consult adjoining occupiers and relevant Aboriginal organisations about those arrangements.

(9) A hunting permission is taken to be the written permission of the land manager and the Regulatory Authority for the purposes of the *Game and Feral Animal Control Act 2002*. The requirements of that Act and its regulations applicable to hunting on declared public hunting land apply, including licence conditions and reporting requirements, subject to this section.

(10) The *Game and Feral Animal Control Act 2002*, section 6A does not apply to hunting under this section. Instead, a person acting in accordance with a hunting permission does not commit an offence under the *National Parks and Wildlife Act 1974* or its regulations merely by—

(a) hunting an introduced animal specified in the permission, or

(b) possessing, carrying or using a firearm, ammunition or other hunting equipment expressly permitted for that hunting, or

(c) possessing or removing, otherwise than for sale, the carcass of an introduced animal lawfully killed under the permission, to the extent expressly permitted by the permission.

(11) This section does not authorise harm to native wildlife, Aboriginal objects or vegetation, entry onto private land without lawful authority, or conduct contrary to the *Firearms Act* 1996, *Weapons Prohibition Act 1998, Prevention of Cruelty to Animals Act 1979, Biosecurity Act 2015* or food safety law. It does not affect native title rights.

(12) The NPW Minister may vary or revoke a designation by a further notice published in the Gazette. The Secretary may vary, suspend or cancel a permission for breach of a condition or a material risk to safety, animal welfare, native wildlife or cultural heritage.

(13) Before taking action under subsection (12), the decision-maker must give an affected permission holder notice and a reasonable opportunity to respond, unless immediate action is necessary to

address a serious risk. Written reasons must be given, including as soon as practicable after urgent action.

(14) This section does not change a reservation category, a statutory land boundary or a schedule to this Act. It does not authorise the Secretary to exercise the Regulatory Authority's functions under the *Game and Feral Animal Control Act 2002* other than as expressly provided by this section.

This amendment allows licensed adults to hunt specified introduced animals in eligible areas that the Minister formally opens for hunting. It requires ministerial agreement, public consultation and written permissions, with safety and wildlife protections. It excludes wilderness and World Heritage land, and preserves other lawful closures and adherence to firearms laws. Licensed hunters should have a lawful, carefully managed opportunity to contribute to controlling introduced animals where the land is suitable. A change in the sign at the forest entrance should not end the discussion about practical pest management. Suitability, safety and the conditions of access should be examined, rather than ruled out without that assessment.

This is a permission system, not a general right to arrive in the Great Koala National Park with a firearm. An adult would still need to have the appropriate current licence and a written permission covering the area, species, methods and period. The two ministerial portfolios and the hunting regulator have defined roles. Visitors, neighbours and Aboriginal organisations would have to be considered, and native animals would remain protected. This is a serious proposal for a regulated access scheme. Our position is that responsible hunting should be considered a legitimate activity within a properly controlled system where the land and circumstances are suitable. There is no need to pretend that every area is going to be appropriate or that every method should be permitted.

The amendment provides a way to make those distinctions. It also gives the land manager tools to set conditions and respond to breaches or serious risks. Members can disagree about the merits of opening a particular area while still supporting a legal framework in which that proposal can be examined seriously and decided through defined responsibilities. For those reasons, I endorse the amendment. It is a cause our party has been pushing, and will continue to push, for a very long time. I ask other members to support it. The safeguard should be judged on its practical purpose and the specific obligation set out in the text of the amendment.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (12:48): The Government does not support the amendment.

The Hon. SARAH MITCHELL (12:48): The Nationals support the amendment. I will not go too much over what the honourable member has said in moving it. But the reality is that some feral animals are amongst the biggest threats to koalas and native wildlife. We have also seen some of the issues we can have when there are massive numbers of feral pigs, goats or deer, and the incredible destruction that they can cause. This is a sensible amendment. It is clear that it only applies to certain areas that will be regulated. It is only for introduced pest species, and native animals are expressly excluded. It also makes clear that there can be no harm to native wildlife, vegetation or Aboriginal objects.

I also make the point that there are a lot of safeguards within the amendment. It makes it clear there has to be a Gazette notice; concurrence of the hunting Minister; public notice and consultation; and consideration of public safety, native wildlife and cultural heritage. As the member mentioned in moving the amendment, only adults with a current restricted licence and with written permission specifying the land, the period, the species, the methods and the conditions will be able to take part. Before any permission is granted, the secretary must approve visitor safety, animal welfare, maps et cetera. All firearms and weapons, animal cruelty and biosecurity laws will still apply in full if the amendment is passed, and permissions can be suspended or cancelled for breach of a condition or material risk. The Minister will have the power to revoke any area at any time. We are happy to support the amendment.

The Hon. JACQUI MUNRO (12:50): The Liberals do not support the amendment. We believe that the bill as it stands is sufficient to achieve the Liberal Party's aims in relation to the creation of the Great Koala National Park.

The Hon. SCOTT BARRETT (12:50): I strongly support the amendment and urge others to do the same. I think the mover put it really well. This is a permission system, not a general right. All it would do is permit the Minister to allow people to go in and hunt as needed under very strict conditions that are working well within State forests. I urge members to support the amendment.

The Hon. WES FANG (12:50): I also support the amendment, and I do so for a number of reasons. As outlined by the member, hunting in the national park may actually help the Government achieve an outcome for the issues that it is likely to see when that amount of land is locked up. A number of contributions have already discussed a level of concern in the community about the issue of pests and wild animals. The Government is calling the park the Great Koala National Park. Wild dogs, in particular, are such a risk to koalas. The hunting community, where it is granted permission—and permission is a really key aspect of the amendment that is being

moved by the member—could go into the national park and seek to manage some of the pests that will likely thrive in a national park where the current management practices may not continue.

We know that Forestry Corporation is typically a good neighbour. It does a good job of managing pests, feral animals and weeds. The community fears that we may see an explosion of those things, but I suspect that the Government has a level of concern as well, because we know that those circumstances are ripe for an explosion of things like wild dogs. There is no doubt that those wild dogs may cause an increase in injuries to the koala population within the park. It is the case that amendment No. 2, as moved by the member, will ensure that regulated hunting is permitted in gazetted areas. The amendment is quite specific in terms of the eligible land, because there is a definition that is provided which states:

> **eligible land** means land reserved by this Act as national park or regional park that is public land within the meaning of the *Game and Feral Animal Control Act 2002,* but does not include land declared as wilderness or included in a World Heritage property.

That clearly articulates to any person seeking to understand or interpret the legislation—if this amendment is passed—what eligible lands the hunting amendment would be attached to. It goes on further to actually indicate that the "hunting area" definition means "eligible land designated under subsection (2)". I will come to that in a moment. It talks about the "hunting permission", which is defined as a "permission given under subsection (6)". These things are not a free-for-all. There is a clear outline, within the amendment that provides an opportunity for any person seeking to make an application to the National Parks and Wildlife Service to hunt in those areas, of what eligible lands are covered, what hunting areas are covered and how the permission is granted.

What is also very important in terms of the issues we are talking about now is that the amendment also has a definition in it for "introduced animal", which includes a feral pig, feral goat, feral deer, fox, rabbit or feral cat living in the wild, but does not include a domestic animal or an animal of a native species. The definition is quite clear about what animals may be targeted in terms of the application of the amendment. In moving this amendment, the member has done a lot of detailed work to ensure that it is an amendment that can be supported by the whole Committee. What it does is it actually provides the framework, so members of the Committee can rest assured that it is not effectively a free-for-all.

The national parks and wildlife Minister may, by notice published in the Gazette, designate eligible land as an area in which introduced animals specified in the notice may be hunted in accordance with this section. Again, we come back to the issue around the transparency of the Government in terms of ensuring that its decisions are communicated to the public. I think the *Government Gazette*, in particular, is an appropriate place for the Minister or the secretary to make known that there is going to be a designation of those areas. That will provide the community with an opportunity to participate, where a designation is communicated in the Gazette.

I think that is something that, again, clearly outlines what the member is seeking to do in terms of this total amendment, but it provides the specifics, which means that the Committee can actually support it with confidence. What is quite appropriate in terms of the amendment is subsection (3), which says, "Before designating land, the national parks and wildlife Minister must"—this is important because it outlines to people who are following any designation in the Gazette by the Minister what the Minister must do prior to that. I think that is really important for the Committee to consider. It states that the Minister must—

> (a) obtain the written concurrence of the Minister administering the *Game and Feral Animal Control Act 2002*, and—

it is not "and/or"; it is clearly "and"—

> (b) comply with the public notice and consultation requirements applicable to a declaration under that Act—

The Hon. Jeremy Buckingham: Point of order: Again, I take a point of order under Standing Order 98. The Hon. Wes Fang is just repeating what the Hon. Mark Banasiak did previously, which was to explain the amendment. That has been done. The member is repeating what has been said, so it is imitation.

The Hon. Mark Banasiak: Imitation is the greatest form of flattery.

The Hon. Jeremy Buckingham: It is a form of flattery, but it is also repetitious and tedious. Chair, I ask you to rule in the same way that you did previously for the benefit and sanity of members of the Committee.

The TEMPORARY CHAIR (The Hon. Taylor Martin): I appreciate the sentiment expressed by the member. I listened to him carefully. I do not uphold the point of order, but the Hon. Wes Fang will keep in mind what the Hon. Jeremy Buckingham said.

The Hon. WES FANG: As I was saying, the amendment is quite specific in terms of what it actually requires the Minister to do before the designation of any lands for hunting. I have made it quite clear that, in reflecting on what is written in the amendment, it is not an "and/or", it is an "and", so there are three specific

requirements of the Minister prior to the designation of any lands. I think I was mentioning that written concurrence was obtained from the Minister—

The Hon. Jeremy Buckingham: Point of order: Again, in the member's contribution, he just said, "I think I was doing this." He is literally repeating what he just said. He has repeatedly read out clauses and said, "I think I was doing this." And he was just doing that. He was just repeating a clause of the amendment. It is repetitious and tedious. I ask that the member be told to resume his seat.

The TEMPORARY CHAIR (The Hon. Taylor Martin): While I appreciate that what the Hon. Jeremy Buckingham said may be technically correct, I will give the Hon. Wes Fang the benefit of the doubt because his contribution was interrupted and he was picking up where he left off.

I shall now leave the chair. The House will resume at 1.30 p.m.

The Hon. WES FANG: Before the break, we were discussing the amendment moved by the Hon. Mark Banasiak, which is amendment No. 2, if I recall rightly, on sheet c2026-309AA. I think I was effectively contributing to outline what the designated land was and the following provision:

> Despite the Game and Feral Animal Control Act 2002, section 20A, a designation under subsection (2) is taken to be a declaration under that Act, section 20. The public notice requirements for the designation are additional to publication in the Gazette.

Effectively, this just means that the Minister has a number of requirements of her. I do not really want to labour the point. I think that this is a sensible amendment. With those few brief remarks, I commend the amendment to the Committee.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendment No. 2 on sheet c2026-309AA. The question is that the amendment be agreed to.

The Committee divided.

Ayes 6
Noes 18
Majority.....12

AYES

Banasiak (teller)	Borsak	Franklin
Barrett	Fang (teller)	Mitchell

NOES

Boyd	Graham	Moriarty
Buckingham	Higginson	Munro
Buttigieg	Hurst	Murphy (teller)
D'Adam	Kaine	Nanva (teller)
Faehrmann	Lawrence	Primrose
Govind	Mookhey	Sharpe

Amendment negatived.

The Hon. MARK BANASIAK (13:40): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 3 to 12, 96, 97 and 98 on sheet c2026-309AA in globo:

No. 3 **Public consultation on carbon project registration**

Page 15. Insert after line 40—

42B **Public consultation on carbon project registration**

(1) Before the NPW Minister, or a person acting on behalf of the Crown in right of New South Wales in connection with establishment of the Great Koala National Park, applies, or gives the State's consent to an application, for registration of a carbon abatement project involving land reserved or vested, or specified for reservation or vesting, by this Act, or for a material variation of the project area or permanence obligations, the Secretary must publish a description of the proposal, the land, proposed duration and expected management obligations.

(2) The Secretary must invite submissions for at least 30 days, consider the submissions and publish a response to material issues before the State application is made or the State's consent is given, as the case requires.

(3) This section applies only to an application made by the State or consent given by the State after commencement of this section. It does not invalidate a registration or variation under Commonwealth law or require disclosure of legally privileged information.

No. 4 **Independent valuation before disposing of carbon credits**

Page 15. Insert after line 40—

42C **Independent valuation before disposing of carbon credits**

(1) Before the NPW Minister, or a person acting on behalf of the Crown in right of New South Wales in connection with establishment of the Great Koala National Park, enters an arrangement to sell, assign or grant an option over Australian carbon credit units attributable to land reserved or vested, or specified for reservation or vesting, by this Act, the NPW Minister must obtain an independent valuation of the consideration and material contractual risks.

(2) A valuation is required for the first arrangement and for a later arrangement materially different in price structure or risk allocation.

(3) The valuer must have relevant expertise and no financial interest in the transaction. A summary of the valuation and reasons for a material departure must be published within 30 days after the arrangement is entered into. Information that would prejudice continuing negotiations may be withheld until that risk ceases, with published reasons.

(4) In this section, Australian carbon credit unit has the same meaning as in the *Carbon Credits (Carbon Farming Initiative) Act 2011* of the Commonwealth.

No. 5 **Limit on carbon project indemnities**

Page 15. Insert after line 40—

42D **Limit on carbon project indemnities**

(1) The NPW Minister, or a person acting on behalf of the Crown in right of New South Wales in connection with establishment of the Great Koala National Park, must not enter, renew or materially vary an agreement for a carbon project on land reserved or vested, or specified for reservation or vesting, by this Act if the agreement requires the State to give an indemnity —

(a) Without a financial cap or other objectively ascertainable maximum exposure, or

(b) for loss to the extent caused by the indemnified party's fraud, wilful misconduct or negligence.

(2) Before agreeing to another indemnity for the project, the NPW Minister must obtain the Treasurer's written concurrence and publish the maximum exposure or the method by which it is limited.

(3) This section does not confer power to give an indemnity, appropriate money or affect an agreement except to the extent it is renewed or materially varied after commencement of this section.

No. 6 **Parliamentary approval for long carbon commitments**

Page 15. Insert after line 40—

42E **Parliamentary approval for long carbon commitments**

(1) The NPW Minister, or a person acting on behalf of the Crown in right of New South Wales in connection with establishment of the Great Koala National Park, must not do either of the following—

(a) enter, renew or materially vary an agreement imposing carbon-related land management obligations on the State for more than 25 years in relation to land reserved or vested, or specified for reservation or vesting, by this Act, or

(b) elect, by applying for or varying a carbon project in relation to that land, to subject the State to a permanence obligation exceeding 25 years, unless each House of Parliament has, by resolution, approved the proposed obligations and duration.

(2) Before seeking approval, the NPW Minister must table in each House a statement of the proposed obligations, expected benefits, termination arrangements and consequences of non-compliance.

(3) Successive agreements forming part of substantially the same arrangement must be considered together in calculating the period.

(4) This section regulates action by the State after commencement of this section. It does not alter the operation of Commonwealth law or release the State from an obligation already incurred.

No. 7 **Conflicts in carbon credit transactions**

Page 15. Insert after line 40—

42F **Conflicts in carbon credit transactions**

(1) A person exercising a function for the Department in selecting a counterparty or negotiating a carbon credit transaction concerning land reserved or vested, or specified for reservation or vesting, by this Act must disclose a material personal interest to the Secretary and must not participate further unless the Secretary has recorded arrangements permitted by law for managing the conflict.

(2) If the Secretary has the interest, the disclosure and decision must be made to and by the NPW Minister.

(3) Within 6 months after each financial year in which a disclosure is made, the Secretary must publish an aggregate summary of the conflicts and management action, excluding personal information unnecessary to explain the action.

(4) This section does not permit participation prohibited by another law.

No. 8 **Annual testing of carbon financial risks**

Page 15. Insert after line 40—

42G **Annual testing of carbon financial risks**

(1) For each financial year in which the State has a material financial exposure under a carbon project concerning land reserved or vested, or specified for reservation or vesting, by this Act that is administered by the NPW Minister or Secretary, the Secretary must obtain a documented assessment of the effects of bushfire, drought, reversal of abatement, lower credit prices and project non-compliance on that exposure.

(2) The assessment must identify assumptions, the range of reasonably foreseeable liabilities and available risk mitigation measures.

(3) The NPW Minister must publish a summary within 6 months after the end of the financial year. Legally privileged information need not be disclosed.

No. 9 **Notification of carbon project compliance action**

Page 15. Insert after line 40—

42H **Notification of carbon project compliance action**

(1) If the NPW Minister or Secretary receives, or becomes aware of the State's receipt of, a formal regulatory notice alleging a material contravention, suspending or cancelling registration or requiring relinquishment of credits for a carbon project concerning land reserved or vested, or specified for reservation or vesting, by this Act, the Secretary must publish the nature of the action and proposed response within 14 days after receiving or becoming aware of it.

(2) The publication must distinguish an allegation from a final finding and identify any available review process.

(3) Information must not be published to the extent publication is prohibited by law or an order of a court or tribunal.

No. 10 **Evidence for public carbon claims**

Page 15. Insert after line 40—

42I **Evidence for public carbon claims**

(1) A public statement issued by or on behalf of the Department about abatement achieved on land reserved or vested by this Act must distinguish estimated abatement, verified abatement, credits issued, credits sold and credits relinquished or retired, as applicable to the claim.

(2) The statement must identify the period and accounting method and must not represent abatement as available for a further offset if the associated credit has already been used for an offset or the State has transferred the entitlement to claim that abatement.

(3) The Secretary must promptly correct a material error and, so far as practicable, publish the correction with the original statement.

No. 11 **Traceability of carbon project receipts**

Page 15. Insert after line 40—

42J **Traceability of carbon project receipts**

(1) The Secretary must ensure that records for carbon projects concerning land reserved or vested, or specified for reservation or vesting, by this Act and administered by the NPW Minister or Secretary separately identify gross receipts, transaction costs and net receipts of the State.

(2) The records must permit reconciliation with each project and transaction and be retained for the duration of the project and at least 7 years afterwards, subject to any longer period required by law.

(3) Within 6 months after each financial year in which a receipt or transaction cost occurs, the Secretary must publish a financial summary reconcilable with the relevant agency's annual financial statements and make the supporting records available for audit in accordance with law.

(4) This section does not hypothecate revenue, appropriate money or direct the Auditor-General's audit opinion.

No. 12 **No contractual secrecy over aggregate carbon costs**

Page 15. Insert after line 40—

42K **No contractual secrecy over aggregate carbon costs**

(1) The NPW Minister, or a person acting on behalf of the Crown in right of New South Wales in connection with establishment of the Great Koala National Park, must not enter, renew or materially vary an agreement for a carbon project on land reserved or vested, or specified for reservation or vesting, by this Act that prevents publication of the aggregate cost to the State, the duration of its obligations or the maximum exposure under a contractual indemnity.

(2) This section does not require disclosure prohibited by law, legally privileged information or personal information unnecessary to explain the public cost. It does not require publication of transaction-level pricing whose disclosure would cause a demonstrable commercial disadvantage.

(3) The NPW Minister must publish reasons for withholding transaction-level pricing, without disclosing the protected information. This section does not override a confidentiality obligation incurred before commencement unless the agreement is renewed or materially varied.

No. 96 **Public inventory of carbon project agreements**

Page 15. Insert after line 40—

42CQ **Public inventory of carbon project agreements**

(1) The NPW Minister must publish a register of agreements for carbon projects concerning land reserved or vested, or specified for reservation or vesting, by this Act entered into by the NPW Minister or on behalf of the Crown in right of New South Wales in connection with establishment of the Great Koala National Park.

(2) The register must identify the parties, purpose, duration and nature of land management obligations, excluding personal details unnecessary to explain the agreement, legally privileged information and information whose disclosure is prohibited by law.

(3) An entry or material update must be published within 30 days after the Secretary receives the relevant agreement or information.

No. 97 **Assessment of carbon related management restrictions**

Page 15. Insert after line 40—

42CR **Assessment of carbon related management restrictions**

Before the NPW Minister, or a person acting on behalf of the Crown in right of New South Wales in connection with establishment of the Great Koala National Park, enters, renews or materially varies an agreement for a carbon project concerning land reserved or vested, or specified for reservation or vesting, by this Act that materially restricts fire management, pest control or lawful access, the NPW Minister must table in each House and publish an assessment of the proposed restriction, its operational consequences and alternatives considered. Legally privileged information need not be disclosed.

No. 98 **No contractual override of statutory duties**

Page 15. Insert after line 40—

42CS **No contractual override of statutory duties**

(1) An agreement entered into, renewed or materially varied after commencement of this section by the NPW Minister or on behalf of the Crown in right of New South Wales for a carbon project concerning land reserved or vested, or specified for reservation or vesting, by this Act must not require a State officer or authority to contravene a statutory duty.

(2) The NPW Minister must ensure that the agreement expressly recognises the continuing operation of those duties.

(3) This section does not release the State from a liability imposed directly by another law.

These amendments deal with transparency around the carbon credit scheme. Amendment No. 3 provides for at least 30 days of public consultation before the State applies for, cancels or consents to the registration of a carbon project. Amendment No. 4 requires an independent valuation around disposal of carbon credits. Amendment No. 5 places a limit on carbon project indemnities. Amendment No. 6 deals with parliamentary approval for long carbon commitments extending beyond 25 years. Amendment No. 7 deals with conflicts in carbon credit transactions, requiring people negotiating and selecting parties for carbon credit deals to disclose personal interests.

Amendment No. 8 deals with the annual testing of financial risks around the carbon credit scheme. A summary must be published within six months of the financial year ending, showing the assumptions, possible

liabilities and ways to manage them. Amendment No. 9 deals with compliance action regarding a carbon project, requiring notification publicly within 14 days. Amendment No. 10 deals with evidence for public carbon claims. It requires public carbon claims to distinguish estimates from verified results and credits issued when credits sold are already used. That prevents claims that the same abatement remains available for another offset after the entitlement has been transferred or used.

Amendment No. 11 deals with the traceability of carbon project receipts, requiring clear records of carbon income, transaction costs and the amount left for the State. An annual summary must be published and the supporting records kept available for a lawful audit. Amendment No. 12 deals with contractual secrecy over aggregate carbon costs. Amendments Nos 96, 97 and 98 all deal with the assessment of carbon-related management restrictions and having a public inventory of carbon project agreements. Amendment No. 98 specifically concerns there being no contractual override of statutory duties with regards to the scheme. With those brief remarks, I commend the amendments to the Committee.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (13:42): These issues have been well canvassed. The Government does not support these amendments.

The Hon. SARAH MITCHELL (13:42): I put on record that The Nationals will be supporting all of these amendments. Amendment No. 3 is about ensuring 30 days of public submissions before the State registers or materially varies a project. We think this is important because communities should hear about any changes before they are locked in, not after. Amendment No. 4 is about independent valuation before selling credits, which would apply in any other transaction we make. You would not sell your farm without a valuation. This amendment just puts in place an independent valuer with no financial interest and a published summary within 30 days. We think whatever should apply in other cases should be the same for the selling of carbon credits.

We support what amendment No. 5 seeks to do, which is to ensure there are no uncapped indemnities and there is no indemnifying a counterparty for its own fraud or negligence, and that the Treasurer must sign off on any other indemnity. Amendment No. 6 requires Parliament to approve commitments over 25 years. We are happy to support this amendment, because we have concerns that any sort of permanence can bind the State for a very long time. We do not think a decision that binds governments that have not yet been elected to Parliament is a good idea.

Amendment No. 7 concerns conflicts of interest. It makes sense to ensure that officials negotiating carbon deals declare personal interests and step aside unless those are managed properly and published annually. That will lead to basic integrity, which we should all want. The annual stress test will test exposure against bushfire, drought, credit price falls and noncompliance. The Nationals also agree with amendment No. 9, requiring the regulator to disclose action within 14 days. Again, we think that is good public process, ensuring that the public is told if there are any breaches or cancellations of credits. Amendments Nos 10, 11 and 12 ensure that there is no greenwashing. Public claims must be very clear about estimated and verified abatement, credits issued, sold or retired, and no double counting of carbon already sold. We think transparency is important.

Amendment No. 12 ensures no secrecy clauses on the aggregate cost. Commercial pricing can stay confidential, but total cost, duration and maximum exposure cannot be hidden by contract. We agree with that in terms of transparency. Finally, amendments Nos 96 to 98 are also about transparency, making sure that the public register of carbon agreements is published within 30 days, that there is a table of the carbon restrictions on fire, pest and access, and, if there is a carbon contract that limits hazard reduction, pest control or access, Parliament is the body that sees it first. It makes sense to have a clause that contracts cannot override statutory duties. Therefore, The Nationals support the amendments.

The Hon. JACQUI MUNRO (13:46): The Liberals will vote against the amendments. Like the Government, we believe that the existing processes need to be scrutinised. I raised those matters in my second reading debate contribution. We have questions about how the Australian carbon credit units will be operational in the scheme. This will be the first test of the improved native forest management method, and proper scrutiny should be applied, but we do not believe that this is the appropriate way to do that.

The Hon. WES FANG (13:46): I indicate that I support the amendments moved by the Hon. Mark Banasiak and outlined in detail by the Deputy Leader of the Opposition, my colleague and friend the Hon. Sarah Mitchell. From the outset, in rejecting the amendments, in the contributions of the Leader of the Government and the member leading in debate for the Liberal Party, the Hon. Jacqui Munro—she is also my friend, but on this issue I might perhaps disagree with her a little bit—effectively rejecting the amendments, they did not necessarily go into detail as to why that rejection is the case. If we were to look at these amendments—and there are a number of amendments moved in globo—they provide a level of transparency.

Even the Hon. Jacqui Munro, in her contribution, whilst indicating that the Liberal Party would not support the amendments, indicated that there is a level of concern about the carbon credits scheme being rolled out. Given the only very recent Federal Parliament adoption of the new method, there is a level of concern about the way that these matters will be scrutinised by the State Parliament, given that the Government is also so reliant on the funding from the scheme to effectively bankroll the Great Koala National Park. Just looking at the amendments that have been moved, the public consultation on carbon project registration is entirely reasonable. I think that the community deserves the right to be consulted on these matters.

We have already outlined in previous contributions that the Government has effectively treated consultation as a tick-box exercise. Given that the Government does that so readily, it is unusual that it would not actually be prepared to support these reasonable amendments that would require consultation on the matters.

Amendment No. 4, "Independent valuation before disposing of carbon credits", again provides some clarity about the value of those carbon credits. I have already raised my personal concerns that we have a potential here that the carbon credits will be limited in their value, specifically because the Government has said a class of purchaser is excluded from being able to access those carbon credits. Any time that you limit that market for the carbon credits, you create a circumstance where you are perhaps curtailing the price that you can achieve.

Ultimately, governments have to make decisions, and I think that the public is right to be informed about the cost of those decisions. If it is the case that the Government seeks to artificially curtail the market that exists around the carbon credits, then they should be made aware of the costs of that. By insisting that an independent valuation occur, the public will be able to be better informed about what those carbon credits may be valued at and what they may be valued at in terms of a limited market, given the constraints that the Government has put around those carbon credits. Amendment No. 5 effectively has a limit on the carbon project indemnities. I think that is extraordinarily reasonable in terms of the contributions that have been made previously. I do not need to labour on that point.

Amendment No. 6 relates to parliamentary approval for long carbon commitments. I do not think it is unreasonable that Parliament be considered the appropriate place to consider these issues. Whilst some of those reasons have been perhaps articulated in other debates, I note that we are talking about periods of 25 years. There has already been, I think, some concern about what was, say, a plantation being enveloped as part of this Great Koala National Park and it being drawn into the carbon credit scheme. I think those long-tail commitments need to be a question for the Parliament. The Parliament is the appropriate place to bring those.

Amendment No. 7 relates to conflicts in carbon credit transactions and is entirely appropriate. There is—amongst the community, at least—concern that what I have called the Ponzi scheme, but what other people call the carbon credit scheme, creates a circumstance where people are trading pieces of paper. I keep reflecting on this—Ms Abigail Boyd articulated concerns around how this new methodology may or may not remove carbon. The other issue that it points to, in terms of the trading of carbon credits, is that there are, in effect, potentials for conflicts of interest where we know that there are bodies that trade in carbon credits. These are a newly adopted carbon credit that did not exist previously.

It is my contention that they are not even really carbon credits because I am unsure as to exactly how much carbon they are removing from the system, given that we are effectively not chopping down a tree, but it is not as if that tree was necessarily always going to be burnt. It may have been turned into floorboards; it may have been turned into furniture. That carbon remains captured. This method of valuing the carbon credit that exists within those forests is, I think, perhaps questionable. Those conflicts that may exist in those circumstances should be declared. Again, that is why the amendment is entirely reasonable.

It is interesting that both the Liberal Party and the Government have sought to not adopt this amendment. The testing of financial risks to the carbon credit scheme is quite sensible. As the Minister outlined quite correctly, bushfires create an incredible risk to the carbon credit scheme. If you burn down a forest where you have effectively not cut down any trees, you are releasing all of that carbon. The carbon credit exists because the trees have not been cut down, but members can imagine what would happen if a fire went through that area. If a carbon credit has been granted for not cutting down a tree and a fire goes through the area and burns the tree down, then that carbon is released. If that tree had been cut down and turned into furniture or floorboards, like some hardwoods are, it would release less carbon than if it had burned in a bushfire.

The circumstance I just highlighted points to how ridiculous this carbon credit scheme is, because there is not really any additionality. Members have always made the point that there has to be a level of additionality with carbon capture. It is also the case that there are so many risks to the carbon credit scheme, given bushfires and the like, that it is appropriate for members to look at this amendment. It is also appropriate to have compliance for carbon projects and to require evidence for public carbon claims. I have already outlined why traceability and having no contractual secrecy are so important. We have vast concerns. A number of other amendments were

moved by the Hon. Mark Banasiak, but I think I have covered the main ones. I conclude my remarks by saying that these amendments are sensible. It is interesting that the other parties in this place are not prepared to adopt the small level of transparency that these amendments provide.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 3 to 12 and 96 to 98 on sheet c2026-309AA. The question is that the amendments be agreed to.

Amendments negatived.

The Hon. MARK BANASIAK (13:57): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 13 to 20, 27, 28 and 78 to 86 on sheet c2026-309AA in globo:

No. 13 **Open process for exclusive commercial visitor rights**

Page 15. Insert after line 40—

42L **Open process for exclusive commercial visitor rights**

(1) Before granting a new exclusive commercial right to conduct visitor activities on land reserved or vested by this Act, the NPW Minister must invite expressions of interest for at least 30 days and publish the selection criteria.

(2) Within 30 days after the grant, the NPW Minister must publish the successful applicant, the duration and scope of exclusivity and reasons for selection.

(3) This section does not apply to renewal of a lawful existing interest on substantially the same terms without materially expanding the exclusivity, an arrangement giving effect to Aboriginal ownership or joint management, or a temporary arrangement necessary to respond to an emergency.

(4) This section does not authorise a grant otherwise prohibited by law.

No. 14 **Criteria for filming and photography applications**

Page 15. Insert after line 40—

42M **Criteria for filming and photography applications**

(1) The Secretary must publish criteria for applications decided by the NPW Minister or Secretary for commercial filming or photography on land reserved or vested by this Act, including environmental effects, public access and the scale of the activity.

(2) The decision-maker must give written reasons applying the criteria for a refusal or a condition materially restricting the proposed activity.

(3) This section does not dispense with an approval required by law or limit immediate action necessary to address a serious safety or environmental risk.

No.15 **Permit fee relief for school field studies**

Page 15. Insert after line 40—

42N **Permit fee relief for school field studies**

(1) Despite a regulation under the *National Parks and Wildlife Act 1974*, no fee is payable to the NPW Minister or Secretary solely for processing an application by a school to conduct a non-commercial field study on land reserved or vested by this Act.

(2) This section does not waive a charge for accommodation, transport or a service specifically requested by the school or dispense with an approval or safety requirement.

(3) In this section, school means a government school or registered non-government school within the meaning of the *Education Act 1990*.

No. 16 **Local advice on park establishment**

Page 15. Insert after line 40—

42O **Local advice on park establishment**

(1) Within 6 months after the later of commencement of this section and commencement of section 11, the NPW Minister must establish, or assign to an existing advisory body, a group to advise on practical establishment of land reserved or vested by this Act.

(2) The Secretary must publicly invite nominations and seek balanced representation of affected councils, Aboriginal communities, adjoining landholders, former forestry workers, local businesses, recreational users and conservation interests. The membership, terms of reference and reasons for any unfilled category must be published.

(3) The group must meet at least twice a year for the first 3 years after the later of commencement of this section and commencement of section 11. Its advice and the Department's response must be published, excluding information whose disclosure is prohibited by law.

(4) This section does not confer a decision-making power or an entitlement to remuneration.

No. 17 **Independent review of land handover complaints**

Page 15. Insert after line 40—

42P **Independent review of land handover complaints**

(1) The Secretary must establish a procedure for complaints about administrative acts or omissions in transferring responsibility for land under this Act.

(2) The procedure must provide for acknowledgement within 10 business days, a written response within 30 days or reasons for additional time, and review on request by a person who was not involved in the act or omission.

(3) The procedure must not require a complainant to waive a right to complain to the Ombudsman or seek another remedy. It does not confer a power to set aside a statutory decision or stay its operation.

No. 18 **No duplicate application fee because of transfer**

Page 15. Insert after line 40—

42Q **No duplicate application fee because of transfer**

(1) A person must not be required to pay a further Departmental application or processing fee solely because responsibility for an undetermined application relating to a lease, licence, permit, authority, authorisation or occupancy has transferred under this Act.

(2) This section does not prevent a fee for a materially different application or a fee that was payable but had not been paid before the transfer.

No. 19 **No rent increase solely because of transfer**

Page 15. Insert after line 40—

42R **No rent increase solely because of transfer**

(1) The NPW Minister or Secretary must not increase a rent or occupation charge for a lease or occupancy continued on land reserved or vested by this Act solely because the land has been reserved or vested, or its administering agency changed, under this Act.

(2) This section does not prevent an increase required by an existing rent review provision, an applicable statutory valuation method or a variation agreed with the holder for an additional right or benefit.

No. 20 **Protection of authorised improvements on handover**

Page 15. Insert after line 40—

42S **Protection of authorised improvements on handover**

(1) The NPW Minister or Secretary must not require a lawful occupier of land reserved or vested by this Act to remove a building or improvement solely because responsibility for the land has transferred, if the improvement was lawfully erected and remains authorised by the occupier's interest.

(2) Before requiring removal on another discretionary land management ground, the decision-maker must identify the legal basis and consider repair, adaptation or retention.

(3) This section does not prevent immediate action to address a serious safety risk or compliance with a court order or a requirement imposed by another Act.

No. 27 **Aboriginal cultural heritage procedures for new works**

Page 15. Insert after line 40—

42Z **Aboriginal cultural heritage procedures for new works**

(1) Before carrying out new ground-disturbing works on land reserved or vested by this Act, the Secretary must ensure that applicable Aboriginal cultural heritage assessment and consultation requirements have been identified and satisfied.

(2) The Secretary must ensure that a works contract entered into by or on behalf of the Department includes a procedure for stopping work in an affected area and obtaining appropriate advice if a previously unidentified Aboriginal object is found.

(3) This section does not authorise harm to an Aboriginal object or require publication of culturally sensitive information. It does not delay action reasonably necessary to protect life in an emergency.

No. 28 **Assessment of historic forestry heritage**

Page 15. Insert after line 40—

42AA **Assessment of historic forestry heritage**

(1) For each parcel, within 12 months after the later of commencement of this section and the day it is first reserved or vested by this Act, the Secretary must identify surviving forestry infrastructure and places on land reserved or vested by this Act that may have historic heritage significance and publish priorities for assessment.

(2) Before demolishing or materially altering a place identified under subsection (1), or otherwise known to the Secretary to be likely to have historic heritage significance, the Secretary must obtain an assessment by a suitably qualified person and consider recording, interpretation or retention.

(3) This section does not replace an approval required by the *Heritage Act 1977* or prevent urgent action to address a serious safety risk.

No. 78 **Single contact for existing interest holders**

Page 15. Insert after line 40—

42BY **Single contact for existing interest holders**

(1) The Secretary must provide a single Departmental contact point for persons holding existing interests on land reserved or vested by this Act and ensure that enquiries are referred internally to the appropriate decision-maker.

(2) In this section, existing interest means a lease, licence, permit, authority, authorisation or occupancy held immediately before reservation or vesting under this Act and continuing in force, including a renewal or extension, other than a forestry right extinguished under section 31.

No. 79 **Early notice of missing application information**

Page 15. Insert after line 40—

42BZ **Early notice of missing application information**

(1) Within 14 days after receiving an application concerning an existing interest on land reserved or vested by this Act, the NPW Minister or Secretary receiving the application must identify information reasonably required to assess it or explain why further time is needed. A later request must identify the additional need.

(2) A request under this section does not extend a decision deadline imposed by another provision.

(3) In this section, existing interest means a lease, licence, permit, authority, authorisation or occupancy held immediately before reservation or vesting under this Act and continuing in force, including a renewal or extension, other than a forestry right extinguished under section 31.

No. 80 **Status updates for outstanding applications**

Page 15. Insert after line 40—

42CA **Status updates for outstanding applications**

(1) If an application concerning an existing interest on land reserved or vested by this Act remains undetermined for more than 60 days, the NPW Minister or Secretary responsible for it must give the applicant an update identifying the reason and expected decision date, and further updates at intervals of no more than 30 days until determination.

(2) An update does not extend a decision deadline imposed by another provision.

(3) In this section, existing interest means a lease, licence, permit, authority, authorisation or occupancy held immediately before reservation or vesting under this Act and continuing in force, including a renewal or extension, other than a forestry right extinguished under section 31.

No. 81 **Recognition of existing compliance records**

Page 15. Insert after line 40—

42CB **Recognition of existing compliance records**

(1) When assessing an application concerning an existing interest on land reserved or vested by this Act, the NPW Minister or Secretary deciding the application must consider relevant compliance records held by the Forestry Corporation of New South Wales or another State agency and lawfully and reasonably available to the decision-maker and must not require duplicate evidence without a reasonable basis.

(2) In this section, existing interest means a lease, licence, permit, authority, authorisation or occupancy held immediately before reservation or vesting under this Act and continuing in force, including a renewal or extension, other than a forestry right extinguished under section 31.

No. 82 **Time to respond before adverse permit decisions**

Page 15. Insert after line 40—

42CC **Time to respond before adverse permit decisions**

(1) Before the NPW Minister or Secretary makes a discretionary land management decision to terminate or materially restrict an existing interest on land reserved or vested by this Act, the

decision-maker must give the holder the proposed grounds and at least 21 days to respond and consider any response received in that period.

(2) This section does not prevent immediate action necessary to address a serious risk to safety, the environment or cultural heritage, or compliance with a court order or a requirement imposed by another Act. It does not extend another statutory decision deadline.

(3) In this section, existing interest means a lease, licence, permit, authority, authorisation or occupancy held immediately before reservation or vesting under this Act and continuing in force, including a renewal or extension, other than a forestry right extinguished under section 31.

No. 83 **Proportionate permit conditions**

Page 15. Insert after line 40—

42CD **Proportionate permit conditions**

(1) A discretionary condition newly imposed by the NPW Minister or Secretary on an existing interest on land reserved or vested by this Act must be reasonably related to a lawful management purpose and no more restrictive than reasonably necessary for that purpose.

(2) This section does not prevent a condition required by another Act.

(3) In this section, existing interest means a lease, licence, permit, authority, authorisation or occupancy held immediately before reservation or vesting under this Act and continuing in force, including a renewal or extension, other than a forestry right extinguished under section 31.

No. 84 **Disclosure of new security requirements**

Page 15. Insert after line 40—

42CE **Disclosure of new security requirements**

(1) Before requiring a new bond, deposit or insurance amount from a holder of an existing interest on land reserved or vested by this Act, the NPW Minister or Secretary must give the holder written reasons identifying the risk addressed and the basis for the amount.

(2) This section does not confer a power to impose the requirement.

(3) In this section, existing interest means a lease, licence, permit, authority, authorisation or occupancy held immediately before reservation or vesting under this Act and continuing in force, including a renewal or extension, other than a forestry right extinguished under section 31.

No. 85 **Independent internal review of new conditions**

Page 15. Insert after line 40—

42CF **Independent internal review of new conditions**

(1) A holder affected by a discretionary condition newly imposed by the NPW Minister or Secretary on an existing interest on land reserved or vested by this Act may apply to the Secretary for internal review within 28 days after written notification of the condition. The Secretary may allow a late application for good reason.

(2) The Secretary must arrange review by an officer not involved in imposing the condition. The officer must recommend confirmation, variation or revocation to the person lawfully authorised to determine the condition.

(3) That person must consider the recommendation, determine the review and give the holder written reasons within 30 days after the review application, or a longer period agreed with the holder.

(4) The condition continues unless lawfully stayed. This section does not extend a time limit for another review or appeal or authorise variation of a condition required by another Act.

(5) In this section, existing interest means a lease, licence, permit, authority, authorisation or occupancy held immediately before reservation or vesting under this Act and continuing in force, including a renewal or extension, other than a forestry right extinguished under section 31.

No. 86 **Retention of interest holder records**

Page 15. Insert after line 40—

42CG **Retention of interest holder records**

(1) The Secretary must ensure that records reasonably necessary to establish existing interests and their conditions on land reserved or vested by this Act are transferred to the administering agency and retained for the duration of the interest and at least 7 years afterwards.

(2) In this section, existing interest means a lease, licence, permit, authority, authorisation or occupancy held immediately before reservation or vesting under this Act and continuing in force, including a renewal or extension, other than a forestry right extinguished under section 31.

(3) This section does not authorise destruction of a record contrary to the *State Records Act 1998*.

Amendments Nos 13 to 15 are largely to do with access to the national park. Amendment No. 13 deals with an open process for exclusive commercial visitor rights. An open expression of interest process is required before any new, exclusive visitor rights are granted. That is a sensible approach given the conversations we have had in this place around potentially offering campsites to commercial companies to run. Amendment No. 14 sets out published criteria for commercial filming and photography applications. A lot of constituents have asked for a clearer process to apply for filming and photography. Amendment No. 15 deals with fee relief for school field studies. We want young people to visit the park and engage in our environment. Providing fee relief options for schools, particularly schools from low socio-economic backgrounds or schools that might have to travel great distances to visit the park, is a worthwhile cause to pursue.

Amendment No. 16 is about maintaining a local advisory group on the park for at least three years while the park is in its infancy. Amendment No. 17 deals with an independent review for any complaints around land handover, requiring a written response within 30 days, or an explanation if longer time is needed. Amendment No. 18 says that there should be no second processing fee for any transfers or applications. Only one fee should be charged, unless the application is substantially different. Amendment No. 19 says there should be no rent increase solely because of a transfer as the land status changes.

Amendment No. 20 protects lawful buildings and improvements from being ordered removed simply because the land changes hands. If infrastructure is in good order, we do not see why it should be removed because of the land status changing. Amendments Nos 27 and 28 are around protecting Aboriginal cultural heritage. They require applicable Aboriginal heritage checks and consultation before any new ground disturbing works. That is a sensible amendment. Amendment No. 28 applies something similar for the assessment of historic forest heritage. A lot of forestry infrastructure within our State forests has heritage value and significance to people who have worked in the industry for generations. That is worthwhile conserving as part of any park.

Amendments Nos 78 to 86 are around existing interest holders. Amendment No. 78 requires one departmental contact point for holders of continuing leases, permits and licences. People dealing with one person and not getting the runaround makes the transition smoother. That causes distress for people in other areas. That is a sensible amendment. Amendment No. 79 is around issues with missing applications and information about them being provided earlier. Being able to respond to that within 14 days is a sensible amendment. We think there should be a timeline for status updates of outstanding applications. That would be a key performance indicator for agencies to be held to. Existing interest holders should not be waiting for more than 60 days and should be afforded an explanation if that is the case.

Amendment No. 81 deals with the recognition of existing compliance records. Lawfully available compliance records from Forestry Corporation of NSW or other State agency are to be considered when assessing an application concerning an existing interest. Applicants should not have to supply the same evidence again if it has already been provided a first time. Amendment No. 82 deals with the time to respond before adverse permit decisions, giving the permit holder at least 21 days to respond before a discretionary decision ends or substantially restricts an interest. Amendment No. 83 is around proportionate permit conditions. The amendment requires new discretionary conditions on continuing leases, permits and other existing interests to serve a lawful management purpose and be no more restrictive than reasonably necessary for that purpose. Conditions required by another Act would still apply.

Amendment No. 84 is about disclosure. Before requiring a new bond, deposit or insurance amount from an existing interest holder, reasons identifying the risk and an explanation of how the amount was set must be given. That makes the demand accountable without creating a new power to impose it. Amendment No. 85 provides for an independent internal review of any new conditions on existing interest holders. An interest holder can seek, within 28 days, an internal review of any new discretionary condition. The 28-day period is pretty standard for departmental internal reviews. Amendment No. 86 deals with the retention of interest holder records, requiring that they be held for the duration of the interest and at least seven years afterwards, regardless of the interest continuing or not.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (14:06): I appreciate the member grouping these amendments together. The Government does not support them. Again, we have had this conversation. There are already existing mechanisms in place to cover those matters through plans of management and a range of other aspects of the National Parks and Wildlife Act and the Contaminated Land Management Act. The Government does not believe they need to be put into the legislation.

The Hon. SARAH MITCHELL (14:06): I indicate that The Nationals will be supporting all of these amendments. I make a couple of comments about a few of them, particularly amendments Nos 13 to 15. We support making sure that local businesses and school students—particularly those on the North Coast—get fair access to the Great Koala National Park. As a former education Minister, I think it is really important that any

land reserved under the Act be available to school students. The Shooters amendment ensures that an application by a school to conduct a non-commercial field study will not be subject to a processing fee. We think it is important for students to have access to learning experiences outside of the classroom, so amendment No. 15 in particular makes a lot of sense.

The Nationals think amendments Nos 16 to 20 are a good block of amendments. They ensure that the people who know this country best have a seat at the table and are not worse off because of the changes made here, by implementing a local advisory group and good complaints processes, and avoiding double fees and rent hikes. They are commonsense amendments. In relation to amendments Nos 27 and 28, about Aboriginal forestry, we think it is important that Aboriginal cultural heritage assessment and consultation requirements are satisfied before any new works, so that culturally sensitive information will stay protected. The same applies to historic forestry heritage.

Lastly, amendments Nos 78 to 86 are sensible in terms of ensuring that there is good administration in place for local communities, and not just further bureaucracy. Having a one-door approach means that people will not have to repeat the same information to different agencies. It is good governance to have a one-stop shop, answer phone calls, not lose people's files and be there to support the community. They are sensible amendments to limit administration and bureaucracy.

The Hon. JACQUI MUNRO (14:09): The Liberals do not support the amendments. Again, we are sympathetic to the Hon. Mark Banasiak's aims and intentions, and the National Party's support for the amendments. But we, like the Government, believe there are existing and sufficient provisions within the bill and existing regulatory structures.

The Hon. WES FANG (14:09): I make a brief contribution to debate on the amendments. From the outset, I say that it is unfortunate that some of these amendments cannot be supported by the Government or the Liberal Party, particularly amendment No. 15, which I think is incredibly important for us to consider. I am not sure that a lot of consideration has been given to that one, which is about permit fee relief for school field studies. The Government has said, effectively, that this is going to be a koala sanctuary, it is going a national park, it is going to be tourist hotspot and it is going to be a number of things. But that should not be at the expense of schools, students and their learning.

By moving this amendment, the member has made a reasonable and supportable proposal. I know a lot of parents who send their kids to school are already under cost-of-living pressures. If schools were exempt from any fees to enter or study the Great Koala National Park, that would provide schools with an ability to consider sending students to attend there and providing opportunities for students to learn in that environment, because that cost would not be imposed on the school—although it is probably more likely the case, let's be honest, that the cost would be to the parents of the children who attend the national park to study.

I do not know what the cost of that policy would be. I cannot imagine that it would be a huge cost. Again, that it was not already written into the bill is a problem, particularly for the education Minister in this Government. I know that my colleague the Hon. Sarah Mitchell, as a former education Minister, would have been quite strident in her support.

The Hon. Sarah Mitchell: We wouldn't have done this bill, to be fair.

The Hon. WES FANG: I acknowledge that interjection. We would not have done something like this. In circumstances where there were impact on other portfolios, I am sure the Hon. Sarah Mitchell, as an education Minister, would have been strident in her support for an amendment like this. It is interesting that the member in the other place, the education Minister, has not pulled the Minister for the Environment aside and demanded that something like this be supported. That is a failure of the education Minister, but I probably do not need to labour that point too much.

The member has moved a number of sensible amendments, and he has moved them in globo. I accept that there is perhaps a circumstance where members who have indicated that they are not prepared to support all the amendments that were moved may be reluctant to support the grouping of amendments because they were moved in globo. I submit to all those members that this is, in fact, a sensible group of amendments that effectively can be adopted with very little cost to the Government. For example, amendment No. 16 is about local advice on park establishment. There is very little pushback in terms of adopting this. But it just seems to me that we are currently debating a bill with a government that is reluctant to listen and learn from the errors of the past—errors that they made in the seeking and understanding of local advice.

I appreciate that the Hon. Mark Banasiak has moved these amendments to try to help the Government to help itself. I know I used that phrase a lot yesterday, but that is also what is happening here: With the experience that we all bring to this Committee, we are trying to provide the Government with an opportunity to do better and

be better. We are trying to help the Government do that. You can lead a horse to water but, unfortunately you cannot make it drink. That is certainly the case with these amendments. The Hon. Mark Banasiak has led the Government to the water, but the Government is too stubborn to take a drink. Ultimately, with that analogy what we will see is a government that is going to go thirsty. It will go thirsty for the consultation of local communities.

Looking at the amendments that have been moved, as I said previously they are all supportable. I do not know why the Government has failed to adopt them. I am not sure why our Coalition partner is not adopting them, either. Certainly the National Party will support them. I encourage members to reconsider their positions.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 13 to 15, 16 to 20, 27 and 28, and 78 to 86 on sheet c2026-309AA. The question is that the amendments be agreed to.

Amendments negatived.

The Hon. MARK BANASIAK (14:15): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 21, 22, 29, 32, 33, 36 to 40, 45, 87 to 89 on sheet c2026-309AA in globo:

No. 21 **Assessment of legacy contamination**

Page 15. Insert after line 40—

42T **Assessment of legacy contamination**

(1) For each parcel, within 12 months after the later of commencement of this section and the day it is first reserved or vested by this Act, the Secretary must arrange a risk-based assessment of known or suspected contamination associated with former depots, chemical stores, fuel facilities and waste disposal sites on land reserved or vested by this Act.

(2) The assessment must identify sites requiring investigation or remediation and the agency responsible for progressing that work.

(3) A summary must be published. This section does not determine liability under the *Contaminated Land Management Act 1997* or replace a notification required by that Act.

No. 22 **Management of asbestos in inherited assets**

Page 15. Insert after line 40—

42U **Management of asbestos in inherited assets**

(1) Before opening an inherited building or facility on land reserved or vested by this Act for new public use, the Secretary must ensure that asbestos risks have been assessed by a suitably qualified person and that any necessary controls are in place.

(2) The Secretary must maintain an asbestos management plan for inherited assets requiring one and give contractors information relevant to their proposed work before that work begins.

(3) This section is additional to obligations under work health and safety law and does not authorise asbestos removal by an unqualified person.

No. 29 **Engineering basis for access road load restrictions**

Page 15. Insert after line 40—

42AB **Engineering basis for access road load restrictions**

(1) Before imposing a new weight limit on a road on land reserved or vested by this Act that provides lawful access to privately owned land or land held under a lease or other lawful occupancy, the NPW Minister or Secretary must obtain an assessment by a suitably qualified engineer and give affected owners or occupiers the material findings and reasons.

(2) The assessment must consider the lawful uses of the land and any reasonably practicable alternative route.

(3) An urgent temporary restriction may be imposed without the assessment but must be reviewed on engineering advice as soon as practicable. This section does not confer a power to impose a restriction.

No. 32 **Restoration of essential access after bushfire**

Page 15. Insert after line 40—

42AE **Restoration of essential access after bushfire**

(1) Following a bushfire affecting land reserved or vested by this Act, the Secretary must promptly assess damage to roads providing the only practical access to occupied private or leasehold land and consult affected occupiers about temporary arrangements.

(2) Restoration priorities must take account of risks to life, essential supplies and the lawful uses of the holding. The Secretary must give affected occupiers available information about the proposed response and expected timeframes.

(3) This section does not require a road to be opened while it is unsafe or appropriate money.

No. 33 **Removal of fallen obstructions from sole access roads**

Page 15. Insert after line 40—

42AF **Removal of fallen obstructions from sole access roads**

(1) A lawful occupier whose holding has no reasonably practicable lawful access other than a road on land reserved or vested by this Act may apply to the Secretary for written permission to remove fallen timber or debris obstructing the existing carriageway.

(2) The Secretary must determine an urgent application as soon as reasonably practicable and consider whether safe removal can be permitted subject to conditions protecting native wildlife, cultural heritage and public safety.

(3) A permission must specify the obstruction, the permitted work, any necessary access, the period and conditions. Work and access in accordance with it do not constitute an offence under the *National Parks and Wildlife Act 1974* or its regulations merely because they involve the specified access or removal.

(4) Permission does not authorise felling a standing tree, widening the road, commercial harvesting, harm to Aboriginal objects or native wildlife, entry onto another person's land without lawful authority, or work contrary to another Act.

No. 36 **Record of transferred infrastructure**

Page 15. Insert after line 40—

42AI **Record of transferred infrastructure**

For each parcel, within 90 days after the later of commencement of this section and the day it is first reserved or vested by this Act, the Secretary must publish an inventory, based on available records and reasonable enquiries, of roads, bridges, culverts, dams, buildings and other public infrastructure on land reserved or vested by this Act, identifying the agency responsible for each asset. Security-sensitive information may be withheld with published reasons.

No. 37 **Infrastructure condition records**

Page 15. Insert after line 40—

42AJ **Infrastructure condition records**

(1) Before accepting responsibility for an infrastructure asset on land reserved or vested by this Act, the Secretary must seek a joint record with the outgoing agency of the asset's condition and known defects.

(2) If a joint record cannot reasonably be obtained before handover, the Secretary must record the available information, identify the gaps and arrange completion of the assessment as soon as practicable. This section does not delay a statutory transfer.

(3) The record must be retained for at least 7 years, subject to any longer period required by law.

No. 38 **Inspection of transferred bridges**

Page 15. Insert after line 40—

42AK **Inspection of transferred bridges**

The Secretary must arrange an engineering inspection of bridges on roads used for public or lawful private access on land reserved or vested by this Act for each parcel within 12 months after the later of commencement of this section and the day it is first reserved or vested by this Act. Any restriction required by an identified safety risk must be promptly notified to affected users.

No. 39 **Drainage asset maintenance priorities**

Page 15. Insert after line 40—

42AL **Drainage asset maintenance priorities**

For each parcel, within 12 months after the later of commencement of this section and the day it is first reserved or vested by this Act, the Secretary must publish priorities for inspecting and maintaining culverts and road drainage on land reserved or vested by this Act, having regard to access, erosion and downstream water quality.

No. 40 **Identification of fence responsibilities**

Page 15. Insert after line 40—

42AM **Identification of fence responsibilities**

On request by an adjoining owner or lawful occupier, the Secretary must provide available records identifying responsibility for a boundary fence adjoining land reserved or vested by this Act. If responsibility is disputed, the response must identify the dispute and the available process for resolving it. The response does not determine or transfer legal liability for the fence.

No. 45 **Record of existing tracks**

Page 15. Insert after line 40—

42AR **Record of existing tracks**

For each parcel, within 12 months after the later of commencement of this section and the day it is first reserved or vested by this Act, the Secretary must publish a register of known tracks and trails on land reserved or vested by this Act and identify their management status. Listing a track does not create a public or private right of access.

No. 87 **Apiary access planning**

Page 15. Insert after line 40—

42CH **Apiary access planning**

Before a Departmental works program materially affects access to an existing authorised apiary site on land reserved or vested by this Act, the Secretary must consult the permit holder about seasonal operations and practical access alternatives. An urgent response to a serious safety or environmental risk may proceed without prior consultation, but the holder must be notified as soon as reasonably practicable.

No. 88 **Emergency utility repair procedure**

Page 15. Insert after line 40—

42CI **Emergency utility repair procedure**

The Secretary must publish a procedure for urgent requests to access existing utility infrastructure on land reserved or vested by this Act, including arrangements for receiving urgent requests outside ordinary business hours and arrangements for prompt coordination with the lawful infrastructure operator. The procedure does not dispense with statutory approvals.

No. 89 **Plantation access coordination**

Page 15. Insert after line 40—

42CJ **Plantation access coordination**

The Secretary must consult Forestry Corporation and affected lawful operators about the timing of works or closures on land reserved or vested by this Act that would materially affect access to an adjoining plantation and record agreed coordination arrangements. Urgent action to address a serious risk may proceed first, with consultation as soon as reasonably practicable afterwards.

I will deal first with amendments Nos 21 and 22, which deal with legacy contamination and particularly asbestos in assets. Having hunted in State forests quite avidly around the State, I know there is naturally occurring asbestos in some of those State forests as well as asbestos that has been dumped, not necessarily by hunters, of course, but by other people who use the forest. There may also be asbestos in old buildings that were in use before the area became Forestry land. Those contaminations are mapped. These amendments seek to make sure that those legacy contaminations, or that presence of asbestos, continue to be mapped and continue to be assessed and managed when the areas are transferred. We think that is sensible. We want people to use the forests without any adverse impacts from stumbling into contaminated areas without prior knowledge.

Amendment No. 29 deals with access road load restrictions and requires engineering evidence about road weight limits, particularly with respect to access to private or occupied lands. I cast no aspersions on National Parks, but there have been shenanigans with some local councils on the mid North Coast, whereby local landholders who apply for private native forestry permits have had load restrictions on bridges and roads reduced, and trucks could not get in to do the work. But then, magically, when the Local Land Services private native forestry application fails or is abandoned, the load restrictions return. If road load restrictions are to be changed, evidence should be provided to the public.

Amendment No. 32 is around the restoration of essential access after bushfires. After the 2019 bushfires, it has taken an inordinate amount of time for locals to get essential access back to their properties. In some cases on the South Coast, some people still have not had that access restored to the degree that they had it before the fires. This amendment provides a requirement that there is a prompt assessment of roads after a bushfire so that we get in, get it done and restore access. The Shooters think that is sensible.

Amendment No. 33 speaks to the issue I raised in the second reading debate—I think it might have been last night—where the NSW National Parks and Wildlife Service, in some cases, it would seem, has wilfully dropped trees across roads to restrict or hinder access. I have photos of that. I am not just making stuff up. Evidence of that has been sent to me on several occasions. This amendment allows for the removal of fallen obstructions on sole access roads. We know the NSW National Parks and Wildlife Service has concerns around not wanting downed trees moved. But the Shooters think that if a tree is blocking a sole access road, it is sensible that it be

removed, at least off to the side of the road. People who use those roads to get to their properties should be able to do that. They should not have to apply to move a log to the side of the road. We think that is sensible.

Amendments Nos 36 to 40 and amendment No. 45 deal with what happens to infrastructure when it is transferred to a new land tenure. The Shooters are saying that any record of transferred infrastructure should be published within 90 days of any parcel of land coming under that provision. Amendment No. 37 requires an incoming department to seek a joint record of each infrastructure asset's condition and known defects before taking responsibility. We think that is sensible. In the past couple of years, a huge amount of Crown land has been transferred to NSW Maritime. We are talking about billions of dollars of Crown land, and I am still struggling to find a publicly accessible register of what was transferred, the condition it is in and its value.

When land tenures are moved around, that goes to the issue that was encountered in the access restrictions inquiry about confusion over who owns what land and what can be done with it. These amendments will help clear a lot of that up. Amendment No. 38 deals with a similar inspection of transferred bridges, making sure they are in good condition and that other agencies are not inheriting assets that perhaps should have been brought up to standard before they were transferred. The same applies to drainage. We know that drainage in our forests often suffers wear and tear from traffic, so that needs to be properly maintained to ensure access and deal with any erosion or downstream water quality issues.

Amendment No. 40 goes to the issue of fence responsibilities. Something I have come across when hunting in State forests that border private properties is disputes over who is responsible for fences. Sometimes fences are moved or liberties are taken with where they are located, and then all this argy-bargy happens. Users might think they are on public land, but they run into a private property owner who says, "Well, no. You're actually on my land." That makes it clear around fence responsibilities. We know that maintenance of fences and cost-sharing arrangements is a huge bugbear for neighbouring properties in regional communities. Amendment No. 45 seeks to provide for the maintenance of a public record of existing and known tracks and trails and what their status is. That goes to my comments last night around the management of fire trails and their conditions and making sure that we provide an adequate record and advice for the people who use those tracks, particularly our RFS people.

I now turn to amendments Nos 87 to 89. Regarding No. 87, another bugbear that surfaced during the access inquiry is about access to apiaries. A lot of apiarists have contacted many members about having access to be able to maintain their sites. We know how important bees are for food production and our environment. The apiarists have been crying out for improvements to access arrangements on our public land, but they particularly identified the National Parks and Wildlife Service as problematic and as an agency they struggle to deal with. This amendment seeks to address those access issues for apiarists.

Amendment No. 88 deals with emergency utility repair procedures in terms of infrastructure. Amendment No. 89 deals with plantation access coordination and requires the Forestry Corporation to coordinate with lawful operators where departmental works or closures substantially affect access to an adjoining plantation. Those are likely to occur given The Greens amendments did not get up last night. There will still be plantations near this park, and we want those interactions to be managed smoothly for the benefit of everybody, so we think this amendment is eminently sensible. With those remarks, I commend the amendments to the Committee.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (14:26): The issues for the Government remain the same, in that these are dealt with through the plan of management. However, I note that the member made a number of speculations and/or assertions around the motivations of National Parks and Wildlife Service staff, which I reject. I understand that these matters are being worked through, so I place on record that I do not necessarily agree with some of the assertions made. However, that does not change the fact that the Government does not support the amendments.

The Hon. SARAH MITCHELL (14:27): I indicate that The Nationals will support all these amendments. Amendments Nos 21 and 22 provide sensible ways to deal with issues of legacy contamination and asbestos. That obviously goes to the issue of basic worker safety, but it also makes sense to have these areas mapped and assessed. Amendments Nos 29, 32 and 33 ensure that people are able to access their property. Particularly if there is a new weight limit on someone's only access road, it must be backed by an engineer's assessment, with reasons given. It is important, particularly for local landholders who might need to get trucks or stocks in and out. We think it is also important that there is prompt damage assessment in order to restore access after any bushfire events that may occur. We have all seen how devastating it can be when bushfires go through these areas. We think this amendment makes sense. Likewise, we think amendment No. 33, which provides for the ability to clear fallen trees from sole access roads, is also sensible.

Moving to amendments Nos 36 to 40, what has been inherited, making sure there is an infrastructure inventory within 90 days, doing the bridge inspections and doing drainage maintenance and the like we think are

important. Focusing on amendment No. 40, as the honourable member said, who is responsible for boundary fences is something that gets raised a lot. It is a bugbear for a lot of people. I think it is important to have this amendment inserted into the bill, which is why we support it. Turning to amendment No. 45, we think having a register of existing tracks and their status is important.

Lastly, on amendments Nos 87 to 89, similarly to the comments I made regarding the previous set of amendments, it is good governance to make sure there is good administration in place. I concur with the comments made by the Hon. Mark Banasiak about apiarists. A lot of them have contacted my colleagues in the lower House about this. We know how important it is to have them there. Honey producers rely very much on these forests, so we certainly support amendments Nos 87 to 89. They are just about having good processes in place. That is why we are happy to support the amendments.

The Hon. JACQUI MUNRO (14:29): I indicate that the Liberals do not support these amendments. Again, we have sympathy for the intention of the amendments but believe that once the bill passed, with scrutiny and a reliance on existing arrangements, we can achieve the aims of these amendments.

The Hon. WES FANG (14:30): I briefly speak in support of the amendments. I note the Temporary Chair's previous comments and rulings. In terms of the asbestos issue, I start by indicating that the Hon. Nichole Overall is very supportive of the amendments around asbestos. She has historically been a warrior in terms of registers of asbestos. She asked me to pass on to the Committee her support of these amendments. I do so without having commented on them myself so that I do not breach the ruling around repetition. A number of other amendments have been moved. A number of sensible and reasonable amendments have been moved in terms of ensuring that any access roads that have been blocked by fallen trees are cleared and that members who come across fallen trees are able to do that. Changes to the engineering basis for access road load restrictions are clearly articulated. Restoration of the central access after bushfire is crucial. These amendments are sensible and practical. They have the support of The Nationals. I commend them to the Committee.

Ms SUE HIGGINSON (14:31): The Greens do not support these amendments. I place on record that The Greens have not supported any of the Opposition or Shooters, Fishers and Farmers Party amendments that have been moved last night or today. The amendments before us are beyond unnecessary. It is where we get into attempting to generate a legislative scheme that is not only entirely unworkable and unfeasible but also dictates a regime as if members of this place somehow know better than the people on the ground doing the actual work and management. Frankly, that is entirely preposterous. As it stands, the bill is pretty spectacular and has been worked on for some time. We have waited a long time for it. The Greens do not support these amendments.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 21, 22, 29, 32, 33, 36 to 40, 45 and 87 to 89 on sheet c2026-309AA. The question is that the amendments be agreed to.

Amendments negatived.

The Hon. MARK BANASIAK (14:33): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 23 to 26 and 90 to 94 on sheet c2026-309AA in globo:

No. 23 **Reasons for termination of timber supply arrangements**

Page 15. Insert after line 40—

42V **Reasons for termination of timber supply arrangements**

(1) If the Forestry Corporation of New South Wales or another statutory body or Minister of the State terminates a timber supply agreement or materially reduces supplies under it as a direct consequence of this Act, the person taking the action must give the counterparty written reasons identifying the provision relied on, the contractual basis and any available claim or review process.

(2) The notice must distinguish an action required by this Act from an action taken under contractual discretion.

(3) This section does not extinguish a contractual claim, create compensation or require disclosure of legally privileged advice.

No. 24 **Recognition of forestry skills in recruitment**

Page 15. Insert after line 40—

42W **Recognition of forestry skills in recruitment**

(1) In assessing an applicant for employment under section 38, the Secretary must consider demonstrated forestry experience and transferable practical skills relevant to the role and must not disregard them solely because they were obtained outside the Department.

(2) The applicant must have a reasonable opportunity to provide evidence of those skills.

(3) This section does not waive a qualification required by law or require appointment of a person who does not meet the role requirements.

No. 25 **Consideration of contractor workers in transition assistance**

Page 15. Insert after line 40—

42X **Consideration of contractor workers in transition assistance**

(1) When designing or varying a worker transition assistance program administered by the NPW Minister or Secretary specifically responding to establishment of the Great Koala National Park, the NPW Minister must consider eligibility of workers employed by forestry contractors and timber processing businesses whose employment is directly affected.

(2) Before finalising the program or variation, the NPW Minister must publish the eligibility decision and reasons for any distinction between those workers and workers directly employed by the Forestry Corporation of New South Wales.

(3) This section does not itself establish a payment entitlement or authorise expenditure.

No. 26 **Notice before closure of retraining applications**

Page 15. Insert after line 40—

42Y **Notice before closure of retraining applications**

(1) Before closing applications for a retraining program administered by the NPW Minister or Secretary specifically for workers displaced by establishment of the Great Koala National Park, the Secretary must give at least 60 days' public notice and take reasonable steps to notify known eligible workers and their representative organisations.

(2) An applicant who applied before closure must have a reasonable opportunity to provide outstanding evidence afterwards.

(3) This section does not create or require continuation of a program, prevent closure because its lawfully fixed funding has been exhausted, or appropriate money. If funding is exhausted before the notice period ends, the Secretary must promptly publish that fact and explain the position of pending applicants.

No. 90 **Publication of transition procurement opportunities**

Page 15. Insert after line 40—

42CK **Publication of transition procurement opportunities**

The Department must publicly advertise material procurement opportunities arising specifically from the establishment of land reserved by this Act, unless applicable procurement law or binding procurement rules permit a direct engagement or an emergency procurement, and identify how regional suppliers may obtain information and submit offers. If the exception is used, the Secretary must record the basis and publish a summary of the reasons, excluding information whose disclosure is prohibited by law.

No. 91 **Local workforce skills assessment**

Page 15. Insert after line 40—

42CL **Local workforce skills assessment**

Within 6 months after the later of commencement of this section and commencement of section 11, the Secretary must publish an assessment of skills required for management of land reserved or vested by this Act and opportunities for affected regional workers to meet those requirements.

No. 92 **Apprenticeship and training opportunities**

Page 15. Insert after line 40—

42CM **Apprenticeship and training opportunities**

When planning additional Departmental staffing for land reserved or vested by this Act, the Secretary must consider opportunities for apprenticeships, traineeships and accredited training and publish the outcome of that consideration.

No. 93 **Business transition case coordination**

Page 15. Insert after line 40—

42CN **Business transition case coordination**

Where a business applies to more than one State assistance program because of the transfers under this Act, the NPW Minister must seek arrangements with the administering agencies for coordinated case management and avoidance of unnecessary duplicate information requests.

No. 94 **Reporting unpaid transition claims**

Page 15. Insert after line 40—

42CO **Reporting unpaid transition claims**

The NPW Minister must publish quarterly aggregate information on applications for State transition assistance administered by the Department in connection with this Act, identifying numbers pending, median processing times and amounts approved but not yet paid. The information for a quarter must be published within 60 days after its end. Information identifying an individual applicant must not be published.

The first few amendments deal with the termination of timber supply agreements and the transition of our forestry workforce, including our contract workers, who often feel like they are the last to be considered in a lot of those processes. They feel like, even though they are in the forest and have done the harvesting for generations, they have been the last ones consulted on a lot of this. Amendment No. 23 deals with the termination of timber supply agreements. It requires written reasons if a State body ends a timber supply agreement or substantially reduces supply as a direct result of the bill. The explanation must distinguish what the legislation requires from what the body has chosen under the contract, and identify available claim or review processes. Amendment No. 24 requires recruitment under the bill to give proper consideration to forestry experience and practical skills relevant to the job. Applicants must have a reasonable chance to demonstrate those skills, but it does not remove required qualifications or guarantee an appointment.

Amendment No. 25 is a consideration of contract workers in transition assistance. It requires the Minister to consider contractor and timber processing workers when designing or changing relevant worker assistance programs. The Minister must publish the eligibility decision and explain any treatment that differs from that of Forestry Corporation employees. However, it does not itself create a right to payment, if members are concerned about that. Amendment No. 26 deals with notice before closure of retraining applications. It requires 60 days public notice before applications for a relevant retraining program close, with reasonable efforts to contact eligible workers. People who apply in time must have a reasonable chance to finish supplying evidence. If fixed funding runs out, the department must explain what that means for pending applications.

Amendment No. 90 is the publication of transition procurement opportunities. It requires significant purchasing and contracting opportunities arising from the park's establishment to be publicly advertised, with information for regional suppliers on how to participate. Lawful, direct or emergency procurement remains possible, but the reasons for using an exception must be recorded and summarised publicly. Amendment No. 91 concerns local workforce skills assessment. It requires a published assessment of the skills needed to manage the new land and opportunities for affected regional workers to obtain them. It must be completed within six months of the relevant arrangement starting and links workforce planning to the people actually affected by the transition. Amendment No. 92 deals with apprenticeships and training opportunities. The amendment requires the department to consider apprenticeships, traineeships and accredited training when planning additional staff for the new land. It must publish the outcome of that consideration. It puts those training opportunities into workforce planning but does not necessarily guarantee particular positions.

Amendment No. 93 concerns business transition case coordination. The amendment requires the Minister to seek coordinated case management where a business applies to multiple State assistance programs. Because of those land transfers, the aim is to reduce unnecessary repeated information requests and make the process easier for affected businesses. Amendment No. 94 is about the reporting of any unpaid transition claims. It requires quarterly public reporting on pending transition assistance applications. We think that is eminently sensible. If the Government is spending taxpayers' money, we have a right to know in a timely manner whether it has been fully expended. That way we can redirect it if needed, or contact people who may have been unsuccessful or may not even have applied. I commend the amendments to the Committee.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (14:38): The Government does not support the amendments for reasons previously outlined.

The Hon. SARAH MITCHELL (14:38): I indicate that The Nationals support all of the amendments. I comment on a few but not all of them. Amendment No. 24 is about the recognition of forestry skills in recruitment. As has been canvassed extensively throughout the debate, for a lot of the families on the Mid North Coast, forestry has kept food on the table and a roof over their heads. The industry has made clear that the Government's approach to managing the complete decimation of the industry is not good enough. As many of my colleagues, including the leader of the Nats, Gurmesh Singh, said in the other place, it is about more than money; it is about the identity, skills and long-term planning for forestry workers who deserve meaningful employment. We commend the Shooters for moving the amendments, particularly amendment No. 24, which recognises forestry workers and gives them an opportunity to have their skills recognised. That is important.

The Government has failed to come to the table to listen and to learn from the industry, but this sensible amendment ensures workers with demonstrated forestry skills and transferable practical skills are considered,

even if those skills were obtained outside the department. Likewise, amendment No. 25 provides more practical support for impacted forestry workers to ensure that contractors are considered in transition support. Because it is not just those working directly in the timber harvesting operations; it is the haulage drivers, the harvest crews, the mill workers. It is important that they are covered as well, which is why we support that amendment.

Amendment No. 26 relates to the notice before the closure of training applications. Again, the Hon. Mark Banasiak covered this well. The amendment keeps the lines of communication open with impacted forestry workers, ensuring that they are given at least 60 days notice before the closing of applications for retraining programs. As I said earlier, the transition for forestry workers is about more than financial compensation; it is about giving them the appropriate support as they navigate what is absolutely an incredibly difficult time for them thanks to the actions of the Labor Government. Lastly, I turn to amendments Nos 91 and 92. I note the importance of the local workforce skills assessment and also apprenticeships and traineeships. It is important that apprentices and trainees are considered in every staffing plan, and the outcome is published. These amendments provide for that. If the Government is serious about this, it should be trying to keep young people in the region. We are happy to support the amendments.

The Hon. JACQUI MUNRO (14:41): For the reasons the Government has given, the Liberals do not support the amendments.

The Hon. WES FANG (14:41): As the Hon. Sarah Mitchell has indicated, The Nationals support the amendments. Amendment No. 23 is incredibly important for us to support. It relates to the reasons for terminations of timber supply agreements. We have heard from a lot of impacted timber harvesters and mills that cancelled supply agreements have created heartache, grief and other issues. The member has moved the amendment in good faith, and has done so with an understanding of the level of concern there is about the way the Government basically tore up an industry's livelihood overnight. There is a need for us to recognise that. The Government should personally apologise and make penance or seek forgiveness for what it did to the forestry industry. I also make the point, yet again, that the forestry Minister has not made a contribution in debate on this bill or any of the amendments.

It is interesting that the Minister for the Environment is in this Chamber on behalf of the Government, but we have not heard a single word from the forestry Minister. Where was that Minister when the industry was torn apart? Where is that Minister while we are debating this bill? The forestry Minister has been absolutely silent on this bill, the jobs and the amendments that we are debating. It would have been good if the Minister was in the Chamber to fight for things or even provide clarity around why timber supply agreements may be withdrawn. That is on the Minister responsible for forestry. We cannot compel the Minister to come in to the Chamber and make a contribution, even though this is clearly within the Minister's bailiwick and something that the they should have sought to make a contribution on. Other than that, my colleague the Hon. Sarah Mitchell made salient and sensible points. I encourage members to support the amendments.

The Hon. JACQUI MUNRO (14:43): It was remiss of me not to acknowledge my colleague in the other place the member for Port Macquarie for his advocacy on behalf of his community and the incredible work that he has done to ensure that the views of his constituents in terms of their livelihoods and businesses have been represented. We believe deeply that the workers and small to medium-sized businesses that have been affected need support. Again, we appreciate the intention of the amendments, but I place on record that the member for Port Macquarie has done a really important job representing the views and interests of his community.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 23 to 26 and 90 to 94 on sheet c2026-309AA. The question is that the amendments be agreed to.

The Committee divided.

Ayes 6
Noes 20
Majority.....14

AYES

Banasiak (teller)	Fang (teller)	Mitchell
Barrett	Franklin	Ruddick

NOES

Boyd	Higginson	Munro
Buckingham	Hurst	Murphy (teller)

NOES

Buttigieg	Jackson	Nanva (teller)
D'Adam	Kaine	Primrose
Faehrmann	Lawrence	Sharpe
Govind	Mookhey	Suvaal
Graham	Moriarty	

Amendments negatived.

The Hon. MARK BANASIAK (14:52): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 51 to 55, 59 to 62, 95, 99 and 100 on sheet c2026-309AA in globo:

No. 51 **Ecological monitoring design**

Page 15. Insert after line 40—

42AX **Ecological monitoring design**

A biodiversity monitoring program established by the Department for land reserved or vested by this Act must identify its questions, sampling methods, relevant comparators, material confounding factors, frequency, limitations and arrangements for independent scientific input before its results are used to claim a change attributable to reservation.

No. 52 **Publication of koala survey methods**

Page 15. Insert after line 40—

42AY **Publication of koala survey methods**

(1) The Secretary must publish the methods, survey coverage, detection assumptions and uncertainty measures used in Departmental estimates of koala abundance on land reserved or vested by this Act, together with an explanation of comparability between successive surveys.

(2) Sensitive location data may be withheld where reasonably necessary to protect threatened species, with an explanation of the information withheld.

No. 53 **Non target wildlife monitoring**

Page 15. Insert after line 40—

42AZ **Non target wildlife monitoring**

The Secretary must identify indicators for monitoring native species other than koalas on land reserved or vested by this Act and publish the basis for selecting those indicators for each parcel within 12 months after the later of commencement of this section and the day it is first reserved or vested by this Act.

No. 54 **Monitoring damage to waterways**

Page 15. Insert after line 40—

42BA **Monitoring damage to waterways**

The Secretary must arrange monitoring proportionate to the risk of sediment or contamination from Departmental road or restoration works on land reserved or vested by this Act and publish material findings and corrective action.

No. 55 **Water extraction information**

Page 15. Insert after line 40—

42BB **Water extraction information**

The Secretary must publish a register identifying water extraction licences, approvals and exemptions held or relied on by the NPW Minister or the Crown in managing land reserved or vested by this Act, and the authorised purpose and administering agency. This section does not authorise extraction or vary an entitlement.

No. 59 **Boundary dispute contact officer**

Page 15. Insert after line 40—

42BF **Boundary dispute contact officer**

The Secretary must nominate an officer to receive boundary and survey enquiries concerning land reserved or vested by this Act and publish the officer's official contact details. An enquiry must be acknowledged within 10 business days.

No. 60 **Disclosure of identified schedule errors**

Page 15. Insert after line 40—

42BG **Disclosure of identified schedule errors**

If the Secretary identifies a material error in a land description in a schedule to this Act, the NPW Minister must table a statement identifying the error and proposed corrective action in each House within 20 sitting days of that House after identification. The statement must identify whether amending legislation is required. This section does not confer a power to change a schedule.

No. 61 **No change of statutory boundary by online map**

Page 15. Insert after line 40—

42BH **No change of statutory boundary by online map**

Publication or revision of an electronic map by the Department does not, of itself, alter a boundary, reservation category or land description fixed by this Act. The Secretary must promptly correct a published map materially misrepresenting the statutory position. This section does not prevent a change lawfully made by an Act or under an express statutory power.

No. 62 **Archiving public maps**

Page 15. Insert after line 40—

42BI **Archiving public maps**

The Secretary must retain and make publicly available superseded versions of Departmental maps describing land reserved or vested by this Act, with their publication dates and an explanation of material changes. Sensitive personal and cultural information must be excluded.

No. 95 **Consultation on council service impacts**

Page 15. Insert after line 40—

42CP **Consultation on council service impacts**

The Secretary must consult each council for an area in which land is reserved or vested by this Act about expected effects on local roads, waste services, emergency access and visitor facilities and publish a summary of unresolved responsibilities within 12 months after the later of commencement of this section and commencement of section 11.

No. 99 **Non legislative guidelines cannot alter rights**

Page 15. Insert after line 40—

42CT **Non legislative guidelines cannot alter rights**

(1) An administrative guideline issued solely for administration of this Act, without independent statutory force, does not itself extinguish an existing interest, vary a statutory boundary or create an offence. A guideline relied on in making an adverse decision must be identified in the reasons for that decision. This section does not limit a power expressly conferred by another statutory provision.

(2) In this section, existing interest means a lease, licence, permit, authority, authorisation or occupancy held immediately before reservation or vesting under this Act and continuing in force, including a renewal or extension, other than a forestry right extinguished under section 31.

No. 100 **No regulation may amend the Act**

Page 15. Insert after line 40—

42CU **No regulation may amend the Act**

A regulation under section 43 must not amend this Act or a schedule to this Act. A savings or transitional provision must not operate to achieve such an amendment indirectly.

Amendments Nos 51 to 55 deal with monitoring the environmental benefits and impacts created by the transfer of land tenure. The Shooters, Fishers and Farmers Party think that is important because we believe in data-driven decisions. If we change something, we should always measure before and after so that we can see whether we have improved or not and whether we need to adjust our management strategies. That is good practice. It is called adaptive management, which we think it is sensible to adopt. Amendment No. 59 deals with what I alluded to before regarding boundary disputes about fencing. We believe having a central contact officer, person or department solely around that issue is important, particularly as we transition to this new land tenure. In the beginning, there may be a greater likelihood of disputes.

Amendment No. 60 requires the Minister to tell both Houses about significant errors found in the bill's land descriptions and any proposed corrections. That statement must be tabled within 20 sitting days of each House. Obviously, the bill brings a big change regarding land tenure. If there are any errors or issues that we need to correct, it is better that we do so promptly and not in a big omnibus, miscellaneous bill. We all love those! Amendment No. 61 makes it clear that editing an online map does not itself change the legal boundary, land description or reservation category. Materially misleading departmental maps must be corrected promptly, and changes made under the actual statutory power would still be recognised.

Amendment No. 62 requires superseded departmental land maps to remain publicly available with dates and explanations of significant changes. Any sensitive personal or cultural information obviously must be excluded. We think that is a sensible amendment. Amendment No. 95 requires consultation with affected councils about roads, waste services, emergency services and visitor facilities. A summary of unresolved responsibilities must be published within 12 months of the relevant arrangements starting, and it makes outstanding practical responsibilities visible to the community. Often when there are land tenure changes, as we found in the inquiry into access to public lands, a lot of agencies do not even know that they own land or what they are, or are not, responsible for. We think a register of some sort would be good in that instance and might actually become best practice in all land tenure changes.

Amendment No. 99 makes it clear that an administrative guideline without its own legal force cannot itself cancel an existing interest, change a statutory boundary or create an offence. This amendment is about protecting the powers of this House, particularly with the Henry VIII clause. Amendment No. 100 says that no regulation may amend the Act. That amendment prevents regulations under clause 43 from changing the Act or its schedules, including indirectly through savings or transitional provisions. That is so regulations will not be able to rewrite what Parliament has passed, potentially, in this sitting. It does not remove the bill's separate schedule changing order powers. I commend the amendments to the Committee.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (14:57): The Government prefers the bill as it is.

The Hon. SARAH MITCHELL (14:57): The Nationals support all of the amendments. We are happy to support the transparency measures in amendments Nos 51 to 55. These amendments are about putting honest monitoring in place as to how koala numbers are counted, whether surveys are comparable, and the monitoring of other native species as well. If we are going to monitor koalas, it makes sense to monitor gliders, owls, frogs and whatever other native species may be in the park. We also support amendments Nos 54 and 55, which are about waterway monitoring and the extraction register.

Amendments Nos 59 to 62 are important because the boundaries of the park have already shifted throughout the process, even here in the Parliament. It is important for landholders to have certainty that the line on the map is the legal perimeter of the park. Making sure there is a boundary dispute contact officer—one named contact—and having timely acknowledgement of inquiries are important. It is also important that any schedule errors are tabled in Parliament. Amendment No. 61 ensures any incorrect online maps are corrected promptly. The Nationals also agree with the archiving of superseded maps under amendment No. 62. Finally, we are happy to support amendments Nos 95, 99 and 100. These sensible amendments ensure that the Parliament has a role to play in relation to the park going forward.

~break

The Hon. JACQUI MUNRO (14:59): The Liberal Party will not be supporting the amendments. As the Government has said, we think the bill is sufficient, along with existing regulatory and legislative provisions that will be able to be scrutinised. We believe that the existing arrangements allow proper scrutiny that will be applied once the bill is passed.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers Party amendments Nos 51 to 55, 59 to 62, 95, 99 and 100 on sheet c2026-309AA. The question is that the amendments be agreed to.

Amendments negatived.

The Hon. MARK BANASIAK (15:00): By leave: I move Shooters, Fishers and Farmers Party amendments Nos 30, 31, 41 to 44, 46 to 50, 56 to 58 and 63 to 77 on sheet c2026-309AA in globo:

No. 30 **Operational pest and weed control plans**

Page 15. Insert after line 40—

42AC **Operational pest and weed control plans**

(1) For each of the first 5 years after the later of commencement of this section and commencement of section 11, the Secretary must publish an operational pest and weed control plan for land reserved or vested by this Act.

(2) A plan must identify priority species and locations, intended methods, timing, responsible agencies, measurable objectives and how effectiveness will be assessed.

(3) The plan must identify coordination required with adjoining land managers and distinguish funded actions from actions awaiting resources. Sensitive operational detail may be withheld with published reasons.

No. 31 **Joint emergency readiness exercise**

Page 15. Insert after line 40—

42AD **Joint emergency readiness exercise**

(1) Within 12 months after the later of commencement of this section and commencement of section 11, the Secretary must arrange an exercise testing emergency access, communications, visitor evacuation and agency coordination on land reserved or vested by this Act. The Secretary must invite relevant emergency services to assist in planning and to participate, but their participation is not required for the exercise to proceed.

(2) The Secretary may conduct the exercise as a simulation, having regard to any advice provided by emergency services. The Secretary must publish a summary of findings and a timetable for addressing material deficiencies within 90 days after the exercise.

(3) The exercise does not confer operational command powers on the Department.

No.41 **Fire trail condition assessment**

Page 15. Insert after line 40—

42AN **Fire trail condition assessment**

For each parcel, within 6 months after the later of commencement of this section and the day it is first reserved or vested by this Act, the Secretary must assess the condition and operational availability of fire trails on land reserved or vested by this Act in consultation with the NSW Rural Fire Service and publish a summary of deficiencies and proposed responses.

No. 42 **Emergency communications assessment**

Page 15. Insert after line 40—

42AO **Emergency communications assessment**

For each parcel, within 6 months after the later of commencement of this section and the day it is first reserved or vested by this Act, the Secretary must assess communications gaps affecting emergency response on land reserved or vested by this Act, consult relevant emergency agencies and publish a program for addressing priority gaps.

No. 43 **Firefighting water point register**

Page 15. Insert after line 40—

42AP **Firefighting water point register**

The Secretary must maintain a register of usable firefighting water points on land reserved or vested by this Act, including access arrangements and known limitations, and make the register available to relevant emergency services.

No. 44 **Continuity of emergency water access**

Page 15. Insert after line 40—

42AQ **Continuity of emergency water access**

A decision by the Secretary to remove or materially restrict an existing emergency water access point on land reserved or vested by this Act must not take effect until the NSW Rural Fire Service has been consulted about operational consequences, except where immediate action is necessary to address a serious safety risk.

No. 46 **Record of invasive animal conditions at transfer**

Page 15. Insert after line 40—

42AS **Record of invasive animal conditions at transfer**

For each parcel, within 12 months after the later of commencement of this section and the day it is first reserved or vested by this Act, the Secretary must publish available baseline information about introduced animal abundance and damage on land reserved or vested by this Act, identifying survey dates, methods and material gaps in the evidence.

No. 47 **Priority weed mapping**

Page 15. Insert after line 40—

42AT **Priority weed mapping**

For each parcel, within 12 months after the later of commencement of this section and the day it is first reserved or vested by this Act, the Secretary must publish a map of known priority weed infestations on land reserved or vested by this Act and identify priorities for containment near adjoining holdings and waterways.

No. 48 **Neighbour reports of pest damage**

Page 15. Insert after line 40—

42AU **Neighbour reports of pest damage**

(1) The Secretary must provide a process for adjoining owners and occupiers to report suspected pest movement or damage associated with land reserved or vested by this Act.

(2) The Secretary must acknowledge a report within 10 business days and give an initial assessment and proposed response, or reasons for taking no action, within 30 business days.

(3) If further investigation is needed, the response must identify the further work and expected timeframe. Material progress must be reported to the person at reasonable intervals.

No. 49 **Coordinated boundary pest management**

Page 15. Insert after line 40—

42AV **Coordinated boundary pest management**

The Secretary must offer adjoining land managers an opportunity to coordinate pest control near the boundaries of land reserved or vested by this Act and record any agreed responsibilities, timing and notification arrangements.

No. 50 **Response to newly detected invasive species**

Page 15. Insert after line 40—

42AW **Response to newly detected invasive species**

On receiving credible evidence of an invasive species not previously recorded on the relevant land and reasonably suspected to pose a material biosecurity risk on land reserved or vested by this Act, the Secretary must promptly notify the relevant biosecurity authority and record the assessment and response proposed.

No. 56 **Protection of agricultural biosecurity at boundaries**

Page 15. Insert after line 40—

42BC **Protection of agricultural biosecurity at boundaries**

Before undertaking works on land reserved or vested by this Act that are likely to create a material biosecurity risk to an adjoining agricultural holding, the Secretary must consult its lawful occupier about reasonable preventative measures. This does not prevent immediate action required by a biosecurity direction or necessary to address a serious safety or environmental risk, but the occupier must be notified as soon as reasonably practicable afterwards.

No. 57 **Livestock escape contact procedure**

Page 15. Insert after line 40—

42BD **Livestock escape contact procedure**

The Secretary must establish a contact and response procedure for livestock that stray onto land reserved or vested by this Act, including consideration as soon as reasonably practicable of an urgent request by the lawful owner to recover the livestock. The procedure does not authorise entry without any permission otherwise required by law.

No. 58 **Notification of boundary hazards**

Page 15. Insert after line 40—

42BE **Notification of boundary hazards**

Where the Secretary becomes aware of a serious hazard on land reserved or vested by this Act that poses an immediate risk to an adjoining holding, the Secretary must take reasonable steps to notify its lawful occupier promptly.

No. 63 **Reasons for permanent public access restrictions**

Page 15. Insert after line 40—

42BJ **Reasons for permanent public access restrictions**

(1) Before imposing a permanent discretionary land management restriction on an established lawful public recreational route on land reserved or vested by this Act, the NPW Minister or Secretary must publish the evidence, reasons and alternatives considered, invite submissions for at least 30 days and consider submissions received.

(2) This section does not prevent an urgent temporary restriction necessary to address a serious risk to safety, the environment or cultural heritage, or compliance with a court order or a requirement imposed by another Act.

(3) This section does not confer a power to restrict access.

No. 64 **Register of temporary route closures**

Page 15. Insert after line 40—

42BK **Register of temporary route closures**

The Secretary must publish a current register of temporary closures of established public recreational routes imposed by the NPW Minister or Secretary on land reserved or vested by this Act. It must identify the reason, expected duration or next review date and an official contact. An emergency closure must be entered as soon as reasonably practicable.

No. 65 **Review of prolonged temporary access closures**

Page 15. Insert after line 40—

42BL **Review of prolonged temporary access closures**

(1) The NPW Minister or Secretary must review a temporary closure of an established public recreational route on land reserved or vested by this Act before it has operated for 90 days and at intervals of no more than 90 days while it continues.

(2) The Secretary must publish the outcome, reasons for continuation and any reasonable measures considered to restore safe access.

(3) If a closure has already operated for 90 days when this section first applies to it, the first review must be completed within 30 days after that day.

(4) A failure to complete or publish a review does not cause automatic reopening or invalidate a closure otherwise lawfully in force.

No. 66 **On site notices for recreational route closures**

Page 15. Insert after line 40—

42BM **On site notices for recreational route closures**

Where the Department closes an established public recreational route on land reserved or vested by this Act, the Secretary must ensure that clear notices are placed at the usual entrances as soon as reasonably practicable and safe to do so, identifying the closure, any known safe alternative and an official contact for further information. A notice must be removed or updated promptly when the closure changes. This section does not itself authorise a closure or entry onto another route.

No. 67 **Consultation on four wheel drive routes**

Page 15. Insert after line 40—

42BN **Consultation on four wheel drive routes**

Before making a Departmental management decision materially reducing established lawful four-wheel-drive access on land reserved or vested by this Act, the NPW Minister or Secretary making the decision must consult representative users and publish the basis for the decision, except for an urgent temporary safety restriction.

No. 68 **Consultation on trail bike routes**

Page 15. Insert after line 40—

42BO **Consultation on trail bike routes**

Before making a Departmental management decision materially reducing established lawful trail-bike access on land reserved or vested by this Act, the NPW Minister or Secretary making the decision must consult representative users about feasible route and timing alternatives, except for an urgent temporary safety restriction.

No. 69 **Consultation on horse riding routes**

Page 15. Insert after line 40—

42BP **Consultation on horse riding routes**

Before making a Departmental management decision materially reducing established lawful horse-riding access on land reserved or vested by this Act, the NPW Minister or Secretary making the decision must consider route continuity, suitable loading locations and interaction with other users and publish the conclusion. This does not prevent an urgent temporary restriction necessary to address a serious safety or environmental risk.

No. 70 **Consultation on mountain bike trails**

Page 15. Insert after line 40—

42BQ **Consultation on mountain bike trails**

Before permanently closing an established lawful mountain-bike trail on land reserved or vested by this Act, the NPW Minister or Secretary making the decision must consider whether managed use or trail modification could address the identified harm and publish the conclusion. This does not prevent an urgent temporary restriction necessary to address a serious safety or environmental risk.

No. 71 **Accessibility assessment of visitor facilities**

Page 15. Insert after line 40—

42BR **Accessibility assessment of visitor facilities**

When planning a substantial replacement or upgrade of a public visitor facility on land reserved or vested by this Act, the Secretary must assess opportunities for access by people with disability and record how the assessment informed the design.

No. 72 **Publication of proposed visitor fees**

Page 15. Insert after line 40—

42BS **Publication of proposed visitor fees**

Before introducing a new Departmental visitor fee specifically for land reserved or vested by this Act, the Secretary must publish the proposed amount, purpose and hardship arrangements and invite submissions for at least 30 days. This section does not authorise imposition of a fee.

No. 73 **Consultation on dog walking areas**

Page 15. Insert after line 40—

42BT **Consultation on dog walking areas**

Within 12 months after the later of commencement of this section and commencement of section 11, the Secretary must consult the community about locations on regional park land reserved by this Act that may be suitable for controlled dog walking and publish the assessment. This section does not itself authorise dog access.

No. 74 **Accessible information about fishing access**

Page 15. Insert after line 40—

42BU **Accessible information about fishing access**

The Secretary must publish information identifying established lawful fishing access points on land reserved or vested by this Act and any Departmental restrictions applying to those points. The information must distinguish land access restrictions from fisheries rules.

No. 75 **Assessment before removal of campgrounds**

Page 15. Insert after line 40—

42BV **Assessment before removal of campgrounds**

Before permanently removing an existing lawful public campground on land reserved or vested by this Act, the NPW Minister or Secretary making the decision must assess demand, safety, environmental effects and feasible management alternatives and publish the assessment. This does not prevent an urgent temporary closure necessary to address a serious safety or environmental risk.

No. 76 **Notice of changes affecting existing events**

Page 15. Insert after line 40—

42BW **Notice of changes affecting existing events**

Before changing Departmental access arrangements on land reserved or vested by this Act in a way that materially affects an existing authorised community event, the NPW Minister or Secretary making the decision must give the organiser reasonable notice and consider practicable alternatives, except in an emergency.

No. 77 **Register of existing organised recreational uses**

Page 15. Insert after line 40—

42BX **Register of existing organised recreational uses**

Within 12 months after the later of commencement of this section and commencement of section 11, the Secretary must publish a register of organised recreational uses lawfully authorised immediately before reservation or vesting of land reserved or vested by this Act, recording the activity and administering agency without disclosing unnecessary personal or commercially sensitive information.

I will try to be brief. Amendments Nos 30 and 46 to 50 deal with what we have heard often from landholders who sit adjacent to national parks—or to any public land, to be frank—which is how the management of pests and weeds can be improved. These amendments seek to do so by the mapping of priority weeds so that they can be dealt with, by neighbours being able to easily report pest damage, by coordinated boundary pest management and by a clear and concise response to newly detected invasive species.

Amendments Nos 31 and 41 to 44 deal with our concerns about fire trail conditions and the response to firefighting in the national park. Amendments Nos 57, 58 and 59 are about biosecurity, which is a big issue that

is of great concern in our rural areas. Those amendments go to the protection of agricultural biosecurity, particularly around the boundaries of public land, and procedures for dealing with livestock that has escaped from private land into national park land. Amendments Nos 63 to 77 largely deal with something that our party is passionate about, which is maintaining public access for recreation on public land, and making sure that all public land is as accessible as possible for the varied recreations that people love to enjoy and practice in our State.

It become clear through the Select Committee on Access Restrictions to Public Lands and Waterways that there are real concerns around how we are managing public land access. The committee made some positive recommendations about how we can better manage access. I look forward to tabling that report later in the year and hopefully seeing those recommendations adopted. Those amendments speak to some of the recommendations, without disclosing confidential information about committee deliberations. They go towards making sure our public land is as accessible as possible, within the confines of the goals and objectives we are trying to achieve with different land tenures. With those remarks, I commend the final amendments to the Committee.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (15:06): The Government prefers the bill as it is. We do not support the amendments.

The Hon. SARAH MITCHELL (15:06): I indicate that The Nationals support these amendments. I make a couple of comments. Firstly, I think other colleagues like the Hon. Scott Barrett are better placed to speak about some of the specifics around them, but amendments Nos 30 and 46 to 50 are about making sure that we have the right measures in place. We support that, particularly when it comes to issues of biosecurity and pests and weeds. For amendments Nos 41 to 44 about fire and emergency readiness, there was a lot of debate on those issues in the second reading debate. I do not intend to re-prosecute those arguments. They are sensible amendments that ensure the right conditions for fire trails, deal with emergency communication gaps and ensure the right consultation with the RFS.

In relation to amendment No. 41, as I mentioned in my contributions to the second reading debate and to debate on earlier amendments, I acknowledge that some amendments were moved by the Opposition in the other place and passed that were about a fire management strategy. But we are still concerned about the fire risk posed by the park. That is a real risk. Amendment No. 41 is sensible. It will ensure that there is up-to-date information about the conditions of fire trails in the event of a bushfire. Amendments Nos 56 to 58 are about biosecurity and will ensure that there is proper consultation before works that might risk farm biosecurity for neighbours and that there are appropriate procedures and processes in place in the event of any livestock maybe getting through a fence. There is also a clause to ensure that neighbours are made aware of any serious incidents.

Lastly, for amendments Nos 63 to 77, a lot of my colleagues in the other place have spoken about our continuing concerns regarding what park access will be available, particularly for locals and, potentially, tourists as well—the four-wheel drivers, trail bike riders, horseriders, mountain bikers, campers and dog walkers. I am sure the Hon. Scott Barrett will talk about that in his contribution to debate on these amendments. I know he enjoys visiting national parks with his sons. I think his son Henry might actually be watching now. If Henry is watching, I say hello from Sarah and everybody else here. Dad might say something in a minute; he is at work, we promise. Again, we think these are sensible amendments to ensure that all user groups who might have an interest in accessing the park get to have their say. We are happy to support them.

The Hon. JACQUI MUNRO (15:09): The Liberals do not support these amendments for the reasons I have outlined previously. I note the contribution of the Hon. Sarah Mitchell regarding amendments that were accepted in the other place around fire management.

The Hon. SCOTT BARRETT (15:10): Briefly, I will touch on a couple of things that are wrapped up in these amendments. There is the biosecurity aspect, the access aspect and the aspect of the neighbours of national parks as well. Obviously, there would be a concern if what is in the bill conflicted with the Biosecurity Act, which is where our biosecurity is managed in this State. From my quick read of the bill, I do not believe it does. It strengthens some opportunities we have here. It is a good opportunity for the National Parks and Wildlife Service to prove itself as the gold standard in biosecurity management. Some of the baseline studies that could be done and some of the reporting of biosecurity incursions would be a really good opportunity for the service to show that it manages our invasive species well, gets on top of weed infestations and works well with neighbours.

That leads me to my next point, which is also wrapped up in these amendments. Unfortunately, there is a history of sour relationships with landholders who border national parks. In some areas, I know that has been improved by the really good staff that the National Parks and Wildlife Service can put in the area. It is interesting that when local staff such as former farmers and landholders are themselves put into that system, the relationships seem to be a lot better than in other areas where external people have been brought in. I will not go through them,

but I have heard really good stories about some people working in the National Parks and Wildlife Service building those relationships.

If some of these amendments can provide the tools to strengthen those relationships, that is certainly worth supporting and worth trying. As I say, the history is not great as far as the landholders who neighbour national parks go. There are boundary fence issues. Some national parks generally have the policy that they do support boundary fencing, although they are not legislated or required to do so. There is an opportunity to look at exclusion fencing in some of these areas, which would deal with some of the issues, such as pests coming out of national parks but also livestock going into national parks.

The third aspect I touch on—and one of the reasons I will support these amendments—is access. I get that there are parts of national parks that need to be locked up to protect them and keep people out. The example I have given before is that those areas are like that room at grandma's house you were not allowed into that had the good furniture, the good carpet and the old war medals we did not want to damage. Parts of national parks are a bit the same. We do not want four-wheel drives racing through areas of Wollemi pine, for instance, or fragile sand dunes, perhaps. But other areas are there for us to share, enjoy and make the most of.

We need to make sure we have access to the areas for us to enjoy, which is a big part of what national parks are. We hear people trumpet how good our visitor numbers are in national parks. Let us capitalise on that. Let us get more people in to enjoy our national parks. The more people who go into our national parks and enjoy how great they are, the more people who will associate with national parks. Then we will get more and more people wanting to protect and conserve them. As the Hon. Sarah Mitchell mentioned, I spent last school holidays in national parks with Henry, Darcy and my wife. I am looking forward to doing that again—and looking forward to getting home this afternoon.

Ms SUE HIGGINSON (15:14): I am reluctant to do this, but I have to call out the utter hypocrisy that has been put forward. I have had to listen to members who really seem not to know what they are talking about denigrate National Parks and Wildlife Service staff by suggesting that some are great and others are not, and that there is a history of bad relationships. Let us for one moment reflect on where that awful myth of bad relationships really comes from. I can perhaps point to the former Leader of The National Party, now part of Pauline Hanson's One Nation, Barnaby Joyce, who has spent decades demonising the National Parks and Wildlife Service across New South Wales. I think of the former Leader of The Nationals in this Parliament, John Barilaro, demonising National Parks and Wildlife Service staff.

As someone who has been involved with national parks for over 30 years, and who has known numerous people who have worked in national parks and watched their incredible work ethic, commitment and skill, I can guarantee that it is not just about controlling invasive species. It is not just about making sure roads are upgraded and suitable for use, and that gates are in good condition. It is about understanding the systems and the ecology of those places. The amendments before us are from a couple of MPs and their staffers who think they know what they are talking about, as if these matters should be in legislation. We know that these amendments—

The Hon. Mark Banasiak: Point of order: I will not call her honourable; she does not like being called that. I accept Ms Sue Higginson having cracks at me in this place, but I will not accept her having cracks at members' staff who have stayed up and done just as much work on this bill as anyone else. To bring our staff into it and denigrate them is beyond the pale. I ask Ms Sue Higginson to withdraw that.

Ms SUE HIGGINSON: To the point of order: I did not remotely denigrate any staff. I did not make that imputation. I suggested that they had been drafting amendments that were perhaps outside their area of expertise. The point I was about to make when I was cut off by the point of order was that the amendments go to matters that are within the expertise of the National Parks and Wildlife Service and dealt with in plans of management, not by people in this place drafting with this kind of particularity in legislation.

The Hon. Robert Borsak: To the point of order: I am happy to cop all the criticism, be called a muppet and all the stuff that goes along with all the garbage that comes out of The Greens' mouths. Ms Sue Higginson is the most supercilious person in this whole Parliament. There is no question about that. Anybody who criticises anything that she says—

Ms SUE HIGGINSON: Further to the point of order—

The Hon. Robert Borsak: Anyone who wants to say anything in relation to what she says is the truth is suddenly subhuman.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The Hon. Robert Borsak will resume his seat. I do not need to hear further on the point of order from Ms Sue Higginson. I understand it.

Ms SUE HIGGINSON: The Hon. Robert Borsak should move a substantive motion if he wants to call me supercilious.

The TEMPORARY CHAIR (The Hon. Taylor Martin): We will not get into points of order on points of order. It is after 3.00 p.m. on a Friday. We are so close to the finish line.

The Hon. Wes Fang: You say that now!

The TEMPORARY CHAIR (The Hon. Taylor Martin): Don't you start. The comment from the Hon. Robert Borsak was not helpful, but I leave it in his hands whether he will withdraw his remarks.

The Hon. Robert Borsak: I will not withdraw anything.

The TEMPORARY CHAIR (The Hon. Taylor Martin): Then let us return to the point of order.

The Hon. Robert Borsak: Further to the point of order: I should be allowed to not be denigrated and not be superciliously insulted all the time in this place. If Ms Sue Higginson wants have a go at me, she should do it by way of substantive motion, not by getting up every five minutes and having a crack at our staff. Have a crack at us. She thinks she is the only person in this place who knows anything about the National Parks and Wildlife Service and that anything The Greens know and do is God given. That is the reality of it. It is just rubbish. Let us get on with it. I am not withdrawing anything because I am sick and tired of being denigrated every time Ms Sue Higginson stands up.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The decision to withdraw the comment is up to the Hon. Robert Borsak. Ms Sue Higginson has the call. She will move along in her contribution.

Ms SUE HIGGINSON: If the member who has moved these particular amendments and members who spoke in support of them actually understand the way these things work, they would know that there will be a plan of management for the Great Koala National Park. It will be developed with the expertise, within the passage of time and in the right way. As for whether this legislation is inconsistent with other legislation, if members had read it properly, they would know it is not. It is entirely consistent with the National Parks and Wildlife Act. It is entirely consistent with the Biosecurity Act. It has been drafted in the way an Act should that provides for a brand-new, fabulous national park on the Mid North Coast. These amendments, like most of the others that have been put forward and failed in this place—none of which The Greens support—have, frankly, been an incredible waste of everyone's time.

The Hon. WES FANG (15:20): Briefly, I indicate that I support the amendments moved by the Hon. Mark Banasiak. I do so because I think there is a level of concern in relation to the national park that may or may not be formed, if we pass this bill. It is clear that members will seek to utilise the park in different ways. I note the contributions of other members, but let us be honest: We want to make sure that this is not a park that is kept for a few. We want to make sure, if we are going to make this park, that we make it a park that is open, accessible and welcoming to more people and to the greatest number of people that we can, because it is a wonderful part of the Mid North Coast.

Keeping my contribution brief, I would suggest that making it more accessible than less accessible is appropriate in circumstances where we are shutting down industries, we are shutting down jobs and we are ruining communities by the decisions that are being made. I think that these amendments will, in some small part, ameliorate those things. I note there is a conversation going on between some members right now. They can argue as much as they want. We are standing here, sensibly, to say that being able to access the national park should be something that everybody can do and that they do so in a way that is sensible. We would support these amendments.

The Hon. SCOTT BARRETT (15:22): I really did not want to, but I will say one thing. I am pretty certain I did not say that it was the staff of National Parks who are causing bad relationships.

Ms Sue Higginson: You did.

The Hon. SCOTT BARRETT: I am fairly certain what I said was that where there are good relationships, it is because of the staff and I thank them for that. I thank the hardworking staff of National Parks for all they do. I am fairly certain that I did not say otherwise.

Ms Sue Higginson: No, he did. He said some are good and some are bad.

The Hon. Wes Fang: Point of order: For the most part, we have been working through these issues. I note that interjections from one member have created a number of issues today. I would ask you to keep—

The TEMPORARY CHAIR (The Hon. Taylor Martin): What is the point of order?

The Hon. Wes Fang: The interjections that are being made by—

The TEMPORARY CHAIR (The Hon. Taylor Martin): There are no interjections right now. The Hon. Wes Fang is only the member talking. There is no point of order.

The Hon. Mark Banasiak has moved Shooters, Fishers and Farmers amendments Nos 30, 31, 41 to 44, 46 to 50, 56 to 58 and 63 to 77 on sheet c2026-309AA. The question is that the amendments be agreed to.

The Committee divided.

Ayes 6
Noes 21
Majority.....15

AYES

Banasiak (teller)	Borsak	Franklin
Barrett	Fang (teller)	Mitchell

NOES

Boyd	Graham	Moriarty
Buckingham	Higginson	Munro
Buttigieg	Hurst	Murphy (teller)
Cohn	Jackson	Nanva (teller)
D'Adam	Kaine	Primrose
Faehrmann	Lawrence	Sharpe
Govind	Mookhey	Suvaal

Amendments negatived.

The TEMPORARY CHAIR (The Hon. Taylor Martin): The question is that the bill as read be agreed to.

Motion agreed to.

The Hon. PENNY SHARPE: I move:

That the Chair do now leave the chair and report the bill to the House without amendment.

Motion agreed to.

Adoption of Report

The Hon. PENNY SHARPE: I move:

That the report be adopted.

Motion agreed to.

Third Reading

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (15:31): I move:

That this bill be now read a third time.

Today we have created the Great Koala National Park. It is good for the koalas and the trees they live in, good for the greater gliders and the 100 other threatened species that rely upon them, and an iconic and must-visit park now and for future generations.

The Hon. MARK BANASIAK (15:32): I thank most members for the spirit in which the amendments were dealt with. I am not preparing to relitigate those amendments, but the bill has provisions that may contain unintended drafting errors. Before I get accused of enacting the Hon. Rod Roberts provision, I take members to clause 27 regarding road-widening provisions. The clause allows an order to specify an additional width for a road. It then refers to the land of the specified width when identifying the land that vests in the Minister. Additional width and total width are not the same thing. If a road corridor is 10 metres wide and we add six metres, we would generally expect that to finish with 16 metres.

As a teacher, I am pretty comfortable with that, but the operative wording does not clearly distinguish the six metres being added from the 16 metres we are supposed to end up with. Some might say, "Come on, we all

know what that means", but surveyors need to identify an actual boundary. Landholders need to know their rights, and as it is written, it is not clear. Clause 27, when it comes to easements, also states an existing easement or right of way is taken to apply to the widening of a narrowed road. Clause 28 states it is extinguished when an order is made unless the order preserves it. The same road alteration can engage both provisions, so one appears to carry the right across and the other appears to remove it, which seems to be an inherent contradiction.

When it comes to the automatic reservation of roads, clause 26 tells us what happens when a road has the same reservation category on both sides. It also deals with different reservation categories on either side. But what happens when there is a national park on one side and a farm or a State forest on the other? That automatic mechanism does not clearly tell us what happens in that situation. The 10-year deadline is also an issue. The bill allows additional land to be reserved later. The Minister explained that the flexibility is needed to sort out tenure boundaries and other administrative matters, but the road provisions work to a fixed deadline of 10 years after the relevant clause commences. What happens if land is added in year 11, the deadline for making the road order has passed and the automatic reservation date has also passed?

Private property protection also needs a closer look. Clause 6 says private freehold land is not reserved by the Act, but clause 27 provides for land to vest in the Minister when a road is widened. Reservation and vesting are different legal actions. The protection against one does not necessarily answer the question about the other. Could a widening order reach into adjoining private land despite what clause 6 says? There is also another point about boundaries that comes directly from the Minister's speech. Clause 15 expressly protects the size and natural and cultural value of national park estate land. The Minister said that adjustments could not significantly diminish either the national park estate or the State forest estate. However, despite what the Minister says and despite what clause 15 says, there is a reasonable question about whether the State forest estate will be diminished through the passing of this bill. With those remarks, I move:

> That the question be amended by omitting "this bill be now read a third time" and instead inserting "this bill be referred to Portfolio Committee No. 7 - Planning and Environment for inquiry and report by 16 November 2026".

I have moved the amendment so those planning technicalities can be resolved.

The Hon. PENNY SHARPE (Minister for Climate Change, Minister for Energy, Minister for the Environment, and Minister for Heritage) (15:35): In reply: No, the Government is not going to agree to a referral. This has been well canvassed in the debate. I thank the Hon. Mark Banasiak for being very reasonable to deal with throughout this process, even though we vehemently disagree in relation to the outcome. There is no need for the bill to be sent off to a committee. We should pass the bill and pass it today.

The PRESIDENT: The question is that this bill be now read a third time, to which the Hon. Mark Banasiak has moved an amendment. The question is that the amendment be agreed to.

Amendment negatived.

The PRESIDENT: The question is that this bill be now read a third time. Is leave granted to ring the bells for one minute?

Leave granted.

The House divided.

Ayes 22
Noes 5
Majority.....17

AYES

Boyd	Higginson	Moriarty
Buckingham	Hurst	Munro
Buttigieg	Jackson	Murphy (teller)
Cohn	Kaine	Nanva (teller)
D'Adam	Lawrence	Primrose
Faehrmann	Martin	Sharpe
Govind	Mookhey	Suvaal
Graham		

NOES

Banasiak (teller)	Borsak	Mitchell

NOES

Barrett Fang (teller)

Motion agreed to.

Adjournment Debate

ADJOURNMENT

The Hon. PENNY SHARPE: I move:

That this House do now adjourn.

SUPERANNUATION RATES

The Hon. MARK BUTTIGIEG (15:39): The Shop, Distributive and Allied Employees' Association, the SDA, is campaigning for superannuation to be paid on every dollar earned, so that low-paid workers—including those under 18—receive the same basic retirement protection as everyone else. The issue gained momentum in May, when the Senate Economics Legislation Committee released a majority report from Government and Coalition senators expressing in-principle support for paying superannuation on every dollar earned, including extending compulsory contributions to workers under 18, regardless of hours worked.

The superannuation rule has been in effect since the inception of the modern superannuation system in 1992. Back in the 1990s, processing cheques was expensive and economists were focused on full-time workers rather than our young people saving for their retirement. That is no longer merely a technical exemption; it is a fairness issue. The payment systems, wage settings and superannuation rates that once made the exemption seem practical have changed, but the law has not kept pace.

In 1992 the superannuation rate was 3 per cent and the minimum wage was about $8.50 an hour. An adult working 38 hours a week would receive a quarterly superannuation contribution of around $125. At the junior rate, 50 per cent of the adult minimum wage was about $5.30 an hour. A junior worker rostered for the minimum three hours a week would earn about $15.90, meaning 3 per cent superannuation amounted to just 48¢ a week. At that time, the bank fee for cashing a cheque could consume much of that amount, which helps explain why the exemption may once have appeared reasonable.

In 2026 the circumstances are very different: Superannuation has risen from 3 per cent to almost 12 per cent, and contributions are paid electronically rather than by cheque. Today a 16-year-old on junior rates earns approximately $13.22 an hour, based on 50 per cent of the 2026 adult minimum wage of $26.44. If someone worked three hours a week, their quarterly superannuation contribution would be around $46.20, paid directly into their account with no cheque processing fees. As a result, the reasons for the exemption clearly do not exist anymore.

According to an SDA survey, its members strongly support reform and expressed concern that the current exemption worsens inequality and could have a major effect on young workers' futures. The survey shows that young Australians are already thinking seriously about their futures and understand why stronger superannuation protections are part of a fairer system. The SDA has stressed that the current rule disproportionately affects young people, who are often performing similar work to their over-18 counterparts. Members have argued that they put in the same effort but do not receive the same benefits, while also balancing study and other important responsibilities. Young workers are missing out on real benefits. Rest Super has calculated:

> … a typical 15-year-old Rest member could benefit from an estimated $3,400 extra in super by their 18th birthday, and an estimated $18,100 in additional super by retirement (in today's dollars) if the rule was changed.

Further, a Super Members Council analysis has found that around 515,000 teenage workers are expected to miss out on a combined $405 million nationally. The SDA is one of many unions working to change expectations for young workers so that substandard pay, conditions and superannuation are not treated as acceptable simply because someone is working in their first few roles. Governments should work with the union movement to make good pay and conditions the standard across the board, regardless of age.

I thank the national secretary of the SDA, Gerard Dwyer, State secretary Bernie Smith, the whole SDA team and everyone involved in fighting for young workers. This vital campaign brings young workers' voices to the forefront. Governments must listen to those voices and act to create and enforce workplace laws that support everyone, especially the lowest paid young workers, who are the future of our country. Just because they are young does not mean they should suffer from superannuation underpayment.

POLITICAL VIOLENCE

The Hon. JACQUI MUNRO (15:44): I contribute to reflect on the circumstances surrounding the tragic events related to Dr Helen Haines. I start by sending my deepest sympathies to Helen, her husband and family, her friends and her closest supporters in such a tragic and difficult—and horrifically unexpected—time. I have never met Dr Haines personally but, by all accounts, she is an incredible person, well respected personally and professionally. Hers is a unique profession in which she stands up for her community, her beliefs and her ideology in public and on behalf of people who may not be able to speak for themselves. Obviously, all of us here share that responsibility with Dr Haines. I wish to reflect on the role of politics and the wider community in this tragedy. I know there has been commentary about the way that politics operates as being something that foments a culture of aggression or incivility. I would like to push back on that assertion because, while I of course accept that language is sometimes robust in this place and in other Parliaments, the very nature of these environments is that we are here to disagree.

Mr President, as you have said, it is incumbent on us to disagree in a robust manner, to faithfully represent the communities we serve. While we have those robust discussions, what is fantastic about this institution—and certainly it is my experience in this particular institution—is that while we have disagreements and debates and sometimes we express diametrically opposed views with those around us, we can have those arguments in an environment where there are rules of debate; where people are given the right to be heard; and where there are parameters in which the debates occur so that, when norms do not suffice, we have rulings, adjudications and requirements of our conduct. That allows us to disagree in this House while being able to walk outside of the doors of this Chamber and be incredibly friendly with almost all of the people in this Parliament. In the upper House we are quite unique and we are blessed to have an environment where we are often together in committees. We travel together and we sometimes spend many days together. And, as I say, we spend those days with people with whom we sometimes vehemently disagree.

However, the civility and friendship I experience outside of these doors—and inside these doors as well—I find to be a feature of almost all respected and elected people in this place. That should be championed as something that may be useful for people who disagree, who are not elected and who do not the rules of debate that we have, but who are still trying to grapple with complex and difficult emotional issues, whether that is an online environment or in the real world with family over the dinner table, or with friends or even just acquaintances we encounter. We can disagree and hold different views yet still have respect for one another and still operate in a civilised way towards each other. The reason that we have a unique opportunity to champion this globally as Australians is because we have the institutions that allow this—whether it is democracy in Parliament, whether it is media and the opportunity to learn and have a say, or whether it is a strong sense of community that can be based on anything from religion, to culture, to sports, to art. We in Australia can be leaders in moving our way through difficult decisions because of the institutions that have been passed down to us by so many cultures, but particularly through the tradition of Western liberal democracy, which is underpinned by liberal principles.

ELECTRICAL WORKERS

The Hon. ANTHONY D'ADAM (15:49): Electrical workers are among the most important tradespeople tackling some of the biggest challenges of our time, including the clean energy transition and the housing crisis. Electrical work is often high risk and dangerous, so it is essential that New South Wales has strong safety and regulatory standards. Currently in New South Wales, regulations and legislation governing electrical work are split across several Acts, ministerial portfolios and departments. Inspection and enforcement responsibilities are also split between various agencies and departments.

A standalone electrical regulator is necessary to improve the safety and productivity of the electrical industry. That was one of the recommendations of the Law and Justice Committee's recent inquiry into the work health and safety scheme, reflecting longstanding calls from workers and the industry. The Electrical Trades Union, the National Electrical and Communications Association, and the Smart Energy Council have all advocated for this reform. Together, those peak bodies represent electrical workers, electrical contractors and the smart energy industry.

They argue that a standalone electrical licensing and safety regulator will improve industry productivity and cut red tape while, most importantly, more effectively monitoring and enforcing compliance with the best practice safety standards needed to protect both electrical workers and consumers. The New South Wales Labor Party platform also commits the Government to legislating a standalone electrical safety Act, along with a corresponding specialist regulatory framework. This should include a dedicated regulator that is responsible for monitoring compliance and undertaking enforcement activities relating to electrical safety and licensing. Tripartite oversight bodies should also be established to advise the Minister.

The Independent Review of the NSW Electrical and Gas Safety Regulatory Framework recently considered some of these issues, indicating that its preferred option is a consolidated set of regulations and legislation. However, it is essential that this is paired with a dedicated agency that can implement and enforce a new safety framework. Without such an agency, the regulatory and enforcement framework will remain ineffective. A dedicated agency, similar to those in other States, would ensure specialised knowledge and capacity to deal with the specific needs of safety in the electrical industry. It could operate like Energy Safe Victoria, using a cost-recovery model to deliver the necessary oversight without burdening the State budget.

These reforms are urgent. The two deadliest years in the New South Wales power network in the past decade were 2023–24 and 2024–25, with four fatalities in each year. Last year, there were five times as many category 1 safety incidents as in 2021 and three times as many category 2 incidents. Category 1 incidents encompass incidents where someone has died or nearly died, as well as major power outages that affect a major metropolitan area or regional city and/or critical infrastructure such as hospitals or transportation systems. Category 2 incidents include those involving hospitalisation. In addition to power outages, the incidents reported include electric shocks or burns, arc flashes and fires.

It is especially important that we uphold the best possible standards as we seek to increase the number of electrical apprentices to fuel the energy transition. Last year the District Court fined a company $300,000 after an apprentice was fatally electrocuted. The company failed to provide the necessary instruction and training on safe work practices and did not adequately supervise apprentices. With a stronger regulatory and licensing system and a specialised, dedicated regulator, safer practices and stronger enforcement are more likely to prevent incidents like this.

Safety incidents affect more than just the workers. The number of members of the public affected by an arc flash or electric shock increased by 66 per cent between 2021 and last year. I have also heard reports that over half of the Building Commission's electrical inspections of households and construction have found noncompliance. Those inspections include rooftop solar and batteries. As companies and government invest more in new infrastructure for the renewable energy transition, and more houses and apartments add batteries and solar panels, our State is seeing far more electrical work.

With that comes a higher risk of injury, especially when some companies cut corners and neglect best safety practices. I commend the Electrical Trades Union NSW for its advocacy on this issue and the work it does for its members. I again emphasise that, notably, this reform is supported by both the union and industry groups. Labor has made great progress on improving our work health and safety system since it came into government, particularly by strengthening SafeWork NSW. If we are re-elected next year, I hope we can implement this much-needed reform as soon as possible.

WESTERN SYDNEY INFRASTRUCTURE

The Hon. SCOTT FARLOW (15:54): I mark a monumental fortnight for Western Sydney and for all of New South Wales. Across the region we are witnessing the culmination of a golden era of State-shaping infrastructure, which was all conceived, funded and brought to life through the unwavering vision and economic discipline of the former New South Wales Liberal-Nationals Government. We dreamt of and brought to reality a new place for Western Sydney at the heart of our State.

Let us look at the calendar of achievements currently reshaping our State. This weekend, on 25 October, the Western Sydney International (Nancy-Bird Walton) Airport officially opens for commercial flights, welcoming the world to a new gateway of economic opportunity. On 30 October services officially commence on the newly completed metro line to Bankstown, delivering world-class, high-frequency mass transit from north-west to south-west Sydney, completing the M1 line. On Saturday 7 November the magnificent Powerhouse Parramatta opens its doors, anchoring world-class arts and culture in the heart of our State's second CBD. Those projects are the culmination of the vision of a government and parties in which Western Sydney is not an afterthought but is the beating heart of our city and State. They are proof that when a government has the courage to plan, the discipline to fund and the determination to deliver, it can deliver State-shaping infrastructure.

The Western Sydney airport is a game changer of historic proportions. It was a Coalition vision of the Abbott Government, backed by the O'Farrell Liberal-Nationals Government, which broke decades of political paralysis to deliver a 24-hour international airport in Western Sydney. It was supported by the Western Sydney City Deal, which was signed under the Turnbull and Berejiklian Liberal governments, and there was support for the construction of roads and metro to service the airport. The construction was started under the Morrison and Berejiklian Liberal governments in 2018. The Deputy Premier, and Minister for Western Sydney was one of the first to line up in 2014 alongside the No Badgerys Creek Airport group, but I am sure she will be one of the first lining up this Sunday to take some happy snaps as the first planes depart.

Let me turn to the Sydney Metro City and Southwest line to Bankstown, which is due to complete its testing and open to commuters by 30 October. This world-class metro system slashes travel times, moves thousands of commuters per hour and links north-west and south-west Sydney to each other and, of course, to the city centre. When the New South Wales Liberal-Nationals Government boldly proposed converting the heavy rail to Bankstown to automated metro standards to unlock unprecedented capacity, the Labor Party shrieked in opposition. Who could forget the hysterical resistance from the Labor benches? The former Minister for Transport, and member for Summer Hill, Jo Haylen, opposed it and called it "nothing more than a Trojan Horse for development along the line". The Minister for Industrial Relations, and member for Canterbury also opposed the metro, saying that the "overall quality of life for local residents will suffer". Finally, the Minister for Customer Service and Digital Government, and member for Bankstown said, "The suitability of the metro on the T3 Bankstown line is questionable."

However, I noticed that all of them lined up with the Premier and the Minister for Transport for happy snaps before the metro to Bankstown opens next week. Labor have always been against the metro, defining its narrative with constant delay tactics and alliances with militant union bosses who fought tooth and nail against modern, efficient public transport. If Labor had had its way, Sydney would still be stuck in the transport dark ages, choked by the congestion of the past. Maybe that is why it is so obsessed with the Tangara of the 1980s. Maybe Minister Graham's next project will be the red rattler revitalisation program.

On the calendar of completion of Coalition infrastructure projects in Western Sydney—and I am sure one close to your heart, Mr President—is the world-class Powerhouse Parramatta, which will open its doors on 7 November. That landmark cultural institution anchors the arts in Western Sydney, ensuring that families do not have to travel to the eastern suburbs or the CBD to experience world-class exhibitions and heritage. Labor members opposed the project at every turn, but they will all turn up to cut the ribbons, no doubt. One of my first committees in this place held the museums and galleries inquiry and, at every turn, the Labor Party used it to oppose and undermine the Powerhouse Parramatta. In 2018 Labor withdrew its bipartisan support. Labor members hated it so much that they promised to cancel it if they were elected in 2019. They labelled it a vanity project, but I am sure they will be all smiles when they line up at the opening.

As we watch planes touch down at Nancy-Bird Walton airport, as commuters tap on to catch their first metro service to Bankstown and as families walk through the grand halls of the Powerhouse Parramatta, the contrast could not be starker. The Liberals and Nationals dreamt it, funded it and built it. The Labor Party opposed it, delayed it and belittled it every step of the way. That is the sort of vision that New South Wales, and particularly Western Sydney, needs again, and it is the Coalition under Kellie Sloane that will deliver it. That is why we have outlined our new Western Sydney City Deal.

DIRECTOR OF PUBLIC PROSECUTIONS

The Hon. STEPHEN LAWRENCE (15:59): How long until an Australian Tony Soprano claims in the witness box, "Sure. I was in the meeting where my boys planned knocking my enemy Phil, but I was busy on my phone and I only learned recently that they did it"? That is the precedent being mainstreamed by the rolling controversy about the New South Wales DPP planting a media story about Judge Wass. DPP Sally Dowling's very twenty-first century defence to the allegation of leaking on her enemy Wass to 2GB was "I was distracted on my phone" in an October 2024 meeting where underlings planned it. The meeting was called to discuss a media inquiry about Wass making a complaint to the Bar Association about Dowling.

Dowling claims she left the meeting believing that media already had the story, rather than it was about to be planted. But they did not and it was. Dowling says she had the wrong end of the stick until December 2025, two days before she gave evidence to a parliamentary inquiry, when she finally read a disciplinary report that had led to the counselling of her media officer Ms Sally Killoran. The report was then four months old, and Dowling told the committee she had immediately "sought a further report concerning what action should be taken" but had apparently not read the report itself. On 1 May 2026 Dowling was asked:

> The possibility never occurred to you, over that period of one year and two months, that your office had planted the story?

Her answer was no. Of course, she would have been obliged to investigate any such possibility. Dowling does not dispute that Killoran left the meeting believing Dowling authorised it. Two of the four meeting participants avoided giving sworn evidence and have not addressed Dowling's claim of phone distraction and 15 months of ignorance. When Brigid Glanville emailed Dowling last week with a statement, she also did not contradict Killoran's assertion of leaving the meeting believing Dowling authorised the plant. It is not disputed that Chief Judge Sarah Huggett rang Dowling "shortly after" the story ran and asked her if the ODPP had planted it. Dowling incorrectly denied it and made no inquiries. Judge Wass reported the matter to police and, in February 2025, *The Australian* reported it was:

> investigating allegations that the leak ... was motivated by a DPP staffer ... to damage the reputation of a judge who had been critical of Dowling's conduct.

Investigators unsuccessfully asked Dowling for a statement addressing her conversations with Killoran. In February 2025 Dowling attended a budget estimates hearing and said that an internal investigation was awaiting the conclusion of the police one. She said:

> I don't have visibility over this event. My office has not conducted an investigation. I'm not going to speculate about the outcome of that until it has happened.

She was pressed, "If this information was volunteered, would that be appropriate action on the part of your media person?" She said, "I cannot answer that question." By August the investigations were over and further estimates hearings were scheduled. It seemed likely that the truth would emerge. Dowling failed to attend and her replacement, Craig Hyland, was not briefed. The ODPP was therefore asked a post-hearing supplementary question, "Please explain the chain of communication from the hearing to the disclosure to the journalist." The answer was that the ODPP is not in a position to "explain the chain of communication from the hearing to the disclosure to the journalist". Dowling was later challenged. Surely the more accurate response is that only the ODPP is in a position to explain it. The answer was further probed and she was asked, "What inquiries had your staff made before presenting this draft answer to you for your approval?" The answer was:

> This question was directed to and answered by the Solicitor for Public Prosecutions. Properly, if you want to pursue this question, it should be directed to the Solicitor.

In December 2025 Hyland told the committee that Dowling's chambers had provided the answer and Dowling eventually admitted she had personally approved the response. On 5 December 2025 Dowling attended our inquiry, knowing we were examining the planting of the story, aware her staff had planted it and aware she was in the meeting. She gave a careful opening statement. She said:

> I am now aware that ... the ODPP's media manager spoke to someone associated with 2GB about the ... welcome to country on the understanding that they may wish to run a story about it.

She was later directly asked by me if her office planted it. Her answer was, "It was not my understanding until, I think, two days ago." There was clarity in part, but we still knew nothing about the key meeting. Weeks later, hours before Sally Killoran was to give evidence and reveal the meeting, Dowling lodged an unexpected submission, revealing the meeting and her "phone defence" for the first time. The media plant was about Wass asking an Aboriginal defendant to acknowledge country. Like clockwork, it provoked a racialised debate. Wass has endured threats and abuse. Just last week I was distracted on my phone and saw a new, ugly, racist post with her photo. I put my phone down. Only a statutory inquiry will resolve the issues raised by Dowling's very twenty-first century defence to an allegation of abuse of power.

The PRESIDENT: The question is that this House do now adjourn.

Motion agreed to.

The House adjourned at 16:04 on Friday 23 October 2026 until 12:30 on Tuesday 10 November 2026.